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What Judges Need to Know: The Anti-Factual Challenge and Judicial Review

Susanne Baer*

Today, there is a 'knowledge crisis', informing 'societies of doubt'. Looked at more closely, we are confronted with attacks on expertise and knowledge, on facts and truth, as one chapter in the autocratic playbook. This challenges the legal system in many ways, be it legislation and other types of regulation, or administration and governance, as well as legal protection by courts. For courts, the challenge is particularly problematic. Judges do not only have to apply law that is more complicated than ever, with legal pluralism ranging from local to global norms. Courts are also, next to independent media, civil society and the academy, targeted by autocrats because they are in their way. Yet in addition, courts must navigate facts in new ways. The article argues that courts are needed as facilitators, curators and communicators of facts, to counter the threats and defend, not least, democracy and justice. Also, legal education must ensure that future lawyers and judges are up to these new callings.

Imagine you are a judge, at a supreme court, a constitutional court, or a human rights court in particular. There are new files on your desk. You open them, and find empirical studies on both sides, to attack a statute, and to defend it. They look pretty much the same. How do you decide? This is the question that drives this lecture.[1] It is a call for cognitive resilience and for a refined doctrine of constitutional epistemology. It is about nothing less than the truth, the whole truth,[2] which seems to slip away because truth is in crisis. More precisely, to counter the trend summarising rather diverse phenomena as 'crisis', the truth is in crisis because knowledge is systematically undone, as either illegitimate or outright false, or wrong. But what does that mean for the law, for courts and

*Professor of Public Law and Gender Studies at Humboldt University Berlin, Lea Bates Global Law Professor at the University of Michigan Law School and a Centennial Professor at LSE. She served as a judge on the German Federal Constitutional Court from 2011-2023.

1 Note that last year's Chorley lecture also focused on knowledge in (statutory) law: Nicola Lacey, 'Institutionalising Interpersonal Ideas in Law' (2025) 88 MLR 3.
2 Sworn testimony in trial refers to the truth in different versions, see below. 'Nothing but the truth' is also the title of a US film from 2008 that was inspired by a real event, when a journalist was jailed for contempt of court because she refused to testify on her sources. Prominent US lawyer, Floyd Abrams started as an advisor on the film and was eventually cast as the judge.

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for judicial review in particular?[3] My argument is to not only take the law, or rights, but also to take facts seriously,[4] in order to deal with the anti-factual challenge.

Certainly, it is not a new question to address knowledge, and truth, in law.[5] Namely, evidence is a classic theme, primarily in criminal law, but even that needs an update in light of today's technologies of manipulation, and the need for a convincing response is rather urgent. Certainly, the quest for a proper understanding of knowledge is also not a petty concern, and not just a legal one. But the issue of persuasion tends to overshadow a quest for epistemology, and thus, heuristics.[6] Instead, to understand facts, knowledge, and truth in law, and specifically the handling of extra-juridical knowledge in constitutional adjudication, we need interdisciplinary attention, at least for those in socio-legal studies. This is also a proper stance for Chorley lectures, with H.L.A. Hart talking about nothing less than the 'Demystification of the Law' in 1972, and Roberto Unger eventually, in 1995, rejecting 'rationalising legal analysis' with its 'institutional fetishism' as rather limited and frail, to seek an alternative in legal thought without adjudication.[7] I will not go there. But reading the Modern Law Review, it becomes pretty clear that Chorley lectures have also addressed the changing conditions of knowledge, including data,[8] truth, and the law. In 1999, Kader Asmal described the South African practice of the Truth and Reconciliation Commission an alternative way of dealing with facts, including colonial trauma,[9] which remains a challenge. And closer to the focus on truth in crisis, Anthony Giddens in 1998 discussed German sociologist Beck's

3 S. I. Strong, 'Alternative Facts and the Post-Truth Society: Meeting the Challenge' (2016) 165 U Pa LR Online 137.

4 This echoes legal philosopher Ronald Dworkin, *Taking Rights Seriously* (Cambridge, MA: Harvard University Press, 1977).

5 Peter Häberle, *Wahrheitsprobleme im Verfassungsstaat* (Baden-Baden: Nomos, 1995); Ulfried Neumann, *Wahrheit im Recht* (Baden-Baden: Nomos, 2004); Björnstjern Baade, *Wahrheit und Recht* (Tübingen: Mohr Siebeck, 2023) on disturbances of truth in regulation, asylum and media law; see also Barbara J. Shapiro, *A Culture of Fact: England, 1550-1720* (Ithaca, NY: Cornell University Press, 2000); Austin Sarat, Lawrence Douglas and Martha Merrill Umphrey (eds), *How Law Knows* (Stanford, CA: Stanford University Press, 2007). Regarding supreme courts, the conversation has but started, with speeches by Australian Justice Michelle Gordon 2002 and by Chief Justice of New South Wales, A. S. Bell, 'Truth Decay and its implications for the judiciary: an Australian perspective' 4th Judicial Roundtable, Durham University (23-26 April 2024) at https://supremecourt.nsw.gov.au/documents/Publications/Speeches/2024-speeches/chief-justice/Truth_Decay_29042024.pdf [https://perma.cc/BD59-M5DE]. Also see Alex Stein, 'Constitutional Evidence Law' (2019) 61 Vanderbilt LR 127.

6 In Britain, see Richard L. Pacelle, Brett W. Curry and Brian W. Marshall, *Decision Making by the Modern Supreme Court* (Cambridge: CUP, 2011); Lindsay Stirton and T. T. Arvind, 'Slaying the Misshapen Monster: The Case for Constitutional Heuristics' in Stuart Lakin and Dimitrios Kyritsis (eds), *The Methodology of Constitutional Theory* (Oxford: Hart Publishing, 2022). See also Tom Ginsburg, 'Constitutional Epistemology' in David S. Law and Malcolm Langford (eds), *Research Methods in Constitutional Law: A Handbook* (Cheltenham: Edward Elgar Publishing, 2020).

7 Roberto Mangabeira Unger, 'Legal Analysis as Institutional Imagination' (1996) 59 MLR 1, 10, 16, 17, 19, outlining historical sources of an 'anti-experimentalist' way of dealing with the world. Policy oriented or principle based modes of thinking (*ibid*, 11) were eventually taken over by 'conservative reformism' (*ibid*, 18).

8 In 2015, Mireille Hildebrandt, 'Law as Information in the Era of Data-Driven Agency' (2016) 79 MLR 1.

9 Kader Asmal, 'Truth, Reconciliation and Justice: The South African Experience in Perspective' (2000) 63 MLR 1.

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notion of the 'risk society'[10] a world of insecurity, not least, because of a lack of knowledge on many fronts. But times have changed, and risk has turned into doubt, fuelled by lies and manipulation. How do we handle this now?

Chorley Lectures have also dealt with judicial review, understood as the task and power of courts to review and strike down legislation, administrative acts and court decisions. Skepticism is in order,[11] resulting in constructive criticism at best, not to be confused with the attacks levelled by those seeking unrestricted power for themselves. I defend judicial review as indispensable for a democracy that deserves the label. Not surprisingly, this falls in line with the first female president of the German Constitutional Court, Jutta Limbach, explaining the 'Concept of the Supremacy of the Constitution'.[12] In fact, national as well as regional and global human rights courts have become important actors in making sure that democracy is not a cover-up for autocrats. Certainly, there are varieties to constitutionalism, but the commitment to an enforceable set of rights and principles is key. Therefore, in 2011, Kate O'Regan, a former judge of the South African Constitutional Court, reminded us to not forget about the text,[13] because it is really about the law, not politics, and already wondered how much room there is for what Waldron calls 'reasonable disagreement'.[14] No need to be afraid, because even proportionality rulings in the House of Lords did not lead to exaggerate uses of power, as Thomas Poole demonstrated by putting some well-established criticism of constitutionalism to the empirical test.[15] But what happens to judicial review, and thus, to fundamental rights and democracy, when confronted with the anti-factual challenge?

What is the role of courts when facts, expertise and knowledge, and thus, the truth, are in a precarious position, in an endangered state, and eventually eroding? Courts must apply the law, yes, and that is difficult enough, but what are, today, the facts of a case? How should supreme, constitutional and human rights courts[16] handle facts, knowledge, the truth, when these are called into question, often radically so? This is an urgent question because, epistemologically, things have changed.

I saw it in my files. Serving as a Justice of the German Federal Constitutional Court from 2011 to 2023,[17] there were many complicated legal questions to

10 Anthony Giddens, 'Risk and Responsibility' (1999) 62 MLR 1.

11 In 2014, Martin Loughlin presented his skepticism in 'The Constitutional Imagination' (2015) 78 MLR 1. Constitutional texts, he argues, are invested with a 'world-making' capacity and colonise the political domain. In the 'age marked simultaneously by the widespread adoption of the idea of constitutionalism, of ambiguity over its meaning, and of anxiety about its continuing authority, he asked 'whether the power of the constitutional imagination can still be sustained', to eventually argue that it cannot: Martin Loughlin, *Against Constitutionalism* (Cambridge, MA: Harvard University Press, 2022).

12 Jutta Limbach, 'The Concept of the Supremacy of the Constitution' (2001) 64 MLR 1.

13 Kate O'Regan, 'Text Matters: Some Reflections on the Forging of a New Constitutional Jurisprudence in South Africa' (2012) 75 MLR 1.

14 Jeremy Waldron, *Law and Disagreement* (Oxford: OUP, 1999).

15 Thomas Poole tested two well-known objections, this time made by Griffith, that law kills politics, and that human rights law, in particular, is ideological. See Thomas Poole, 'Tilting at Windmills? Truth and Illusion in "The Political Constitution"' (2007) 70 MLR 250.

16 These institutions differ in important ways, including their regular exposure to different cases and sets of facts which frame a court's take on what matters.

17 The farewell speech has been published: Susanne Baer, 'To Listen and To Belong. A Personal Take on Constitutionalism Today' (2025) 26 German LJ 350.

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answer, including the need to systematically integrate national, transnational and international law, and to make use of comparative analysis.[18] However, it was the facts that bothered the Court in the climate case,[19] the Covid cases,[20] the decision to not discriminate against people that are medically intersexual,[21] and more. And again, this is not a German problem. In the UK, think of the 'facts' that made Britain go to war against Iraq, or the 'facts' spread about migration as well as human rights by the Brexit campaign, or what has been dubbed a 'gender-war' around transgender rights.[22] Facts matter, and we know by now that they are manipulated, or ignored, while lies are mislabelled. In politics, this has been recognised as a particular abuse of power.[23] Now what about courts? They are under many pressures,[24] but the post-factual challenge may be more dangerous than the rest. When courts are called upon to decide, what should judges know, accept as true or reject as false, presented by government and other parties?

In 2025, a young Iranian, Noureen Akhtar, posted the question online: 'What is Justice in a Post-Truth World?'[25] Justice, she says, or Justitia, cannot any longer be the figure with a pair of scales and certainly not blindfolded, but has to now see 'through the digital smog of deceptions masked as facts and noise masquerading as knowledge'. How can this be done? Akhtar says that there is a crisis of knowledge, a crisis of truth, which I call 'the anti-factual challenge'. What does this mean for the law? As much as the rule of law is the grammar of democracy,[26] we must confront this question: How should courts deal

18 On the renaissance of comparative constitutionalism, see Susanne Baer, *Renaissance der Verfassungsvergleichung* (Tübingen: Mohr Siebeck, 2023); on institutions, Susanne Baer, 'Comparing Courts' in Armin von Bogdandy and Eberhard Schmidt-Aßmann (eds), *Theorising Comparative Public Law* (Baden-Baden: Nomos, 2024) 443.

19 BVerfG, Order of the First Senate of 24 March 2021 – 1 BvR 2656/18 – (Climate Change; sometimes labelled *Neubauer*, the name of one prominent litigant), in which the German Federal Constitutional Court (GFCC) held that Germany violates the right to liberty, as an 'intertemporal guarantee of freedom', because of the disproportionate burden on people in the future.

20 BVerfG, Order of the First Senate of 19 November 2021 – 1 BvR 781/21 – (federal pandemic emergency brake I – curfews and contact restrictions); BVerfG, Order of the First Senate of 19 November 2021 – 1 BvR 971/21 – (federal pandemic emergency brake II – school closures); BVerfG, Order of the First Senate of 16 December 2021 – 1 BvR 1541/20 – (Risks of disadvantages for persons with disabilities in triage situations).

21 BVerfG, Order of the First Senate of 10 October 2017 – 1 BvR 2019/16 – (Third Option).

22 For example Jill Foster, '"They've silenced women again": Inside the gender war tearing Labour apart' *The Telegraph* 23 May 2025.

23 On lies, see Hannah Arendt, 'Truth and Politics' in *Between Past and Future: Eight Exercises in Political Thought* (1967, New York, NY: Viking Press, 1969) 227 ('no one has ever doubted that truth and politics are on rather bad terms with each other'); Hannah Arendt, *On Lying and Politics* (1971, New York, NY: Library of America Special Publication, 2022); Jacques Derrida, 'History of the Lie: Prolegomena' (1997) in Peggy Kamuf (ed and tr), *Without Alibi* (Stanford, CA: Stanford University Press, 2002) 28; Adrienne Rich, *On Lies, Secrets, and Silence: Selected Prose 1966-1978* (New York, NY: Norton, 1995).

24 Mikael Rask Madsen and others, 'Sovereignty, Substance, and Public Support for European Courts' Human Rights Rulings' (2021) *iCourts Working Paper Series* 259; Gerald L. Neuman (ed), *Human Rights in a Time of Populism: Challenges and Responses* (Cambridge: CUP, 2020).

25 Noureen Akhtar, 'What is Justice in a Post-Truth World?' *Modern Diplomacy* 30 April 2025.

26 Stephen Holmes, 'Lineages of the Rule of Law' in José M. Maravall and Adam Przeworski (eds), *Democracy and the Rule of Law* (Cambridge: CUP, 2003) 19.

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with truth, thus uncover and reject beliefs, assumptions, and lies, in a polarised, triggering, wild world?

There is little time to find an answer. Note that the truth did not just slip into crisis on its own. Rather, it is kicked around, beaten up, mobbed and, sorry for the term, 'shitstormed' out of our minds, or should we say phones, aggressively. The same with democracy: it does not simply die, as US political scientists famously described in 2018, but it is murdered.[27] This is done by people described as autocrats, which I call the new totalitarians because of the updated arsenal of weapons to destroy democracy, and thus legitimacy grounded in fair elections, human rights, and the rule of law. Therefore, the time to care for truth is now. What is the role of courts in a 'culture of justification'?[28] What should judges know, as well as lawmakers, lawyers, academics, all of us, to deal with the anti-factual challenge?

I describe the challenge first, to understand what is happening, how and where it matters, and why this crisis behind the crisis is of such grave concern. It affects all areas of legal practice, but my focus is on supreme, constitutional and human rights courts, and judicial review. What kind of facts matter there, and why? What is the role of such courts under these new conditions, and how can they handle the challenge? There are many answers to these questions, and hopefully, there will be more, to better understand the epistemological role of courts in judicial review. I will end with a call for updated legal education.

THE ANTI-FACTUAL CHALLENGE

We do not live in post-factual times, but we are faced with a severe anti-factual challenge.[29] It is a highly polluted environment. Truth, facts, expertise, reality tends to get lost.[30] And this is not new.[31]

In 1943, George Orwell commented on fascist propaganda. He wrote: 'This kind of thing is frightening to me, because it often gives me the feeling that the very concept of objective truth is fading out of the world'.[32] Then, philoso-

27 Steven Levitsky and Daniel Ziblatt, *How Democracies Die* (New York, NY: Random House, 2018). Kim L. Scheppele clarified they are murdered; see her seminal analysis, 'Autocratic Legalism' (2018) 85 U Chicago LR 545.

28 Etienne Mureinik, 'A Bridge to Where? Introducing the Interim Bill of Rights' (1994) 10 S African J Human Rights 31; David Dyzenhaus, 'Law as Justification: Etienne Mureinik's Conception of Legal Culture' (1998) 14 S African J Human Rights 11. On moral reasons Kai Möller, 'Justifying the Culture of Justification' (2019) 17 ICON 1078.

29 The same point, but not the same label, is used by Baade, n 5 above, § 6.

30 Vincent F. Hendricks and Mads Vestergaard (eds), *Reality Lost: Markets of Attention, Misinformation and Manipulation* (Cham: SpringerOpen, 2019).

31 For example in the US, Jerome Frank, *Law and the Modern Mind* (New York, NY: Brentano's, 1930); Ronald Dworkin, 'Objectivity and Truth: You'd Better Believe It' (1996) 25 *Philosophy and Public Affairs* 87; Susan Haack, 'Truth, Truths, "Truth", and "Truths" in the Law' (2003) 26 Harvard J of Law and Public Policy 17.

32 George Orwell, 'Looking Back on the Spanish War' *The Orwell Foundation* (Essays and other works, first published 1943) at https://www.orwellfoundation.com/the-orwell-foundation/orwell/essays-and-other-works/looking-back-on-the-spanish-war/ [https://perma.cc/W3F8-V96T]. See also Timothy Snyder, *On Tyranny* (London: Random House, 2017), describing that 'post-truth is pre-fascism'.

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pher Hannah Arendt, a close observer of German fascism, explained that lies 'are often used as substitutes for more violent means', and thus 'are apt to be considered relatively harmless tools in the arsenal of political action'.[33] She already described an 'extreme contempt for facts', and a trend she called '*Defaktualisierung*', or de-factualisation, as essential to the rise of totalitarianism.[34]

Today, contempt is back, and some saw it coming.[35] In England and Germany, 'post-truth' was the word of the year in 2016; the 'decay of truth' was described in 2018; a 'truth crisis' in 2021.[36] Former US President Barack Obama called it an 'epistemological crisis' in 2020.[37] So what is going on, exactly?

The crisis of truth, and facts, is a crisis behind the crises. In various ways, it informs, shapes and perpetuates the financial crisis, the health crisis of a pandemic like Covid, the climate crisis and, last but not least, war, be it in cyberspace, with drones or in trenches, all of which result in mass migration, which is a crisis of human rights. Look at it this way: The truth about international finance? The truth about the virus, and injections, the shots? Climate expertise – who knows? War – or is it an 'operation', 'aggression', or 'self-defence' – so hard to tell, and with AI producing imagery at will, the 'sources cannot be verified'. So what are the facts?

It is a crisis, and it is also a paradox. There is so much data out there, so many facts. We know more than ever, but we do not know what information to trust. Then, it is not knowledge but belief that becomes decisive. Facts are there, but they may be manipulated, fake and false. Therefore, this is not just another struggle over meaning.[38] Rather, our shared epistemic foundation[39] is eroding, if not gone.

This is extremely uncomfortable. Economically, post-industrial societies have been described as 'knowledge societies', and much effort goes into education and study, training, research, and information management.[40] But when knowledge loses its standing, what then? Politically, democracy suf-

33 'Truth and Politics' *New Yorker* 25 February 1967, 49, reprinted in Hannah Arendt, *Between Past and Future: Eight Exercises in Political Thought* (New York, NY: Viking, 1969) 227.

34 Hannah Arendt, *The Origins of Totalitarianism* (1951, London: Penguin, Eng tr, 2017) 461 and 501-2. '*Defaktualisierung*' is the term used in '*Die Lüge in der Politik*': Arendt, *On Lying and Politics* n 23 above.

35 Mirjan Damaska, 'Truth in Adjudication' (1997) 49 Hastings LJ 289 (to 'clear the fog' around doubts as to whether courts can find anything like the truth).

36 Jennifer Kavanagh and Michael Rich, 'Truth Decay' *Rand* (Research reports, 16 January 2018) at https://www.rand.org/pubs/research_reports/RR2314.html [https://perma.cc/NZA4-JKCM]; Peter Trawny, *Krise der Wahrheit* (Frankfurt: Fischer, 2021).

37 Jeffrey Goldberg, 'Why Obama Fears for Our Democracy' *The Atlantic* 16 November 2020 at https://www.theatlantic.com/ideas/archive/2020/11/why-obama-fears-for-our-democracy/617087/ [https://perma.cc/6JH3-EL42].

38 Saul Newman and Maximilian Conrad, *Post-Truth Populism* (London: Palgrave Macmillan, 2024). On factualism, see Ian McMuller, 'Survey Article: What Is "Post-factual" Politics?' (2020) 28 J Pol Phil 97.

39 Aziz Huq and Tom Ginsburg, 'How to Lose a Constitutional Democracy' (2018) 78 UCLA Law Review 80; Tom Ginsburg and Aziz Z. Huq, *How to Save a Constitutional Democracy* (Chicago, IL: University of Chicago Press, 2018).

40 One famous contribution is Carl Shapiro and Hal R. Varian, *Information Rules: A Strategic Guide to the Network Economy* (Cambridge, MA: Harvard Business Press, 1999).

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fers.[41] The less ability to agree on facts and then discuss what to do about them, the less legitimacy is attributed to decisions. Philosophically, foundations are lost, because a discursive community and communicative action, according to Jürgen Habermas,[42] or systems of communication, according to Niklas Luhmann[43] and Günter Teubner,[44] or the idea of democracy as a 'marketplace', mostly of ideas,[45] are all based, in one way or another, on a commitment to truth, information, knowledge, facts. When this is gone, democracy becomes a fake performance. Are we thus bound, as sociologist Helmut Willke suggested in 2002, in early studies on the knowledge crisis, towards *dystopia*?[46]

Democracy did not turn into 'expertocracy'.[47] Also, the 'espistemocracy', in which factual coercion – '*Sachzwänge*' – are said to define politics is not dominant anymore.[48] Instead, Korean-German philosopher Han sees 'infocracy'[49] at work, and AI expert Nina Schick has already described the 'infocalypse'.[50] The dominant political strategy is, excuse the language, to 'flood the zone with shit', to quote an infamous radical[51] who organises globally. This leads to info-pollution, or '*Informationsverschmutzung*', a strategy also known as 'muddying the waters'.[52] However, American philosopher Harry Frankfurt already described this in 1986, *On Bullshit*.[53] There are more and more empty phrases, essentially

41 Edelman Trust Barometer 2025, 'UK Report' at https://www.edelman.com/uk/trust/2025/trust-barometer [https://perma.cc/SR9W-EGQG]; and Edelman Trust Barometer 2025, 'Global Report' at https://www.edelman.com/trust/2025/trust-barometer [https://perma.cc/69R5-F8TP].

42 Jürgen Habermas *Theorie des kommunikativen Handelns* 2 vols (Frankfurt: Suhrkamp, 1981); English translation: *The Theory of Communicative Action* (Boston, MA: Beacon Press, 1984).

43 Niklas Luhmann, *Soziale Systeme: Grundriß einer allgemeinen Theorie* (1984); English translation: *Social Systems* (Stanford, CA: Stanford University Press, 1995)

44 On constitutionalism, Gunter Teubner, *Constitutional Fragments. Societal Constitutionalism in the Globalization* (Oxford: OUP, 2012); in German: *Verfassungsfragmente: Gesellschaftlicher Konstitutionalismus in der Globalisierung* (Berlin: Suhrkamp, 2012).

45 Ari Ezra Waldman, 'The Marketplace of Fake News' (2018) 20 U Pa J Const L 845, 869.

46 Helmut Willke, *Dystopia* (Frankfurt: Suhrkamp, 2002). For earlier work on knowledge and democracy, see Sanford A. Lakoff, 'Knowledge, Power and Democratic Theory' (1971) 394 The Annals of the Am. Acad. of Pol and Social Sciences 4; John Dewey, *Freedom and Culture* (1939, various editions); Yaron Ezrahi, *The Descent of Icarus* (Cambridge, MA: Harvard University Press, 1990); Philip Kitcher, *Science, Truth, and Democracy* (Oxford: OUP, 2001).

47 Laura Münkler, *Expertokratie. Zwischen Herrschaft kraft Wissens und politischem Dezisionismus* (Tübingen: Mohr Siebeck, 2020); Veith Selk, 'Expertocracy as Thin-centered Ideology: Theoretical Concepts and Empirical Illustrations' (2025) 7 *Political Research Exchange*.

48 Former German Chancellor Angela Merkel has been praised for that at times, and describes this in her autobiography *Freedom* (New York, NY: St Martin's Press, 2024), but has also been described as depoliticising politics. See Alexander Bogner, *Die Epistemisierung des Politischen* (Leipzig: Reclam, 2021).

49 Byung-Chul Han, *Infocracy: Digitization and the Crisis of Democracy* (Cambridge: Polity, 2022).

50 Nina Schick, *Deep Fakes and the Infocalypse* (London: Monoray, 2020).

51 Steve Bannon regarding the media in 2018, in a talk with Michael Lewis. See John Whitehouse, 'Misinformer of the Year: Steve Bannon's "flood the zone with shit" approach is destroying American democracy' *Media Matters* 28 December 2021 at https://www.mediamatters.org/steve-bannon/misinformer-year-steve-bannons-flood-zone-shit-approach-destroying-american-democracy [https://perma.cc/ZMY4-FYT3].

52 Origins are disputed, see 'Muddy the Waters' The Media Manipulation Casebook, Case Study at https://mediamanipulation.org/definitions/muddy-waters/ [https://perma.cc/789N-PTQ2].

53 Harry Frankfurt, *On Bullshit* (Princeton, NJ: Princeton UP, 2005).

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nonsense, coming into the world, and not linguistic games, à la Wittgenstein. They produce doubt, and eventually an ignorant society. How many people have told you lately they avoid the news? Then, what matters is not what is *true*, or *fact*. What matters is what *works*, and, to whoever asks a question, what is *believed*, gets *likes* and *clicks*, provokes a *reaction*, no matter what. Ignorance is the sign of power, of new totalitarianism on the rise.

Flooding the public is not a new strategy, but technologies intensify the flood. To spread disinformation is much easier today than in the 1940s, when Orwell and Arendt worried, and it is less visible. Today, there is no '*Volksempfänger*', a low-cost radio produced in 1933 to disseminate Nazi Propaganda in Germany, no paper most people read, and certainly no citizens' assembly, no marketplace. One should not forget all those that organise neighbourhoods, rallies, and other forms of associative democracy. But the dominant form of communication are blurbs, be it text or picture, on the still so-called 'social' but deeply unsocial bubbles of media technology. In programming, knowledge matters for sure, and facts do, as reliable science to invent, design and build technology and algorithms. This is why those who spread lies aggressively defend their codes, their patents, their technology.

The goal is clear: You shall be totally absorbed in micro-targeted news, which also caters to your entrepreneurial self that absorbed late capitalism in what Michel Foucault calls '*gouvernementalité*', with individuals governing themselves.[54] And it works. Recent elections show (not only in the US) that 'muddying the water' helps catch more fish, as voters, and many votes are cast on the basis of emotional appeal. Also, protesting totalitarians when they are taking over is but a passing swarm of very small fish online, thus no pressure, and no change. Is this too pessimistic? At least, it has many sensible people worried, like Akbhar, the young Iranian. And she is not alone. For example, most delegates at the controversial but influential World Economic Forum at Davos, an annual meeting of around 3,000 paying or selected investors, business and political leaders, celebrities and journalists, agree. For the second year in a row, they consider 'disinformation' the biggest short-term global threat, before war and weather disasters, thus identifying an issue that did not even feature on the worry list before 2024.[55]

Also, all over the world, the new totalitarians are up and running. However safe you may feel right now, don't be fooled. There is a story often used: If you put a frog in water slowly made to boil, it will not jump but die. Similarly, post WW II-refugee, political scientist and first female US Secretary of State Madeleine Albright describes the rise of fascism as plucking the chicken one feather by one, so it does not shriek too loudly, but is dead in the end.[56] This is the strategy, and the ideology is ethnonationalist racist, heterosexist patriarchal,

54 Michel Foucault, 'Governmentality' in Graham Burchell, Colin Gordon and Peter Miller (eds), *The Foucault Effect: Studies in Governmentality* (Hemel Hempstead: Harvester Wheatsheaf, 1991) 87. See also Mitchell Dean, *Governmentality: Power and Rule in Modern Society* (London: Sage, 1999).

55 Mark Elsner, Grace Atkinson and Saadia Zahidi, 'Global Risks Report' *World Economic Forum* (Reports, 15 January 2025) at https://www.weforum.org/publications/global-risks-report-2025/ [https://perma.cc/SJ7R-SDG4].

56 Madeleine Albright, *Fascism: A Warning* (New York, NY: HarperCollins, 2018).

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ruthless and greedy,[57] seeking societies to be run, again, by a leader, a 'Führer' now called a CEO, using effective technological control, and being profitable, last not least.[58] If things go wrong, there is still Mars. What may seem like one of the weaker James Bond movie scripts is turned into a brutal reality. We are not beyond knowledge, not 'post-factual'.[59] There is no natural sliding into this, and facts do still matter, ie harm is done to people. But there is the anti-factual challenge, as 'counterknowledge'[60] and 'alternative truth', and the new mark of power is to simply not care.

To avoid a misunderstanding: there was no golden era of truth.[61] We have no reason to romanticise the past. Truth was always contested, and there is no distanced neutral objectivity. The history of science is also a history of bias, which is what happens when you exclude women, for one. Luckily, critical epistemologies in gender studies, critical race and postcolonial studies and more allow us to uncover such biases, and understand the world much better.[62] Also, postmodernism started with Jean-François Lyotard's 1979 report on the conditions of knowledge,[63] and did not simply denounce the 'grand narratives', but demonstrated that they were not necessarily true in that they left out so much. But science stands for facts because it proceeds systematically, not anecdotally. It rests on reflexive objectivity, not prejudice. Here, criticism is not assault, and critical theory is not nihilism. Rather, critical studies shed more light on the world, in that they enlighten us in the best sense of the term. Similarly, Karl Popper and others[64] insisted that we are always but conditionally right, and have to take contingency into account.[65] The truth is relative, and knowledge is a living thing, which is why higher education and research are, at best, engaged in collaborative scepticism, which

57 András Sajó, *Ruling by Cheating: Governance in Illiberal Democracy* (Cambridge: CUP, 2021).

58 For a long time, researchers have asked which political system is more successful in handling this world. But what we see today is that autocrats around the world and many more, including the 'tech bros', have made up their minds. On one of them, see Max Chafkin, *The Contrarian: Peter Thiel and Silicon Valley's Pursuit of Power* (New York, NY: Penguin, 2021). On rhetoric, see Linda Williamson Nelson and Maynard T Robison, 'Which Americans Are More Equal and Why: The Linguistic Construction of Inequality in America' (2013) 20 Race, Gender & Class 294.

59 Ian MacMullen, 'Survey Article: What Is "Post-factual" Politics?' (2020) 28 J of Pol Phil 97.

60 The term has been coined by Damian Thompson, *Counterknowledge. How We Surrendered to Conspiracy Theories, Quack Medicine, Bogus Science and Fake History* (London: Atlantic Books, 2008).

61 Peter Stranbrink, 'New Turn Populism: Ideological or Epistemic? An Inquiry into Explanatory Models of Populism and the Meaning of "Post-truth"' in Saul Newman and Maximilian Conrad, *Post-Truth Populism* (London: Palgrave MacMillan, 2024) 277.

62 There is an abundance of literature, among them Genevieve Lloyd, *The Man of Reason: 'Male' and 'Female' in Western Philosophy* (London: Routledge, 1995); Sandra Harding, *Objectivity and Diversity: Another Logic of Scientific Research* (Chicago, IL: University of Chicago Press, 2015); Jean Halley, Amy Eshleman and Ramya Mahadevan Vijaya, *Seeing White: An Introduction to White Privilege and Race* (Lanham, MD: Rowman & Littlefield, 2022).

63 Jean-François Lyotard, *La Condition Postmoderne: Rapport sur le Savoir* (Paris: Les Éditions de Minuit, 1979), published in English as *The Postmodern Condition: A Report on Knowledge* (Minneapolis, MN: University of Minnesota Press, 1984).

64 Karl R. Popper, *Objective Knowledge: An Evolutionary Approach* (Oxford: Clarendon, 1972). Donald Davidson, 'A Coherence Theory of Truth and Knowledge' in *Subjective, Intersubjective, Objective* (Oxford: Clarendon/OUP, 1983) 137; Jeremy Fantl and Matthew McGrath, *Knowledge in an Uncertain World* (Oxford: OUP, 2009).

65 Gunther Teubner, 'Self-Subversive Justice: Contingency or Transcendence Formula of Law?' (2009) MLR 72, 1.

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new totalitarians denounce and destroy. They attack gender studies first, and critical race theory,[66] in a strategy to enlist you, in case you are a bit sceptical about these. A bit later, history is changed, by closing Holocaust studies,[67] rearranging exhibitions and retelling a nation's history,[68] and even medicine is limited to what a health minister believes in,[69] thus no research on vaccination, and so forth. This is how the anti-factual totalitarians discard truth and facts.

Also note that some very powerful people, organisations, companies, parties and governments, including presidents, have a keen interest in this loss of facts, of objectivity, of shared epistemic standards, of a consented upon truth. To them, those who object are not only wrong, but they are also not wanted, the 'enemy', as the current US Vice President called universities in 2021.[70] These autocrats are 'Merchants of Doubt',[71] in the, ironically named, marketplace of ideas. Although the metaphor is often used to argue for free speech,[72] it is flawed because markets are not fair without regulation. The more this 'market' is unregulated, the more aggressive and ruthless deal-makers produce their own truth,[73] as well as many 'truths' for many, to then simply not care,[74] neither for facts nor for other people. Then power gets away with lies, and spreading misinformation and disinformation is profitable business. It works. This is the anti-factual challenge. And isn't it much more comfortable to simply believe, and have somebody else take care of things? Isn't it enough to *feel* it to be true, *affirm* identity, be safe in my community – my bubble, no trouble. *No discussion, please* …

66 For example, Tunay Alta, Nadje Al-Ali and Katharina Galor (eds), *Resisting Far-Right Politics in the Middle East and Europe: Queer Feminist Critiques* (Edinburgh: Edinburgh University Press, 2025).

67 On changing policies in Poland, Jolanta Ambrosewicz-Jacobs, 'The uses and the abuses of education about the Holocaust in Poland after 1989' (2019) 25 *Holocaust Studies* 329.

68 US President Trump signed an executive order directing the Smithsonian to eliminate 'improper, divisive, or anti-American ideology' from museums; Sarah Steffen, 'Fact check: Is the Trump administration rewriting history?' DW, Politics, 27 August 2025 at https://www.dw.com/en/trump-changing-the-narrative-historical-facts-iraq-invasion-smithsonian-museums-censorship-slavery/a-73772563 [https://perma.cc/P3WG-H7MS]. See also Katie Stallard, *Dancing on Bones: History and Power in China, Russia, and North Korea* (Oxford: OUP, 2022).

69 For example, see Madeline Halpert, 'Trump administration to cut billions from biomedical research funding' *BBC News* 9 February 2025 at https://www.bbc.co.uk/news/articles/c15zypvgxz5o [https://perma.cc/4YL4-U5WE].

70 J.D. Vance, Keynote address at the second National Conservatism Conference, 11 February 2021.

71 Naomi Oreskes and Erik M. Conway, *Merchants of Doubt: How a Handful of Scientists Obscured the Truth on Issues from Tobacco Smoke To Global Warming* (London: Bloomsbury Press, 2010) 169-215; on the 'post-truth information economy': Han, n 49 above, 1364; on how knowledge is mobilised: Joel R. Malin and Dustin Hornbeck, 'Historical Knowledge Mobilisation in a Post-factual Era in the United States' (2022) 18 *Evidence & Policy* 502.

72 The canonical reference is a dissent by Justice Oliver W. Holmes in *Abrams* v *United States*, 250 U.S. 616, 630 (1919).

73 Lee McIntyre, *Post-Truth* (Cambridge, MA: MIT Press, 2018).

74 Eyal Zamir and Roi Yair, 'Deliberate Ignorance and the Law' Hebrew University of Jerusalem Legal Research Paper 19-13 (25 June 2019), DOI 10.2139/ssrn.3406635. See also Renata Salecl, *A Passion for Ignorance* (Princeton, NJ, Oxford: Princeton University Press, 2020).

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For sure, there is a paradox. There was never more knowledge, what Peter Burke called the 'knowledge explosion' in 2012.[75] Certainly, access to knowledge is not even, but more widespread, easier and faster than ever. For a while, the internet was a big promise, to finally get to know it all, but search engines do not give you everything but sell ranks. Also, the sheer mass and plurality of sources makes knowledge overwhelming, and we are lost in space. In addition, there is more manipulation than ever, in cheating and lying and falsification, as fake science and fake data, very easily done, but increasingly difficult to expose, and online forever, thus hard to correct. There are more expert committees, but less trust[76] in science,[77] and in institutions generally. There is a Rally-Round-the-Flag-Effect,[78] as in the early days of the pandemic, but it does not last, and trust often drops to lower levels than before.[79] Then, as well as facing global warming, and new versions of war, expertise becomes as needed as it is precarious. We have seen facts aggressively denounced and delegitimated,[80] as well as manipulated and faked. So we live with more information but enjoy no informational socialism; there are too many and no reliable facts, so much expertise and less and less certainty. That puts the anti-factual challenge as the crisis *behind* the crises, because there is no way, then, any longer for politics to reach consensus, nothing to agree on but belief, assumptions and lies, thus no democracy. Now what happens to the law?

REACTIONS IN LAW

How does law deal with or function in the anti-factual challenge? And what is the role of law and its institutions in dealing with beliefs, assumptions, and lies, all charged with emotions?

There are many answers to this question. Law as such has a 'knowledge dimension',[81] and it affects all realms of legal practice. Some knowledge enters regulation and some is excluded, legal knowledge is a factor in mobilising law, and law itself carries information and produces knowledge, for example via

75 Peter Burke, *A Social History of Knowledge II: From the Encyclopédie to Wikipedia* (Cambridge: Polity Press, 2012).

76 David Kaldewey, '*Die Krise der Faktizität*, revisited' (2025) 50 *Österreich Zs für Soz* 22.

77 Rainer Bromme and others, 'An anchor in troubled times: Trust in science before and within the COVID-19 pandemic' 17 *PLoS ONE* e0262823 (Research article, 9 February 2022) at https://doi.org/10.1371/journal.pone.0262823 [https://perma.cc/D5Q3-7TP9].

78 Jong R. Lee, 'Rallying around the Flag: Foreign Policy Events and Presidential Popularity' (1977) 7 *Presidential Studies Q* 252; Dominik Schraff, 'Political Trust during the Covid-19 Pandemic: Rally around the Flag or Lockdown Effects?' (2020) 30 European J of Political Research 1007.

79 Rebecca M. Bratspies, 'Regulatory Trust' (2009) 51 Arizona LR 575.

80 Nuria Almiron and others, 'Dominant Counter-Frames in Influential Climate Contrarian European Think Tanks' (2020) 16 *Climate Chang*e 2003.

81 Laura Münkler (ed), *Dimensionen des Wissens im Recht* (Tübingen: Mohr Siebeck, 2019); Ino Augsberg and Gunnar Folke Schuppert (eds), *Wissen und Recht* (Baden-Baden: Nomos, 2022).

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criminal law,[82] or in the 'code of capital',[83] or by ontologising sex as difference.[84] Finally, all application of law rests on knowledge, as 'the facts'. Therefore, the more precarious the knowledge, the less functional and fair the law.

Regulation

Take regulation, and specifically, legislation. It may produce knowledge,[85] but it is also based on knowledge, filtered by regulatory actors like politics, and not immune against distortion, manipulation and lies. As such, 'information is the lifeblood of regulatory policy',[86] ranging from regulating risk technologies, through obligations to know what is coming and take precautionary measures against harm,[87] to regulating trade[88] or the financial market with informational rules. Also, civil law has been understood as a knowledge distribution scheme. For example, tort law not only addresses injuries and harm, but also attributes a responsibility to know, because the one who knows about a risk, damage, or fault, or should have known, is made responsible, and may eventually have to pay. Anyone at an informational disadvantage may not be obliged by a contract, as when banks exploit dependency or when patriarchal inequality informs marriage.[89] However, in times of a post-factual challenge, it becomes ever more difficult to see when law is epistemologically abused, turning ideology into reality. And there is certainly more.

82 For example, Rachmadi Usman, 'Exploration of nexus between legal liability and corporate fraud: where do business laws and criminology converge?' (2023) 18 Int J of Criminal Justice Sciences 232.

83 On our notion of property, Katharina Pistor, *The Code of Capital* (Princeton, NJ: Princeton University Press, 2019).

84 Catharine MacKinnon, *Towards a Feminist Theory of the State* (Cambridge, MA: Harvard UP, 1989) 238: 'Through legal mediation, male dominance is made to seem a feature of life … Law is a real moment in the social construction … as truth.'

85 As an example, law may attempt to incentivise innovation, Wolfgang Hoffmann-Riem, '*Recht als Rahmen und Anreiz für Innovation*' in Birgit Blättel-Mink, Ingo Schulz-Schaeffer and Arnold Windeler (eds), *Handbuch Innovationsforschung: Sozialwissenschaftliche Perspektiven* (Wiesbaden: Springer, 2021) 915; Sami Ullah and others, 'Integrating external stakeholders for improvement in green innovation performance: role of green knowledge integration capability and regulatory pressure' (2024) 16 Int J of Innovation Science 640.

86 Cary Coglianese, Richard Zeckhauser and Edward Parson, 'Seeking Truth for Power: Informational Strategy and Regulatory Policymaking' (2004) 89 Minn LR 277.

87 For example in the health sector, Ciro Mennella and others, 'Ethical and regulatory challenges of AI technologies in healthcare: A narrative review' (2024) 10 *Heliyon* e26297. See also Rebecca L. Perlman, *Regulating Risk: How Private Information Shapes Global Safety Standards* (Cambridge: CUP, 2023).

88 Almut Schilling-Vacaflor and Andrea Lenschow, 'Hardening Foreign Corporate Accountability through Mandatory Due Diligence in the European Union? New Trends and Persisting Challenges' (2023) 17 *Regulation & Governance* 677.

89 The GFCC established a principle of 'parity' as a constitutional requirement to enforce a contract, to protect those who were at a serious disadvantage when entering it, known as '*gestörte Parität*', or 'disrupted parity'. See Elizabeth H. Peters, 'Marriage and divorce: Informational constraints and private contracting' (1986) 76 Am Econ Rev 437.

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Administration: knowledge governance

The knowledge crisis also affects administration and the executive. Historically, the modern state developed hand in hand with it knowing its people,[90] but there are so many numbers and studies now, and it is hard to tell which ones are correct. But clearly, the knowledge dimension[91] matters. Again, the Covid pandemic is a telling example, with numbers on low and high risks of vaccines, low and high infections rates, low and high death tolls, some true, some false – who knows? The German Federal Constitutional Court has recognised that the state, being responsible for life and health of the people, is obliged to collect and organise knowledge,[92] and if needed also incentivise expertise in government and sponsored by government, from specialised branches to expert committees, and agencies to research funding. But today, all relevant actors also have to deal with the anti-factual challenge.

The judiciary

Finally, the judiciary is affected by, and has to handle the anti-factual challenge. How are judges to deal with a world of beliefs, assumptions, and lies, all charged with emotions?

Regarding emotions, courts are not known to host them, and law school does not teach how. Instead, it is a dimension of human experience often excluded, sometimes to the detriment of people, from the legal scene.[93] Also, courts are made to undo lies, as when the perpetrator covers the crime or the tort, or when a witness tells anything but the truth, and we know a bit about adjudicative facts, but not about the general facts that are at stake politically. Certainly as well, courts are meant to replace assumptions with facts, as evidence and proof, to dispel the 'reasonable doubt' that protects the presumption of innocence, *in dubio pro reo*.[94] This is why criminal procedure laws require those who testify under

90 This is why Michel Foucault was so interested in knowledge and power. Applied to legal challenges around demographic change, and the power of numbers, see Susanne Baer, '*Demografischer Wandel und Generationengerechtigkeit*' in *Veröffentlichungen der Vereinigung der Deutschen Staatsrechtslehrer* (VVDStRL 69), *Erosionen von Verfassungsvoraussetzungen* (Berlin: De Gruyter, 2009) 290.

91 Marion Albers, '*Information als neue Dimension im Recht*' (2002) 33 *Rechtstheorie* 61; on knowledge as the 'cognitive dimension', see Hans-Christian Röhl (ed), *Wissen – zur kognitiven Dimension des Rechts, Die Verwaltung Beiheft* (Berlin: Duncker & Humblot, 2010); Wolfgang Hoffmann-Riem and Eberhard Schmidt Assmann (eds), *Verwaltungsrecht in der Informationsgesellschaft* (Baden-Baden: Nomos, 2000); Ino Augsberg (ed), *Extrajuridisches Wissen im Verwaltungsrecht* (Tübingen: Mohr Siebeck, 2013); Laura Münkler, '*Wissen – ein blinder Fleck des Rechts?*' in: *Dimensionen des Wissens im Recht* (Tübingen: Mohr Siebeck, 2019) 3.

92 BVerfG, Order of the First Senate of 19 November 2021 – 1 BvR 781/21, n 171 *et seq*. See also Michael Riegner, 'Towards an International Institutional Law of Information' (2015) 12 International Organizations LR 50.

93 Susanne Baer, '*Thematisierungen. Körper, Sprache und Bild im Prozeß*' in Klaus Scherpe and Thomas Weitin (eds), *Eskalationen. Die Gewalt von Kultur, Recht und Politik* (Tübingen: Francke, 2003) 109. On the practice of German courts, Jeannette Schmidt and others, *Der Rechtsfall: ein richterliches Konstrukt* (Baden-Baden: Nomos, 1997); Peter Stegmaier, *Wissen, was Recht ist* (Wiesbaden: VS Verlag, 2009); Arne Upmeier, *Fakten im Recht* (Baden-Baden: Nomos, 2006).

94 Baosheng Zhang and others (eds), *Facts and Evidence* (Singapore: Springer, 2021).

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oath to stick to the best of their knowledge, 'to the pure truth'[95] in Germany, while British,[96] Canadian,[97] Indian,[98] or South African[99] law wants 'the whole truth' and nothing but that. This also matters in civil law, regarding expertise in claims of medical malpractice or car accidents, mould in the walls, contaminated soil, or a defect in a new appliance. And it matters in administrative law, which often refers to the 'state of the art' of knowledge in the relevant field.[100] Here, 'justice requires just laws, of course, and just administration of those laws; but it also requires factual truth'.[101]

Courts must find out what happened.[102] They need to get the facts right, at least as procedural truth, based on rules for discovery, disclosure and the use of expertise.[103] Note that the German law of judges, or *Deutsches Richtergesetz*, requires a judge to swear that they will serve 'but truth and justice' ('*nur der Wahrheit und Gerechtigkeit zu dienen*'). Accordingly, the Constitutional Court held that a judge who does not seek the truth violates the fundamental right to a lawful judge.[104] Somewhat differently, English and Welsh judges pledge allegiance to King Charles and promise to 'do right to all manner of people after the laws and usages of this realm', and I do particularly like that they intend to do so 'without fear or favour, affection or ill will'.[105] This is also a commitment to stick to the facts. After all, rationality, objectivity, neutrality is what courts are all about. Again, to avoid misunderstandings, there is no reason to romanticise. Law is a human enterprise, and humans may fail. It is a site of power, its institutional design may be unfair, and its practice biased. But it is still *Justitia*. What must she do?

95 § 64 *Strafprozessordnung* (German Code of Criminal Procedure).

96 Resolution of the judges of the King's Bench Division on 11 January 1927; Oaths Act 1978.

97 Canada Evidence Act (RSC, 1985, c. C-5), s 14: 'I solemnly affirm that the evidence to be given by me shall be the truth, the whole truth, and nothing but the truth'.

98 The Oaths Act 1969 (India), Form 1; Law Commission of India, Twenty-Eighth Report (May 1965).

99 Criminal Procedure Act 51 of 1977 (South Africa), s 162.

100 BVerfG, Order of the First Senate of 23 October 2018 – 1 BvR 2523/13 – 595/14 – (Rotmilan), n 20: 'Where experts and scientists do not have generally recognised standards and methods for specialist assessment of the matter, judicial review of the outcome of an administrative decision may reach objective limits for lack of better knowledge by the courts. If a non-legal question has not yet been clearly answered by experts and scientists, it cannot be definitively determined in an objective manner whether the answer the authority provides to this specialist question is correct.' The right to legal remedies, 'Art. 19(4) first sentence GG does not impose an obligation on the courts to resolve this lack of non-legal factual knowledge. Courts are not in a position to close gaps in specialist knowledge themselves, and they are also not obliged to commission research that goes beyond investigations regarding the current state of scientific knowledge' (references omitted).

101 Susan Haack, 'Truth and Justice, Inquiry and Advocacy, Science and Law' (2004) 17 *Ratio Juris* 15; Marian Damaška, 'Truth in adjudication' (1998) 49 Hastings LJ 289; more generally Steven Goldberg, *Culture Clash: Law and Science in America* (New York, NY: New York University Press, 1994).

102 Ironically even the often used quote 'Just the facts, ma'am', is falsely attributed to Sergeant Joe Friday from the 1950s US television show *Dragnet*.

103 Rules differ. For example Petra van Kampen, *Expert Evidence Compared: Rules and Practices in the Dutch and American Criminal Justice System* (Antwerp: Intersentia, 1998).

104 BVerfG, Order of the 3rd Chamber of the Second Senate, 12 December 2012 – 2 BvR 1750/12, n 16.

105 See https://www.judiciary.uk/about-the-judiciary/our-justice-system/oaths/ [https://perma.cc/7DUV-QF8Z].

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JUDICIAL REVIEW

Courts need to get the facts right. Specifically, when they are tasked with, and also engage in judicial review, which is sadly not to be taken for granted, courts must assess whether factual claims to justify the law in question are right, correct, in some way true. So what happens to judicial review, and thus to fundamental rights and constitutionalism, when faced with the anti-factual challenge?

Again, imagine you are a judge, at a supreme court, a constitutional or human rights court. There are new files on your desk, and you find studies supporting both sides, to attack a statute and to defend it. They look pretty much the same, but present opposing data as 'the facts'. How do you decide who is right? In the past, what looked scholarly was scholarly, reliable and could be used.[106] Today, that is no longer so. Previously, courts consulted experts recognised in a field. But who is an expert today? Some are real, some fake, who knows, academic fields fragmented, and quality unclear. How should judges know, since after all, we are only lawyers? Previously, research by clerks and the judges themselves 'found' the facts. Today, there is too much information, overwhelming, confusing, and unreliable. The paradox is not elsewhere. As an effect of the enormous quantity and quality and speed of changing information online, it also hits the courts. How then can any judge find a consented-upon truth of the matter? This is not only an opportunity for self-reflection for a justice in doubt.[107] It is a broader concern, and reason to worry.

The facts that matter in judicial review are sometimes called legislative facts,[108] but this is too narrow a term. For now, I call them general facts,[109] be it the economic situation, the climate, the pandemic, migration, inequalities etc. Such facts do matter on two levels:[110] as normative updates and as justifications.

Normative updates

On the level of norms, general facts inform the standards to properly address reality, turned into doctrine, or '*Dogmatik*', as tests, theories or levels of scrutiny. This is business as usual, because whoever interprets a constitution or human rights treaty has to make sense of very few and often older words, in order to

106 It is not easy, but can be done. See Déirdre Dwyer, *The Judicial Assessment of Expert Evidence* (Cambridge: CUP, 2008).

107 Alberto Alemanno, 'Taming COVID-19 by Regulation: An Opportunity for Self-Reflection' (2020) 11 European J of Risk Regulation 187; my own quarrels in Susanne Baer, *Rote Linien* (Freiburg: Herder, 2025) 235 *et seq*.

108 The distinction seems to go back to John H. Wigmore, with the seminal treatise *Wigmore on Evidence*, but also 'The Problem of Proof' (1913) 8 Illinois LR 77. See Kenneth Culp Davis, 'Facts in Lawmaking' (1980) 80 Columbia LR 931. However, some see it as a 'misnomer': Timothy B. Dyk, 'The Role of Non-Adjudicative Facts in Judicial Decisionmaking' (2023) 76 Stanford LR Online 10. In the US, legislative facts have a special procedural status, which limits judicial scrutiny.

109 The German classic is Klaus Jürgen Philippi, *Tatsachenfeststellungen des Bundesverfassungsgerichts* (Berlin: de Gruyter, 1971).

110 For another distinction, see Ann Woolhandler, 'Rethinking the Judicial Reception of Legislative Facts' (1988) 41 Vanderbilt LR 111.

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deal with an everchanging complicated world. While laws may be amended, constitutions and international law are meant to stay, which is why courts are tasked to interpret the law and update our understanding of what these few words mean.

Note that without the interpretative update, words lose their meaning, which means that people lose rights, thus human beings lose protection. This is what radical conservatives want. They insist on an 'original meaning', which is a plausible and tempting idea. But such 'original meaning' is impossible to find. Instead, it is a tentative, most likely biased, ideological excerpt from a bigger but fragmented, not fully documented story. Also, lawyers are not historians. But most importantly, the law loses its meaning when thrown back into a distant past. No smartphones yet, no technology, no social and cultural pluralism, much not yet understood. Thus, no meaning, and no justice. Therefore, most courts and judges in the world reject the originalist approach. Instead, constitutions and human rights treaties are treated as 'living trees' or 'instruments'.[111] In fact, this is highly plausible. To make sense of the law today, the few old words need to be interpreted to be applied. If not, the job of a judge, the job of a court cannot be done. Therefore, the task is to, humbly, update the norm. This is when general facts matter, at best.

However, there is another option out there, a legalistic one, often fetishised, and tempting. It is to not go empirical but idealistic. After all, lawyers are also not sociologists, economists, climate scientists, migration studies experts, etc. Thus, it seems easier to interpret the few words of constitutions and human rights treaties based on an idea, a theory, a concept, a guiding principle or image, or '*Leitbild*'. A prime example is the legal subject, defined according to an image of a human being, or '*Menschenbild*', and not life's reality. Liberty is, then, the right of the 'reasonable man' to autonomy; and equality is, then, a right against arbitrary treatment in a world imagined of 'all men created equal'. But rather obviously, this is a pretty narrow point of view, and biased. The reasonable man becomes the inadequate norm to judge a world inhabited by, for starters, men and women, and for those informed by current medical research, by people on a gendered spectrum. Also, persons are in fact not more nor less reasonable, but a fascinating mix of empathy and ego, emotions and rational thought, a physis, or body, and a psyche, and more. Thus, such guiding images invite assumptions of normality, belief, and bias, and exclude those that do not fit. Thus, to go idealistic is a tempting idea but not a good one.

The better option is to go empirical, thus take general facts seriously to make the realities of people's lives inform our understanding of law. In this version of realism, liberty is embedded in a social environment, as relational autonomy.[112] Then privacy is not reduced to a space called home but also protecting 'infor-

111 It is mostly attributed to the European Court of Human Rights (ECtHR) in *Tyrer* v *UK* Application no 5856/71, Merits, 25 April 1978, but was used in 1929 in Canada, in *Edwards* v *Canada (AG)*, also known as the *Persons Case, or Affaire « personne »* [1930] AC 124; [1929] All ER Rep 571.

112 On the concept of relational autonomy, see Jennifer Nedelsky, *Law's Relations: A Relational Theory of Self, Autonomy, and Law* (Oxford: OUP, 2011).

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mational self-determination',[113] and 'the confidentiality and integrity of information technology systems'.[114] Also, rights to 'speech',[115] 'the press' or 'broadcasting' then cover the digital dimension, and a fundamental right to 'family' and 'marriage' covers more than a heteronormative patriarchal model, just as, based on the current state of medical research, law then has a grip on varieties of 'sex' and 'gender', on body and health, beyond the physical dimension, or on disability, including chronic disease. These updates are needed for law to make sense to people. However, it has become more difficult in the face of the anti-factual challenge.

Justification

Normative change is not the only calling. General facts also matter on the level of applying constitutional or human rights law. General facts are decisive as to whether state action is legitimate and compatible with fundamental rights, or not, the bread and butter of constitutionalism. Again, imagine you are the judge: this is your job then. Whenever supreme, constitutional and human rights courts engage in judicial review, to consider whether the government or the legislator was allowed to do what they did, or if they went too far, such courts have to assess general facts. It is what legality is based on. But this also means that judicial review is a mechanism to check on the epistemological foundations of power.

Often, this is a matter of separated powers and competence. Imagine a national government claims the power to handle an emergency situation, say to send national troops to another country, or to a city in the nation, doing things usually left to other authorities, be they international or local institutions. There must be a reason to justify this move, thus, facts. Also, imagine a government asking for special permission to limit your rights, like claiming a state of exception, the infamous '*Ausnahmezustand*',[116] or declaring war. There must be a reason to do so, no fake news, no manipulated information, but facts.[117] You remember Iraq?

Similarly, facts are a matter of fundamental rights. When courts are called upon to decide whether rights are violated, they need to know why something was done, what it does to people, whether there are less intrusive alternatives, and whether everything that matters was properly balanced. Interferences with fundamental rights must be proportional, in short. Thus, facts matter. Tasked with judicial review, it is the job of supreme, constitutional and human rights

113 BVerfG, Order of the First Senate of 15 December 1983 – 1 BvR 209 et al/83 (Census).

114 BVerfG, Order of the First Senate of 27 February 2008 – 1 BvR 370/07.

115 Sarah Haan, 'The Post-Truth First Amendment' (2019) 94 Indiana LJ (US normative framework for regulating information by 'compelled speech doctrine').

116 Namely, Nazi jurist Carl Schmitt theorised the concept, in his books on dictatorship and political theology (*Die Diktatur* (1921), *Politische Theologie* (1922)). For recent Anglo-American discussions, see Alan Greene, *Permanent States of Emergency and the Rule of Law: Constitutions in an Age of Crisis* (Oxford: Hart, 2018); David Dyzenhaus, *The Constitution of Law: Legality in a Time of Emergency* (Cambridge: CUP, 2006).

117 On the US Supreme Court's disregard of particular facts of congressional history, see Eric Berger, 'When Facts Don't Matter' (2017) Brigham Young Univ LR 525.

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courts to check whether a majority in power does things with a reason, thus a proper assessment of facts. But in all these cases, judges face the anti-factual challenge.

An assessment of facts often means that courts test for irrationality, as in Lord Diplock's basic account of judicial review,[118] which intensifies when courts assess proportionality, because it is all about facts:[119] the fit between the measure and the goal, the necessity of the intrusion and its alternatives, the overall appropriateness or reasonableness of what has been done, taking into account the effects on those affected. Certainly, there are exceptionally difficult situations, like the German unification when a court in the West had to quickly understand the realities in East Germany.[120] But it is always difficult. Therefore, there is a need for what one may call a 'doctrine of constitutional epistemology', to set the standards of review in relation to the nature of facts. Think of a government going to war. Think of the climate crisis, Covid or other pandemics like bird flu, think of Brexit or think of the debate on gender. All of these are not questions of morals or everyday norms or ideology, but of facts. Think of migration, too.

These are not just controversial issues, but deep in muddy waters. Populist narratives overshadow legal analysis. There is not just disagreement, but also disinformation, misinformation, lies or at least counter-narratives, and counter-data, all not coincidental, but funded and organised, the public polarised, even families deeply divided, scientific communities falling apart, just like social movements, civil society. Last not least, courts are then portrayed as taking sides in 'truth' disputes, depending on what they say, called 'elitist', 'not neutral', part of the 'system', deserving no trust, no respect, or praised as being 'on the right side'. Sometimes, judges are denounced as 'enemies of the people',[121] or for simply getting it wrong, or as ideological, not legal, activists,[122] while those on

118 *Council of Civil Service Unions* v *Minister for the Civil Service* [1985] AC 374. See also, on reasonableness, *R* v *Ministry of Defence, ex parte Smith* [1996] QB 517, 554 per Thomas Bingham MR: 'unreasonable in the sense that it is beyond the range of responses open to a reasonable decision-maker', but also: 'The more substantial the interference with human rights, the more the court will require by way of justification before it is satisfied that the decision is reasonable in the sense outlined above.' Thus, there is a sliding scale of review; the graver the impact of the decision in question upon the individual affected by it, the more substantial the justification that will be required. It is called an issue-sensitive scale of intervention

119 Anne Carter, *Proportionality and Facts in Constitutional Adjudication* (London: Bloomsbury, 2022). See also Rosalind Dixon, 'Calibrated Proportionality' (2019) 48 Federal LR 92.

120 For more, see Jens J. Hesse, Gunnar F. Schuppert and Katharina Harms (Hrsg), *Verfassungsrecht und Verfassungspolitik in Umbruchsituationen* (Baden-Baden: Nomos, 1999).

121 This was the front-page headline to an article by the *Daily Mail*'s political editor James Slack on 4 November 2016. Then Prime Minister Boris Johnson stated in Parliament: 'With grim determination, we saw off Brenda Hale and got Brexit done'; see David Allen Green, 'Boris Johnson did not "see off" Brenda Hale – so why did he say that he had?' *Law and Policy Blog* 19 July 2022 at https://davidallengreen.com/2022/07/boris-johnson-did-not-see-off-brenda-hale-so-why-did-he-say-that-he-had/ [https://perma.cc/S9NB-8RT2].

122 The 2025 letter of heads of state to the ECtHR is of a different nature, but also a clear call for retreat. The Council of Europe responded swiftly and decisively to these concerns. On 24 May 2025, Alain Berset, the Secretary General of the Council of Europe, issued a statement firmly defending the ECtHR's independence and the need to uphold the rule of law in Europe, see 'Challenging Strasbourg. The May 2025 Letter and the Pushback Against the European Court of Human Rights' *Verfassungsblog* 30 May 2025 at https://verfassungsblog.

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the other side are celebrated as 'heroes'. And today, these are not just political comments but also epistemological challenges.

Today, criticism and more and more attacks on courts are framed in epistemic rather than outright ideological or social terms. What happens when the judiciary is labelled to be, simply, 'not from this world'? Why would anyone trust such a court, accept and follow a ruling, observe the standards? The more courts rely on a notion of independent epistemic neutrality, the less they matter when truth becomes irrelevant. Today, dismissive comments on courts and disregard of court rulings are also elements of anti-factual politics. When knowledge, expertise and truth go down the drain, courts and the rule of law are fast to follow.

What are we to do about this? What can we expect, what should be done, how can we help, as lawyers and as academics, to solve this problem? There will be many answers, and hopefully a lot of research. I offer only two. The need to revisit the role of courts tasked with judicial review, and to make sure that legal education prepares future lawyers and judges and societies to deal with these new callings.

Role of courts

Courts are interpreters of law. But what about the facts? What is the epistemological role of courts regarding knowledge, expertise, the truth?

Some see courts as 'arbiters of truth'.[123] At least in adversarial systems, some call them referees. But constitutional justice is no soccer game. Others count on courts as last bastions for reasoned justification of public matters in the public sphere. ChatGPT told me that courts are 'stewards of truth-based governance'. As such, they demand transparency, rationality and accountability from state actors, ie when government needs to inform and not lie to parliament, then, constitutional and supreme courts become guardians of epistemic integrity, in their request for reasons and in assessing them. In order not to turn into political actors themselves, courts need to exercise institutional wisdom,[124] thus not to second-guess reality but kick the responsibility to know back into the field of politics.

For courts to be a passive guardian is thus not enough. Confronting the anti-factual challenge, courts must reject disinformation and uncover lies. Therefore, I suggest thinking of courts not just as arbiters, but also, as Edith Beerdsen sug-

de/may-2025-letter-and-the-pushback-against-the-european-court-of-human-rights/ [https://perma.cc/37UZ-VJUX].

123 On Australian courts, see Hamish C. McNamara, 'Truth Tribunals and Arbiters of Truth: Using the Judiciary to Build Resilience' in Dale Stephens, Matthew Stubbs and Samuel White (eds), *Digital Resilience* (Singapore: Springer, 2025),

124 In German, '*Institutionelle Klugheit*'. See my description of the practice of the German court in Susanne Bear, *Rote Linien* (Freiburg: Herder, 2025).

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gested,[125] as facilitators of a discursive truth,[126] including the task of exposing lies, and communicating what may be accepted as fact, and why. Again, judges do not know it all. But to decide a case also means to curate expertise, and the calling now is to expose what to accept as facts and why, and what must be rejected. Facilitators, curators and communicators, in a scheme of epistemological separation of power,[127] become core functions of the judiciary today.

Consider examples. The British prorogation case may serve as one. Certainly, the ruling of the UK Supreme Court in *R (on the application of Miller)* v *The Prime Minister, Cherry and others* v *Advocate General for Scotland*[128] (known as *Miller II*) has many dimensions. However, it may also be read as countering deception and misleading pretence. The government claimed the prorogation was routine, but other information and timing raised doubts,[129] and the legal decision also addressed an ideological fight. Did the ruling undo that, at least to some degree? Later, attacks on judges are typical anti-factual moves discrediting institutions, as is the reduction of the ruling to binary populist frames. Should courts say more to counter that? Should academics criticise if they wish, but also explain, in order to clarify the epistemological stakes?

Another example may be the German climate ruling.[130] The files landed on my desk in 2021. It is now considered a landmark decision because it introduced a temporal dimension of liberty, the 'intertemporal guarantee of freedom'. The plaintiffs were rice farmers in Nepal and Bangladesh, and children in Germany, among them the heirs to a North Sea farmstead shrinking with the sea level rising. The question was simple: Did lawmakers do enough to prevent harm? As usual, the answer depends upon the accurate assessment of general facts. What about the climate? What are the adverse effects of carbon emissions, where, when, and for whom? What can be done about it? In such a case, all dimensions of climate studies matter, and all of them are under attack in anti-factual times. For some, it is natural science and hard data; for others, it is a conspiracy or

125 Edith Beerdsen, 'Litigation Science after the Knowledge Crisis' (2021) 106 Cornell LR 529, 584-585: 'Unlike a gatekeeper who waits until evidence is presented … and unlike a referee who monitors the process of its creation, a facilitator creates conditions for its generation … Judges have the power to create a cultural shift toward the use of more reliable methodology. They can encourage early information exchanges and broader disclosures of information. By acknowledging that current practice does not yield the information they need, and by facilitating procedures that allow for the creation and exchange of that information at appropriate junctures in a litigation, judges can bring into being a process that will generate the information they need to fulfill the gatekeeping function they will ultimately be serving. And by doing so, they can ensure that scientific evidence that reaches the finder of fact meets required standards of reliability.'

126 On obligations to disclose information, see Alan Greene, 'Closing Places of Worship and COVID-19: Towards a Culture of Justification?' (2021) 25 Edinburgh LR 393.

127 Christoph Möllers, '*Kognitive Gewaltengliederung*' in Hans Christian Röhl (ed), *Wissen – Zur kognitiven Dimension des Rechts* (2010) 9 *Die Verw Beihefte* 113.

128 In 2019, then Prime Minister Johnson advised the Queen to prorogue Parliament for five weeks at a crucial stage of Brexit negotiations. Gina Miller brought a case, and the Supreme Court took it. The Court rejected the argument that prerogative powers are a purely political matter: *R (on the application of Miller)* v *The Prime Minister, Cherry and others* v *Advocate General for Scotland (Scotland)* [2019] UKSC 41.

129 The Court held: 'The Prime Minister's advice to Her Majesty was unlawful, void and of no effect', *ibid* at [69].

130 BVerfG, Order of the First Senate of 24 March 2021 above n 19.

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simply all wrong. What, then, is the role of the court? In 2021, the German Constitutional Court felt the need to spend quite a few pages on expertise, thus facts, to explain why international sources are reliable, based on extensive peer-review. Here, courts do engage in what may be seen as curating truth. It has never been more important.

The Covid pandemic may serve as another example, with additional dimensions. Like many other courts, the German Federal Constitutional Court received hundreds of complaints. All were reviewed, most have been decided in chambers of three judges, some major cases went to the full Senate of eight, like the cases on contact restrictions,[131] school closures,[132] mandatory vaccination for healthcare workers,[133]and disabled persons facing emergency triage in hospitals.[134] Clearly, there was a viral infection; many people were falling ill and many died in Bergamo, New York, and German care homes. But even in the face of death, the anti-factual challenge was louder than ever. In the files, there were data, studies, articles, books, from professional and academic associations, on both sides. What and who should we believe? In such controversies, everything seems contested and is emotionally charged, discussions polarised and polarising,[135] including horror stories of a 'deep state', collaborating with science. To complicate things, legal reactions to a pandemic must also not only be based on facts, but require risk assessment, and thus prognosis. Also, time matters, in that courts may have to decide quickly, either required by rules of procedure, as in Colombia, or in emergency decisions. Based on what? It is then a good idea for a court to invite experts and make sure they are as diverse as possible, and the German court decided to also invite so-called experts 'against vaccination', in fact a populist group. This opens the space to expose such expertise as fake, and burdens a court with the task to clearly communicate that message. In addition, there is doctrine to rely on, which is why the Covid emergency measure rulings emphasise the government's margin of appreciation on all levels of proportionality, and insist on the state's responsibility to install reliable producers and collectors of scientific knowledge.[136] It is for others to say whether the courts do enough to facilitate and communicate the facts. But it shows that there is work to do.

Another example is migration. We all know that people move across borders, which also means migration to Europe, and to Britain. But why people move,

131 BVerfG, Order of the First Senate of 19 November 2021 – 1 BvR 781/21 (Federal pandemic emergency brake I – curfews and contact restrictions).

132 BVerfG, Order of the First Senate of 19 November 2021 – 1 BvR 971/21 (Federal pandemic emergency brake II – school closures).

133 BVerfG, Order of the First Senate of 10 February 2022 – 1 BvR 2649/21 (Obligation of Vaccination for Health Care Workers).

134 BVerfG, Order of the First Senate of 16 December 2021 – 1 BvR 1541/20 (Risks of disadvantages for persons with disabilities in triage situations).

135 A US Secretary of Health called vaccination a 'crime against humanity' (Jamie Ducharme, 'RFK Jr. Denied He Is Anti-Vaccine During His Confirmation Hearing. Here's His Record' *time.com* 29 January 2025 at https://time.com/7210943/rfk-confirmation-hearing-vaccines/ (last visited 4 November 2025)), which is offensive to those who fought for genocide to be recognised as such a crime.

136 BVerfG, Order of the First Senate of 27 April 2022 – 1 BvR 2649/21 (Proof of vaccination – COVID-19), n 133-134, 159; on initiating research, n 170, 235.

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how and where to is far from clear. To the contrary, migration is extremely controversial and, again, emotionally charged, polarising and polarised, rife with disinformation and misinformation, manipulated stories and lies. This is also no coincidence, because the new totalitarians use migration to trigger hate and destabilise democracies. What then is the role of courts? Again, idealism is tempting, and there is a tradition in migration law to rely on assumptions, ideals and ideas, namely 'the refugee' (what is the image in your head?), or 'national identity' and 'the people', or in German, the 'Volk'.[137] The effect is exclusion, as injustice. Instead, courts should clarify what really matters, and rely on general facts.

Finally, in a ruling on sanctions in social security law, the German Court applied a sliding scheme of epistemological obligations, depending on the weight of the intrusion on fundamental rights, and even highlighted the obligation to rely on plausible findings in the headnotes.[138] Overall, facts may be more or less prognostic in character, based on different sources of information, with more or less effort made by the state to keep them up to date. Note that academic expertise regarding all these topics, be it climate, Covid, gender, migration, or the welfare state, are targeted by the new totalitarians, denounced and dismissed for a reason, to run things without limits or control. Therefore, courts are needed, as facilitators, curators and communicators of facts, to counter these threats, not least, to democracy and justice.

Now some may object: If we assign this role to facilitate, curate, expose and communicate facts to courts to counter the anti-factual challenge – doesn't it again intensify judicial review, for what is often called 'activist' jurisprudence charged with depoliticising effects, an additional reason to reject (new) constitutionalism? Is judicial review then, finally, a 'threat to democracy'?[139] And should courts defer in epistemological matters as well?

I think it is not, and courts should not and cannot reasonably defer in such matters. Here too, the call for deference is often a key element in attempts to 'reform' but in fact undo the rule of law. The concern seems plausible, but it throws the baby out with the bathwater.

Certainly, courts must not and cannot replace politics. They are reactive institutions, equipped only with words, and democracy means, and requires, room for politics, which courts are called upon not to replace but to protect. The 'expertise obstacle' in fact delineates judicial scrutiny, and 'even if courts have the legitimacy to review crisis measures, the expertise obstacle refrains them

137 The German FCC refused to take the changing demographics and its effects on democracy into account in BVerfG, Order of the Second Senate of 31 October 1990 – 2 BvF 2, 6/89 (Voting rights for Foreigners). Recently, the US Supreme Court has also been criticised for ignoring some legislative history, to avoid the consequences: Robert N. Weiner, 'Pretext, Reality, and Verisimilitude: Truth-Seeking in the Supreme Court' (2023) 56 UMich J L Reform 385 (on 'regulatory dishonesty'); Berger, n 117 above.

138 BVerfG, Order of the First Senate of 5 November 2019 – 1 BvL 7/16 (Sanctions in Social Security), n 167, 175, 180, 183, 189, 200 on reliable findings.

139 John A. Dyson, 'Is Judicial Review a Threat to Democracy' The Sultan Azlan Shah Lecture (November 2015) at https://www.judiciary.uk/wp-content/uploads/2015/12/is-judicial-review-a-threat-to-democracy-mr.pdf [https://perma.cc/64XA-MZJH].

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from using that room'.[140] But room for politics is not an unlimited space for the anti-factual totalitarian crusade, if it is still a democracy. As long as democracy deserves the label, courts must therefore, and do in fact, leave room for politics in that they defer. But deference is not a general habit or an attitude but an elaborate and very nuanced doctrine.[141] It takes the separation and interdependency of powers seriously, their respective institutional design, their relative institutional competencies, in relation to what is at stake. This results in various degrees of leeway for parliament and, formally or de facto, government, and for the administration.[142] But it is no carte blanche.

Think of security matters, the secret service, diplomacy and international relations, military strategy and war. Certainly, there is leeway, and there are margins of appreciation. But no carte blanche. Government or politicians have no mandate to lie, mislead, or manipulate. However, facing the anti-factual challenge, there is a need to reconsider the scope and intensity of review. For a long time, human rights courts as well as constitutional courts gave governments the benefit of the doubt. But with new totalitarians on the rise dressing as democrats, with democrats copying their populism, with fake facts all over the place, policies cannot be taken at face value, but courts need to check. There is no longer reason to accept what governments tell courts. Again, and in many countries, governments called it 'reforming the courts' when they destroyed or captured these institutions; Russia says 'military operation' to cover a brutal war, and there is more. Thus, we have no reason to simply believe what governments say. Courts must check what are presented as facts. In doing so, the role of courts is not only to 'find' the facts, but also to expose what is fake.

As usual, sweeping critique is not helpful, details matter to inform degrees of deference. Because of the counter-majoritarian difficulty, in that courts are not to second guess the complicated balancing of politics, acts of parliament shall not be easily crushed. In addition, the executive may be the institution well prepared to collect and assess expertise. But the role of courts is to check on them, as is widely accepted in administrative law,[143] using plausibility, procedural or substantive review[144] of general facts[145] in order to do so. Again, this needs to

140 Patricia Popelier and others, *The Role of Courts in Times of Crisis: A Matter of Trust, Legitimacy and Expertise* 5 at https://www.echr.coe.int/documents/d/echr/Intervention_20210415_Popelier_Rule_of_Law_ENG (last visited 4 November 2025).

141 Consider Philip Sales, 'Proportionality Review in Appellate Courts' (2021) 26 *Judicial Review* 40.

142 For German constitutional law, see BVerfG, Order of the First Senate of 24 March 2021 above n 19, n 212, 229. 252; BVerfG, Order of the First Senate of 5 November 2019, above n 137, on the obligation to use plausible, reliable findings.

143 Catherine Donnelly, 'Participation and expertise: judicial attitudes in comparative perspective' in Susan Rose-Ackerman and Peter Lindseth (eds), *Comparative Administrative Law* (Cheltenham: Edward Elgar, 2010) 357; Carol Harlow and Richard Rawlings, *Law and Administration* (Cambridge: CUP, 2009) 311; Tony Prosser, 'Regulation and Legitimacy' in Jeffrey Jowell and Dawn Oliver (eds), *The Changing Constitution* (Oxford: OUP, 2011) 241, 250.

144 Janneke Gerards and Eva Brems, *Procedural Review in European Fundamental Rights Cases* (Cambridge: CUP, 2017).

145 Generalist courts tend to show a higher degree of deference towards regulators' technical decisions than specialised courts: Luis E. Mejía, 'Judicial Review of Regulatory Decisions: Decoding the Contents of Appeals against Agencies in Spain and the United Kingdom' (2020) 15 *Regulation & Governance* 760.

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be communicated carefully.[146] Court decisions are still about the law, but today they are also epistemological interventions to counter the populist campaigns and new totalitarians.

Legal education

Are judges fit to do that? What do judges know about facts and truth, and about fake facts and manipulation? What should they know? Here, legal education matters. If ever you needed an argument: The knowledge crisis is why law schools are, at best, not just training camps for lawyers, but engage in legal studies beyond, but not without, doctrine, and are interdisciplinary as well. Facing the anti-factual challenge, legal education has to make sure that future lawyers and judges, are up to these new callings. We need to know more about judicial heuristics,[147] and we need to train people to properly deal with general facts.

When truth is precarious, when facts are confusing, when data may be fake and knowledge is manipulated, all intensified by artificial intelligence (AI) – to apply the law and to judge means to navigate through this sea.[148] In court, knowledge must be, as Nicola Lacey called it, coordinated.[149] We must not only take rights, but we must take facts seriously, to quote Twining.[150] Future lawyers should learn how to facilitate, navigate, expose and communicate what can be accepted as facts, and what must be rejected as flawed, false, misleading.

As far as I know, knowledge, or truth, is not yet a regular course in legal education. There are classes on evidence, but they are not concerned with general facts that matter to democracy. Here, socio-legal studies help, including the critical approaches developed in gender studies, queer studies, critical race studies and more, as well as criminology beyond forensic studies. If trained more broadly, judges would understand that biological essentialism is on the rise again, and why this happens, and that it hurts people. They would be able to identify established expertise, and refuse scandalising anecdotes on safety in 'real women's spaces', and the reduction of a multifaceted experience to a binary choice of either trans or women's rights, a false ideological juxtaposition. Similarly, judges would be able to navigate what we know about migration, uncover

146 See Laurence R. Helfer, 'Populism and International Human Rights Institutions: A Survival Guide' in Gerald L. Neuman (ed), *Human Rights in a Time of Populism: Challenges and Responses* (Cambridge: CUP, 2020) 218 (human rights courts under pressure might play a long game, circumspecting interpretation, publicity and outreach, and creating windows of opportunity for supporters to mobilise).

147 On current research, see Amaryllis-Chryssi Malegiannaki, Athanasios Chatzopoulos and Konstantinos Tsagkaridis, 'Assessing Judges' Use and Awareness of Cognitive Heuristic Decision-making' (2025) 4 *Frontiers in Cognition*. See also Holger Spamann and Lars Klöhn, 'Justice Is Less Blind, and Less Legalistic, than We Thought: Evidence from an Experiment with Real Judges' (2016) 45 J of Legal Studies 255.

148 But also see David S. Caudill, Harry Collins and Robert Evans, 'Judges Should Be Discerning Consensus, Not Evaluating Scientific Expertise' (2024) 92 U Cincinnati LR 1031.

149 Nicola Lacey, 'In Search of the Responsible Subject: History, Philosophy and Social Sciences in Criminal Law Theory' (2001) MLR 350; Arlie Loughnan, 'Hyper-Knowledge and the Legitimation of Criminal Law' (2024) Mod Crim LR 17.

150 William Twining, 'Taking Facts Seriously – Again' (2005) 55 J of Legal Education 360.

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assumptions as bias, expose lies, and communicate what we need to know to design policies not violating human rights. The same is needed to judge claims around climate change, or security measures, or social rights. Lawyers need to be epistemologically fit. It is only then that supreme, constitutional and human rights courts can properly do their job, to fight the anti-factual challenge.

WHAT TO DO

The anti-factual challenge threatens democracy, and the rule of law. It is a component of new totalitarian strategies that hurt people. As much as legitimacy in law and democracy depend on communicative reason, as a consensus on truth, it is a prime target, next to academic and research institutions, or quality media. The latter in fact need the former to fight back. Which is what we all need to do.

The young Iranian, Noureen Akhtar, in pondering the question of what is Justice in a Post-Truth World, described Justitia as no longer being the blindfolded figure standing fiercely over a pair of scales. Rather, Justice is now trying to see through the digital smog of deceptions masked as facts and noise masquerading as knowledge. She says: 'Legal systems, too, are vulnerable. It was once the courts anchored in practice and precedent, but now it is courts having to deal with deep fakes, viral disinformation, and populist pressure'. But she also added that 'Justice is not dead; it is growing as a way, changing as life does'. Therefore, 'the world of post-truth calls for a more explicit and reflexive kind of justice.' It must 'once again become a mode of listening, of bearing witness, of reconstructing trust brick by fragile brick.'[151] Trust matters,[152] not blind, but curated, and cared for. Therefore, Noureen Akhtar said, we must 'insist on the possibility of understanding, and to affirm the dignity of truth in the face of its erasure.' 'For even when truth is obscured, its pursuit remains the most radical gesture of hope.'[153]

151 Akhtar, n 25 above.
152 Judit Bayer, 'Post-truth and post-trust: how to re-define trust in the judicial system and the media' (2024) 25 *ERA Forum*.
153 Akhtar, n 25 above.

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Criminalising 'Conversion Therapy'

Ilias Trispiotis* and Stuart Goosey†

An increasing number of jurisdictions have introduced legal bans on so-called 'conversion therapy' practices. Yet significant uncertainty and disagreement persist among legal scholars, policymakers and advocates about whether criminal law is an appropriate tool in this area and, if so, how it should be used. This article addresses that pressing question by examining whether criminalisation is justified, what risks it poses to the rights of LGBT+ people and others, and how those risks can be mitigated. Drawing on analogies with existing criminal offences and a comparative analysis of legislative models from several jurisdictions, it argues that a carefully designed criminal ban can be a legitimate and proportionate response to the serious harms caused by 'conversion therapy'. The article develops an original, evidence-based framework that clarifies how such bans should be formulated in law and integrated with complementary non-criminal measures, and what broader lessons this holds for the place of criminal law in advancing human rights.

INTRODUCTION

The case for a legal ban on so-called 'conversion therapy' practices is now firmly established. These practices, which encompass a wide range of harmful methods – from physical abuse to pseudo-scientific counselling[1] – are all aimed at changing or suppressing LGBT+ identities. They are rooted in the false and stigmatising belief that such identities are disordered, inferior and in need of correction. Collectively, these practices entrench homophobia and transphobia, inflict profound psychological harm, and undermine the dignity and autonomy of all LGBT+ people, including those who have never directly experienced them. Key international institutions – including the United Nations,[2] the European Parliament,[3] the Council of Europe,[4] and the Inter-American

*Professor of Human Rights Law, University of Leeds.
†Senior Lecturer in Law, University of Bedfordshire. An earlier version of this article was presented at the Socio-Legal Studies Association (SLSA) Annual Conference at the University of Liverpool and at seminars in Leeds and Bedfordshire. We thank the participants for their helpful feedback. We are also grateful to the two anonymous reviewers for the MLR for their suggestions. Where no permalink is available, all URLs were last accessed on 23 October 2025.

1 Amie Bishop, *Harmful Treatment: The Global Reach of So-Called Conversion Therapy* (New York, NY: OutRight International, 2019).
2 UN Human Rights Council, *Practices of So-Called 'Conversion Therapy': Report of the Independent Expert on Protection Against Violence and Discrimination Based on Sexual Orientation and Gender Identity* A/HRC/44/53 (1 May 2020) (UN SOGI Report).
3 European Parliament, *Resolution on Fundamental Rights in the EU in 2016* 2017/2125(INI) at [65].
4 Council of Europe, 'Strengthening the fight against so-called "honour" crimes', Parliamentary Assembly, Resolution 2395, 28 September 2021, at [6.6].

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Commission on Human Rights[5] – alongside leading human rights NGOs[6] and professional medical bodies[7] – have unequivocally condemned these practices and called for their global prohibition.

But what legal mechanisms ought to be used to ban these practices? This question, of considerable importance to both legal scholars and policymakers, remains unresolved. It is an increasingly urgent question as more jurisdictions move to outlaw 'conversion therapy'. A variety of legal responses, punitive and non-punitive, are now emerging. Some countries, such as Malta, Canada, Norway, Germany and France, have opted to criminalise all forms of the practice. Others have adopted more limited measures, prohibiting only regulated professionals from offering such 'therapies', as in Greece for example. Meanwhile, jurisdictions such as New Zealand and the Australian state of Victoria have introduced hybrid regimes combining civil and criminal law measures. In the UK, despite repeated government pledges to legislate since 2018,[8] no ban has yet been enacted.[9]

'Conversion therapy' cannot be effectively banned without new legislation. Forms of the practice that involve physical or sexual violence are already criminal offences. But non-violent methods – so-called 'talking therapies' – remain largely untouched by the law, despite ample evidence of their potential to cause grave harm.[10]

Against this background, this article pursues two main aims. First, it develops a principled defence of criminalisation. It argues that the harms caused by 'conversion therapy' are analogous to those addressed by existing criminal offences, such as hate crime and controlling or coercive behaviour. Like these offences, 'conversion therapy' combines two serious moral wrongs: a well-documented risk of grave physical or psychological harm, and wrongful direct discrimination. It is therefore part of a wider family of offences involving discriminatory abuse, and the moral principles that justify the criminalisation of such

5 Inter-American Commission on Human Rights, *Advances and Challenges towards the Recognition of the Rights of LGBTI Persons in the Americas* OEA/Ser.L/V/II.170 Doc 184, 2018 at [131].

6 Lucas Ramon Mendos, *Curbing Deception: A World Survey on Legal Regulation of So-Called 'Conversion Therapies'* (Geneva: ILGA, 2020); Bishop, n 1 above.

7 BACP and others, 'Memorandum of Understanding on Conversion Therapy in the UK' (July 2024) at https://www.bacp.co.uk/media/21242/memorandum-of-understanding-on-conversion-therapy-in-the-uk-july-2024.pdf [https://perma.cc/7HWD-RPR2] (MoU); Independent Forensic Expert Group, 'Statement on Conversion Therapy' (2020) 72 *Journal of Forensic and Legal Medicine* 101930; 'Editorial' (2016) 387 *The Lancet* 95.

8 See, for example, Government Equalities Office, 'LGBT Action Plan 2018: Improving the Lives of Lesbian, Gay, Bisexual and Transgender People' (3 July 2018) at https://assets.publishing.service.gov.uk/media/5b39e91ee5274a0bbef01fd5/GEO-LGBT-Action-Plan.pdf [https://perma.cc/8QXH-XA8D] 14-15.

9 Libby Brooks, 'Labour's Delay on Conversion Practices Ban is "Dangerous", Campaigners Say' *The Guardian* 12 May 2025 at https://www.theguardian.com/world/2025/may/12/labours-delay-on-conversion-practices-ban-is-dangerous-campaigners-say [https://perma.cc/CBV5-CRDY]. A ban on 'conversion therapy' was among the Labour Government's manifesto commitments (see *Change: Labour Party Manifesto 2024* at https://labour.org.uk/wp-content/uploads/2024/06/Labour-Party-manifesto-2024.pdf [https://perma.cc/TAV2-AAXV] 91) and its prohibition in England and Wales was included in the King's Speech in 2024.

10 UN SOGI Report, n 2 above, 4-5.

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offences should be applied coherently.[11] Criminal law also performs a powerful expressive function:[12] it enables the state to repudiate the ideology that underpins 'conversion therapy' and affirm the equal worth of LGBT+ identities. In these ways, criminalisation protects not only individual survivors but also the dignity of the wider LGBT+ community. Finally, a criminal ban can facilitate access to justice. While civil law mechanisms – such as the creation of a new statutory tort – can offer important benefits, including a lower evidentiary threshold and greater victim agency, significant barriers stand in the way of civil litigation in this context.[13] These barriers can severely limit survivors' ability to seek redress. Criminal law, by contrast, enables the state to act directly against perpetrators, offering a more robust route to accountability for the systemic harms these practices inflict and foster.

The second aim of this article is to demonstrate how a criminal ban on 'conversion therapy' – which, if poorly drafted, can pose risks to human rights, including those of LGBT+ people – can and should be carefully designed to mitigate those risks. Drawing on legal responses and survivor-led studies from several jurisdictions, the article identifies specific risks associated with underreach, overreach and imprecision in criminal law, and proposes concrete legislative measures to address them. This represents a novel and substantial contribution to both legal and policy scholarship, which have so far largely neglected the detailed mechanics of designing and implementing a ban on 'conversion therapy'. By addressing not just *whether* but *how* criminalisation should proceed, this article makes a major advance on the existing literature and fills a critical gap at a particularly urgent time, as the UK and several other countries continue to grapple with how to legislate effectively in this area.

This article also offers a nuanced and applied contribution to debates about the limits and potential of coercive legal responses from the perspective of LGBT+ equality. The relationship between human rights and criminal law is often described as paradoxical.[14] On the one hand, criminal law can pose serious threats to human rights – impacting health, liberty and economic status.[15] On the other, it is increasingly deployed as a tool for advancing equality, including through the criminalisation of discriminatory harms.[16] LGBT+ theory and activism reflect these tensions, with some warning against punitive approaches and

11 Joseph Raz, *Ethics in the Public Domain* (Oxford: OUP, 1995) 277-325.

12 See for example Gail Mason, 'The Symbolic Purpose of Hate Crime Law: Ideal Victims and Emotion' (2014) 18 *Theoretical Criminology* 75.

13 Craig Purshouse and Ilias Trispiotis, 'Is "Conversion Therapy" Tortious?' (2022) 42 *Legal Studies* 23.

14 Françoise Tulkens, 'The Paradoxical Relationship between Criminal Law and Human Rights' (2011) 9 *Journal of International Criminal Justice* 577.

15 Natasa Mavronicola and Laurens Lavrysen, 'Coercive Human Rights: Introducing the Sharp Edge of the European Convention on Human Rights' in Natasa Mavronicola and Laurens Lavrysen (eds), *Coercive Human Rights* (Oxford: Hart, 2020) 1.

16 Ryan Thoreson, '"Discriminalization": Sexuality, Human Rights, and the Carceral Turn in Antidiscrimination Law' (2022) 110 *California Law Review* 431.

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others supporting criminal law as a means of securing protection and recognition. Inspired by these debates, this article offers a distinctive, qualified defence of criminalisation – one that is attentive to its historical evolution, its inherent limitations and its place as one component within a broader ecosystem of legal and non-legal responses, as the article's final section emphasises.

Finally, a note on terminology. The term 'conversion therapy' is a profoundly misleading misnomer: these so-called 'therapies' are in no way therapeutic, and LGBT+ identities are not conditions to be cured. The term deliberately obscures the inherently abusive and degrading nature of these practices.[17] It is used here – always in inverted commas – reluctantly and only because it remains the most widely recognised label in policy, advocacy and public discourse. The alternative term Sexual Orientation, Gender Identity or Gender Expression Change Efforts (SOGIE CE) is more accurate[18] but less familiar. This terminological choice reflects a pragmatic balance between critical precision and effective engagement with the audiences this article seeks to reach.

The article is structured in two main sections, each comprising three sub-sections. The first section sets out the case for criminalising 'conversion therapy', beginning with an overview of the justifications and risks associated with coercive approaches to human rights enforcement. It then draws analogies with existing criminal offences – specifically, hate crime and controlling or coercive behaviour – and considers the limitations of alternative legal responses. The second section examines three principal risks posed by criminalisation: underreach, overreach and insufficient emphasis on prevention and LGBT+ inclusion. Concrete legislative strategies are proposed throughout to mitigate these risks and ensure a proportionate and effective criminal ban. Together, these sections develop a normative and doctrinal framework to guide the effective design and implementation of criminal bans on 'conversion therapy' – both in the UK and internationally.

WHY CRIMINALISE 'CONVERSION THERAPY'?

Criminal law responses to human rights violations

Determining whether it is appropriate to mobilise the criminal law to ban 'conversion therapy' requires engagement with both the justifications for, and the risks of, coercive approaches to human rights enforcement. In recent decades, criminal law rules and enforcement mechanisms have increasingly been used to prosecute and punish serious human rights violations. This trend is often analysed as part of a growing 'anti-impunity' movement in international

17 Ilias Trispiotis and Craig Purshouse, '"Conversion Therapy" as Degrading Treatment' (2022) 42 *Oxford Journal of Legal Studies* 104. See also UN SOGI Report, n 2 above; Dinesh Bhugra and others, 'WPA Position Statement on Gender Identity and Same-Sex Orientation, Attraction and Behaviours' (2016) 15 *World Psychiatry* 299.

18 American Psychological Association (APA), 'APA Resolution on Sexual Orientation Change Efforts' (February 2021) at https://www.apa.org/about/policy/resolution-sexual-orientation-change-efforts.pdf.

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law, aimed at ensuring criminal accountability for those responsible for serious human rights violations.[19] Early examples include the Nuremberg and Tokyo International Military Tribunals, the Genocide Convention and the Geneva Conventions of 1949. Over time, states have undertaken express duties to criminalise serious human rights violations through widely ratified international treaties, such as the UN Convention Against Torture, the Convention on the Elimination of All Forms of Racial Discrimination and the Convention for the Protection of All Persons from Enforced Disappearances. These developments reflect the emergence of a two-way relationship between human rights and criminal law. On the one hand, state authorities are accountable for ensuring that criminal law is used to punish the most serious human rights abuses, including by ensuring that investigations of human rights abuses allow for effective prosecution, and that offenders are properly sentenced.[20] On the other, human rights norms are used to re-interpret and expand the catalogue of recognised international crimes.[21]

Positive state obligations to mobilise criminal law continue to percolate through the doctrine of human rights courts. There is now a formidable corpus of jurisprudence at the international, regional and national levels outlining such obligations. The European Court of Human Rights (ECtHR), in particular, has consistently held that 'framework' state duties – that is, duties to set up effective systems deterring human rights violations, backed up by investigation and enforcement mechanisms[22] – may sometimes require the use of criminal law measures. These duties have arisen in a wide range of cases, including unlawful killings,[23] torture,[24] rape,[25] sexual abuse of minors[26] or persons with disabilities,[27] excessive or illegitimate police violence,[28] ill-treatment of people in custody[29] and domestic violence.[30] The reasons why *these* particular violations, and not others, necessitate criminalisation are not always clearly articulated. For instance, while most of the aforementioned examples involve severe physical or mental abuse, the ECtHR often notes that criminalisation is

19 Karen Engle, 'Anti-Impunity and the Turn to Criminal Law in Human Rights' (2015) 100 *Cornell Law Review* 1069.

20 *McKerr* v *United Kingdom* Application No 28883/95, Merits and Just Satisfaction, 4 April 2000 (*McKerr*); *Khashiyev and Akayeva* v *Russia* Application Nos 57942/00 and 57945/00, Merits and Just Satisfaction, 24 February 2005 (*Khashiyev and Akayeva*).

21 Anja Seibert-Fohr, *Prosecuting Serious Human Rights Violations* (Oxford: OUP, 2009) ch 4.

22 *A* v *United Kingdom* Application No 25599/94, Merits and Just Satisfaction, 23 November 1998 at [22].

23 *McKerr* n 20 above.

24 *Khashiyev and Akayeva* n 20 above at [179].

25 *MC* v *Bulgaria* Application No 39272/98, Merits and Just Satisfaction, 4 December 2003 at [166].

26 *M and C* v *Romania* Application No 29032/04, Merits and Just Satisfaction, 27 September 2011 at [108].

27 *X and Y* v *The Netherlands* Application No 8978/80, Merits and Just Satisfaction, 26 March 1985 at [27].

28 *Cestaro* v *Italy* Application No 6884/11, Merits and Just Satisfaction, 7 April 2015 at [209].

29 *Myumyun* v *Bulgaria* Application No 67258/13, Merits and Just Satisfaction, 3 November 2015 (*Myumyun*) at [77].

30 *Volodina* v *Russia* Application No 41261/17, Merits and Just Satisfaction, 9 July 2019 (*Volodina*) at [81].

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justified to protect individuals – especially those in a vulnerable position[31] – from serious violations of human dignity,[32] regardless of whether injuries of a certain degree of severity have been inflicted.[33] For the purposes of this section, it is sufficient to note that these cases reveal two recurring justifications for mobilising (or withholding) criminal law in response to human rights violations. First, robust criminal proceedings – from investigation through to prosecution and sentencing – are necessary to deter and respond to the most serious and intentional human rights violations.[34] Second, criminalisation expresses societal condemnation and thus reaffirms the values underpinning human rights, namely, respect for the equal value and dignity of all persons.[35] On this view, criminalisation serves to signal the state's commitment to confront serious human rights violations, and offers victims recognition and a pathway to justice.

At the same time, human rights also operate as a 'shield' against excessive or disproportionate criminalisation.[36] *Dudgeon* v *United Kingdom* stands as a landmark judgment in which the ECtHR found that laws criminalising homosexual relations violate Article 8 of the European Convention on Human Rights (ECHR).[37] In other cases, the Court has held that criminalising expression can breach the Convention. In *Du Roy and Malaurie* v *France*, for instance, the Court held that imposing criminal fines on journalists who disseminated illegally obtained information that was in the public interest violated Article 10.[38] Such fines, the ECtHR held, could have a chilling effect on journalism. Human rights thus play a dual – or, as noted earlier, paradoxical[39] – role: shielding individuals from the overreach of criminal law while also requiring its mobilisation in cases of serious abuse. The risks of criminalisation stem from its nature as a 'global and indiscriminate invasion of autonomy',[40] capable of inflicting its own forms of serious harm.[41] Criminal punishment, for instance, particularly through imprisonment, restricts the rights to liberty, privacy and

31 Lourdes Peroni and Alexandra Timmer, 'Vulnerable Groups: The Promise of an Emerging Concept in European Human Rights Convention Law' (2013) 11 *International Journal of Constitutional Law* 1056.
32 *Myumyun* n 29 above at [74].
33 *Volodina* n 30 above at [81].
34 Tulkens, n 14 above.
35 See for example *Calvelli and Ciglio* v *Italy* Application No 32967/96, Merits, 17 January 2002, partly dissenting opinion of judges Rozakis, Bonello and Strážnická. On the expressive value of criminal punishment, as distinct from criminalisation, see Joel Feinberg, 'The Expressive Function of Punishment' (1965) 49 *The Monist* 397.
36 Tulkens, n 14 above.
37 *Dudgeon* v *United Kingdom* Application No 7525/76, Merits, 22 October 1981; *Norris* v *Ireland* Application No 10581/83, Merits and Just Satisfaction, 26 October 1988; *Modinos* v *Cyprus* Application No 15070/89, Merits and Just Satisfaction, 22 April 1993.
38 *Du Roy and Malaurie v France* Application No 34000/96, Merits and Just Satisfaction, 3 October 2000; *Vajnai* v *Hungary* Application No 33629/06, Merits and Just Satisfaction, 8 July 2008; *Mosley* v *United Kingdom* Application No 48009/08, Merits and Just Satisfaction, 15 September 2011; *Altug Taner* v *Turkey* Application No 27520/07, Merits and Just Satisfaction, 25 January 2012.
39 Tulkens, n 14 above.
40 Joseph Raz, *The Morality of Freedom* (Oxford: OUP, 1986) 418.
41 Liora Lazarus, 'Positive Obligations and Criminal Justice: Duties to Protect or Coerce?' in Lucia Zedner and Julian Roberts (eds), *Principles and Values in Criminal Law and Criminal Justice* (Oxford: OUP, 2012) 135.

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association, whilst also exposing people to violence and abuse in detention, separating them from family life and preventing employment.[42] Post-release restrictions on freedom of movement and the ability to work often lead to poverty.[43] These well-documented harms are why human rights law must, at the very least,[44] act as a shield against excessive criminalisation, and justify criminal coercion – especially deprivations of liberty[45] – only when strictly necessary.[46]

In the context of this article, it is essential to situate this discussion within the history of LGBT+ rights. Criminal law has long functioned as a tool of persecution: gay men were prosecuted for consensual same-sex relations, and LGBT+ communities have faced police harassment, threats of public exposure and criminal stigma.[47] While UK criminal law no longer directly targets LGBT+ people, the harms of criminalisation are not just historical. Many LGBT+ individuals continue to experience discrimination and exclusion within the criminal justice system. Surveys suggest that LGBT+ people are often reluctant to report violence due to fears that the police will not take them seriously or may discriminate against them.[48] Most transgender hate crime survivors, for instance, do not report their experiences due to their mistrust in the efficacy of the criminal justice system.[49] LGBT+ people are also more likely to experience violence within the carceral system. LGBT+ prisoners often face homophobic and transphobic bullying, may be forced to conceal their identities for safety, and are sometimes segregated – even placed in solitary confinement[50] – for their own protection.[51] Research indicates that trans prisoners are at significantly greater risk of sexual violence than cisgender prisoners.[52] More broadly, LGBT+ detainees face what has been described as 'additional punishment simply for being homosexual, bisexual and/or transgender.'[53] Although the risks of criminalisation extend beyond incarceration, non-carceral criminal measures – such as fines or community sentences – are not necessarily unproblematic,[54] as international human rights mechanisms increasingly recognise.[55]

Despite these risks, recent years have seen growing efforts across jurisdictions to mobilise criminal law in the service of LGBT+ equality. A few examples can

42 *Trosin* v *Ukraine* Application No 39758/05, Merits and Just Satisfaction, 23 February 2012; *MM* v *United Kingdom* Application No 24029/07, Merits and Just Satisfaction, 13 November 2012.
43 Rose Smith and others, *Poverty and Disadvantage Among Prisoners' Families* (York: Joseph Rowntree Foundation, 2017).
44 Dylan Rodriguez, 'Abolition as Praxis of Human Being' (2019) 132 *Harvard Law Review* 1575.
45 UN HRC, General Comment No 35, Article 9 (Liberty and security of person), CCPR/C/GC/35, 16 December 2014 at [10].
46 Aharon Barak, *Proportionality: Constitutional Rights and Their Limitations* (Cambridge: CUP, 2012).
47 Laura Belmonte, *The International LGBT Rights Movement: A History* (London: Bloomsbury, 2021) ch 6.
48 Galop, *Navigating the Criminal Justice System & Support Services as an LGBT+ Survivor of Sexual Violence* (London: Galop, 2022).
49 Stonewall, *LGBT in Britain: Trans Report* (London: Stonewall, 2018).
50 *X* v *Turkey* Application No 24626/09, Merits and Just Satisfaction, 9 October 2012.
51 Fernando Lannes Fernandes, Becky Kaufmann and Karen Kaufmann, *LGBT+ People in Prisons: Experiences in England and Scotland* (Dundee: University of Dundee, 2020).
52 Shon Faye, *The Transgender Issue* (New York, NY: Penguin, 2021) ch 5.
53 Fernandes, Kaufmann and Kaufmann, n 51 above.
54 Maya Schenwar and Victoria Law, *Prison by Any Other Name* (New York, NY: New Press, 2020).
55 Steven Malby, 'Beyond Sword and Shield: the UN Human Rights System and Criminal Law' (2024) 29 *International Journal of Human Rights* 916, 924-926.

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illustrate this trend. In the United States, the Hate Crimes Prevention Act of 2009 expanded hate crime offences to include violence based on sexual orientation or gender identity. As Sarah Lamble observes in relation to the lobbying efforts that secured its passage, 'it is striking that many LGBT activists in the USA see no contradiction between older movement goals of *de-criminalising* same-gender sex acts and current goals of *expanding criminalisation* through hate crime legislation.'[56] In England and Wales, section 66 of the Sentencing Act 2020 requires courts to treat hostility based on sexual orientation or transgender identity as an aggravating factor at sentencing. There is also a distinct offence of intentionally 'stirring up hatred' on the grounds of sexual orientation.[57] In Scotland, crimes may likewise be aggravated where they are proven to have been based on prejudice against a person's sexual orientation or gender identity.[58] These mechanisms enable increased maximum sentences and distinct labelling – for instance, assault aggravated by homophobic or transphobic prejudice. As noted earlier, such laws aim not only to punish the harms caused by discriminatory violence, but also to repudiate the message that LGBT+ people are of lesser social and moral worth.[59]

The literature discussed above – which this article can only briefly engage with – rightly cautions against an uncritical embrace of LGBT+ penality and highlights the contradictions inherent in seeking political freedoms through the mobilisation of state violence. Yet these critical perspectives should not be read as closing the door to criminalisation in all cases, and some of the authors cited earlier acknowledge that criminal law can be a proportionate response to serious human rights abuses.[60] One of their central demands is for care: attention to the structural conditions that enable violence and discrimination, and awareness that criminalisation alone cannot dismantle them. Rather than offering a definitive answer for or against criminalisation – as the sword and shield metaphor might suggest – human rights norms can help define the conditions under which criminal law may be legitimately deployed. In that vein, this article does not argue that the harms of 'conversion therapy' *automatically* trigger its criminal prohibition.[61] Rather, it supports such a call contextually: recognising the gravity and nature of the harms involved, the specific limitations of civil measures in this area, the ongoing risks LGBT+ people face within the criminal justice system, and the broader transformative imperative to pursue strategies of prevention, support and social inclusion. The final section of this article will return to these structural concerns. The remainder of this section turns to the reasons for criminalising hate crimes and coercive control and considers how these relate to 'conversion therapy'.

56 Sarah Lamble, 'Queer Necropolitics and the Expanding Carceral State: Interrogating Sexual Investments in Punishment' (2013) 24 *Law and Critique* 229, 235 (emphasis in original).
57 Public Order Act 1986, s 29.
58 Hate Crime and Public Order (Scotland) Act 2021, ss 1-2.
59 Nathan Hall, *Hate Crime* (Abingdon: Routledge, 2013) ch 5.
60 See for example Thoreson, n 16 above, 481; Natasa Mavronicola and Lee Davies, '"Conversion Therapy" and Transformative Reparations' in Ilias Trispiotis and Craig Purshouse (eds), *Banning 'Conversion Therapy'* (Oxford: Hart, 2023) 231, 246.
61 Mattia Pinto, 'Rights-Driven Global Penality' in Francesco Mazzacuva and others (eds), *Criminal Justice in the Prism of Human Rights* (Antwerpen: Maklu, 2022) 23.

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Justifying criminalisation

Criminal law already punishes discriminatory abuse in various contexts, including hate crimes and controlling or coercive behaviour.[62] This section examines the rationales for criminalising those offences and argues that the same underlying values justify the criminalisation of 'conversion therapy'. Like hate crimes and coercive control, 'conversion therapy' combines a well-documented risk of grave physical or psychological harm with wrongful direct discrimination. Given that it causes harm in similar ways and with similar levels of gravity as hate crimes and coercive control, criminalising it would ensure coherence in the law's response to discriminatory abuse and affirm that survivors deserve equal protection and recognition under the law.[63]

Before proceeding, it is important to clarify what is meant by 'conversion therapy'. While the next section considers definitional challenges in greater depth, a working definition is necessary at this stage. According to the United Nations and most states that have introduced bans, 'conversion therapy' refers to a range of practices directed at identifiable persons with the specific aim of changing or suppressing an individual's sexuality, gender identity, or gender expression, on the basis that these are deficient or inferior.[64] These practices target LGBT+ people and foster and reflect longstanding stigma and discrimination. They are profoundly harmful, widely discredited,[65] and unsupported by any credible evidence that identity can be changed through therapeutic or other interventions.[66] 'Conversion therapy' includes so-called 'talking therapies' which, although not overtly violent, can inflict grave psychological harm and perpetuate shame, self-rejection and trauma, as numerous survivors and studies across different countries attest.[67] It has been argued that this combination of grave harm and discrimination that all such practices share means that all of them amount at minimum to degrading treatment, and thus fall within the scope of the absolute prohibition of torture, inhuman or degrading treatment (TIDT).[68] There is growing support for this position in international human rights law.[69]

62 See for example Public Order Act 1986, ss 17-29; Crime and Disorder Act 1998, ss 28-32; Serious Crime Act 2015, s 76.

63 John McGarry, 'The Possibility and Value of Coherence' (2013) 34 *Liverpool Law Review* 17.

64 UN SOGI Report, n 2 above, 60-61.

65 *ibid*; Independent Forensic Expert Group, n 7 above, 1.

66 'Editorial' *The Lancet*, n 7 above.

67 Jordan Sullivan and others, *SOGIE CE/CT Survivor Support Project: Findings from a National Survey, Focus Groups, and Interviews with Hundreds of Survivors* (Vancouver: CBRC, 2022); Survivors of Sexual Orientation and Gender Identity Change Efforts (SOGICE), 'SOGICE Survivor Statement' (July 2020) at https://sogicesurvivors.com.au/sogice-survivor-statement/ [https://perma.cc/2F9A-A9RH]; Mendos, n 6 above; Bishop, n 1 above; UN SOGI Report, n 2 above.

68 Trispiotis and Purshouse, n 17 above.

69 UN SOGI Report, n 2 above; *Yogyakarta Principles Plus 10* (Geneva, 10 November 2017) at https://yogyakartaprinciples.org/wp-content/uploads/2017/11/A5_yogyakartaWEB-2.pdf [https://perma.cc/A7YC-SZL3] Principle 10 E; United Nations Committee Against Torture, 'Concluding Observations on the Seventh Periodic Report of Ecuador' CAT/C/ECU/CO/7 (11 January 2017) at [46]; United Nations Committee Against Torture, 'Concluding Observations on the First Period Report of China' CAT/C/CHN/CO/5 (3 February 2016) at [55].

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There are three main benefits of criminalising 'conversion therapy'. First, criminalisation enables the punishment of perpetrators for the *totality* of harms inflicted on the survivors of those practices. While existing criminal laws already prohibit physically and sexually violent versions of 'conversion therapy',[70] they fail to capture the totality of harm caused, which includes serious discriminatory and relational harms. Second, criminalisation carries important expressive value: it denounces 'conversion therapy' and affirms the equal moral and social worth of LGBT+ people. The failure of existing criminal law to prohibit all forms of 'conversion therapy' sends the false message that these practices are less serious than other forms of discriminatory abuse that are criminalised. Third, criminalisation can help ensure that survivors have access to justice so that they can be heard and receive vindication. The first two benefits will be discussed below; the third is examined in the next subsection and revisited in the article's last section.

It is important first to outline the core features of hate crime, and the justifications for hate crime offences, before examining how these reasons can support the criminalisation of 'conversion therapy'. Hate crime covers a myriad of behaviours – including harassment, assault, verbal abuse and damage to property – based on hostility or prejudice towards a victim's protected characteristic, such as disability, ethnicity, gender identity, nationality, race, religion or sexual orientation.[71] In England and Wales, hate crime offences include racially or religiously aggravated forms of wounding, assault, damage, stalking, harassment and threatening or abusive behaviour. They also include offences of stirring up hatred, which criminalise the use of threatening words or behaviour, or the display of threatening written material, where there is intent to stir up hatred on the grounds of sexual orientation, race, or religion.[72]

Justifications for hate crime offences rest on the devastating and lasting physical and psychological harms they inflict and on the corresponding culpability of perpetrators who risk causing such harms. Empirical studies consistently show that victims of hate crime experience greater and more enduring psychological distress than victims of otherwise comparable crimes. For example, survivors of racially motivated crimes are significantly more likely to experience serious stress, depression and anxiety.[73] Analysing British Crime Survey data, Kevin Smith and others found that survivors of hate crimes based on race, religion, gender identity, sexual orientation or disability reported higher levels of fear and anxiety than those targeted by non-hate crimes.[74] Similar findings emerge from studies of misogynistic[75] and anti-LGB hate crimes:[76] victims consistently

70 Offences Against the Person Act 1861, ss 20 and 47.
71 Hall, n 59 above, ch 1.
72 Public Order Act 1986, ss 17-29; Crime and Disorder Act 1998, ss 28-32.
73 Paul Iganski, 'Hate Crimes Hurt More' (2001) 45 *American Behavioral Scientist* 626.
74 Kevin Smith and others, *Hate Crime, Cyber Security and the Experience of Crime among Children* (London: Home Office, 2012).
75 Mika Hagerlid, 'Swedish Women's Experiences of Misogynistic Hate Crimes: The Impact of Victimization on Fear of Crime' (2021) 16 *Feminist Criminology* 504.
76 James Bell and Barbara Perry, 'Outside Looking In: The Community Impacts of Anti-Lesbian, Gay, and Bisexual Hate Crime' (2015) 62 *Journal of Homosexuality* 98; Gregory Herek and others, 'Hate Crime Victimization among Lesbian, Gay, and Bisexual Adults' (1997) 12 *Journal of Interpersonal Violence* 195.

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report more severe and longer-lasting psychological distress than other crime victims. Hate crimes have this effect because they are 'message crimes': they convey that the victim is inferior because of their membership of the targeted group, reinforcing demeaning messages that minorities have often encountered through prior discrimination.[77]

A further justification for hate crime laws lies in the distinct culpability of offenders for 'making a contribution to an already-existing societal pattern of discrimination'.[78] As Allison Marston Danner argues, hate crime offenders bear moral responsibility for reinforcing conditions that render victims vulnerable to discrimination.[79] Hate crime thus helps sustain an oppressive culture that stigmatises targeted groups as having lesser moral and social worth.[80] On this account, hate crime laws play a crucial role in improving the protection of groups – such as racial and religious minorities – that have historically endured discrimination. They do so not necessarily by prohibiting new forms of conduct but by taking existing criminal offences, which perform the prohibitive work, and aggravating them by prejudice. It can be argued, although this point cannot be developed further here, that the value of criminalising hate crime lies in the ways it can improve the accountability of perpetrators, while also performing important expressive functions: it proclaims that the state regards hate crime survivors as equals and is committed to dismantling entrenched prejudice by punishing hatred.

'Conversion therapy' practitioners fall outside the scope of existing hate crime offences. In England and Wales, aggravated offences apply only to crimes based on religion or race and, as discussed earlier, only where the perpetrator has also committed an underlying 'basic offence', such as assault. Practitioners of non-violent 'conversion therapy' may not commit any such basic offence. The separate standalone offence of stirring up hatred would also be unhelpful: the legal hurdles for establishing the offence under section 29B of the Public Order Act 1986 are likely insurmountable in cases involving 'conversion therapy'. For liability to arise, it is not sufficient to show that a practitioner was abusive or insulting, or that their conduct could stir up discrimination or recklessly stir up hatred against LGBT+ people. The behaviour must be proven to be *threatening* and *intended* to stir up hatred towards LGBT+ people. This is an almost impossible threshold to meet, given that 'conversion therapy' is typically framed by practitioners as being in the best interests of LGBT+ individuals. The relevance of the stirring-up hatred offence is further diminished by two additional factors: that 'conversion therapy' is likely to be directed at an individual rather than a group, and that section 29B(2) exempts acts carried out in a private dwelling.

77 Paul Iganski and Abe Sweiry, 'How Hate Hurts Globally' in Jennifer Schweppe and Mark Austin Walters (eds), *The Globalisation of Hate* (Oxford: OUP, 2016) 96.

78 Allison Marston Danner, 'Bias Crimes and Crimes against Humanity: Culpability in Context' (2002) 6 *Buffalo Criminal Law Review* 389, 426.

79 *ibid*, 423.

80 Mark Walters, 'Conceptualizing Hate Crime as Group Oppression' [2025] *Theoretical Criminology* (Online First); James Chalmers and Fiona Leverick, *A Comparative Analysis of Hate Crime Legislation: A Report to the Hate Crime Legislation Review* (Edinburgh: Scottish Government, 2017) 30-33.

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Despite 'conversion therapy' falling outside the scope of existing hate crime provisions – and despite the fact that a prohibition on 'conversion therapy' would need to be a standalone rather than an aggravated offence because it targets a specific form of wrongful conduct currently insufficiently captured by the law – there is value in recognising that the effects of hate crime, which normatively justify its criminal prohibition, are similar to those produced by 'conversion therapy'. Like hate crimes, 'conversion therapy' risks inflicting devastating and long-lasting physical and psychological harms rooted in discriminatory abuse. It targets a protected group – LGBT+ people – and seeks to deny them profoundly important freedoms related to sexuality and gender identity. Its explicit message that LGBT+ identities are inferior and ought to be eradicated reflects and reinforces historical stigma, causing profound distress to survivors. Empirical evidence from multiple jurisdictions consistently shows that survivors of 'conversion therapy' suffer lasting damage, including depression, anxiety, suicidal thoughts or attempts, shame, and self-hatred.[81] In the UK, the 2018 National Faith & Sexuality Survey similarly found high rates of mental health problems among 'conversion therapy' survivors, including suicidal ideation and attempts.[82] Legislators have correctly concluded that perpetrators of hate crimes deserve criminal punishment for risking such harms. Those who commit 'conversion therapy' deserve the same for exposing LGBT+ people to comparable risks.

Additionally, like hate crime, 'conversion therapy' harms not only individual survivors but contributes to broader social disadvantage for LGBT+ people by compounding existing prejudices and shaping how others perceive and treat them. As noted, all forms of 'conversion therapy' are grounded in the stigmatising ideology that LGBT+ identities possess lesser moral and social worth. The failure to ban such practices risks inflicting what Ben Eidelson, in the context of racial profiling, calls 'broad harm': it can shape social attitudes towards LGBT+ people and encourage their further exclusion.[83] Criminalising 'conversion therapy' is therefore crucial to recognising that it attacks the autonomy and moral personhood of *all* LGBT+ people, much like hate crime sustains and contributes to the systemic oppression of targeted minority groups. As noted earlier, while hate crime offences do not necessarily criminalise new forms of wrongful conduct, their contribution lies in improving accountability and recognition, thereby making existing prohibitions more effective. Although banning 'conversion therapy' would entail creating a standalone offence, recognising that its wrongfulness bears normative similarities to hate crime helps illuminate why the mobilisation of criminal law in this area can be justified.

An even closer analogy to 'conversion therapy' than hate crime is the standalone offence of controlling or coercive behaviour, criminalised in England

81 Tiffany Jones and others, *Healing Spiritual Harms: Supporting Recovery from LGBTQA+ Change and Suppression Practices* (Victoria: La Trobe, 2021) 7; Adam Jowett and others, *Conversion Therapy: An Evidence Assessment and Qualitative Study* (London: Government Equalities Office, 2021) 45-51; Bishop, n 1 above, 16-17.

82 Ozanne Foundation, 'National Faith and Sexuality Survey 2018' (Executive Report, 2019) at https://drive.google.com/file/d/1NpGW3PtZTnT21O4PbwuD_rkvk6aG99iv/view [https://perma.cc/8XTV-DZUJ].

83 Benjamin Eidelson, *Discrimination and Disrespect* (Oxford: OUP, 2015) 207-208.

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and Wales under section 76 of the Serious Crime Act 2015, and also criminalised in Scotland[84] and Northern Ireland,[85] with several other jurisdictions, such as Canada, considering similar legislation at the time of writing. This provides another useful precedent for criminalising conduct that combines a real risk of grave harm with discrimination.[86] Controlling or coercive behaviour includes 'threats, excessive regulation, intimidation, humiliation and enforced isolation'[87] – behaviours designed to control, dominate and increase dependency.[88] It is a relational wrong, typically sustained by sexist beliefs, which it also reproduces and promotes.[89]

The imbalance of power that coercive control reflects and sustains – an imbalance driven by patriarchal norms and structural inequalities – is likewise central to 'conversion therapy'.[90] Such practices are typically carried out by members of established social institutions, such as faith groups or health professionals,[91] who hold significant power or status over those they seek to influence. As the UN has noted, 'conversion therapy' is framed as a relationship between an 'enlightened converter and [a] benighted convert',[92] reflecting and reinforcing long-standing social stigma against LGBT+ identities. Through this stark power imbalance, and by drawing on and reinforcing existing social hierarchies, both coercive control and 'conversion therapy' subvert personal autonomy. They do so by coercing individuals to behave according to patriarchal, heteronormative and cisnormative ideals,[93] and by undermining their sense of self-worth – all under the guise of acting in the person's best interests.

The rationale for criminalising coercive control as a distinct pattern of abuse that subordinates and causes serious harm applies fully to 'conversion therapy'.[94] The nature and gravity of the harm are similar in both cases, and both have profoundly damaging effects not only on individual victims but also on the broader social standing of women and LGBT+ people.[95] Existing criminal laws on coercive control, however, are insufficient to address 'conversion therapy'. The offence of controlling or coercive behaviour requires that the perpetrator be 'personally connected' to the victim.[96] This threshold is met only in current

84 Domestic Abuse (Scotland) Act 2018, Part 1.
85 Domestic Abuse and Civil Proceedings Act (Northern Ireland) 2021, Part 1.
86 Marilyn McMahon and Paul McGorrery, 'Criminalising Coercive Control' in Marilyn McMahon and Paul McGorrery (eds), *Criminalising Coercive Control* (Berlin: Springer, 2020) 3.
87 Women's Aid NI, 'Coercive Control' at https://www.womensaidni.org/whatisdomesticabuse/coercive-control/ [https://perma.cc/266R-TJDB].
88 Evan Stark, *Coercive Control: How Men Entrap Women in Everyday Life* (New York, NY: OUP, 2nd ed, 2023) ch 8.
89 *ibid*.
90 Jonathan Herring, 'Conversion Practices and Coercive Control' in Trispiotis and Purshouse, n 60 above.
91 n 163 below.
92 UN SOGI Report, n 2 above, 16.
93 Evan Stark and Marianne Hester, 'Coercive Control: Update and Review' (2019) 25 *Violence Against Women* 81, 93.
94 Home Office, 'Controlling or Coercive Behaviour: Statutory Guidance Framework' (Home Office, Statutory Guidance, 5 April 2023) at https://assets.publishing.service.gov.uk/media/642d3f9e7de82b001231364d/Controlling_or_Coercive_Behaviour_Statutory_Guidance_-_final.pdf [https://perma.cc/DU48-AEVQ] 12.
95 *ibid*, 25. See also Herring, n 90 above, 53-56.
96 Serious Crimes Act 2015, s 76.

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or past intimate and family relationships.[97] As a result, many perpetrators of 'conversion therapy' would fall outside the scope of this offence.

It is possible to amend existing hate crime and coercive control legal frameworks to capture 'conversion therapy'. Hate crime laws could, for example, be amended to make 'conversion therapy' an aggravating factor upon sentencing, recorded as an aggravated hate crime offence. However, this would be unsatisfactory: non-violent forms of 'conversion therapy' would escape criminal liability because there would be no underlying 'basic offence' to aggravate. Creating a 'conversion therapy' aggravated offence would also risk establishing a false hierarchy of harm, with non-violent forms of 'conversion therapy' treated as less serious. Similarly, the law on controlling or coercive behaviour could be broadened to include 'conversion therapy' practitioners, allowing for the criminalisation of non-violent forms of such practices.

Yet creating a distinct 'conversion therapy' offence is preferable. A bespoke offence would bring the practical clarity and efficacy that no extension of existing offences could secure. It would define 'conversion therapy' and clarify its harms to state agencies such as the police, health professionals, schools and universities.[98] It would establish clear reporting pathways and enhance the ability of police and other criminal justice professionals to engage with survivors and pursue criminal interventions where appropriate. Drawing lessons from the implementation of the existing coercive control offence, a bespoke offence could also facilitate the necessary resourcing, training, monitoring and victim support to make its implementation effective.[99] Finally, a bespoke offence would have significant expressive value: it would enable the state to denounce 'conversion therapy' as an intolerable form of discriminatory abuse, affirm the equal worth of LGBT+ identities, and repudiate the ideology that sustains such practices. None of this implies that the criminal justice process is a panacea, nor should it be the sole means of providing justice and support to survivors. Broader strategies of prevention, education and resourcing remain indispensable. Nevertheless, as the Domestic Abuse Commissioner for England and Wales noted in their submission to the UK Government's 2021 consultation on a ban, statutory services often fail to recognise 'conversion therapy' as abuse, and therefore do nothing to protect those at risk or subjected to it.[100] A distinct criminal offence would encourage both service providers and survivors to recognise and act against 'conversion therapy'. This is a point the last section of this article will return to.

In sum, while certain instances of 'conversion therapy', such as those involving physical or sexual violence, are already covered by the criminal law, the totality of the harm these practices inflict – as an attack on the auton-

97 *ibid*.

98 Thoreson, n 16 above, 462.

99 Charlotte Barlow and Sandra Walklate, 'Learning Lessons from the Criminalisation of Coercive and Controlling Behaviour Ten Years On: The Implementation Journey in England and Wales' [2025] *International Journal for Crime, Justice and Social Democracy* (Advance Online Publication).

100 Domestic Abuse Commissioner, 'Government Conversion Therapy Consultation: Written Submission from the Domestic Abuse Commissioner for England and Wales' (2022) at https://domesticabusecommissioner.uk/wp-content/uploads/2022/01/2201-DAC-Response-to-Conversion-Therapy-Consultation.pdf [https://perma.cc/CZ4R-WSWE].

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omy and moral personhood of LGBT+ people – is not. This is despite the fact that the normative justifications for criminalising hate crimes and coercive control apply analogously. The resulting inconsistency undermines legal clarity and coherence, and leaves a significant gap in protection for LGBT+ individuals.

Alternatives to criminalisation: the limits of tort law

Existing tort law in the UK, particularly negligence and harassment, is ill-equipped to protect individuals from 'conversion therapy', especially from non-physical 'talking therapies'.[101] Claimants face major legal hurdles. The tort of negligence requires proof of a recognised psychiatric injury[102] – a threshold that often exceeds grievous mental harm,[103] even though such harm is well documented in relation to these practices.[104] Claimants must also show that the provider owed them, and breached, a duty of care,[105] which is difficult when practitioners are unqualified or present as faith healers.[106] The law effectively holds pseudo-scientific practices to a lower standard than professional medicine or regulated psychotherapy. The tort of harassment, meanwhile, only applies to unwanted conduct.[107] This bar is unlikely to be met where individuals consent to 'conversion therapy', even if that consent is shaped by religious or social pressure. In sum, existing tort law fails to capture the coercive dynamics and long-term harms of 'conversion therapy', particularly in its non-violent forms.

Against this background, it might be argued that a new statutory tort targeting 'conversion therapy' could offer a more appropriate legal response. New legislation could, for instance, stipulate that all forms of 'conversion therapy' involve a breach of a duty of care and permit individual claims for emotional distress. As the next section will discuss in more detail, some jurisdictions that have banned 'conversion therapy' have indeed adopted this approach. There are potential advantages to this strategy. Unlike criminal proceedings, civil litigation offers survivors of 'conversion therapy' greater control over whether and how a case is pursued, potentially providing some therapeutic benefits.[108] Another benefit is that successful tort claims can serve vindicatory purposes similar to criminal convictions without imposing as serious harms on offenders. In addition, the lower standard of proof in tort law may enhance access to justice, particularly given the low prosecution rates for abuse offences, including rape,

101 Purshouse and Trispiotis, n 13 above.
102 *McLoughlin* v *O'Brian* [1983] 1 AC 410 at [431] per Lord Bridge.
103 Rachael Mulheron, 'Rewriting the Requirement for a "Recognised Psychiatric Injury" in Negligence Claims' (2012) 32 *Oxford Journal of Legal Studies* 77.
104 n 81 above.
105 *Phelps* v *Hillingdon London Borough Council* [2000] 2 AC 59 at [77] per Lord Steyn.
106 *Shakoor* v *Situ* [2001] 1 WLR 410.
107 Protection from Harassment Act 1997, ss 1(1) and 3; *Brayshaw* v *The Partners of Apsley Surgery* [2018] EWHC 3286 at [61]. Similarly, Equality Act 2010, s 26.
108 Allan Lind and others, 'In the Eye of the Beholder: Tort Litigants' Evaluations of their Experiences in the Civil Justice System' (1990) 24 *Law & Society Review* 953.

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assault, and controlling or coercive behaviour.[109] Finally, civil remedies can serve preventative aims. Courts can impose civil injunctions to desist from 'conversion therapy'[110] or issue no contact orders, which can be backed by criminal sanctions in the event of a breach.[111] Such orders may be especially valuable in light of the longstanding and well-founded distrust many LGBT+ people hold toward criminal justice agencies.

Nonetheless, without the possibility of criminal sanction, the effectiveness of a purely civil response remains limited. Statutory limitation periods for torts – typically six years from the date of the cause of action[112] – may be ill-suited to the delayed recognition and disclosure often associated with psychological harm. Studies focused on survivors consistently show that survivors may take years to identify the link between the practice and their mental health difficulties, especially where 'conversion therapy' was framed as a form of care or support.[113] Financial barriers also loom large. Legal aid is mostly abolished in private law cases, and many survivors may lack the significant resources required to fund litigation and may be unable to recover meaningful compensation from defendants with limited means.[114] Furthermore, the nature and impact of 'conversion therapy' may be difficult to translate into monetary damages.

Crucially, tort law is structurally ill-equipped to address the public and systemic nature of the harm caused by 'conversion therapy'.[115] A tort-based response frames the issue as a private dispute rather than a public wrong. It fails to communicate the gravity of the moral and social injury that 'conversion therapy' represents – namely, its reinforcement of a cultural narrative that LGBT+ identities are disordered or undesirable. These harms extend well beyond individual claimants to the wider LGBT+ community, undermining dignity and equality on a societal scale. Criminal law, by contrast, offers a more appropriate vehicle for expressing collective condemnation of the ideologies underpinning 'conversion therapy', much as it does with hate crime and controlling or coercive behaviour.[116]

Moreover, criminalisation enables a state-led response in situations where survivors may be unable or unwilling to initiate civil proceedings due to

109 Rachel George and Sophie Ferguson, *Review into the Criminal Justice System Response to Adult Rape and Serious Sexual Offences across England and Wales* (HM Government, Research Report, 2021) https://assets.publishing.service.gov.uk/media/60cbb9318fa8f57ce78d4d85/rape-review-research-report.pdf [https://perma.cc/9VAX-YKAB] 55-57.

110 Although it is arguable that such injunctions might be of limited use: a person who is in a position to sue may not need an injunction against a practice they have no interest in, nor would such an injunction necessarily prevent 'conversion therapy' being offered to other individuals.

111 For example the Domestic Violence, Crime and Victims Act 2004 criminalised the breach of non-molestation orders under the Family Law Act 1996.

112 Limitation Act 1980, s 2.

113 Elisabeth Dromer and others, 'Overcoming Conversion Therapy: A Qualitative Investigation of Experiences of Survivors' [2022] *SSM Qualitative Research in Health* 100194; Jones and others, n 81 above, 14-16; Ozanne Foundation, n 82 above.

114 Jon Robins and Daniel Newman, *Justice in a Time of Austerity* (Bristol: Bristol University Press, 2021).

115 John Coffee, 'Paradigm Lost: The Blurring of the Criminal and Civil Law Models' (1992) 101 *Yale Law Journal* 1875.

116 Antony Duff, 'Towards a Theory of Criminal Law' (2010) 84 *Proceedings of the Aristotelian Society* 1, 21-22.

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internalised stigma, fear of retribution, or complex ties to perpetrators. Research commissioned by the UK Government Equalities Office shows that many seek 'conversion therapy' out of a 'strong desire to belong within their families, religious communities and friendship groups, and a belief that being LGB was an obstacle to that.'[117] Survivors from Australia similarly describe the coercive control and gaslighting common in these practices, which lead many to internalise messages of brokenness and to view perpetrators as healers.[118] Such evidence shows that survivors may refrain from initiating civil proceedings because of the very nature of 'conversion therapy': loyalty, shame, or fear of being 'outed' – especially within unsupportive families or communities – can silence them. These foreseeable barriers to civil proceedings mirror well-documented patterns in the underreporting of LGBT+ hate crimes.[119] While such dynamics can also impede engagement with the criminal process – a point the final section of this article will return to – the availability of criminal sanctions ensures that the state can act independently to hold perpetrators accountable and affirm the equal worth of LGBT+ people.

This is not to suggest that criminal law is, or should be, the sole response to 'conversion therapy'. Later sections of this article will elaborate on the essential role of complementary measures. Nor is this to dismiss civil remedies. A statutory tort could meaningfully complement a criminal prohibition by offering survivors an additional avenue for redress. But the public wrongs inherent in 'conversion therapy', combined with the distinctive barriers to civil justice mentioned above, mean that tort law alone cannot provide an adequate response. While it may supplement a criminal ban, it cannot supplant it.

THE RISKS OF CRIMINALISING 'CONVERSION THERAPY' AND SUGGESTIONS FOR MITIGATION

The preceding analysis has shown why the nature and gravity of the harms caused by 'conversion therapy' can justify recourse to the criminal law. Yet, as previously discussed, criminal law is not a benign force. If poorly designed or implemented, it may inflict further harm – including on those it purports to protect. This risk is evident in other contexts: punitive drug possession laws have led to serious health consequences for people with substance use disorders;[120] the criminalisation of sex work has frequently exacerbated unsafe working conditions for sex workers;[121] and, more broadly, penal expansion has often diverted attention from the structural conditions that produce in-

117 Jowett and others, n 81 above, 36.
118 'SOGICE Survivor Statement' n 67 above, 4.
119 Neil Chakraborti and Stevie-Jade Hardy, *LGB&T Hate Crime Reporting* (University of Leicester, Research Report, 2015) at https://www.equalityhumanrights.com/sites/default/files/research-lgbt-hate-crime-reporting-identifying-barriers-and-solutions.pdf [https://perma.cc/7T8G-9S7U].
120 Lisa Maher and Thomas Crewe Dixon, 'Collateral Damage and the Criminalisation of Drug Use' (2017) 4 *Lancet HIV* 326.
121 Laura Graham, 'Governing Sex Work Through Crime: Creating the Context for Violence and Exploitation' (2017) 81 *Journal of Criminal Law* 201.

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equality and violence.[122] These lessons, widely recognised in human rights scholarship and activism, caution against overreliance on criminalisation as a tool for human rights protection. It is with this caution in mind that this section identifies key risks associated with criminalising 'conversion therapy' and, informed by comparative material on relevant laws and policies, offers concrete recommendations for how those risks can be effectively mitigated.

Definition of the offence and international precedent

One of the primary risks with the criminalisation of 'conversion therapy' is the dual threat of *underreach* – where harmful practices may escape legal scrutiny – and *overreach* – where legitimate therapeutic or supportive practices may inadvertently be brought within the scope of criminal law. To mitigate these risks, it is essential to formulate a clear and precise legislative definition of the offence, accompanied by detailed explanatory notes and illustrative examples in any relevant bill.[123]

This task, however, does not begin in a vacuum. Recent policy and advocacy efforts – both nationally and internationally – often led or informed by survivors of 'conversion therapy', alongside the introduction of legal bans in various jurisdictions, have significantly clarified this area. Today, there is an internationally accepted definition of 'conversion therapy' and a developing body of best practices aimed at preventing the foreseeable forms of underreach and overreach that can reasonably be anticipated in this legal context.

Earlier sections of this article provided an initial overview of the established definition of 'conversion therapy' practices. At this point, it is essential to revisit and examine that definition more thoroughly. In his 2020 report to the UN Human Rights Council, the UN Independent Expert on the protection against violence and discrimination based on sexual orientation and gender identity (UN SOGI) defined 'conversion therapy' as

> an umbrella term to describe interventions of a wide-ranging nature, all of which are premised on the belief that a person's sexual orientation and gender identity, including gender expression, can and should be changed or suppressed when they do not fall under what other actors in a given setting and time perceive as the desirable norm, in particular when the person is lesbian, gay, bisexual, trans or gender diverse. Such practices are therefore consistently aimed at effecting a change from non-heterosexual to heterosexual and from trans or gender diverse to cisgender.[124]

This definition corresponds closely with those adopted in legislative bans on 'conversion therapy' enacted by several national jurisdictions, including

122 Silvana Tapia Tapia, 'Human Rights Penality and Violence Against Women: The Coloniality of Disembodied Justice' (2025) 36 *Law and Critique* 41.
123 New Zealand's ban on 'conversion therapy' includes illustrative examples; n 127 below.
124 UN SOGI Report, n 2 above, at [17].

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Canada,[125] France,[126] New Zealand,[127] Norway,[128] Malta,[129] Germany,[130] and Greece.[131] It is a key point of reference in the European Parliament's 2023 report *Conversion Practices on LGBT+ People*,[132] and is frequently cited in scholarly publications and policy documents issued by the Council of Europe,[133] the UK parliament,[134] and a range of NGOs operating both domestically[135] and internationally.[136] Furthermore, the UN definition closely parallels the one adopted by the Memorandum of Understanding (MoU) on 'Conversion Therapy' in the UK. The MoU, signed by leading healthcare bodies such as the British Association for Counselling and Psychotherapy (BACP), the Royal College of General Practitioners (RCGP) and the National Health Service (NHS), condemns 'conversion therapy' as both harmful and unethical, and sets out concrete commitments and actions for organisations to help end this practice in the UK.[137]

The foregoing definition underpins a range of legislative approaches to the criminalisation of 'conversion therapy', including comprehensive criminal bans, partial criminal bans targeting specific providers or practices and hybrid models combining criminal and civil sanctions. Each of these approaches will now be briefly examined. Their potential to underreach or overreach will then be assessed in the following two sections.

France, Canada and Norway have enacted comprehensive criminal bans on 'conversion therapy'. In Canada, it is a criminal offence for someone to knowingly cause another person to undergo 'conversion therapy' – including by directly providing it to them.[138] Additionally, promoting, advertising or profiting from such practices is also criminalised.[139] In addition to these core prohibi-

125 Bill C-4 (S.C. 2021, c. 24) (Canada), s 320.101.
126 Loi no 2022-92 du 31 Janvier 2022 (France), Art 225-4-13.
127 Conversion Practices Prohibition Legislation Bill 56-2 (2021) (New Zealand), s 5(1).
128 Lov 20 Desember 2023 nr 113 om endringer i straffeloven (konverteringsterapi) (Norway), s 270.
129 Affirmation of Sexual Orientation, Gender Identity and Gender Expression Act, Act LV of 2016 (Malta), s 2.
130 Gesetz zum Schutz vor Konversionsbehandlungen vom 12 Juni 2020 (BGBl. I S. 1285) (Germany), §1.
131 Πρακτικές Μεταστροφής, Τροπολογία στο Σχέδιο Νόμου του Υπουργείου Υγείας με Τίτλο 'Γιατρός για Όλους' (9 May 2022) (Greece), Art 1.
132 European Parliament, *Conversion Practices on LGBT+ People* (STUDY Requested by the LIBE committee, July 2023) at https://www.europarl.europa.eu/meetdocs/2014_2019/plmrep/COMMITTEES/LIBE/DV/2023/07-17/Study_PolDepC_ConversionPracticesonLGBTPeople_752.385_EN.pdf [https://perma.cc/LHS2-TTJG].
133 Dunja Mijatović, 'Nothing to Cure: Putting an End to So-Called "Conversion Therapies" for LGBTI People' (Commissioner for Human Rights, Comment, 16 February 2023) at https://www.coe.int/en/web/commissioner/-/nothing-to-cure-putting-an-end-to-so-called-conversion-therapies-for-lgbti-people.
134 Douglas Pyper and Joe Tyler-Todd, 'Prohibiting Conversion Therapy' House of Commons Library Research Briefing (22 February 2024); Jack Edmunds and Abbi Hobbs, 'Conversion Therapy' POSTnote Number 658, UK Parliament POST (December 2021).
135 Ozanne Foundation, 'Recommendations on effectively legislating for a ban on conversion practices, Signatories' (The Cooper Report, 1 October 2021) at https://ozanne.foundation/cooper_report/#signatories [https://perma.cc/5ZSD-HN5H].
136 Mendos, n 6 above, 17-20.
137 MoU, n 7 above.
138 Bill C-4 (S.C. 2021, c. 24) (Canada), s 320.101.
139 Bill C-4 (S.C. 2021, c. 24) (Canada), ss 320.103 and 320.104.

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tions – shared with Canada – France and Norway have introduced aggravated criminal offences for conversion practices that involve multiple perpetrators or result in serious physical or psychological harm.[140] France further includes aggravated criminal offences for practices directed at minors or individuals with known vulnerabilities.[141] Moreover, the legal frameworks of France, Canada and Norway – alongside those in New Zealand and the state of Victoria, Australia, which will be discussed below – expressly exclude the possibility of individual consent as a legal defence for undergoing 'conversion therapy'.

Malta, Germany and Greece have enacted partial criminal bans on 'conversion therapy'. These prohibitions are partial in several respects: they apply only to practices directed at minors or vulnerable individuals; primarily target the provision of 'conversion therapy' by professionals; and they permit adults who are not deemed vulnerable to consent to such practices, with valid consent operating as a defence to criminal liability. More specifically, Malta, the first member of the Council of Europe to legislate against 'conversion therapy' in 2016, criminalises its performance on minors, individuals deemed vulnerable due to health or dependency, and persons who have not consented.[142] The advertising of such practices is also a criminal offence.[143] Moreover, regardless of age, vulnerability or consent, it is a criminal offence for a broad range of professionals – including medical practitioners, therapists and social workers – to offer or perform 'conversion therapy' on any person.[144] Similarly, German law criminalises the performance of such practices on minors and on adults whose consent was obtained through coercion, threats, or deception.[145] However, offering, advertising, or arranging 'conversion therapy' is an administrative rather than a criminal offence.[146] By contrast, Greek law imposes criminal liability on professionals who promote or advertise 'conversion therapy'.[147] Like Malta and Germany, Greece also criminalises the performance of such practices on minors, vulnerable persons, and those who have not consented.[148]

New Zealand and Victoria, Australia have introduced comprehensive bans on 'conversion therapy' that rely only partially on criminal law. While it is unlawful in both jurisdictions for any person to perform or arrange for the performance of 'conversion therapy' on another,[149] criminal sanctions apply only in limited circumstances. In New Zealand, criminal liability arises where the conduct is directed at a minor,[150] at a person lacking the capacity to understand

140 Loi no 2022-92 du 31 Janvier 2022 (France), Art 1 and Lov 20 Desember 2023 nr 113 om endringer i straffeloven (konverteringsterapi) (Norway), s 270(a) respectively.
141 *ibid*.
142 Affirmation of Sexual Orientation, Gender Identity and Gender Expression Act, Act LV of 2016 (Malta), s 3.
143 *ibid*.
144 *ibid*.
145 Gesetz zum Schutz vor Konversionsbehandlungen vom 12 Juni 2020 (BGBl. I S. 1285) (Germany), §1.
146 *ibid*, §6.
147 Πρακτικές Μεταστροφής, Τροπολογία στο Σχέδιο Νόμου του Υπουργείου Υγείας με Τίτλο 'Γιατρός για Όλους' (9 May 2022) (Greece), Art 2.
148 *ibid*.
149 Conversion Practices Prohibition Legislation Bill 56-2 (2021) (New Zealand), Art 15.
150 *ibid*, Art 8.

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the nature and consequences of the practice,[151] or where the practice causes serious harm.[152] Outside these situations, 'conversion therapy' practices may attract civil liability. New Zealand has amended the Human Rights Act 1993, establishing a civil redress scheme overseen by the Human Rights Commission. The Human Rights Commission plays a broader institutional role that includes public education, receiving and referring reports of conversion practices, and the publication of guidelines and codes of practice, reflecting a more systemic approach.[153] Victoria follows a similar model. Criminal sanctions are triggered only when an instance of 'conversion therapy' causes injury or serious injury, while a wider civil response scheme is administered by the Victorian Equal Opportunity and Human Rights Commission. Like its New Zealand counterpart, the Victorian Commission engages in education, complaint handling and systemic oversight.[154] As noted above, both jurisdictions exclude consent as a legal defence to 'conversion therapy'.[155]

One final definitional point is worth noting before turning to questions of underreach and overreach. Among the jurisdictions discussed, Canada has adopted a *unidirectional* ban, criminalising 'conversion therapy' practices aimed specifically at changing or suppressing LGBT+ identities. In contrast, France, Malta, Germany, Greece and Norway have enacted *universal* bans that criminalise all forms of 'conversion therapy' irrespective of the sexual orientation or gender identity targeted for change or suppression. A unidirectional ban better reflects the empirical reality that there is no credible evidence of 'conversion therapy' being directed at heterosexual or cisgender people.[156] On this basis, a more narrowly tailored legislative response may be justified. Moreover, a unidirectional ban carries greater and clearer symbolic force. It acknowledges that 'conversion therapy' is rooted in, and contributes to, the exclusion, stigma and structural vulnerability faced by LGBT+ people – conditions not experienced by heterosexual or cisgender persons in the same way. By directing legal protection where harm is actually occurring, a unidirectional ban delivers an unambiguous message: that the state will not tolerate efforts to erase LGBT+ identities, and will meet such practices with the full weight of criminal law.

However, the distinction between unidirectional and universal bans may not be as stark in practice. Each of the universal bans mentioned above explicitly recognises – either in travaux préparatoires[157] and explanatory notes,[158] or in examples within the text of the legislation[159] – that 'conversion therapy' practices target same-sex attraction and promote gender-conforming behaviour. In this respect, even universal bans reflect the real-world directionality of

151 *ibid*.
152 *ibid*, Art 9.
153 *ibid*, Part 3.
154 Change or Suppression (Conversion) Practices Prohibition Act 2021 (Victoria), Part 3.
155 Change or Suppression (Conversion) Practices Prohibition Act 2021 (Victoria), Art 5; Conversion Practices Prohibition Legislation Bill 56-2 (2021) (New Zealand), s 5.
156 UN SOGI Report, n 2 above; Mendos, n 6 above.
157 French Senate Rapport No 294 at https://www.senat.fr/rap/l21-294/l21-2941.pdf [https://perma.cc/U3RB-9TGD] 4.
158 n 131 above, 6.
159 Conversion Practices Prohibition Legislation Bill 56-2 (2021) (New Zealand), s 5.

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such practices. As Lui Asquith argues, universal bans may carry an additional benefit: they may be more effective at accommodating the diversity of gender identity expressions within the trans community.[160] By avoiding assumptions about what it means to be trans, universal bans can reduce the risk of gender-policing and offer stronger protection for trans individuals.[161] Nonetheless, this argument pertains more to the application than the formulation of the ban. Both unidirectional and universal bans, if properly enforced, should adequately protect all LGBT+ persons from the harms of 'conversion therapy'. For this reason, this point is addressed briefly here before turning to the risks of underreach and overreach.

The risk of underreach

Empirical studies across several countries reveal two significant risks of underreach in the criminal regulation of 'conversion therapy'. These risks are evident in some of the national bans discussed in the preceding section. The first concerns the exclusion of consenting adults from legal protection. The second arises from the narrow focus of some bans on professional actors, thereby failing to capture a substantial share of 'conversion therapy' providers. These two risks are addressed in turn. The discussion then turns to the scope of criminalisation, with a particular focus on hybrid bans that combine civil and criminal regulatory tools, and the risks of underreach they may pose.

One of the most pressing risks of underreach in 'conversion therapy' bans arises where the criminal law permits individual consent as a defence – mainly in the case of independent adults. This approach is flawed. Empirical studies, often led by survivors,[162] show that 'conversion therapy' practices are inherently coercive and thrive in contexts of social pressure, familial control and cultural stigma.[163] These dynamics compromise genuine autonomy, even for adults. The techniques used – gaslighting, emotional manipulation, the pathologisation of LGBT+ identities – mirror those found in coercive control, which, as discussed earlier, is a criminal offence in England and Wales under section 76 of the Serious Crime Act 2015.[164] In that context, the law rightly rejects consent as a defence because the individual's capacity for autonomous decision-making is understood to be subverted. The same logic applies here. Adults may 'choose' to undergo 'conversion therapy', but often this is under threat of social exclusion, loss of community or spiritual condemnation.[165] Such choices are not freely

160 Lui Asquith, 'Ensuring Trans Protection within a Ban on Conversion Practices' in Trispiotis and Purshouse, n 60 above, 160.
161 *ibid*.
162 n 67 above.
163 Mendos, n 6 above, ch 2; UN SOGI Report, n 2 above, 9-13; 'Pathways for Eliminating Conversion Practices' (Outright International, Advocacy Toolkit, 2022) at https://outrightinternational.org/sites/default/files/2022-12/Outright_Report_DEC2022.pdf [https://perma.cc/6JP9-LHHA] 4.
164 It is also a criminal offence in Scotland and Northern Ireland. See n 84 and n 85 above.
165 Jayne Ozanne, '"Conversion Therapy", Spiritual Abuse and Human Rights' [2021] *European Human Rights Law Review* 241.

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made; they are shaped by a structural context that devalues LGBT+ identities. Permitting consent in these circumstances not only misunderstands how coercion operates – it also legitimises the very structures that allow discriminatory abuse to persist. That is why several jurisdictions, including Canada, France and New Zealand, allow no space for individual consent in their bans. Laws that do otherwise fail to provide meaningful protection and risk blaming survivors for their own victimisation.

A second significant risk of underreach arises where legislation limits its scope to the provision of 'conversion therapy' by professionals, thereby excluding a substantial proportion of those who actually deliver such practices. Empirical research in the UK – including the UK Government's 2018 National LGBT Survey – makes clear that conversion practices are frequently carried out by individuals operating outside formal therapeutic or medical contexts. Of those respondents who had undergone 'conversion therapy', just 28.7 per cent reported that it had been conducted by healthcare professionals, while over half (50.4 per cent) indicated that it had been delivered by faith-based organisations or individuals.[166] These findings are consistent with broader international data suggesting that much of the provision occurs in religious or informal community settings, often by individuals with no recognised professional status.[167] A legislative framework that targets only professionalised practice is thus poorly calibrated to the empirical reality. Greece offers a recent example: its 2022 law prohibits the provision of 'conversion therapy' by regulated professionals – particularly those who get paid to carry out such practices – but leaves unregulated a wide range of amateur or religious providers.[168] Such an approach risks creating a loophole through which the most prevalent and least accountable forms of 'conversion therapy' are allowed to persist. If criminal bans on 'conversion therapy' are to be effective, they must extend to all providers, regardless of formal qualifications or institutional affiliation.

That said, it is entirely appropriate – indeed necessary – for legislation to impose aggravated penalties on professionals who engage in these practices, as Malta's legislation does.[169] When clinicians, counsellors, nurses, educators or social workers – those entrusted with care, guidance, and institutional authority – participate in 'conversion therapy', the harm is aggravated. These actors betray both their ethical obligations and the trust of those in their care, and their actions demand heightened accountability under the law. Aggravated offences thus serve an important expressive and protective function, but must be part of a broader scheme that covers all providers.

166 Government Equalities Office, 'National LGBT Survey: Summary Report' (July 2018) at https://assets.publishing.service.gov.uk/media/5b3cb6b6ed915d39fd5f14df/GEO-LGBT-Survey-Report.pdf [https://perma.cc/B6HN-KLMP] 18-19.

167 Jowett and others, n 81 above, 24; Jones and others, n 81 above, 6-7; Mendos, n 6 above, 38-49; UN SOGI Report, n 2 above, 9-13; Ozanne, n 82 above, 15; Jack Drescher 'Sexual Conversion Therapies: History and Update' in Billy Jones and Marjorie Hill (eds), *Mental Health Issues in Lesbian, Gay, Bisexual, and Transgender Communities* (Washington DC: APA, 2002) 88.

168 Πρακτικές Μεταστροφής, Τροπολογία στο Σχέδιο Νόμου του Υπουργείου Υγείας με Τίτλο 'Γιατρός για Όλους' (9 May 2022) (Greece), Art 2(γ).

169 Affirmation of Sexual Orientation, Gender Identity and Gender Expression Act, Act LV of 2016 (Malta), Art 4(2).

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As the previous section showed, some jurisdictions criminalise certain forms of 'conversion therapy', while other forms are treated as breaches of private law. This raises an important question: what justifies criminalising only some forms of 'conversion therapy' and not others, when all such practices share a common discriminatory aim – to change or suppress LGBT+ identities – and carry a well-established risk of serious harm? As discussed earlier, 'conversion therapy' practices, like coercive control, undermine an individual's autonomy and sense of self. And like hate crimes, they harm individuals because of their protected characteristics. Both coercive control and hate crimes are criminal offences in the UK, regardless of whether physical injury occurs or whether the victim consented.

Jurisdictions such as Victoria, which restrict criminalisation to forms of 'conversion therapy' that cause injury as defined in the Crimes Act 1958, risk significant underreach.[170] The harm caused by these practices is often psychological and always dignitarian – humiliation, shame and pressure to conform – which works cumulatively to erode an individual's sense of identity. These harms may fall outside existing definitions of injury but are no less serious in substance or consequence. As with the offence of controlling or coercive behaviour, it is the risk and nature of the harm – its manipulative, degrading effect – that justifies criminalisation.[171] On top of that, partial criminalisation of 'conversion therapy' fails to express the full official state condemnation that these practices deserve. When only some forms are criminalised, it signals to society that certain practices are less harmful or more tolerable than others, creating a discrepancy. This distinction creates an asymmetry in the law too, as coercive control, which is analogous in nature to 'conversion therapy', is fully criminalised regardless of consent or whether the perpetrator causes actual injury. By contrast, treating some forms of 'conversion therapy' as civil offences undermines the gravity of their impact and sends a message that these practices, while harmful, do not warrant the full force of the criminal law.

A more coherent legal response would be to criminalise all forms of 'conversion therapy', as jurisdictions such as Canada, France and Norway have done, to ensure comprehensive protection for everyone targeted by these practices. While the methods of 'conversion therapy' can vary – from violent interventions to non-violent, but equally coercive, 'talking therapies' or religious rituals – all of them are unified by a common aim: the denial and erasure of LGBT+ identities.[172] Partial criminalisation, as seen in jurisdictions like New Zealand and Victoria, risks drawing arbitrary distinctions that obscure the systemic nature of the harm and leave many survivors without sufficient legal protection. Any effective criminal prohibition should also encompass the promotion or advertisement of 'conversion therapy'. Such promotion serves to legitimise and perpetuate these practices. All the jurisdictions discussed in the previous section expressly prohibit advertising, with all but Germany classifying it as a criminal offence. These provisions are not peripheral: they are central

170 Crimes Act 1958, s 15.
171 Herring, n 90 above; Victor Tadros, 'The Distinctiveness of Domestic Abuse: A Freedom Based Account' (2005) 65 *Louisiana Law Review* 989, 1003.
172 UN SOGI Report, n 2 above.

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to dismantling the infrastructure that sustains and reproduces 'conversion therapy'.

Two additional risks of underreach merit brief consideration, both concerning the precision with which criminal legislation ought to define the prohibited conduct. First, any criminal ban on 'conversion therapy' must explicitly protect the right to determine and express one's gender identity – a right already protected under human rights and discrimination law.[173] The inclusion of gender expression, alongside sexual orientation and gender identity, in the statutory definition of 'conversion therapy' is vital to acknowledge and protect the diverse ways gender is manifested, including through physical appearance and mannerisms, which may or may not conform with a person's gender identity.[174] This is particularly important for individuals with complex gender identities, but also more broadly for LGBT+ persons whose gender expression deviates from prevailing cisnormative and heteronormative expectations.[175] The inclusion of gender expression in this context is consistent with emerging international human rights standards,[176] the definition of 'conversion therapy' set out in the 2020 UN Report,[177] and the statutory definitions adopted in Canada, France, Malta, Greece, New Zealand and Victoria.

Second, careful attention must be paid to the temporal scope of the offence. The term 'interventions', as used in the 2020 UN Report,[178] creates ambiguity by failing to specify whether both one-off and sustained practices are covered. This lack of precision is significant, as empirical evidence and survivor testimony consistently show that both isolated acts and cumulative efforts to suppress or alter a person's sexual orientation or gender identity can inflict serious and long-term harm.[179] Legislative formulations that refer explicitly to both 'treatment' and 'sustained effort' – as seen in all the jurisdictions discussed in the preceding section – offer a more accurate reflection of the lived experiences of those subjected to 'conversion therapy' and more effectively serve the protective functions of a ban.

The risk of overreach

Having addressed the risk of underreach, it is equally important to consider the risk of overreach – most notably, the potential capture of legitimate therapeutic, religious or familial practices within the nexus of the criminal law. A ban on 'conversion therapy' must not impede access to appropriate therapeutic support, nor infringe personal autonomy in setting therapeutic goals, particularly where internal conflicts arise between identity and religious or cultural

173 *Yogyakarta Principles Plus 10* n 69 above; UNGA, 'Protection Against Violence and Discrimination Based on Sexual Orientation and Gender Identity' A/76/152 (15 July 2021) at [16]-[18].
174 *Yogyakarta Principles Plus 10* n 69 above, Preamble.
175 Sandra Duffy, 'Contested Subjects of Human Rights: Trans- and Gender-Variant Subjects of International Human Rights Law' (2021) 84 MLR 1041.
176 *ibid*, 1049-1053.
177 UN SOGI Report, n 2 above.
178 *ibid*.
179 Dromer and others, n 113 above, 2; Jowett and others, n 81 above.

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beliefs. Nor should a ban extend to protected forms of religious expression or to good-faith conversations between parents and children navigating questions of gender and sexuality. These are recognised aspects of personal development, often addressed through pastoral care, familial dialogue or counselling. Existing professional standards already provide clear guidance on how to support individuals in navigating these tensions without imposing normative assumptions about sexual orientation or gender identity.[180] Each of these potential sites of overreach – therapeutic practice, familial dialogue and religious expression – will be considered in turn.

Perhaps the most pressing concern is the potential impact a ban could have on legitimate therapeutic practices. However, the definition of 'conversion therapy' outlined in earlier sections is carefully constructed to avoid impeding access to lawful healthcare services. Rather, the ban targets practices that are demonstrably harmful, lack clinical or evidentiary support,[181] and fail to meet the legal and professional standards of integrity, competence and non-discrimination that underpin equitable healthcare provision for individuals of all sexual orientations and gender identities.[182] Specifically, this definition captures only practices that aim to change or suppress LGBT+ identities *because* such identities are considered inferior. As noted in sources such as the UN SOGI 2020 report ('[not] perceived as the desirable norm') and the MoU against 'conversion therapy' in the UK ('inherently [not] preferable'), this discriminatory presumption is the raison d'être of 'conversion therapy'.

'Discriminatory' is used here in a moralised sense, consistent with section 13 of the Equality Act 2010 and similar legal provisions: namely, to denote disadvantageous treatment based on a protected characteristic, not mere differentiation. Practices that treat some persons differently, but not disadvantageously – for instance, by tailoring care to the specific needs of a person – are not discriminatory in this sense. It follows that practices which do not involve this element of anti-LGBT+ discrimination fall outside the scope of a properly defined prohibition on 'conversion therapy'.

This distinction is explicitly recognised in the legislation of all the jurisdictions discussed in the previous section. Section 320.101 of the Canadian criminal ban on 'conversion therapy' provides: 'For greater certainty, this definition does not include a practice, treatment or service that relates to the exploration or development of an integrated personal identity – such as a practice, treatment or service that relates to a person's gender transition – and that is not based on an assumption that a particular sexual orientation, gender identity or gender expression is to be preferred over another.'[183]

180 Annie Bartlett, Glenn Smith and Michael King, 'The Response of Mental Health Professionals to Clients Seeking Help to Change or Redirect Same-Sex Sexual Orientation' (2009) 9 *BMC Psychiatry* 7; *Report of the American Psychological Association Task Force on Appropriate Therapeutic Responses to Sexual Orientation* (Washington, DC: APA, 2009); *Just the Facts About Sexual Orientation and Youth: A Primer for Principals, Educators, and School Personnel* (Washington, DC: APA, 2008).

181 n 7 above.

182 MoU, n 7 above, at [11].

183 Bill C-4 (S.C. 2021, c. 24) (Canada).

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Similarly, subclause 5(2) of New Zealand's Conversion Practices Prohibition Legislation Act 2021 states that a conversion practice does not include:

> (a) any action that a health practitioner takes when providing a health service if the health practitioner –
> (i) considers in their reasonable professional judgment it is appropriate to take that action; and
> (ii) complies with all legal, professional, and ethical standards when taking the action; or
> (b) assisting an individual who is undergoing, or considering undergoing, a gender transition; or
> (c) assisting an individual to express their gender identity; or
> (d) providing acceptance, support, or understanding of an individual; or
> (e) facilitating an individual's coping skills, development, or identity exploration, or facilitating social support for the individual
> (f) the expression only of a belief or a religious principle made to an individual that is not intended to change or suppress the individual's sexual orientation, gender identity, or gender expression.[184]

Comparable provisions appear in the bans enacted in Malta,[185] France,[186] Germany[187] and Victoria.[188] These exemptions make clear that legitimate medical and therapeutic practices, when conducted in accordance with professional and ethical standards, are unaffected by a criminal ban.

By the same token, concerns that a ban on 'conversion therapy' would interfere with gender-affirming care are misplaced. Gender affirmation and transition are not forms of 'conversion therapy'. Conflating the two betrays a decontextualised and ahistorical understanding of 'conversion therapy',[189] and also misunderstands its legal definition, which captures only practices that seek, on illegitimate grounds, to change or suppress a person's gender identity or expression. Nor is it necessary – or possible – for a criminal ban to define the full scope of gender-affirming healthcare. The target of the ban is not lawful care, but discriminatory practices that, as Florence Ashley argues, are prima facie unethical: they seek to prevent someone from being trans because trans lives are seen as less desirable, legitimate, or authentic than cisgender lives.[190] While not morally determinative, it is worth noting again that trans conversion practices have been widely discredited by professional and regulatory authorities worldwide.[191] As the Cass Review notes, 'no formal science-based training in psychotherapy, psy-

184 Conversion Practices Prohibition Legislation Bill 56-2 (2021) (New Zealand).
185 Affirmation of Sexual Orientation, Gender Identity and Gender Expression Act, Act LV of 2016 (Malta), ss 2(a)-(c).
186 Loi no 2022-92 du 31 Janvier 2022 (France), Art 3.
187 Gesetz zum Schutz vor Konversionsbehandlungen vom 12 Juni 2020 (BGBl. I S. 1285) (Germany), §1.
188 Change or Suppression (Conversion) Practices Prohibition Act 2021 (Victoria), s 5.
189 Florence Ashley, 'Homophobia, Conversion Therapy, and Care Models for Trans Youth: Defending the Gender-Affirmative Approach' (2020) 17 *Journal of LGBT Youth* 361, 369.
190 Florence Ashley, '*Trans*porting the Burden of Justification: The Unethicality of Transgender Conversion Practices' (2022) 50 *Journal of Law, Medicine & Ethics* 525.
191 See for example WHO, *The ICD-11 Classification of Mental and Behavioural Disorders: Clinical Descriptions and Diagnostic Guidelines* (Geneva: WHO, 2018); UN SOGI Report, n 2 above, 5.

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chology or psychiatry teaches or advocates "conversion therapy". If an individual were to carry out such practices, they would be acting outside of professional guidance, and this would be a matter for the relevant regulator.'[192] Although the Cass Review emerged within a context of bitter debate about gender-affirming care and has since been used by some to undermine its provision, such disputes underscore, rather than diminish, the need for clear legislative definitions that distinguish legitimate therapeutic support from discriminatory attempts to suppress LGBT+ identities. A statutory ban on 'conversion therapy' would help to clarify this boundary, and fears of its misappropriation should not stand in the way of strengthening human rights protections. The call should instead be for more careful implementation and greater civic awareness of the rights at stake.

A final and closely related point concerns statutory drafting. Not all jurisdictions that have criminalised 'conversion therapy' have incorporated explicit statutory exemptions for legitimate therapeutic or healthcare practices. While such exemptions are not strictly necessary – since, as argued, non-discriminatory practices already fall outside the scope of a properly defined offence – their inclusion, whether in the legislation itself or in accompanying explanatory notes, may offer valuable reassurance to practitioners and enhance the clarity and coherence of the legislative framework. Policymakers would therefore be well advised to give serious consideration to incorporating such explicit exemptions.

In the parental context, it is essential to distinguish between unlawful conduct and legitimate dialogue. Where parents provide 'conversion therapy' to their children, or refer them to third-party providers, this falls squarely within the scope of what a criminal ban must prohibit. Parental rights are not absolute and are bounded by the principle of the best interests of the child.[193] This is an established principle of international human rights law, widely recognised across national legal systems. Hence, the UN Committee on the Rights of the Child has called on all states to eliminate 'conversion therapy' practices, as they violate multiple rights under the UN Convention on the Rights of the Child,[194] including the right of the child to identity, to development, to be heard, and to be protected from violence and discrimination.[195] In practice, criminalising 'conversion therapy' may effect little substantive change in this area, as existing laws already prohibit parents from inflicting serious harm on children, regardless of motive.[196]

By contrast, difficult conversations between parents and children about matters of gender and sexuality do not fall within the scope of a criminal ban. Most jurisdictions have taken particular care to reassure parents that lawful, good-faith discussions are not captured. Under the German legislation, criminal penalties apply only where parents or guardians have 'grossly violated

192 Hilary Cass, *Independent Review of Gender Identity Services for Children and Young People* (April 2024) at https://webarchive.nationalarchives.gov.uk/ukgwa/20250310143933/https://cass.independent-review.uk/home/publications/final-report/ [https://perma.cc/X8US-XEBN] 151.

193 UN CRC, 'General Comment 5' CRC/GC/2003/4 (27 November 2003).

194 UN CRC, 'General Comment 20' CRC/C/GC/20 (6 December 2016) at [34].

195 Ignatius Yordan Nugraha, 'The Compatibility of Sexual Orientation Change Efforts with International Human Rights Law' (2017) 35 *Netherlands Quarterly of Human Rights* 176.

196 Children Act 1989, s 1.

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their duty of care or education through the act.'[197] Similarly, the New Zealand ban includes, as one of its stated purposes, the promotion of 'respectful and open discussions regarding sexuality and gender'.[198] To guard further against overreach, it provides that prosecutions for the specific offence of 'conversion therapy' directed at persons under the age of 18 may proceed only with the consent of the Attorney-General.[199] Article 1 of the French ban makes clear that an offence is not committed when a person merely encourages 'prudence and reflection', especially when the individual questioning their identity is a minor.[200] Legislatures in all jurisdictions that have enacted bans have been alert to this risk of overreach and have taken deliberate steps to address it. The examples above are illustrative rather than exhaustive, but they demonstrate the value of incorporating such clarifications – whether in the statutory text or in accompanying explanatory notes. In any event, the distinction between unlawful conduct and legitimate dialogue is not difficult to maintain. Ordinary conversations between parents or guardians and children about sexuality or gender identity do not meet the threshold for criminal intervention and would fall outside the scope of a properly defined offence, as already delineated, regardless of whether such clarifications appear in the legislation.

A final risk of overreach concerns the right to freedom of religion or belief, particularly when 'conversion therapy' is offered by religious providers. However, religious forms of 'conversion therapy' are no different from other forms and should fall within the scope of a criminal ban, given the nature and gravity of the harm involved. A properly defined offence does not disproportionately restrict the expression or practice of protected beliefs – religious or otherwise – even when such beliefs reflect anti-LGBT+ views. A ban on 'conversion therapy' is not a ban on prejudice. While many of its forms are motivated by homophobia or transphobia, 'conversion therapy' is a distinct, targeted practice, not reducible to any underlying belief or prejudice. It is a practice directed at identifiable persons with the specific aim of changing or suppressing their sexuality, gender identity or gender expression because these are viewed as inferior. Religious expression that does not cross that threshold is not captured by the ban. Several jurisdictions have explicitly recognised this distinction either in statutory text or explanatory material. For example, as mentioned earlier, New Zealand's legislation clarifies that 'the expression only of a religious principle or belief made to an individual that is not intended to change or suppress the individual's sexual orientation or gender identity' does not constitute 'conversion therapy.'[201] It is also worth emphasising that religious leaders across faiths and countries have made clear that 'conversion therapy' is not just distinguishable from legitimate religious practice and expression, but constitutes a profound distortion of religious principle. This is why many have

197 Gesetz zum Schutz vor Konversionsbehandlungen vom 12 Juni 2020 (BGBl. I S. 1285) (Germany), §5.
198 Conversion Practices Prohibition Legislation Bill 56-2 (2021) (New Zealand), Art 3(b).
199 Conversion Practices Prohibition Legislation Bill 56-2 (2021) (New Zealand), Art 12.
200 Loi no 2022-92 du 31 Janvier 2022 (France).
201 Conversion Practices Prohibition Legislation Bill 56-2 (2021) (New Zealand), Art 5(2)(f).

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signed the Declaration of the Global Interfaith Commission on LGBT+ Lives, which calls for a legal ban on such practices.[202] The General Synod of the Church of England has endorsed the Memorandum of Understanding Against Conversion Therapy, discussed earlier, and has voted in favour of a statutory ban[203] – as has the General Assembly of the Church of Scotland,[204] the Bench of Bishops in the Church of Wales,[205] and numerous other faith groups worldwide.[206]

There is nothing controversial in the view that religious forms of 'conversion therapy' must be prohibited. It is a well-established principle of human rights law that freedom of religion or belief cannot be invoked to justify harm to others.[207] The UN Special Rapporteur on Freedom of Religion or Belief has affirmed this specifically in relation to religious forms of 'conversion therapy'.[208] As noted earlier, there is also growing support among human rights scholars and advocates for the view that all such practices – including so-called 'talking therapies' – are degrading and fall within the scope of the absolute prohibition of TIDT.[209] Given the absolute nature of this prohibition, no consequentialist reasoning offered by providers – religious or otherwise – can justify these practices. There is no room for exceptions and no balancing of competing interests. Providers of 'conversion therapy' have no right to offer such practices, and their interest in doing so carries no legal weight. The question of balancing their interests against the rights of those harmed simply does not arise.

In sum, the greatest risk in the criminalisation of 'conversion therapy' lies not in overreach, but in underreach. Most jurisdictions that have enacted criminal bans have been careful to exempt bona fide therapeutic practices and lawful, supportive parental engagement. By contrast, insufficient attention has been paid to instances of criminal underreach, particularly those involving religious providers and consenting adults. Therefore, for the reasons outlined in earlier sections, it is imperative that future legislative efforts leave no space for individual consent as a means of legitimising 'conversion therapy'. Additionally,

202 Global Interfaith Commission on LGBT+ Lives, *Declaring the Sanctity of Life and Dignity of All* (16 December 2020). The Declaration defines 'conversion therapy' according to the UN SOGI Report, n 2 above.

203 'General Synod Backs Ban on Conversion Therapy' (Church of England, Press Release, 8 July 2017) at https://www.churchofengland.org/media/press-releases/general-synod-backs-ban-conversion-therapy [https://perma.cc/MTG3-BJHJ].

204 'Church Sets Out Position on Ending Conversion Practices in Scotland' (Church of Scotland, News, 25 March 2024) at https://www.churchofscotland.org.uk/news-and-events/news/archive/2024/church-sets-out-position-on-ending-conversion-practices-in-scotland.

205 'Bishops Welcome Conversion Therapy Ban Commitment' (The Church in Wales, Provincial news, 29 April 2022) at https://www.churchinwales.org.uk/en/news-and-events/bishops-welcome-conversion-therapy-ban-commitment/ [https://perma.cc/6RPG-HP2F].

206 Harry Farley, 'Gay Conversion Therapy: Hundreds of Religious Leaders Call for Ban' *BBC News* 16 December 2020 at https://www.bbc.co.uk/news/uk-55326461 [https://perma.cc/KA8G-U8LX].

207 *Eweida and Others* v *United Kingdom* Application Nos 48420/10, 36516/10, 51671/10 and 36516/10, Merits and Just Satisfaction, 15 January 2013 at [103]. See also ECHR, Art 17.

208 Ahmed Shaheed, 'There Is No Legal Defence of LGBT+ Conversions' *The Guardian* 23 April 2021 at https://www.theguardian.com/commentisfree/2021/apr/23/legal-defence-lgbt-conversions-sexuality-rights-belief [https://perma.cc/K97X-4HXN].

209 See for example Trispiotis and Purshouse, n 17 above.

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religious actors must be subject to equivalent legal scrutiny as licensed professionals, especially in view of the substantial evidence that 'conversion therapy' frequently occurs within religious settings.

The risk of insufficient focus on prevention and LGBT+ inclusion

Survivors of 'conversion therapy' across different jurisdictions have consistently called for a multipronged legal and policy strategy that not only prohibits conversion practices but also addresses their long-term effects and prevents future harm.[210] While a criminal ban is a legitimate and necessary element of this broader strategy, it cannot alone deliver the transformative change needed to dismantle the structures and ideologies that sustain anti-LGBT abuse.[211] Ending conversion practices requires more than criminal prohibition. This section sketches a range of complementary measures. While the proposals below are not, and cannot be, exhaustive – not least because what is appropriate will vary by context – most will be of relevance across legal systems considering a prohibition on 'conversion therapy'.

There are compelling reasons to be cautious about the effectiveness of a criminal ban. First, its implementation is unlikely to be straightforward. A major challenge is that criminalisation may not lead to increased reporting. In the UK, many LGBT+ people remain understandably reluctant to engage with the criminal justice system. Evidence from frontline workers at Galop, the UK's specialist anti-LGBT+ violence charity, shows that only one in eight anti-LGBT+ hate crimes is officially reported, with four out of five victims unable to access support.[212] This means that anti-LGBT+ hate crime is far more prevalent than official figures suggest,[213] while the vast majority of victims and survivors are left without the support they need. The Crown Prosecution Service acknowledges this reality in its current legal guidance on homophobic, biphobic and transphobic hate crime.[214]

210 'Ending conversion therapy in Canada: Survivors, community leaders, researchers, and allies address the current and future states of sexual orientation and gender identity and expression change efforts' (Community Based Research Center, Reports + Publications, 18 February 2020) at https://www.cbrc.net/ending_conversion_therapy_in_canada_survivors_community_leaders_researchers_and_allies_address_the_current_and_future_states_of_sexual_orientation_and_gender_identity_and_expression_change_efforts 11-16; 'SOGICE Survivor Statement', n 67 above, 7-10; 'Pathways for Eliminating Conversion Practices' n 163 above, 16-27.

211 Yuvraj Joshi, 'Affirmative Action as Transitional Justice' (2020) 46 *Wisconsin Law Review* 2; Rodrigo Uprimmy Yepes, 'Transformative Reparations of Massive Gross Human Rights Violations' (2009) 27 *Netherlands Quarterly of Human Rights* 625.

212 Luke Hubbard, *The Hate Crime Report, Supporting LGBT+ victims of hate crime* (London: Galop, 2021) 8.

213 Home Office, 'Hate Crime, England and Wales, Year Ending March 2024' (Official Statistics, 10 October 2024) at https://www.gov.uk/government/statistics/hate-crime-england-and-wales-year-ending-march-2024/hate-crime-england-and-wales-year-ending-march-2024 [https://perma.cc/72VN-GY6C].

214 Crown Prosecution Service, 'Homophobic, Biphobic and Transphobic Hate Crime: Prosecution Guidance' (Legal Guidance, Hate Crime, February 2023) at https://www.cps.gov.uk/legal-guidance/homophobic-biphobic-and-transphobic-hate-crime-prosecution-guidance [https://perma.cc/QN9D-JJY8].

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This reluctance is unsurprising given a long history of institutionalised maltreatment and persecution. From medicalised violence – such as electric shock therapy for LGBT+ people, which was available in UK hospitals[215] and universities until relatively recently[216] – to state raids on LGBT+ spaces,[217] institutionalised homophobia in the police,[218] and the legal censorship of queer identities in education,[219] these were not isolated incidents but expressions of state policy, often supported or enforced by the law. Similar legacies exist elsewhere and in many countries LGBT+ people continue to face criminalisation and persecution today. While formal equality has advanced in many jurisdictions, both historical and continuing experiences of harm continue to shape the relationship between LGBT+ communities and the institutions now seeking their trust.

Second, survivors of 'conversion therapy' may refrain from reporting not only because of distrust towards the police, but also because of the very nature of these practices. As discussed earlier, coercive control and gaslighting are common, leading survivors to internalise beliefs that there is something wrong with them and to see their abusers as benevolent guides. All in all, fear of ostracism and violence, combined with mistrust of how state agencies manage personal data and provide support, create serious and foreseeable barriers to reporting. The stark under-reporting of anti-LGBT+ hate crimes, as reflected in the CPS's own guidance,[220] underscores these barriers.

To address these risks, a criminal ban must be accompanied by a robust and supportive infrastructure. Survivors must be able to access support safely, anonymously and on their own terms. Several jurisdictions have taken steps to facilitate this. German legislation, for instance, establishes anonymous counselling services – accessible by phone and online, and in multiple languages – for survivors, their families and professionals in relevant fields.[221] The UK's National Conversion Therapy Helpline, operated by Galop, similarly offers a victim-

215 Tommy Dickinson, *'Curing Queers': Mental Nurses and their Patients 1935-1974* (Manchester: Manchester University Press, 2016); Catherine Somerville, 'Unhealthy Attitudes: The Treatment of LGBT People within Health and Social Care Services' (Stonewall, 2015) at https://www.caremanagementmatters.co.uk/wp-content/uploads/2019/06/Unhealthy-Attitudes.pdf [https://perma.cc/XX6J-8HT8].

216 Ben Hunte, 'Gay "Conversion Therapy": Man Given Electric Shocks Demands Apology' *BBC News* 16 December 2020 at https://www.bbc.co.uk/news/education-55263392 [https://perma.cc/A42S-BD93]; Robbie Meredith, 'Gay Men Given Electric Shocks "to Cure Homosexuality" at QUB' *BBC News* 30 September 2019 at https://www.bbc.co.uk/news/uk-northern-ireland-49838964 [https://perma.cc/A93A-FRPL].

217 For example Vicky Iglikowski-Broad, 'The Royal Vauxhall Tavern: Raided' *The National Archives*, 24 January 2023, at https://blog.nationalarchives.gov.uk/the-royal-vauxhall-tavern-raided/ [https://perma.cc/LLU9-7JH3].

218 Baroness Casey of Blackstock, *Final Report: An Independent Review into the Standards of Behaviour and Internal Culture of the Metropolitan Police Service* (March 2023) at https://www.met.police.uk/SysSiteAssets/media/downloads/met/about-us/baroness-casey-review/update-march-2023/baroness-casey-review-march-2023a.pdf, 241-257.

219 Douglas Pyper and Joe Tyler-Todd, 'The 20th Anniversary of the Repeal of Section 28' (House of Commons Library, Research Briefing, 28 November 2023) at https://commonslibrary.parliament.uk/research-briefings/cdp-2023-0213/.

220 CPS, n 214 above.

221 Gesetz zum Schutz vor Konversionsbehandlungen vom 12 Juni 2020 (BGBl. I S. 1285) (Germany), §4.

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centred point of contact for those directly affected or concerned about someone at risk.[222] Yet vital as such services are, support must not end at the point of disclosure. Engagement with survivors of 'conversion therapy' across different social and age groups should be a core component of post-legislative implementation and oversight.[223] This engagement must be sustained and meaningful, not tokenistic.[224] At the same time, survivor-led and survivor-centred initiatives must be approached with care, to safeguard the physical, mental and emotional wellbeing of survivors.[225] As emphasised by survivor-led initiatives in Canada and Australia, ethical engagement must be grounded in frameworks that prioritise mental health, accuracy and survivor agency.[226] Survivors with experience in peer-support networks and advocacy are well placed to offer holistic insight and should be central to the development of advocacy, policy, and education efforts. By contrast, unsupported survivors, particularly those without adequate mental health or community support, should not be approached to speak publicly owing to the significant risk of retraumatisation.[227] Compensation for survivors' time, expertise and emotional labour should also be standard practice in contexts such as policy consultations or long-term media engagement.[228]

Rebuilding trust in state institutions requires symbolic as well as practical steps. In some jurisdictions, criminal bans on 'conversion therapy' have been accompanied by official apologies for past mistreatment of LGBT+ people, as in Norway,[229] or by specific legislative provisions affirming the equal dignity of all sexual orientations and gender identities, as in Malta and Victoria.[230] These statements signal a restorative, not merely punitive, approach, whilst leveraging the expressive power of criminal law. As the French Senate committee observed in recommending a comprehensive criminal ban, criminalisation was intended to 'send the strongest possible signal of rejection' of these practices – a signal 'to be hoped that will be clearly heard.'[231] Yet trust cannot be rebuilt through symbolism alone. As mentioned earlier, some jurisdictions, including Victoria and New Zealand, have established dedicated expert bodies following survivor and human rights expert recommendations, with resources and authority to receive complaints, conduct inspections, issue recommendations, mediate dis-

222 See https://www.galop.org.uk/helpline [https://perma.cc/65R6-PB4V].
223 'Ending Conversion Therapy in Canada' n 210 above, 14.
224 Nathan Despott and Chris Csabs, 'Engaging Conversion Survivors Guidelines for media and government' (SOGICE Survivors, 2024) at https://sogicesurvivors.com.au/wp-content/uploads/2024/07/Engaging-Survivors-Guidelines-doc.pdf [https://perma.cc/USZ7-QFD9].
225 Joel R. Anderson and others, 'Engaging Mental Health Service Providers to Recognise and Support Conversion Practice Survivors Through Their Journey to Recovery' (2024) 31 *Cognitive and Behavioural Practice* 20.
226 Despott and Csabs, n 224 above; *Ending Conversion Therapy in Canada*, n 210 above, 14-18.
227 *ibid*.
228 *ibid*.
229 'Government Apologies for Past Treatment of Gay People by the Norwegian Authorities' (Press Release 74/22, 21 April 2022) at https://www.regjeringen.no/en/aktuelt/government-apologises-for-past-treatment-of-gay-people-by-the-norwegian-authorities/id2908870/ [https://perma.cc/TYT2-UBLX].
230 Affirmation of Sexual Orientation, Gender Identity and Gender Expression Act, Act LV of 2016 (Malta), Preamble; Change or Suppression (Conversion) Practices Prohibition Act 2021 (Victoria), Part 1.
231 French Senate Rapport No 294 n 157 above.

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putes, and escalate matters if necessary.[232] The UN SOGI Report similarly calls for the establishment of dedicated mechanisms which can monitor, support and receive complaints so that 'victims of practices of "conversion therapy" have access to all forms of reparations, including the right of rehabilitation, as well as legal assistance.'[233] Establishing such dedicated mechanisms is crucial not only to guard against criminal overreach, but also to foster public understanding, drive systemic reform, and promote community cohesion.

Beyond institutional trust, there must also be a broader public reckoning with the social narratives that enable these practices. Many still misunderstand what 'conversion therapy' is, why it is harmful, and how it differs from legitimate forms of counselling or religious expression. Criminalisation alone cannot rectify this lack of understanding, nor can it challenge the structural conditions that enable these practices. Independent inquiries or truth commissions can help uncover the scale and nature of 'conversion therapy', much of which remains undocumented.[234] In tandem, targeted interventions in healthcare and education, and the development and dissemination of information and communication tools, are vital. These can empower individuals to recognise and mobilise against 'conversion therapy' and strengthen the multisectoral cooperation needed among healthcare, religious and human rights professionals to prevent further harm.[235] Ultimately, truth-telling, education and cultural change are needed to dismantle the subordinating ideology that LGBT+ people are 'broken' and must be 'fixed'. Faith leaders have a particularly important role to play. Many survivors come from within faith communities, and LGBT+ people of faith and their allies are essential voices, 'particularly in driving change from within faith communities and religious groups.'[236] Initiatives such as the Global Interfaith Commission on LGBT+ Lives, which, as mentioned earlier, brings together religious leaders from across denominations and belief systems to affirm equality and denounce 'conversion therapy',[237] can help raise awareness, acknowledge institutional complicity, and support collective efforts to uproot these practices from faith spaces.[238]

CONCLUSION

Mobilising criminal law to protect human rights is never a decision to be taken lightly – least of all in the context of LGBT+ rights, where the scars of state-sanctioned persecution run deep and continue to shape the lives of many. As noted at the outset, many global LGBT+ advocacy efforts sometimes risk be-

232 Conversion Practices Prohibition Legislation Bill 56-2 (2021) (New Zealand), Part 3.
233 UN SOGI Report, n 2 above, 87(a)(iv).
234 'SOGICE Survivor Statement' n 67 above, 7; *Report on the Inquiry into Conversion Therapy* (Victoria: Department of Health, 2019).
235 'Pathways for Eliminating Conversion Practices' n 163 above, 22-25; 'Ending Conversion Therapy in Canada' n 210 above, 19.
236 'SOGICE Survivor Statement' n 67 above, 6.
237 n 202 above.
238 Alhasan Ghazzawi and others, 'Religious Faith and Transgender Identities: The Dear Abby Project' (2020) 34 *Journal of Gay & Lesbian Mental Health* 190.

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coming overly punitive, privileging criminal law responses in ways that can sideline broader strategies of education, inclusion and institutional accountability. But criminalisation and structural reform need not be in tension. When used carefully and supported by complementary measures, criminal law can offer a practical, legitimate and proportionate response to egregious human rights violations, particularly where victims, as in the case of 'conversion therapy', face enduring structural disadvantage.

This article argued that the criminalisation of 'conversion therapy' is both justified and pressing. Such practices cause serious and well-documented harm. They are an affront not only to the dignity of those subjected to them but also to LGBT+ communities more broadly. They are paradigmatic examples of degrading treatment under international human rights law. Criminalisation is a legitimate and proportionate response to these harms. It is also a coherent response, reinforcing consistency with other areas of criminal law, such as hate crimes and coercive or controlling behaviour, and with broader legal efforts to address discriminatory abuse. By contrast, as shown, civil or disciplinary measures – or legal inaction – are no more likely to address the underlying structures of harm, and far less likely to deliver accountability or prevention.

Yet establishing why criminalisation is justified is only part of the task. Legal scholarship can help shape real-world change when it offers not only principled arguments but also precise and workable recommendations, particularly in areas of law and policy as contested as this. That is both the commitment and the impetus behind this article. The challenge is urgent: many jurisdictions have already adopted bans on 'conversion therapy', while many others, including the UK, are actively considering doing so. This is the moment for advocates and scholars to draw on survivor-led research and comparative legal evidence to assess whether criminal law, or alternative forms of prohibition, provide the most appropriate response. This article has undertaken that task and has concluded that a carefully designed criminal ban is the preferable model. But even those who take a different view – and there will be many – must engage seriously with the limits of existing legal protections and with what survivors themselves identify as necessary for protection and redress. For too long, debates about LGBT+ rights have been marked more by confrontation than by informed deliberation. Properly designed and implemented, a criminal ban on 'conversion therapy' is not a hollow gesture or another form of performative denunciation. It is a meaningful step toward justice – but only when embedded within a broader and enduring commitment to truth-telling and to the full social inclusion of LGBT+ people.

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Assessing States' Obligations under the UN Guiding Principles on Business and Human Rights Post-Brexit

Marisa McVey

Private economic actors wield unprecedented influence over the enjoyment of human rights, yet legal systems remain uneven in their regulation of corporate responsibility. Against this backdrop, this article examines a largely underexplored post-Brexit trajectory, the regulatory divergence in the implementation of the UN Guiding Principles on Business and Human Rights (UNGPs). While the broader effects of the withdrawal of the UK from the EU have been extensively scrutinised, little attention has been paid to how each jurisdiction has sought to prevent and mitigate corporate human rights abuses. Situating its analysis within the UNGP framework, the article offers a comparative examination of the EU emphasis on preventative regulation and the UK reliance on a largely minimalist adjudicative framework. It argues that the UK risks being shaped by external legal pressures while lacking a coherent domestic agenda. Northern Ireland, partially aligned with EU law, is presented both as an example of this fragmented approach to business and human rights regulation and as a hybrid space where the effects of ongoing regulatory developments might be traced and assessed. Ultimately, the analysis situates this divergence within a wider contest over the legitimacy of transnational human rights governance, where state apathy remains a critical but neglected factor in addressing corporate accountability.

INTRODUCTION

Brexit has been cast as a 'leap into the unknown', a rare instance of a state exiting an integrated legal order.[1] Yet its consequences have proven to be less like an immediate rupture than an ongoing process of reorientation and divergence.[2] While Brexit's impact on UK law has been mapped across many different domains, ranging from constitutional change and devolution to trade and rights protections, far less attention has been paid to the regulation of

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1 Jed Odermatt, 'Brexit and International Law: Disentangling Legal Orders' (2017) 1 *Emory International Law Review Recent Developments* 1052, 1054.
2 Oonagh E. Fitzgerald and Eva Lein (eds), *Complexity's Embrace: The International Law Implications of Brexit* (Waterloo, ON: Centre for International Governance Innovation, 2018).

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private economic actors in relation to their human rights responsibilities.[3] Here, the post-Brexit trajectory of the UK diverges sharply from that of the EU. Since 2017, the EU has continued to build an expansive, if uneven, legislative framework, largely centred on preventative corporate due diligence. In contrast, the UK has adopted no comparable model, instead defaulting to a more cautious framework characterised by fragmented corporate reporting obligations and common law precedent, particularly focused on parent company and supply chain liability. This divergence exposes underlying tensions within the architecture of business and human rights, where boundaries between public and private law continually blur.

Divergence is central to this article. Specifically, I situate it within the structure of the UN Guiding Principles on Business and Human Rights (UNGPs), offering a comparative examination of the EU regulatory approach and the UK common law orientation through the lens of Pillar I (the state duty to protect against human rights abuses by third parties, including businesses) and Pillar III (the right to access an effective remedy).[4] I then consider whether the EU emphasis on preventative regulation offers a more coherent and effective approach to implementing the UNGPs, and whether, in the absence of legislative reform, the continued reliance of the UK on private (and largely common law) mechanisms can plausibly serve as a functional alternative to a statutory due diligence regime. Northern Ireland (NI), still partially aligned with EU law, complicates this landscape further. Yet, caught between legal orders, I argue that NI serves as a hybrid space where the practical effects of continued engagement with EU legal developments on corporate responsibility for human rights might be observed.

In setting out this analysis, this article makes a number of significant contributions. Ultimately, while both the EU and the UK face constraints in operationalising the UNGPs, they also reflect largely divergent regulatory philosophies. Post-Brexit divergence is therefore part of a broader contest over the legitimacy of transnational human rights regulation, one where state apathy remains an under-considered dimension of corporate accountability for human

3 On the many effects of Brexit, see for example: Sionadh Douglas-Scott, 'Brexit, Article 50 and the Contested British Constitution' (2016) 79 MLR 1019; Alison L. Young, 'The Constitutional Implications of Brexit' (2017) 23 *European Public Law* 757; Gordon Anthony 'Brexit and the Common Law Constitution' (2018) 24 *European Public Law* 673; Colin R. G. Murray and Clare Rice, 'Beyond trade: Implementing the PINI human rights and equalities provisions' (2021) 72 NILQ 1; David Phinnemore, 'Brexit and Northern Ireland' in Benjamin Lereuth, Stefan Gänzle and Jarle Trondal (eds), *The Routledge Handbook of Differentiation in the European Union* (London: Routledge, 2022); Elena Frantziou and Sarah Craig, 'Understanding the implications of Article 2 of the Northern Ireland Protocol in the context of EU case law developments' (2022) 73 NILQ 65; Robert Brett Taylor and Adelyn L. M. Wilson, 'Legislating for a Post-Brexit Scotland: Scottish Parliamentary Scrutiny of UK Statutory Instruments on Retained EU Law' (2023) 27 *Edinburgh Law Review* 34; Colin R. G. Murray and Jonathan Evershed, 'The Afterthought: Wales and the Operationalisation of Brexit' (2024) 28 *Edinburgh Law Review* 86; Billy Melo Araujo, 'UK post-Brexit trade agreements and devolution' (2019) 39 *Legal Studies* 555; Alison Jones, 'Combatting Corruption and Collusion in UK Public Procurement: Proposals for Post-Brexit Reform' (2021) 84 MLR 667; Emily Lydgate and Chloe Anthony, 'Brexit, food law and the UK's search for a post-EU identity' (2022) 85 MLR 1168.

4 UN Guiding Principles on Business and Human Rights 2011, HR/PUB/11/04.

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rights. The comparative analysis of the two trajectories offers insight into how legal systems respond, both constructively and defensively, to the challenge of upholding the state duty to protect human rights with regards to private economic actors. In a context of growing scepticism toward Environmental, Social and Governance (ESG) standards and rising political resistance to regulatory governance, the future of corporate accountability may hinge less on legal form than on the ability of legal systems to withstand and respond to these pressures.

The article unfolds as follows. First, it provides context on the field of business and human rights, reflecting particularly on states' duties under the UNGPs. Building on this context, the analysis then turns towards the (mis)alignment of the EU and the UK on these duties post-Brexit. Then, turning to the unique post-Brexit position of NI, the analysis considers how its hybrid legal order embodies both fragmentation and experimentation in corporate accountability regimes. The final section concludes with a look to the future of business and human rights regulation in the UK, critically evaluating the extent to which the state remains a viable guarantor of protection against corporate human rights abuses amid such divergence and recalibration of transnational legal commitments.

CONTEXTUALISING BUSINESS AND HUMAN RIGHTS

In undertaking this analysis, I am cognisant that this article requires contrasting a sovereign nation state and a supranational entity. This assessment therefore necessarily engages with two distinct legal architectures, as well as two internal markets, which, despite their formal separation, remain linked.[5] The extensive legislative competences of the EU, in fields central to business and human rights, makes it a useful point of comparison with national regimes. In addition, both the UK and the EU have, at different times, assumed prominent roles in advancing the business and human rights agenda. While both were early adopters of the UNGPs, the EU has more recently assumed a central position. In addition, EU norms have previously helped shape the UK approach to corporate responsibility, an influence that is unlikely to entirely disappear post-Brexit.[6] This article thus confines its analysis to developments in business and human rights regulation in the UK and EU post-2017. For this reason, this article limits its focus to changes in business and human rights law and policy in the UK and EU after 2017. The UK is still part of the Council of Europe and thus bound by the European Court of Human Rights, so I do not discuss the Court's work here, keeping the analysis centred on the *regulatory trajectories* of both jurisdictions.

As a legal discipline, business and human rights is fundamentally concerned with how businesses (typically, though not exclusively, large multinational cor-

5 Stephen Weatherill, 'Comparative Internal Market Law: The UK and the EU' (2021) 40 *Yearbook of European Law* 431.

6 Joël Reland, 'Regulatory Divergence' in 'UK Regulation after Brexit' (Brexit and Environment, Policy Briefs and Reports, 2022) at https://www.brexitenvironment.co.uk/policy-briefs/ [https://perma.cc/X7JF-W2WF]; Davor Jancic, 'Regulatory Strings that BDind and the UK Parliament after Brexit' (2022) 20 *Comparative European Politics* 566.

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porations) affect and engage with human rights. The size and structure of these entities, combined with their ability to defy territorial (and therefore jurisdictional boundaries), means that they can impact significantly on rights, with little redress.[7] Generally speaking, the Westphalian form – considering states as the primary legal subjects – holds true, meaning that international human rights law does not (yet) extend direct obligations onto private economic actors.[8] The current non-binding framework used to delineate different actors' responsibilities for corporate human rights abuses are found in the three pillars of the UNGPs – the state duty to protect human rights (grounded in states' positive international obligations), the corporate responsibility to respect human rights, and the right of access for victims to effective remedy.

Though they remain largely 'soft law', the adoption of the UNGPs by the UN Human Rights Council in 2011 has proven highly influential, with myriad legal and policy tools developed to implement and advance the UNGPs' framework. With regards to the state duty to protect, at the time of writing, 37 countries have since developed National Action Plans (NAP) on business and human rights, articulating government priorities for policy developments in the area (though only 17 countries currently have an 'active' NAP).[9] The human rights due diligence process, the 'cornerstone'[10] of the UNGPs, has slowly metabolised into domestic law in a number of (mainly European) countries and, more recently, within the wider EU legal framework.[11] An international legally binding treaty on business and human rights has also been in negotiation since 2014.[12]

Recognising the diversity of legal systems worldwide, the UNGPs do not prescribe a particular legal form through which states must discharge their duty

7 David Birchall, 'Corporate Power over Human Rights: An Analytical Framework' (2021) 6 *Business and Human Rights Journal* 42.

8 Robert McCorquodale and Penelope Simons, 'Responsibility Beyond Borders: State Responsibility for Extraterritorial Violations by Corporates of International Human Rights Law' (2007) 70 MLR 598; Anita Ramasastry, 'Corporate Social Responsibility Versus Business and Human Rights: Bridging the Gap Between Responsibility and Accountability' (2015) 14 *Journal of Human Rights* 237.

9 Danish Institute for Human Rights, 'Global NAPs' at https://globalnaps.org/ [https://perma.cc/LWC8-ADLZ]. See also Claire Methven O'Brien, John Ferguson and Marisa McVey, 'National Action Plans on Business and Human Rights: an Experimentalist Governance Analysis' (2022) 23 *Human Rights Review* 71.

10 Human rights due diligence refers to the process businesses should use to identify, prevent, mitigate and account for how they address their adverse human rights impacts': UNGPs, n 4 above, Principle 17. With regards to the centrality of human rights due diligence in the UNGPs, see for example Jonathan Bonnitcha and Robert McCorquodale, 'The Concept of Due Diligence in the UN Guiding Principles on Business and Human Rights' (2017) 28 EJIL 899.

11 See for example in France, Loi No 2017-399 du 27 mars 2017 relative au devoir de vigilance des sociétés mères et des entreprises donneuses d'ordre, République Française; in Germany, Gesetz über die unternehmerischen Sorgfaltspflichten in Lieferketten (lkg) of 16 July 2021, BGBl. I (No 46 of 22 July 2021), 2959; in Norway, Lov om virsomheters åpenheit og arbeid met grunnleggende meneskerrettigheter og anstendige arbeidsvorhold, lov-2021-06-18-99, in effect since 1 July 2022; At the EU level: Council Directive 2024/1760 of 13 June 2024 on corporate sustainability due diligence and amending Directive 2019/1937 and Regulation 2023/2859 [2024] OJ L (CSDDD)

12 UN Human Rights Council, 'Elaboration of an international legally binding instrument on transnational corporations and other business enterprises with respect to human rights' A/HRC/26/L.22/Rev.1. (14 July 2014).

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to protect under the framework. Instead, they articulate a set of substantive expectations that states must meet, allowing comparisons of how different state measures perform.[13] In addition, the UNGPs encourage incremental advances while leaving space for future reforms.[14] This approach also enables tracking the evolution of state practice and identifying signs of normative growth in the field. With this comparative foundation set, the next sections outline the specific duties states hold in protecting human rights and ensuring access to remedies. These duties will then guide the analysis of EU and UK approaches to the UNGPs.

The state duty to protect

The state duty to protect under Pillar I of the UNGPs largely reflects the traditional understanding of state obligations within public international law.[15] Consequently, it has not attracted extensive academic scrutiny compared to its fellow Pillars, often being subsumed within broader assessments of state adherence to international human rights law.[16] Pillar I reminds states of their duties through international and regional treaties and conventions and offers actionable recommendations for particular situations (ie operating in conflict-affected areas or ensuring the protection of particularly vulnerable groups). In particular, Pillar I strongly reiterates two pre-existing international obligations: that states must protect against human rights abuse within their territory and/or jurisdiction by (private) third parties, and that they must provide individuals access to remedy for corporate human rights abuses.[17]

This duty to protect against human rights abuse by third parties implies both a substantive obligation to enact legislation and a procedural obligation to investigate, punish and redress abuses.[18] The state should adopt a 'smart mix approach' to meet this duty to protect, which includes a broad range of 'national and international, mandatory and voluntary'[19] measures to foster business respect for human rights and consider the 'full range of permissible preventative

13 John G. Ruggie, 'The Social Construction of the UN Guiding Principles on Business and Human Rights' John F. Kennedy School of Government, Harvard University (Corporate Responsibility Initiative Working Paper No 67, 2017) at https://www.hks.harvard.edu/sites/default/files/centers/mrcbg/programs/cri/files/workingpaper_67_0.pdf [https://perma.cc/58W8-8LDF]. See also, Enrico Partiti, 'Polycentricity and Polyphony in International Law: Interpreting the Corporate Responsibility to Respect Human Rights' (2021) 70 ICLQ 133.

14 UN Human Rights Council, 'Guiding Principles on Business and Human Rights: Implementing the United Nations "Protect, Respect and Remedy" Framework' A/HRC/17/31 (21 March 2011) at [13].

15 Daniel Augenstein, 'Guiding Principle 1: Scope of Obligations' in Barnali Choudhury (ed), *The UN Guiding Principles on Business and Human Rights: A Commentary* (Cheltenham: Edward Elgar, 2023).

16 Stéphanie Lagoutte, 'The State Duty to Protect Against Business-Related Human Rights Abuses: Unpacking Pillar 1 and 3 of the UNGPs', Danish Institute for Human Rights (Matters of Concern, Human Rights' Research papers no 2014/1, 2014) at https://www.humanrights.dk/files/media/migrated/matters_of_concern_state_duties.pdf [https://perma.cc/K66D-VUZ7].

17 UNGPs, n 4 above, 3-4.

18 *ibid*.

19 *ibid*, 5.

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remedial measures available to it.'[20] Other avenues for fulfilling the state duty to protect include implementing regulatory or policy measures, identifying pressing business and human rights issues,[21] building awareness and capacity within relevant state agencies,[22] ensuring human rights protections in contracting and public procurement, [23] promoting policy coherence both vertically and horizontally,[24] safeguarding human rights in conflict-affected areas,[25] and supporting business and human rights globally through participation in multilateral soft-law instruments and international cooperation via economic agreements.[26] Pillar I also requires that additional steps should be taken to protect against human rights abuses by state-owned enterprises.[27]

Access to effective remedy

The remedy obligation for states, which is made more explicit in Pillar III of the UNGPs, includes investigation into allegations of abuse, the possibility to establish legal responsibility, an effective and independent mechanism, the right to a fair trial, and effective sanctions and reparation where required. While grounded in the broader international legal duty to protect human rights within a state's jurisdiction, Pillar III marks a significant shift by explicitly extending these obligations in relation to private economic actors. Notably, it insists not only on the availability of remedies but on their effectiveness, encompassing both judicial and non-judicial avenues and evaluating them against specific procedural and substantive benchmarks.[28] Access to remedy also requires competency of the relevant public authority and active awareness raising activities. Despite its significance, Pillar III is frequently described as the 'forgotten pillar', marked by persistent implementation gaps and a lack of systematic data on the accessibility and effectiveness of grievance mechanisms.[29] In response, the Office of the High Commissioner on Human Rights has led several projects to strengthen the implementation of Pillar III, including interpretive guidance and policy notes on effective implementation of state-based remedies.[30] The next two sections examine how the EU and UK meet their duties under Pillars I and III.

20 *ibid*, 3.
21 *ibid*, 4-5.
22 *ibid*, 6-7.
23 *ibid*, 8.
24 *ibid*, 10-11.
25 *ibid*, 8-10.
26 *ibid*, 11-12.
27 *ibid*, 6-7.
28 *ibid*, 28.
29 Sarah McGrath, 'Fulfilling the Forgotten Pillar: Ensuring Access to Remedy for Business and Human Rights Abuses', Institute for Human Rights and Business (Commentary, 15 December 2015) at https://www.ihrb.org/latest/fulfilling-the-forgotten-pillar-ensuring-access-to-remedy-for-business-and%20accessed%2018%20July%202025 [https://perma.cc/5YUL-PDWK]; Tricia D. Olsen and others, 'Bridging the Data Gap: Exploring Pillar III and Victims' Access to Remedy' (Office of the UN High Commissioner for Human Rights (White Paper, January 2020) at https://www.ohchr.org/sites/default/files/Documents/Issues/Business/ARP/Olsen_Bridging_Data_Gap_January2020.pdf [https://perma.cc/JMD5-ZBUM].
30 See for example Office of the High Commissioner on Human Rights, 'Access to Remedy in Cases of Business-Related Human Rights Abuse: An Interpretive Guide' (Policy and method-

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THE EU APPROACH: CONSTRUCTING CORPORATE ACCOUNTABILITY VIA DUE DILIGENCE

The development of the UNGPs has significantly influenced EU policy on business and human rights.[31] The EU was an early supporter of the UNGP project, recognising it as an 'authoritative framework',[32] recommending that its Member States adopt National Action Plans on Business and Human Rights, in line with Pillar I.[33] In the years since the publication of the UNGPs, there have also been significant advancements in EU policy and regulation on business and human rights, particularly in terms of legislative developments.[34] These advancements are due in part to the ongoing 'Green Deal' agenda, a plethora of policy initiatives purporting to target climate neutrality by 2050, and particularly to integrate sustainability across the entirety of the global value chain.[35] Prior to this, several Member States had also individually implemented human rights due diligence laws, including France, Germany and Norway.[36]

Before turning to the post-Brexit trajectory of the EU, it is important to note the intricate regulatory matrix of EU law on business and human rights. Regulation within the EU is shaped by a multi-level governance architecture that disperses normative aims across a fragmented array of legal instruments. Consequently, the human rights dimensions of EU law are often concealed within technical or economically framed provisions. Rather than being expressed through explicit rights-based language, obligations concerning responsible business conduct are frequently integrated into broader regimes governing global value chains. These include areas such as labour standards,

ological publications, 18 October 2024) at https://www.ohchr.org/en/publications/policy-and-methodological-publications/access-to-remedy-bhr-interpretive-guide.

31 The main internal policy framework addressing the implementation of the UNGPs is the 2011 Communication Setting of the European Strategy on Corporate Social Responsibility. The Commission then issued implementation guides on the UNGPs, tailored for specific industries (employment and recruitment agencies, IT companies and oil and gas companies). This was followed by a scoping exercise by the Commission on existing EU policy on business and human rights in 2015 and a European Parliament publication on the implementation of the UNGPs in non-EU countries in 2017.

32 Commission Staff Working Document on Implementing the UN Guiding Principles on Business and Human Rights – State of Play, Brussels, 15 July 2015, SWD (2015) 144 final.

33 European Commission, A Renewed EU strategy 2011-2014 for Corporate Social Responsibility, COM/3022/0681 final at https://eur-lex.europa.eu/legal-content/EN/TXT/?uri=celex:52011DC0681 [https://perma.cc/84G2-5F58].

34 For an overview of these advancements see, Angela Bonfanti (ed), *Business and Human Rights in Europe: International Law Challenges* (Oxford: Routledge, 2018); Juan José Álvarez Rubio and Katerina Yiannibas (eds), *Human Rights in Business: Removal of Barriers to Access to Justice in the European Union* (Oxford: Routledge 2017). For an analysis of the extraterritorial reach of the EU's business and human rights policy, particularly on multinational companies from the Global South, see Aleydis Nissen, *The European Union, Emerging Global Business and Human Rights* (Cambridge: CUP, 2022).

35 European Parliament, 'Green Deal: key to a climate-neutral and sustainable EU' (22 June 2022) at https://www.europarl.europa.eu/topics/en/article/20200618STO81513/green-deal-key-to-a-climate-neutral-and-sustainable-eu [https://perma.cc/EJ2R-PC36].

36 See for example in France, Loi No 2017-399 du 27 mars 2017 n 11 above; in Germany, Gesetz über die unternehmerischen Sorgfaltspflichten in Lieferketten n 11 above; in Norway, Lov om virsomheters åpenheit og arbeid met grunnleggende meneskerrettigheter og anstendige arbeidsvorhold n 11 above.

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anti-discrimination law, environmental regulation, sustainability reporting, and sectoral or product compliance mechanisms.[37] Such integration reflects a legal design in which human rights concerns are addressed indirectly, through functional and sector-specific tools that are typically justified on grounds of risk management or market efficiency.[38]

Despite the above, there is clear thematic convergence across the EU instruments examined in this analysis. A central feature of the sustainability agenda of the EU is the regulation of global value chains through risk-based mandatory due diligence. This approach requires companies within the scope of relevant legislation (whether domiciled in the EU or seeking access to the internal market) to identify, assess, track, prevent, and mitigate adverse human rights and environmental impacts. Parallel to these developments, the Green Deal has implemented complementary disclosure-focused instruments, such as the Corporate Sustainability Report Directive.[39] While these reporting obligations are a critical dimension of the European push for greater sustainability regulation, the present analysis concentrates on the emergent due diligence turn, that is, the pivot to preventative and process-orientated obligations along global value chains (and mirrored in the UNGPs). It is this shift, that marks the most consequential evolution in the trajectory of the EU.[40]

Due diligence legislation draws explicitly (though variably) on established international soft law frameworks on human rights and responsible business, including the UNGPs, the OECD Guidelines for Multinational Enterprises, and the OECD Due Diligence Standards for Responsible Business Conduct.[41] A range of recent EU instruments fall into this category, including the regulations on conflict minerals,[42] batteries,[43] products associated with deforestation,[44] and

37 Anna Beckers and Luca Tenreira, 'Global Value Chains after the Green Deal: Methodological Implications between Law, Sciences and Technology' EUI Department of Law (Working Paper Series, No 5, 2025) at https://papers.ssrn.com/sol3/papers.cfm?abstract_id=5319014&__cf_chl_tk=h3HclUltWYLZRYD8BvjQlJerAyxOeU5EjJA5FG2RkjE-1762790704-1.0.1.1-dy8NYhZL3y1y1OFiKkPSpethgVZ9ukE1hPD4oH3l.UE.

38 Ioannis Kampourakis, 'A Post-Neoliberal European Order? Public Purpose and Private Accumulation in Green Industrial Policy' (2025) 88 MLR 769.

39 Council Regulation 2022/2464, of 14 December 2022 amending Regulation (EU) No 537/2014, Directive 2004/109/EC, Directive 2006/43/EC and Directive 2013/34/EU, as regards corporate sustainability reporting. [2022] OJ L322/15.

40 Anna Beckers, 'Global Value Chains in EU Law' (2023) 42 *Yearbook of European Law* 322.

41 OECD, 'Guidelines for Multinational Enterprises on Responsible Business Conduct' (Report, 18 June 2023) https://www.oecd.org/en/publications/2023/06/oecd-guidelines-for-multinational-enterprises-on-responsible-business-conduct_a0b49990.html; OECD, 'Due Diligence Guidance for Responsible Business Conduct' (Report, 1 February 2018) https://www.oecd.org/en/publications/2018/02/oecd-due-diligence-guidance-for-responsible-business-conduct_c669bd57.html.

42 Council Regulation 2017/821 of 17 May 2017 laying down supply chain due diligence obligations for Union importers of tin, tantalum and tungsten, their ores, and gold originating from conflict-affected and high-risk areas [2017] OJ L130/1 (Conflict Mineral Regulation).

43 Council Regulation 2023/1542 of 12 July 2023 concerning batteries and waste batteries, amending Directive 2008/98/EC and Regulation 2019/1030 and repealing Directive 2006/66/EC [2023] OJ L191/1 (Batteries Regulation).

44 Council Regulation 2023/1115 of 31 May 2023 on the making available on the Union market and the export from the Union of certain commodities and products associated with deforestation and forest degradation and repealing Regulation No 995/2020 [2023] OJ L150/206 (Deforestation Regulation).

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the prohibition of products made with forced labour.[45] A spectrum of due diligence requirements can be observed across these instruments. Both the Batteries Regulation and the Conflict Minerals Regulation align their due diligence obligations with relevant OECD guidance,[46] with the Batteries Regulation going further by requiring companies to establish a grievance mechanism, an early-warning and risk-awareness system, and a remediation mechanism consistent with the UNGPs.[47] The Deforestation Regulation sits somewhat lower on this spectrum, incorporating and recognising the human and environmental due diligence obligations contained in other EU legislation. Article 10(2) further requires that economic operators' risk assessments take into account indigenous rights and country-of-origin concerns, including potential violations of international human rights law. At the least prescriptive end, the Forced Labour Regulation does not impose explicit human rights due diligence obligations. However, where an operator has implemented effective human rights due diligence processes, such measures may be regarded as relevant by competent authorities when assessing whether a product may have been produced under forced labour conditions.[48]

The Corporate Sustainability Due Diligence Directive (CSDDD) consolidates this paradigm, representing the first region-wide and most comprehensive legislative expression of mandatory human rights and environmental due diligence, grounded in the UNGPs. The CSDDD was officially adopted in 2024, and in its first iteration, required large EU companies of more than 1,000 employees, generating a net turnover of EUR 450 million to undertake due diligence with respect to their human rights and environmental impacts, in addition to climate obligations to adopt and put into effect annual transition plans in line with limiting global warming in line with the Paris Agreement.[49] The due diligence framework set out in the Directive broadly reflects the structure of the UNGPs and OECD Guidelines, albeit with certain departures.[50] It obliges Member States to ensure that companies integrate due diligence into their internal policies and governance, identify and address actual and potential adverse human rights and environmental impacts, establish grievance mechanisms, and engage in meaningful stakeholder consultation throughout the process.[51] Companies are also required to monitor and publicly report on the effectiveness of their measures.[52] Notably, the Directive extended the scope of due diligence beyond corporate operations and subsidiaries to encompass a newly defined 'chain of activities', covering both upstream and limited downstream business partners, which marks a departure from the UNGPs and OECD Guidelines

45 Council Regulation 2024/3015 of 12 December 2024 on prohibiting products made with forced labour on the Union market, amending Directive 2019/1937 [2024] OJ L 3015 (Forced Labour Regulation).
46 For example, Conflict Mineral Regulation, Art 4.
47 Batteries Regulation, Art 4(1) and Annex 4.
48 Forced Labour Regulation, Arts 1(3) and 17(1).
49 CSDDD, Art 22(1).
50 Nicolas Bueno and others, 'The EU Directive of Corporate Sustainability Due Diligence (CSDDD): The Final Political Compromise' (2024) 9 *Business and Human Rights Journal* 294.
51 CSDDD, Art 5.
52 *ibid*.

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which expects due diligence across the full value chain.[53] In an effort to ensure implementation and enforcement by Member States, the original CSDDD envisioned both enforcement mechanisms via national authorities (which would have the power to order injunctions, adopt interim measures and impose penalties) and through a civil liability framework to provide access to justice for victims of adverse impacts.[54] This differs from the more sector-specific due diligence regimes (such as the Deforestation and Batteries Regulations), which tend to prioritise administrative oversight, including market surveillance, audits, and customs control as tools of enforcement.

The emerging due diligence regime has nonetheless developed amid significant controversy. While the principal instruments outlined above have formally entered into law, at the time of writing, their implementation continues to be marked by contestation, leaving questions about their scope and enforceability unresolved. Substantively, due diligence is not a panacea for corporate human rights abuse. Its normative foundations within the UNGPs remain contested and underdeveloped, raising legitimate concerns about the extent to which due diligence obligations are capable of generating substantive behavioural change across global value chains.[55] Scholars have further noted that due diligence frameworks are susceptible to narrow interpretations that emphasise procedural box-ticking over meaningful engagement with human rights risks.[56] In this context, the flexibility of the due diligence concept, originally intended to facilitate context-sensitive application, has, paradoxically, enabled businesses to approach compliance in a formalistic manner, without confronting the structural conditions that enable or sustain rights violations.[57]

In addition, the EU's approach to law-making, shaped by its distinctive regulatory politics, has meant that the adoption of mandatory due diligence continues to face delays and contestation.[58] Even prior to its adoption, the CSDDD reflected substantial concessions embedded within the Directive's text, largely the result of political pressure, lobbying, and pushback from individual Member States.[59] These compromises significantly limited the Directive's scope, confin-

53 CSDDD, Art 3(1)(g).

54 CSDDD, Arts 24-27 and 29.

55 Björn Fasterling and Geert Demuijnck, 'Human Rights in the Void? Due Diligence in the UN Guiding Principles on Business and Human Rights' (2013) 116 *Journal of Business Ethics* 799; Bonnitcha and McCorquodale, n 10 above; Chiara Macchi, David Birchall and Nadia Bernaz, 'Rethinking Corporate Human Rights Responsibility: A Functional Model' (2025) 22 *Brazilian Journal of International Law* 60.

56 Ingrid Landau, 'Human Rights Due Diligence and the Risk of Cosmetic Compliance' (2019) 20 *Melbourne Journal of International Law* 221.

57 F. Richard Georgi, 'The Violence We Unsee: Human Rights Erasures in Supply Chain Capitalism' (2025) 19 *International Political Sociology* 1.

58 Mark Dawson, 'Better Regulation and the Future of EU Regulatory Law and Politics' (2016) 53 *Common Market Law Review* 1209.

59 See for example, Mario Draghi, 'The future of European competitiveness – A competitiveness strategy for Europe' (September 2024) at https://commission.europa.eu/document/download/97e481fd-2dc3-412d-be4c-f152a8232961_en?filename=The%20future%20of%20European%20competitiveness%20_%20A%20competitiveness%20strategy%20for%20Europe.pdf [https://perma.cc/D6YF-Z6BJ].

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ing its application to a relatively small number of very large companies, with additional carve-outs allowing financial institutions to opt out of specific obligations.[60] Since its adoption, the European Commission's 2025 Omnibus Package has proposed further substantive amendments to various sustainability measures, including the CSDDD. At the time of writing, the proposed revisions include the deferral of key reporting obligations, the dilution of liability provisions, and a marked narrowing of the Directive's substantive due diligence requirements.[61] Parallel proposals to delay implementation of the Deforestation Regulation and Batteries Regulation and reduce the latter's due diligence scope, further underscore the fragility of consensus around the corporate accountability agenda in the EU.[62] In addition, external demands from other states have generated significant pressure.[63] Taken together, these revisions and ongoing external pressures indicate that while the EU regulatory framework for implementing the UNGPs appears ambitious, its practical operationalisation remains susceptible to political recalibration.

THE UK APPROACH: EVOLUTION VIA ADJUDICATION

Regulatory stagnation

In contrast to the expansive regulatory model of the EU, the approach of the UK to business and human rights regulation has remained largely unchanged post Brexit. The 1998 Human Rights Act forms a limited legal foundation, applying when private entities perform a public function.[64] Meanwhile, corporate human rights obligations remain largely confined to reporting and disclosure-based requirements, most notably the retained version of the EU Non-Financial Report Directive which requires public interest entities with more than 500 employees to produce a non-financial statement in their strategic report, including on the subject of human rights.[65] There is a considerable

60 See Bueno and others, n 50 above.

61 European Commission, 'Proposal for a Directive amending Directives 2006/43/EC, 2013/34/EU, (EU) 2022/2464 and (EU) 2024/1760 as regards certain corporate sustainability reporting and due diligence requirements' COM(2025) 81 final (26 February 2025) at https://commission.europa.eu/document/download/1d14a487-f042-476f-997f-adf7c3e14950_en?filename=CSDDD%20Omnibus%20proposal.pdf [https://perma.cc/WEV5-MSXC].

62 Council of the European Union, 'Simplification: Council adopts law to "stop-the-clock" on due diligence rules for batteries' (Press release, 18 July 2025) at https://www.consilium.europa.eu/en/press/press-releases/2025/07/18/simplification-council-adopts-law-to-stop-the-clock-on-due-diligence-rules-for-batteries/.

63 Peggy Corlin, '"Not up for discussion": Brussels rejects Washington's pressure on climate rules' *Euronews* 9 October 2025 at https://www.euronews.com/business/2025/10/09/not-up-for-discussion-brussels-rejects-washingtons-pressure-on-climate-rules [https://perma.cc/AHK2-RMZV].

64 Human Rights Act 1998, s 6(3)(b). See for example, *YL* v *Birmingham City Council* [2007] UKHL 27.

65 The Companies, Partnerships and Groups (Accounts and Non-Financial Reporting) Regulations 2016, SI 2016 No 1245, s 414CA.

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degree of flexibility on how entities can prepare the information and a variety of guidelines that can be used.[66] In addition, section 54 of the UK Modern Slavery Act 2015 requires companies with a minimum turnover of £36 million to publish an annual 'Transparency in Supply Chains' statement, documenting either the steps taken to prevent modern slavery and human trafficking in business and supply chains, or stating that no such steps have been taken. The efficacy of the Modern Slavery Act has been the subject of considerable scrutiny, with criticisms largely focusing on its limited impact and lack of enforcement.[67]

Despite early rhetorical leadership, exemplified by the publication of the first ever NAP on Business and Human Rights in 2013 (updated in 2016),[68] the UK has failed to substantively develop this framework since then. Though an important policy step, both the original NAP and its successor are generally thought to have fallen short in their effectiveness, not least due to the failure to consult with civil society, the lack of a baseline assessment or a timetable for evaluating progress, and the limited scope.[69] Some devolved-level developments offer partial contrast. In Scotland, a baseline assessment on business and human rights was undertaken in 2016, with a view towards developing a Scottish NAP,[70] while NI introduced a Public Procurement Note in 2021

66 Department for Business, Energy and Industrial Strategy, 'Frameworks for standards for non-financial reporting – Final Report' (BEIS research paper number 2020/052, April 2020) 32 at https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/935097/frameworks-for-standards-for-non-financial-reporting.pdf [https://perma.cc/Q7HV-KUTZ].

67 Virginia Mantouvalou, 'The UK Modern Slavery Act Three Years On' (2018) 81 MLR 1017; Genevieve LeBaron and Andreas Rühmkorf, 'The Domestic Politics of Corporate Accountability Legislation: Struggles Over the 2015 UK Modern Slavery Act' (2019) 17 *Socio-Economic Review* 709; Modern Slavery and Human Rights Policy and Evidence Centre, 'Effectiveness of Section 54 of the Modern Slavery Act: Evidence and Comparative Analysis' (February 2021) at https://files.modernslaverypec.org/production/assets/downloads/TISC-effectiveness-report.pdf?dm=1736268046 [https://perma.cc/62X7-G4QV]; Business and Human Rights Resource, 'FTSE 100 & the UK Modern Slavery Act: From Disclosure to Action' (2018) at https://media.business-humanrights.org/media/documents/files/FTSE_100_Briefing_2018.pdf [https://perma.cc/5AN5-JY59].

68 Foreign & Commonwealth Office (FCO and Foreign, Commonwealth & Development Office (FCDO), 'Good Business: Implementing the UK Guiding Principles on Business and Human Rights' (Guidance, September 2013, last updated 12 May 2016) at https://www.gov.uk/government/publications/bhr-action-plan [https://perma.cc/QQ7M-BUXS]; see also FCO and FCDO, 'UK National Action Plan on implementing the UN Guiding Principles on Business and Human Rights: Progress Update, May 2020' (Policy paper 27 May 2020) at https://www.gov.uk/government/publications/implementing-the-un-guiding-principles-on-business-and-human-rights-may-2020-update/uk-national-action-plan-on-implementing-the-un-guiding-principles-on-business-and-human-rights-progress-update-may-2020 [https://perma.cc/B272-DMJX].

69 Claire Methven O'Brien, John Ferguson and Marisa McVey, 'National Action Plans on Business and Human Rights: An Experimentalist Governance Analysis' (2022) 23 *Human Rights Review* 71.

70 Scottish Government, 'Human Rights and Business' (Human rights, policy actions) at https://www.gov.scot/policies/human-rights/human-rights-and-business/#:~:text=The%20national%20baseline%20assessment%20of,be%20made%20on%20that%20website [https://perma.cc/P4C6-77C9].

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requiring government departments to incorporate human rights considerations into public contracts.[71]

Nevertheless, the last substantive review on business and human rights progress in the UK by the Joint Committee on Human Rights in 2017 criticised a perceived lack of ministerial leadership, inconsistent messaging and unclear departmental responsibility.[72] On the international stage too, the Committee on Economic, Social and Cultural Rights in its most recent Concluding Observations on the UK in 2025 recommended that, 'as a matter of priority', mandatory human rights due diligence should be introduced in sectors that have caused extraterritorial impacts, such as banking and finance.[73] There have also been numerous calls by civil society organisations, businesses, and investor associations, dating back to before 2017, to strengthen corporate accountability in the UK, specifically with regards to mandatory human rights and environmental due diligence and legislative advancements across Europe.[74] A tentative, yet ambitious, Private Members Bill on mandatory human rights and environmental due diligence was introduced by Baroness Young, but failed to progress following the 2024 general election.[75] A proposal for a 'forest risk commodities' regime (which will likely be narrower in scope than the Deforestation Regulation and currently does not include human rights provisions) was also introduced in 2023.[76] Yet, at the time of writing, the UK has not introduced an alternative comparable to the preventative regulatory measures of the EU.[77]

The development of foreign direct liability in the UK

In the absence of substantive legislative reform, a path towards corporate accountability in the UK has instead emerged through the courts. Private law claims, particularly in tort, have long been used as a stand-in where human

71 NI Department of Finance, 'PPN 05/21 Human Rights in Public Procurement' (Procurement policy and guidance, 22 November 20210 at https://www.finance-ni.gov.uk/publications/ppn-0521-human-rights-public-procurement [https://perma.cc/E7BJ-QAX4].

72 Joint Committee on Human Rights, *Human Rights and Business 2017: Promoting responsibility and ensuring accountability* HL 153, HC 443 (2017).

73 UN Committee on Economic, Social and Cultural Rights, Concluding Observations on United Kingdom of Great Britain and Northern Ireland E/C.12/GBR/CO/7 (2025), paras 10-11.

74 ALDI and others, 'Calling for a New UK Law Mandating Human Rights and Environmental Due Diligence for Companies and Investors' (September 2022) at https://media.business-humanrights.org/media/documents/UK_BUSINESS_STATEMENT_MHREDD_Sept22.pdf [https://perma.cc/FQ2C-VSGD].

75 Commercial Organisations and Public Authorities Duty (Human Rights and Environment) HL Bill (2023-2024) 17. For an overview of the Bill, see Marisa McVey, 'Jumping on the Bandwagon? Mandatory Human Rights Due Diligence Comes to the UK' Business and Human Rights in Ireland (Blog post, 16 January 2024) at https://businesshumanrightsireland.wordpress.com/2024/01/16/jumping-on-the-bandwagon-mandatory-human-rights-due-diligence-comes-to-the-uk/ [https://perma.cc/H23Q-3GPN].

76 Tim Baines and others, 'The UK Forest Risk Commodity Regulation ("UKFRC"): One to watch in the coming year' *Mayer Brown* (Insights, 10 July 2024) at https://www.mayerbrown.com/en/insights/publications/2024/07/the-uk-forest-risk-commodity-regulation–ukfrc-one-to-watch-in-the-coming-year [https://perma.cc/3VZD-8SFG].

77 See for example, EU-UK Trade and Cooperation Agreement C117I (06/04/2021), Art 406.

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rights law cannot reach.[78] So called 'foreign direct liability' (FDL) cases typically consist of tortious claims directed at a multinational company, involving harms related to human, labour or environmental rights or health and safety issues, and occurring in the course of the company's, or its subsidiary's, activities in a host country.[79] Claimants then bring a case in the country in which the parent company is domiciled (usually in the Global North), typically seeking remedies comprising of damages and/or other forms of injunctive relief. Though originating in the United States, FDL litigation has taken root in Europe, with UK courts emerging as a key forum.[80] English jurisprudence has been central in recognising that parent companies may owe a duty of care to individuals harmed by the acts of their subsidiaries or supply chain actors abroad.[81] Recent case law also suggests a broader trajectory of FDL claims in the UK, including liability of prominent actors within supply chains and a willingness to recognise liability of third parties, including auditors, where their conduct contributes to harm.[82]

Momentarily however, the departure of the UK from the EU cast doubt on the continued progressive stance of the English courts. Under the Brussels regime, EU-domiciled parent companies can be sued in their home courts, with foreign subsidiaries joined via the necessary or proper party gateway.[83] After the transition period, the Brussels regime no longer applied in the UK. With Brexit, the UK defaulted to largely common law rules and the doctrine of *forum non conveniens*, governed by the discretionary test in *Spiliada Maritime Corporation* v *Cansulex Ltd* [84] (*Spiliada*). This shift represented a potentially significant barrier to access to justice, as Aristova notes, since post-Brexit claimants faced greater unpredictability over whether English courts would accept jurisdiction.[85]

These concerns were then tested in *Dhan Kumar Limbu & others* v *Dyson Technology Limited and others*[86] (*Dyson*), where the High Court declined to exercise jurisdiction over claims involving forced labour and exploitative working conditions. Using the *Spiliada* test, the Court concluded that Malaysia was

78 Ekaterina Aristova, *Tort Litigation against Transnational Corporations: The Challenge of Jurisdiction in English Courts* (Oxford: OUP, 2024).

79 McCorquodale and Simons, n 8 above; Liesbeth Enneking, 'The Future of Foreign Direct Liability? Exploring the International Relevance of the *Dutch Shell Nigeria* Case' (2014) 10 *Utrecht Law Review* 44.

80 *ibid*. See also Andrew Sanger, 'Corporations and Transnational Litigation: Comparing *Kiobel* with the Jurisprudence of English Courts' (2014) 107 *AJIL Unbound* e-23; Axel Marx and others 'Access to Legal Remedies for Victims of Corporate Human Rights Abuses in Third Countries' European Parliament Policy Department for External Relations (Study, 2019) at http://www.europarl.europa.eu/RegData/etudes/STUD/2019/603475/EXPO_STU(2019)603475_EN.pdf.

81 *Vedanta Resources Plc* v *Lungowe* [2019] UKSC 20; *His Royal Highness Okpabi* v *Royal Dutch Shell Plc* [2021] UKSC 3 (QB).

82 *Dhan Kumar Limbu & others* v *Dyson Technology Limited and Others* [2024] EWCA Civ 1564 at [38], [59]; *Mr Amhad Rihan* v *Ernst & Young Global Limited & Others* [2020] EWHC 901.

83 Council Regulation 1215/2012 of 12 December 2012 on jurisdiction and the recognition and enforcement of judgments in civil and commercial matters, OJ 2012 L351/1; C-281/02 *Owusu* v *Jackson* [2005] ECR I-1383. See also Civil Procedure Rules, Practice Direction 6B 3.1(3), which lays down the necessary and property party gateway.

84 *Spiliada Maritime Corporation* v *Cansulex Ltd* [1986] UKHL 10.

85 Aristova, n 78 above, 161.

86 *Limbu* v *Dyson Technology Ltd* [2023] EWHC 2592 (KB).

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the natural forum, demonstrating the potentially very high evidentiary bar required of claimants in FDL cases, post-Brexit.[87] This was, as commentators have pointed out, despite the claimants' fear of persecution and inhuman conditions if they returned to Malaysia, when considering the substantial justice limb of the test. When the judgment was handed down, it seemed as though business and human rights litigation in the English courts might well be 'running on borrowed time'.[88] On appeal, this concern proved premature. The Court of Appeal found that the respondent's UK-based operations played a pivotal role in the alleged wrongdoing, with key corporate decision-makers located in England. The Court further accepted that the appellants, as migrant workers, were particularly vulnerable in contrast to the well-resourced UK-based corporate defendants, and if proceedings were conducted in Malaysia, the claimants would face significant procedural and practical disadvantages.[89] It subsequently laid out limitations on the use of *forum non conveniens* in future cases.

Dyson thus reinforces earlier jurisprudence enabling access to justice in FDL cases in English courts, despite the absence of Brussels protections.[90] It underscores the continuing willingness of English courts to hear claims that challenge corporate irresponsibility and solidifies London's role as a key venue for transnational business and human rights litigation.[91] Indeed, it might even be regarded as a source of inspiration for a more claimant-friendly application of the *forum non conveniens* doctrine in other common law jurisdictions, thus significantly boosting the credentials of the UK in its obligations to provide effective access to justice under Pillar III of the UNGPs.[92] It should also be noted that the UK is no longer party to the Lugano Convention post-Brexit. While Lugano largely mirrors the Brussels Framework in clarifying jurisdiction in civil and

87 *ibid* at [102]. For case analysis, see Geert Van Calster, 'Dyson's successful *forum non conveniens* challenge in Malaysian outsourcing claim. A sad illustration of the bar to #bizhumanrights claims in England and Wales post Brexit' *GAVC Law* 24 October 2023 at https://gavclaw.com/2023/10/24/dysons-successful-forum-non-conveniens-challenge-in-malaysian-outsourcing-claim-a-sad-illustration-of-the-bar-to-bizhumanrights-claims-in-england-and-wales-post-brexit/ [https://perma.cc/VCB6-A5XD]; Ekaterina Aristova, 'The Jurisdiction Puzzle: Dyson, Supply Chain Liability and Forum Non Conveniens' *ConflictofLaws.net* 11 November 2023 at https://conflictoflaws.net/2023/the-jurisdiction-puzzle-dyson-supply-chain-liability-and-forum-non-conveniens/ [https://perma.cc/WJ2V-2FF7].

88 Ugljesa Grusic, 'Dyson Collects a "Brexit Dividend" in a Business and Human Rights case in England' EAPIL (Case law, Developments in PIL, 30 October 2023) at https://eapil.org/2023/10/30/dyson-collects-a-brexit-dividend-in-a-business-and-human-rights-case-in-england/ [https://perma.cc/A8KE-2AH3].

89 *Dhan Kumar Limbu & others* v *Dyson Technology Limited and others* n 82 above at [38], [59].

90 The Supreme Court has since refused Dyson permission to appeal the Court of Appeal's decision, meaning that for now, the jurisdictional question stands, and the case will be sent back to the High Court on the merits.

91 Ugljesa Grusic, '*Limbu v Dyson*: The Death of Forum non Conveniens in Business and human Rights and Enviromental Litigation in England?' EAPIL (Case law, Developments in PIL, 10 February 2025) at https://eapil.org/2025/02/10/limbu-v-dyson-the-death-of-forum-non-conveniens-in-business-and-human-rights-and-environmental-litigation-in-england/ [https://perma.cc/TF3X-J25L]. See also *Da Silva and others* v *Brazil Iron Ltd* [2025] EWHC 606 (KB).

92 Aristova, n 78 above. See also Anil Yilmaz Vastardis, '*Vedanta v Lungowe Symposium*: Potential Implications of the UKSC's Decision for Supply Chain Relationships' Opinio Juris (Comment, 23 April 2019) at https://opiniojuris.org/2019/04/23/vedanta-v-lungowe-symposium-potential-implications-of-the-ukscs-decision-for-supply-chain-relationships/ [https://perma.cc/JM86-PMV3].

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commercial disputes, the accession of the UK to the 2019 Hague Judgments Convention partially restores these benefits by improving international recognition and enforcement of foreign judgment. However, such optimism regarding the current avenues for pursuing FDL litigation also warrants a measure of caution. At present, FDL litigation of the kind assessed above appears to remain an essentially English phenomenon, with only one instance reaching Scotland's Inner House of the Court of Session in 2023 and none emerging in NI to date.[93]

BETWEEN PREVENTION AND REMEDY: COMPARING EU AND UK APPROACHES

The EU-UK Trade and Cooperation Agreement signed in December 2020 reaffirmed both parties' commitment to supporting the adherence to and implementation of business and human rights standards, including the UNGPs and the OECD Guidelines for Multinational Enterprises and Due Diligence Guidance.[94] Despite this shared rhetorical commitment, the EU and the UK have adopted fundamentally divergent approaches to enforcement and corporate accountability in the years since Brexit. As demonstrated above, the EU has progressively moved towards a preventative regulatory model, continuing to embed due diligence obligations into hard law instruments. Central to this framework is the CSDDD which – alongside complementary instruments, such as the Conflict Minerals Regulation, Batteries Regulation, Deforestation Regulation and the Forced Labour Directive – entrenches this preventative logic by linking market access to compliance with various due diligence standards. Collectively, these measures signal the EU's efforts to embed human rights into the architecture of global value chain governance, in an attempt to pre-empt harm and restructure corporate behaviours and operationalise Pillars I and III of the UNGPs through a regulatory infrastructure.

In contrast, the UK has remained committed to a litigation-led model of accountability, where enforcement is not pre-emptive but retrospective, and largely reliant on private law remedies, particularly through the expanding category of FDL claims. While the Modern Slavery Act 2015 and retained provisions of the Non-Financial Reporting Directive gesture toward regulatory engagement, these instruments fall short of imposing preventative obligations or creating mechanisms for enforcement. Instead, English courts have emerged as a key site of remedial accountability in line with Pillar III, with cases such as *Dyson* reaffirming the possibility of imposing a duty of care on UK-based parent companies for harms committed by subsidiaries or suppliers abroad, even post-Brexit.

Undoubtedly, the legal form each jurisdiction adopts in relation to their obligations under the UNGPs is a core expression of each legal system. The regulatory model of the EU is rooted in administrative governance and technocratic

93 *Hugh Hall Campbell KC* v *James Finlay (Kenya) Ltd* [2023] CSIH 39.
94 EU-UK Trade and Cooperation Agreement [2021] OJL149/10, Art 406.

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norm-setting in global value chains, enabling it to progressively harden soft law frameworks like the UNGPs into binding norms and harmonise this across Member States.[95] By contrast, the heritage of English law appears to favour more reactive approaches to corporate misbehaviour. This is evidenced by the expansion of parent company liability in tort. This inclination toward an adjudicative approach, rather than codification, might help account for its ongoing reliance on litigation and its relative reluctance to enact comprehensive due diligence legislation in the post-Brexit context. Nonetheless, the bifurcation has implications for the effectiveness of Pillar III, particularly as the litigation model remains at its core an ex post approach, and one that is often selective and structurally exclusionary.[96] Pillar III of the UNGPs stresses that judicial mechanisms such as FDL may not be the most effective approach for all claimants, and that other remedial mechanisms should be made available by states to comprehensively complement and provide an alternative to FDL.[97] This raises broader questions about the legitimacy and enforceability of human rights in private economic ordering, and whether adjudicative forms of governance can adequately stand in for a comprehensive, preventative framework.

One further dimension of this comparison warrants attention: the extraterritorial reach of many of the adopted or forthcoming value chain instruments emanating from the EU. These measures will, in practice, require UK-based companies to comply with EU law as a condition of accessing the European market.[98] For instance, CSDDD requires compliance by third-country companies if they reach certain turnover thresholds or have a subsidiary presence in Europe.[99] UK exports to the EU on commodities that fall under the Deforestation Regulation will also be subject to due diligence requirements.[100] Indirectly, many of these developments will gradually exert influence through value chain dynamics. UK firms that do not themselves fall within the formal scope of such instruments may nonetheless be compelled to adapt their practices if they operate within the supply chains of large EU multinationals. In this context, the UK's post-Brexit regulatory inertia risks positioning it as a *de*

95 Harm Schapel, 'The New Approach to the New Approach: The Juridification of Harmonised Standards in EU Law' (2013) 20 *Maastricht Journal of European and Comparative Law* 522; Sandra Eckert, 'The European Green Deal and the EU's Regulatory Power in Times of Crisis' (2021) 59 *Journal of Common Market Studies* 81.

96 Richard Meeran, 'Tort Litigation against Multinational Corporations for Violation of Human Rights: An Overview of the Position Outside the United States' (2011) 3 *City of Hong Kong Law Review* 1; David Bertram, 'Environmental Justice "Light"? The Transnational Tort Litigation in the Corporate Anthropocene' (2022) 23 *German Law Journal* 738; Francesca Farrington, 'A Return to the Doctrine of *Forum Non Conveniens* After Brexit and the Implications for Corporate Accountability' (2022) 18 *Journal of Private International Law* 399.

97 UNGPs, n 4 above, 30.

98 This was recently acknowledged by the House of Lords Modern Slavery Committee, Report of Session 2024-2025 'The Modern Slavery Act 2015: becoming world leading again' HL Paper 8 (16 October 2024) at para 230.

99 CSRD, Art 40(b); CSDDD, Art 2(2).

100 Deforestation Regulation, Art 1.

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facto satellite jurisdiction, subject to the impact of more ambitious business and human rights frameworks emanating from the EU.[101]

In sum, the post-Brexit trajectories of the EU and UK reveal a growing regulatory asymmetry with regard to the corporate responsibility for human rights. While the EU has embraced a preventative, rules-based approach, the UK has doubled down on a reactive, litigation-led model grounded in its common law tradition. The EU has sought to embed human rights protection into the fabric of economic governance, whereas the UK continues to rely on the ex post logic of private law adjudication. The extraterritorial reach of EU instruments will no doubt generate pressure on UK firms to comply with standards that have no domestic legislative equivalent.

It is within this landscape that I now turn briefly to NI, a region where, post-Brexit, both regulatory systems now exert simultaneous (though not equal) influence. What follows examines how this hybrid framework is unfolding in NI, and whether its exceptional post-Brexit status positions it as a site of further fragmentation or for innovation in terms of more effectively fulfilling Pillars I and III of the UNGPs.

NORTHERN IRELAND

In light of the comparative analysis above, this paper advances the argument that NI is emerging as a potential hybrid legal space in the field of business and human rights. This hybridity arises from the jurisdiction's overlapping obligations: ongoing alignment with aspects of EU law under the Ireland/Northern Ireland Protocol (now updated to the Windsor Framework), and the continued operation of devolved policy competences within the broader UK constitutional framework.[102] The well-documented debates on the region's position post-Brexit are not rehearsed here, except insofar as they illuminate the value of NI as a case study of where overlapping legal orders might influence the development of business and human rights regulation.[103] As the only UK region to remain subject to significant ele-

101 Anu Bradford, *The Brussels Effect: How the European Union Rules the World* (Oxford: OUP, 2020). For an analysis of the 'Brussels effect' in business and human rights regulation, see Bueno and others, n 50 above.

102 Ireland/Northern Ireland Protocol, Agreement on the withdrawal of the United Kingdom of Great Britain and Northern Ireland from the European Union and the European Atomic Energy Community [2020] OJ L29/7. The Windsor Framework, formally adopted by the EU and UK in the Withdrawal Agreement's Joint Committee, made adjustments to the originally agreed Protocol, namely on the movement of goods from Great Britain to Northern Ireland and on governance arrangements: HM Government, *The Windsor Framework: a new way forward* CP806 (February 2023).

103 See for example David Phinnemore and Lisa Whitten, 'Northern Ireland and Brexit: a Unique Challenge in Unique Circumstances' in Michael Holmes and Kathryn Simpson (eds), *Ireland and the European Union: Economic, Political and Social Crises* (Manchester: Manchester University Press, 2021); Katy Hayward and Mary C. Murphy, 'The EU's Influence on the Peace Process and Agreement in Northern Ireland in Light of Brexit' (2018) 17 *Ethnopolitics* 276, 279; Chris McCrudden, 'The Good Friday Agreement, Brexit, and Rights' Royal Irish Academy – British Academy Brexit Policy Discussion Paper at https://www.thebritishacademy.ac.uk/documents/97/TheGoodFridayAgreementBrexitandRights_0.pdf [https://perma.cc/2XT7-A8PW].

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ments of EU law post-Brexit, NI occupies an increasingly distinctive regulatory position, one that has the potential to simultaneously reflect EU-oriented preventive governance and the more reactive, adjudicative model of the UK.

When looking for the human rights implications for NI, one might immediately be drawn to Article 2 of the Windsor Framework, which requires that certain rights protections in NI do not fall below the baseline in place at the time of Brexit, and, in addition mandates dynamic alignment with six EU equality directives.[104] The role of the NI Human Rights Commission and the Equality Commission in monitoring and enforcing these obligations strengthens the distinctiveness of the NI regime, with EU jurisprudence continuing to inform its development.[105] The cumulative effect is that NI now operates an increasingly distinct human rights and equality regime to elsewhere in the UK.[106]

Yet for business and human rights regulation, other dimensions of the Windsor Framework warrant equal attention. Amendments or replacements of existing EU legislation on goods automatically update NI law, while entirely new EU acts may also be incorporated if the EU-UK Joint Committee agrees by mutual consent.[107] Both mechanisms are subject to democratic safeguards, through various requirements of cross-community support in the NI Assembly. This process has already extended to the Batteries Regulation and the Deforestation Regulation, both of which amended existing EU law, and which now fall in scope of the Windsor Framework. The second route – the addition of new EU measures – could also introduce more progressive standards into NI's legal order. These pathways remain heavily shaped by political contingencies, particularly the functionality of the NI Assembly and the level of consensus around adopting progressive EU rules.[108] For example, as Phinnemore and Whitten note, had the Assembly been operational when the Deforestation Regulation

104 Equality Commission for Northern Island and Northern Island Human Rights Commission, 'The Scope of Article 2(1) of the Ireland/Northern Ireland Protocol' (Working Paper, December 2022) at https://www.equalityni.org/ECNI/media/ECNI/Publications/Delivering%20Equality/DMU/NIHRC-ECNI-Scope-of-Protocol-Working-Paper-December-2022.pdf [https://perma.cc/5GKL-58CU].

105 Anurag Deb, Eleni Frantziou and Tobias Lock, 'The EU Charter of Fundamental Rights in Northern Ireland Under the Windsor Framework' (2024) 75 NILQ 488.

106 Kathryn McNeilly and Aoife O'Donoghue, 'Mapping the Tapestry: National and International Human Rights Frameworks in Northern Ireland and Ireland' (2023) 34 *Irish Studies in International Affairs* 1. See also Colin R. G. Murray and Clare Rice, 'Beyond Trade: Implementing the PINI Human Rights and Equalities Provisions' (2021) 72 NILQ 1, 3; Anurag Deb and Colin R. G. Murray, 'Article 2 of the Ireland/Northern Ireland Protocol: A New Frontier in Human Rights Law?' [2023] *European Human Rights Law Review* 608; For a discussion on EU equality case that might trigger the non-diminution obligations of Art 2, see Elena Frantziou and Sarah Craig, 'Understanding the Implications of Article 2 of the NI Protocol in the Context of EU Case Law Developments' (2022) 73 NILQ 65.

107 Windsor Framework, Arts 13(3a) and 13(4).

108 Joël Reland, 'UK-EU Regulatory Divergence Tracker: Q1 2024' UK in a Changing Europe (Policies, 11 April 2024) at https://ukandeu.ac.uk/reports/uk-eu-divergence-tracker-q1-2024/ [https://perma.cc/Z7Z4-FBPH]. On the 'Stormont Brake', see also: Colin R. G. Murray and Niall Robb, 'From the Protocol to the Windsor Framework' (2023) 74 NILQ 395.

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came into effect, its economic impact might well have prompted MLAs to invoke the Stormont Brake.[109]

As Table 1 demonstrates, currently three out of five relevant EU acts incorporating corporate due diligence linked to human rights (conflict minerals, deforestation and batteries) already apply *directly* in NI or will do so upon their entry into force.[110] Others, such as the CSDDD, do not formally fall within the Windsor Framework competency but will nonetheless exert indirect influence. The configuration of multinational groups means that NI firms, especially those linked to EU parent companies, will likely need to adopt and internalise the standards set out by the Directive.[111] Importantly, the Forced Labour Regulation has been deemed by the European Commission to fall within the material scope of the Windsor Framework and a proposal for its inclusion has been submitted to the Joint Committee, which must meet before May 2026.[112] Should this position be agreed, the Regulation would require implementation in NI, subject to the consent procedures requiring cross-community support in the Assembly.

Together, these insights situate NI business and human rights protections as internally differentiated from the rest of the UK and externally connected to EU law. This hybridity presents both challenges and opportunities. On the one hand, the position of NI underscores the internal fragmentation of the post-Brexit legal order in the UK, which will have practical effects. NI's economy is dominated by small, medium and micro enterprises, many of which encounter human rights requirements passively through supply chains rather than as active initiators of due diligence processes.[113] Compliance with EU-derived

109 David Phinnemore and Lisa Claire Whitten, 'Using the Stormont Brake' Post-Brexit Governance NI (Explainers, February 2024) at https://www.qub.ac.uk/sites/post-brexit-governance-ni/ProjectPublications/Explainers/UsingtheStormontBrake/ [https://perma.cc/AJ2G-KMFA]

110 Although the Conflict Minerals Regulation was adopted prior to Brexit, its key operative provisions entered into force only after the end of the transition period. Under the terms of the NI Protocol, the Regulation continues to apply in Northern Ireland, with the UK Foreign Office designated as the competent authority for enforcement and monitoring. See Chiara Macchi, 'A Glass Half Full: Critical Assessment of EU Regulation 2017/821 on Conflict Minerals' (2021) 13 *Journal of Human Rights Practice* 271.

111 Research prepared on behalf of the NI Equality Commission, the Human Rights Commission and the Irish Human Rights and Equality Commission also recommended that the NI Executive monitor the implementation of the CSDDD, with a view to assessing whether NI law needs amendment to reflect best international practice. See Sarah Craig, Claire Lougarre and Rory O'Connell, 'EU Developments in Equality and Human Rights: Impact of Brexit on the Divergence of Rights and Best Practice on the Island of Ireland: Updated Paper on Developments post-January 2022' Ulster University, November 2024, 99 at https://www.equalityni.org/ECNI/media/ECNI/Publications/Delivering%20Equality/DMU/EU-EqualityHumanRights-BrexitImpactUpdate-Nov2024.pdf [https://perma.cc/2RZ7-2AN4].

112 Council of the European Union, 'Proposal for a Council Decision establishing the position to be taken on behalf of the European Union within the Joint Committee established by the Agreement on the withdrawal of the United Kingdom of Great Britain and Northern Ireland from the European Union and the European Atomic Energy Community as regards the adoption of a decision adding a newly adopted Union act to Annex 2 to the Windsor Framework' COM(2025) 389 final (14 July 2025) at https://data.consilium.europa.eu/doc/document/ST-11572-2025-INIT/en/pdf.

113 Ciara Hackett and others, 'Covid-19 as a Lens to Investigate Local Approaches to Business and Human Rights: The case of Northern Ireland' (2024) 75 NILQ 238.

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Table 1. UK-EU Passive Divergence on Business and Human Rights

Legislation	Status	NI alignment through Windsor Framework	Indirect impact on UK
Regulation 2017/821 on Conflict Minerals	In force	Yes	The Regulation affects smelters and refiners of tin, tantalum, tungsten and gold in third countries, since EU importers will be required to identify these companies in their supply chains and check whether they have the correct due diligence guidance in place.
Regulation 2023/115 on Deforestation-free Products	In force – gradual application from 2024	Yes	Will affect GB exports to EU, with importers having to prove necessary due diligence on goods containing any relevant commodities
Regulation 2023/1542 on Batteries	In force – gradual application from 2024	Yes	Will affect GB producers, since all operators with batteries in EU market are obligated to establish and implement a due diligence policy on social and environmental impact of supply chain
Directive 2024/1760 on Corporate Sustainability Due Diligence	In force – full transposition by 2026, gradual compliance from 2027	No	Will affect GB companies in scope as third-country companies and will also affect supply chains
Proposal for Regulation on Products made with Forced Labour	Approval needed from Council - likely to come into force in 2027	Unclear	Will affect GB companies as imposing greater due diligence on supply chains

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standards may therefore impose disproportionate administrative and financial burdens. Empirical evidence already suggests variation in the implementation of the UNGPs among NI firms. Multinational subsidiaries, supported by parent company expertise and resources, are more likely to have formal policies in place, whereas indigenous NI firms remain comparatively behind.[114] Without targeted support or capacity-building measures, smaller firms may struggle to meet these incoming obligations, raising questions about the practical effectiveness of business and human rights regulation in the region.

This fragmentation also affects access to justice themes discussed in previous sections, casting doubt on whether the English model of FDL litigation can be replicated in NI. The economic profile of the region means that there are relatively few corporate actors with foreign subsidiaries or supply chains that could serve as viable defendants in transnational litigation. If such firms exist, the availability of specialist expertise and resources, together with the contours of NI law on international civil jurisdiction, would play a role in shaping the feasibility of such claims. These constraints suggest that the region's engagement with access to justice for corporate human rights abuses may take forms distinct from England's litigation-centred approach.

Yet, the hybrid legal order of NI may also create conditions for progressive experimentation. As O'Donoghue contends in her work on exceptional economic governance spaces, while certainly not a panacea, the 'messiness' created by the Protocol, and subsequently the Windsor Framework, can engender forms of resilience and engagement with democracy.[115] The partial alignment with EU regulation on business and human rights embeds higher standards into the domestic framework and offers scope for incremental incorporation of new or amended EU measures. A potential area for future development lies in interpreting the equality of opportunity provisions of the Good Friday Agreement, as advanced by both the NI Human Rights Commission and the Equality Commission. The two bodies contend that certain EU trade or product regulations referenced in the Windsor Framework may carry implicit human rights and equality implications, thereby engaging the non-diminution and dynamic alignment obligations under Article 2(1). By way of example, Article 24 of the 2006 EU Machinery Directive, which mandates lift accessibility for persons with disabilities, would, if amended, automatically apply in NI through dynamic alignment, strengthening domestic equality protections consistent with the Good Friday Agreement.[116] This hybridity allows NI to serve as a testing ground for evaluating the adequacy of EU responsible business approaches

114 Marisa McVey and Anna Montgomery, 'NI Business and Human Rights Index: Assessing the Corporate Implementation of the UN Guiding Principles on Business and Human Rights in NI' *NI Human Rights Commission* (2024) at https://nihrc.org/publication/detail/business-and-human-rights-index-report [https://perma.cc/R9KS-F9TR].

115 Aoife O'Donoghue, 'Peter Thiel's Oxymoron? The Windsor Framework and EEGS' (2024) 75 NILQ 613. See also Sylvia de Mars and Aoife O'Donoghue, 'Law and Scale: Lessons from Northern Ireland and Brexit' (2024) 44 *Legal Studies* 201.

116 NI Human Rights Commission and the Equality Commission for Northern Ireland, 'Submission to the House of Lords Sub-Committee on the Protocol's call for evidence for its inquiry on the Windsor Framework' (2 May 2023) at https://committees.parliament.uk/writtenevidence/120909/html/.

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within the UK. We know already that while the UK has, so far, retreated from developing binding human rights due diligence standards, relying instead on voluntary and adjudicative mechanisms, the EU is embedding preventive obligations through legislative instruments. Positioned between these models, NI absorbs elements of both, highlighting both the possibilities and the limitations of transnational regulatory pluralism in advancing corporate accountability.

Although the longer-term trajectory of NI's hybrid regime remains uncertain, partly due to the phased introduction of new EU instruments, its role remains noteworthy. NI illustrates how subnational jurisdictions, through the interaction of domestic arrangements and international commitments, can influence regulatory practices and allow for gradual adaptation. It offers a useful and unique perspective for considering the relative strengths of EU and UK approaches, while also serving as a reminder that the future of business and human rights regulation may be shaped as much from the margins of legal orders as from their centres.

CONCLUSION

In discharging its duty to protect human rights under Pillar I of the UNGPs, the UK is expected to identify and address legislative gaps and assess whether existing laws remain fit for purpose in light of changing conditions in terms of a regulatory environment conducive to corporate respect for human rights.[117] Few developments represent a more profound change in legal and political context than Brexit. Yet rather than prompting a systematic review of domestic business and human rights regulation, the post-Brexit trajectory of the UK has been marked by passive divergence from EU law, producing fragmented and uneven regulatory outcomes across its constituent jurisdictions, most notably in NI. This article advances a set of novel claims concerning the often-overlooked business and human rights challenges embedded within the legal and regulatory outworkings of Brexit. It demonstrates the retreat of the UK from legislative engagement with the UNGPs, in contrast to EU developments, the role of EU alignment under the Windsor Framework in generating due diligence obligations, and with this, the emergence of NI as a hybrid legal space in business and human rights.

While the final version of the CSDDD remains subject to substantial political compromise, it nonetheless marks a significant legislative step in institutionalising corporate responsibility for human rights within the EU. The UK has, to date, pursued no comparable statutory agenda post-Brexit. This divergence cannot be reduced to a matter of technical detail. Rather, it signifies structural differences in the organisation of legal regimes and the normative commitments they embody. Whereas the EU continues to view corporate accountability as requiring legislative codification and proactive due diligence obligations (albeit tempered by internal contestation and external pressure), the UK has defaulted to a minimalist regime grounded in fragmented reporting duties and liability standards developed on a case-by-case basis. The reliance on FDL litigation of-

117 UNGPs, n 4 above, Commentary to Principle 7.

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fers partial and reactive access to remedy, but does not amount to a coherent or comprehensive strategy for preventing business-related human rights harm. It is also unevenly distributed between the various jurisdictions in the UK. Accordingly, even in its curtailed form, the due diligence regime of the EU underscores a distinction in regulatory philosophy. It remains committed to embedding the UNGP Pillar I duty to protect, focusing on preventative legislation, whereas the UK offers, at best, ex post judicial mechanisms under Pillar III. The very real limitations of the EU model do not exculpate the legislative inertia of the UK, rather they reinforce the need for critical engagement with both systems as imperfect instantiations of corporate accountability for human rights. I further contend that NI, as a jurisdiction operating at the interface of EU and UK law, provides a valuable hybrid site for examining the operational implications of this divergence and the potential for convergence.

Recent signals suggest a modest shift in the UK's position. With the first Labour government in place since Brexit, the UK Foreign Office published a tender proposal for a national baseline assessment on business and human rights in September 2024. This could enable a more effective examination of how human rights due diligence is implemented, extending beyond the contested framework of the CSDDD. Yet in light of the above, any regulatory enhancements must carefully consider the devolved contours of the UK context.[118] As Aristova notes, Brexit also presents a potential moment of recalibration for English private international law, opening the door to more equitable jurisdictional frameworks.[119] There are also extant opportunities at an international level. Where, historically, the EU has maintained a cautious posture toward the proposed binding treaty on business and human rights, with Brexit, the UK is no longer bound to align its negotiating stance with that of the EU.[120] This institutional decoupling offers the UK a strategic opportunity to articulate an independent position on business and human rights in multilateral fora.[121]

This article contributes to the wider literature on business and human rights regulation, foregrounding Brexit as a case study of the different regimes for preventing and mitigating corporate human rights harms. While Brexit is perhaps

118 FCDO, 'National Baseline Assessment (NBA) on the Implementation of the UN Guiding Principles on Business and Human Rights – EME' A Pre-procurement Notice by FCDO (10 July 2024) at https://bidstats.uk/tenders/2024/W28/826343964#:~:text=An%20NBA%20would%20have%20the,Business%20Responsibility%20to%20Respect%203 [https://perma.cc/6V2Y-EY3P].

119 Aristova, n 78 above, 168.

120 Office of the High Commissioner on Human Rights 'BHR Treaty Process' at https://www.ohchr.org/en/business-and-human-rights/bhr-treaty-process.

121 See for example, the UK's statement in UN Human Rights Council, 'Annex to the report on the seventh session of the open-ended intergovernmental working group on transnational corporations and other business enterprises with respect to human rights with the compilation of general statements from States and other relevant stakeholders' A/HRC/49/65 (29 December 2021). The UK was also an active participant in the 10th session of the Intergovernmental Working Group on the binding Treaty, indicating a greater willingness to engage in the process. UK Mission to the UN (Geneva), 'UK Statement for the Open-Ended Intergovernmental Working Group on Transnational Corporations' (World news story, 16 December 2024) at https://www.gov.uk/government/news/uk-statement-for-the-open-ended-intergovernmental-working-group-on-transnational-corporations [https://perma.cc/GN7E-MNPZ].

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a unique event, the consequences of its impact expose a key flaw of the business and human rights agenda: it largely relies on the initiative and long-term dedication of states or supranational bodies. State apathy therefore remains an under considered dimension of corporate accountability for human rights. The passivity of the UK post-Brexit means that it risks becoming a satellite state to which the extraterritorial effects of more stringent and progressive business and human rights legislation from other jurisdictions will apply. This is the case with new EU legislation, where a de facto Brussels effect will prompt changes in the practice of companies along value chains.[122] This development must also be read within the broader context of the emerging 'due diligence turn' in responsible business regulation, which is not confined to Europe.[123] Mandatory human rights and environmental due diligence requirements are gaining traction globally, reflecting a wider shift toward the legal codification of the UNGPs.[124]

Brexit was, as Tzouvala observes, a warning for the 'rapid de-legitimisation of a specific paradigm of governing the economy'.[125] It can further be viewed as a rejection of the interdependence of states and the principles of transnational law, despite the prevalence of human rights abuses within global value chains.[126] This trend appears to be continuing apace. This is not to say that the EU approach is definitive or even wholly effective. But the isolationism expressed in the decision of the UK to leave the EU should also be a wakeup call to those who subscribe to the reliance implicit in the UNGPs on multilateralism and the proactivity of committed states to drive the agenda for greater corporate responsibility. Brexit provides only one case study on state apathy on business and human rights regulation and governance, and one can think of plenty more examples of this apathy unfolding across the globe at this moment in time. As this article demonstrates, apathetic domestic compliance with international norms on business and human rights has strong implications for progressive regulation, access to justice, and holding non-private economic actors to account for human rights harms. If states are failing to uphold their duties as guarantors for rights and progress in their realisation of these rights, there is then little motivation for corporations to initiate change on their own.

122 Bradford, n 101 above.

123 Antoine Duval, 'Ruggie's Double Movement: Assembling the Private and the Public Through Human Rights Due Diligence' (2023) 41 *Nordic Journal of Human Rights* 279.

124 Japan published human rights due diligence guidelines in 2022, and South Korea has reintroduced a mandatory human rights and environmental due diligence bill for large companies in 2025.

125 Ntina Tzouvala, 'Chronicle of a Death Foretold? Thinking About Sovereignty, Expertise and Neoliberalism in the Light of Brexit' (2016) 17 *German Law Journal* 117, 123. See also Phinnemore and Whitten, n 103 above.

126 Ralf Michaels, 'Does Brexit Spell the Death of Transnational Law' (2016) 17 *German Law Journal* 51.

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Making Rights Fundamental: The 2022 Amendment to the 1998 ILO Declaration on Fundamental Principles and Rights at Work and its Radical Implications

Ioannis Katsaroumpas* and Maria Kotsoni†

What makes a right fundamental, and how does it achieve this status? This article critically examines these questions through a detailed analysis of the 2022 amendment to the 1998 ILO Declaration, which recognised the right to a safe and healthy working environment as a fifth fundamental right. This inquiry is framed by the concepts of *fundamentalisation* (the process through which a right gains such status) and *fundamentality* (the normative status of a right). It makes three key contributions. First, it employs the 2022 amendment as a case study of fundamentalisation, analysing how internal and external actors and factors, including COVID-19, shaped the outcome. Second, it identifies the predominance of constitutional-textual and rights-based sets of justifications of the amendment while observing that its formulation was informed primarily by ILO Conventions. Third, it traces the emergence of a flexible 'amendment formula', potentially lowering the bar for future rights to be added. Revisiting the earlier debate between Alston, Langille and Maupain on fundamentality in the Declaration, the article argues that the 2022 amendment makes accounts of fundamental rights under the 1998 Declaration as 'procedural' or 'enabling' untenable. Hence the implications of the amendment may be more radical than currently appreciated.

INTRODUCTION

What makes a certain right fundamental, and how does a right achieve this status? These important questions can be framed as related to fundamentality (the normative status of a right) and fundamentalisation (the process through which a right gains such status) respectively. Following Mantouvalou,[1] it is possible to distinguish between a 'positivist' and 'normative' approach to the question of fundamentality:[2] the former would ask whether a specific right is treated

* Associate Professor, University of Sussex; Senior Researcher, European Trade Union Institute.
† Postdoctoral Research Associate, Princeton University. We are grateful to the anonymous reviewers for their valuable feedback and insights. We would also like to thank Anne Trebilcock, Amir Paz-Fuchs, Menelaos Markakis, Kalina Arabadjieva, Richard Albert, Sharhzad Fouladvand and Charlotte Skeet for their useful comments on earlier drafts. The usual disclaimer applies. Where no permalink is available, all URLs were last visited 11 November 2025.

1 Virginia Mantouvalou, 'Are Labour Rights Human Rights?' (2012) 3 *European Labour Law Journal* 151.
2 See EUI Social and Labour Law Working Group, 'The Fundamentalisation of Social Rights' EUI LAW 2009/5 (Working Paper, 2009) at http://hdl.handle.net/1814/11214.

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as fundamental in a concrete legal instrument (thus making the determination retrospective and context-specific); the latter would assess the normative attributes of a right against a privileged normative benchmark of fundamentality, for example human dignity, justice or freedom. By contrast, the question of fundamentalisation focuses on the mechanisms, interrogating the specific process by which a right is made fundamental.

In light of these general questions, this article offers a systematic critical account of the first substantive amendment to the 1998 ILO Declaration on Fundamental Principles and Rights at Work[3] (1998 Declaration or Declaration). While not formally part of its Constitution, the 1998 Declaration is a key document in the International Labour Organisation (ILO) legal order. This is because it recognised the status of four rights and associated principles as fundamental, namely (i) freedom of association and the effective recognition of the right to collective bargaining; (ii) the elimination of all forms of forced and compulsory labour; (iii) effective abolition of child labour; and (iv) the elimination of discrimination in respect of employment and occupation. Very importantly, all states have a duty to respect, promote and realise these fundamental principles and rights at work (FPRW), known as core labour standards (CLS) or rights. Such duty arises merely by virtue of ILO membership, meaning regardless of the states' ratification of the relevant ILO Conventions. In June 2022, the ILO amended for the first time the 1998 Declaration by adding the right to a 'safe and healthy working environment' to the original list as a fifth fundamental right.[4] By exploring how the questions of fundamentality and fundamentalisation were addressed in the context of the 2022 amendment, the article integrates both positivist and normative approaches to fundamentality, elucidating the normative criteria used to effect changes in a positive source of fundamental (labour) rights.

In terms of academic literature, the Declaration has attracted two main waves. The first focused on the adoption of the Declaration itself and the selection of the specific rights deemed fundamental. This scholarship was dominated by the debate between Philip Alston, on the one hand, and Brian Langille and Francis Maupain, on the other, over the Declaration's significance.[5] Alston cast the Declaration in regressive terms as a radical 'neo-liberal transformation' of the

3 ILO 1998 Declaration on Fundamental Principles and Rights at Work and its Follow-Up, Adopted at the 86th Session of the International Labour Conference (1998) and amended at the 110th Session (2022) at https://www.ilo.org/resource/conference-paper/ilo-1998-declaration-fundamental-principles-and-rights-work-and-its-follow.

4 International Labour Conference (ILC), 'Resolution on the inclusion of a safe and healthy working environment in the ILO's framework of fundamental principles and rights at work' ILC.110/Resolution 1 (16 June 2022) (2022 resolution).

5 Philip Alston, '"Core Labour Standards" and the Transformation of the International Labour Rights Regime' (2004) 15 EJIL 457; Brian Langille, 'Core Labour Rights – The True Story (Reply to Alston)' (2005) 16 EJIL 409; Francis Maupain, 'Revitalization Not Retreat: The Real Potential of the 1998 ILO Declaration for the Universal Protection of Workers' Rights' (2005) 16 EJIL 439; Philip Alston, 'Facing Up to the Complexities of the ILO's Core Labour Standards Agenda' (2005) 16 EJIL 467.

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international labour rights regime.[6] He identified three key points of regression: (i) the shift from the universality of ILO standards to privileging an arbitrary selected 'core'; (ii) the possible de-linkage of standards from those established in ILO Conventions; and (iii) an overall emphasis on voluntarism in their implementation and enforcement.[7] In response, Langille and Maupain defended the merits of the Declaration. They presented it as a 'renewal' of the ILO's normative function in response to an 'external' crisis of relevance, manifested in low ratification rates and non-compliance. In support of their defence, they argued for the normative coherence of the list of selected rights as 'procedural',[8] 'enabling' rights that relate to the 'autonomy of will'.[9]

The 2022 amendment rekindled scholarly interest in the Declaration, prompting a second wave of academic literature, that however remains somewhat rveloped. Trebilcock provided an insightful yet brief account of the amendment's background in the context of broader UN efforts to protect a human right to a clean, healthy, and sustainable environment.[10] Daugareilh discussed the process of its enactment in a broader account focused on the potential for synergies between the ILO and other international organisations to reinforce the protection of health and safety in the workplace.[11] In a slightly more detailed analysis, Politakis explored how the amendment came to being in the context of the debates surrounding the inclusion of health and safety in the workplace into FPRW.[12] Despite this renewed scholarly attention to the Declaration, a systematic account of the reasons and mechanisms – the 'why' and 'how' – behind making the right to a safe and healthy working environment fundamental within the ILO system has yet to be undertaken.

This article aims to contribute to this literature by critically examining the 2022 amendment through the lens of 'fundamentality' and 'fundamentalisation' in at least two principal ways. First, it addresses a notable gap in the emerging literature on the 2022 amendment, which has failed to provide a systematic account of the normative dimension of the amendment. Existing literature has either focused on the synergies between ILO and other international organisations,[13] or made only brief, passing, references to the normative dimension. For instance, Politakis briefly mentions that the account of FPRW as enabling rights 'has lost much of its relevance',[14] but this conclusion is justified merely on the ground that it was not raised as an objection during the proceedings.[15]

6 Alston, 'Core Labour Standards' *ibid*.
7 *ibid*.
8 Langille, n 5 above.
9 Maupain, n 5 above.
10 Anne Trebilcock, '2022 Amendments to the ILO Declaration on Fundamental Principles and Rights at Work' (2023) 62 *International Legal Materials* 605.
11 Isabelle Daugareilh, 'The future of Health and safety at work as a fundamental principle and right – Will it meet ISO and UN Challenges?' in Brian Langille and Anne Trebilcock (eds), *Social Justice and the World of Work: Possible Global Futures* (Oxford: Hart, 2023).
12 George Politakis, 'The recognition of occupational safety and health as a fundamental principle and right at work' (2023) 72 ICLQ 213.
13 Daugareilh, n 11 above.
14 Politakis n 12 above, 227.
15 *ibid*.

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In a recent intervention, Novitz notes the selection of health and safety as addressing a 'problematic omission',[16] but without further elaborating on why it was problematic. This article is the first piece to draw on the 2022 amendment to revisit the debate between Philip Alston, Brian Langille and Francis Maupain regarding the selection criteria for determining the core in the Declaration.[17] Second, the analysis of the 2022 amendment as a case-study of fundamentalisation is relevant to the literature on fundamentalisation as a dynamic process, as well as to international law more generally. This is because, beyond the Declaration's internal use within the ILO, the Declaration has been incorporated into various external instruments. These include bilateral trade and investment agreements,[18] UN human rights instruments (such as the UN Guiding Principles on Business and Human Rights[19]) and international framework agreements and corporate social responsibility codes.[20]

The article is structured as follows. We first begin with a background overview of the 1998 Declaration and the ILO, setting the stage for examining the questions of fundamentalisation and fundamentality in the context of the 1998 Declaration as a starting point. We then proceed with a systematic examination of the 2022 amendment in four stages. First, we trace the procedural construction of the amendment as the outcome of 'tripartite-plus' cumulative interactions of both external and internal actors. The section explores the process, including Covid-19 as a potential procedural accelerator, the actors driving the amendment and their competing views on the inclusion of a safe and healthy working environment among FPRW. Second, we examine the justifications provided for the amendment, proposing a two-fold taxonomy: ie constitutional-textual and rights-based normative justifications. However, the subsequent discussion on the formulation of the amendment highlights the normative salience of the language of ILO Conventions over that used in constitutional documents in the formulation of rights and generally the marked separation between the tasks of justification and formulation. In the final substantive section, we suggest that the implications of the 2022 amendment extend beyond the right to a safe and healthy working environment. Towards this end, we trace an emerging 'amendment formula' (that is, on the rules governing the amendability of the Declaration), which is claimed to lower the normative bar for the inclusion of future rights in the Declaration. We conclude by summarising the main findings and reflecting on the potential for future inclusion of additional rights into the Declaration.

16 Tonia Novitz, *Trade, Labour and Sustainable Development: Leaving No One in the World of Work Behind* (Cheltenham: Edward Elgar, 2025) 108.

17 See n 5 above.

18 See ILO, *Assessment of labour provisions in trade and investment arrangements* (Geneva: ILO, 2016).

19 UN Guiding Principles on Business and Human Rights, Principle 12.

20 For a recent overview of sources, see Julieta Lobato, '25 Years after the Adoption of the ILO 1998 Declaration on Fundamental Principles and Rights at Work: What is New in the Human Rights Turn in Labour Law?' *EJIL:Talk!* 4 July 2023 at https://www.ejiltalk.org/25-years-after-the-adoption-of-the-ilo-1998-declaration-on-fundamental-principles-and-rights-at-work-what-is-new-in-the-human-rights-turn-in-labour-law/ [https://perma.cc/TTH7-DJX3].

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THE ILO AND THE 1998 DECLARATION: BACKGROUND

Compared to other international organisations, the ILO has a distinctive constitutional and institutional structure. Its Constitution (which rather unusually formed part of a Treaty, ie Part XIII of the Treaty of Versailles), adopted in 1919, is the higher law governing its competences, institutional structure, and power allocation and functions.[21] In 1946, the ILO Constitution was amended to provide for a list of rights, through the annexation of the Declaration of Philadelphia (adopted in 1944).[22] The ILO operates through three main organs: the International Labour Conference (ILC), composed of delegations of representatives of Members, consisting of government representatives and representatives of employers and workers; the Governing Body, that is, the executive body of the Organisation consisting of 56 members, of which 28 represent governments, 14 represent employers and 14 represent the workers; and the International Labour Office, its permanent Secretariat (Article 2, Article 3, Article 7).

Against this constitutional and institutional background, the genealogy of the 1998 Declaration can be traced back to the 'trade-labour linkage' debate of the 1990s and the WTO's refusal to adopt a labour rights clause in its Constitution.[23] In this historical context, the fundamentalisation of a set of core principles/rights was viewed as an attempt by the ILO to establish certain shared 'rules of the game',[24] as well as the product of a convergence between the international labour standards and the human rights paradigm.[25]

The Declaration was, formally speaking, a reaffirmation of constitutional obligations placed by the ILO Constitution. However, an account that denies any added normative value to the Declaration would risk being formalistic and misleading. Indeed, the adoption of the Declaration has been described as a third 'constitutional moment' (after the ILO Constitution and 1944 Philadelphia Declaration)[26] and a 'constitutional innovation'.[27] By establishing or at least crystallising explicitly the constitutional duties of Member States regardless of treaty ratification, the Declaration produced a normative effect: it marked a break from the voluntary nature of ratification of treaties in the ILO. It also amended the reporting duties of Member States towards non-ratified Conventions (under Article 19(5)(e) of ILO Constitution) by obliging them to report

21 ILO Constitution (International Labour Organization, Key documents) at https://www.ilo.org/dyn/normlex/en/f?p=NORMLEXPUB:62:0::NO::P62_LIST_ENTRIE_ID, P62_LANG_CODE:2453907,en.

22 *ibid*.

23 See for background Kari Tapiola, *The Teeth of the ILO – The Impact of the 1998 ILO Declaration on Fundamental Principles and Rights at Work* (Geneva: ILO, 2018).

24 Francis Maupain, *The Future of the International Labour Organization in the Global Economy* (Oxford: Hart, 2013) Ch 7.

25 Nicolas Valticos, 'International labour standards and human rights: approaching the year 2000' (1998) 137 *International Labour Review* 135.

26 Brian Langille, '"And the Future is Certain – Give Us Time to Work it Out": Reflections on Labour Rights Fifty Years After the *Universal Declaration* Standards' (1998) 11 *Revue Québécoise de droit international* 137, 141.

27 Maupain, n 5 above, 443-446.

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any changes falling under the scope of non-ratified fundamental Conventions under the 1998 Declaration.

In addition, the Declaration gave substance and form to the values and principles enshrined in the ILO Constitution. It thus engages in the normative task of 'articulat[ing] the fundamental principles and values of the ILO'.[28] Moreover, the Declaration privileged certain rights as fundamental within the normative system of the ILO, which can be viewed as establishing a hierarchy. But even if one does not share the latter view, it is apparent that the Declaration established the fundamental normative salience of certain rights in recognising a 'set of universal principles',[29] reflecting 'moral, political and legal consensus on what constitutes universally recognized labor rights'[30] and 'extract[ing] from Conventions the universally acknowledged essence of the fundamental right'.[31]

Finally, the Declaration holds – and is also treated by ILO institutions as holding – *special* orientating significance for the institutional values, norms and activities of the ILO. Declarations as instruments are a precious and rare commodity for the ILO, typically 'reserved for very significant occasions, when the Organization's fundamental goals or principles are involved'.[32] This special normative status is reflected not only in terms of the reporting duties of states but also in the provision of special ILO activities and technical support exclusive to FPRW. For example, in line with the 1998 Declaration, the ILO produces specific Country Baselines for countries that have not ratified the fundamental Conventions[33] and publishes an annual Global Report on FPRW.[34] These actions align with the view of Jacovleski and others that the 1998 Declaration 'was constituted as an expected standard of performance for all states and was also viewed as a framework that could assist in modernising the structure and operations of the ILO'.[35]

28 Brian Langille, 'Freedom of Association and the Effective Recognition of the Right to Collective Bargaining: A Reflection Upon our Fundamental Commitments' (ILO, 1999) 2 at https://cdi.mecon.gob.ar/bases/docelec/dp3693.pdf [https://perma.cc/E9FT-QF5E].

29 Patrick Macklem, *The Sovereignty of Human Rights* (Oxford: OUP, 2015) 92.

30 Kevin Kolben, 'Labor Rights as Human Rights?' (2010) 50 *Virginia Journal of International Law* 449, 454.

31 Report of the Director-General, 'ILO: Standard setting and globalization' ILC 85th Session (1997) at https://training.itcilo.org/actrav_cdrom1/english/global/law/ilodg.htm [https://perma.cc/AP3D-BRTR].

32 Ana Gomez, 'The Effect of ILO's Declaration on Fundamental Principles and Rights at Work on the Evolution of Legal Policy in Brazil: An Analysis of Freedom of Association' (2009) University of Toronto (thesis) 35.

33 See further ILO, 'Annual Review under the follow-up to the ILO Declaration on Fundamental Principles and Rights at Work' (Country baselines, 14 July 2013) at https://www.ilo.org/resource/other/annual-review-under-follow-ilo-declaration-fundamental-principles-and.

34 Follow-up to the 1998 Declaration, n 3 above, Annex I(3).

35 Velibor Jakovleski, Scott Jerbi and Thomas Biersteker, 'The ILO's Role in Global Governance: Limits and Potential' in Christopher Gironde and Gilles Carbonnier (eds), *The ILO @ 100: Addressing the Past and Future of Work and Social Protection* (Leiden: Brill, 2019) 88.

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THE QUESTIONS OF FUNDAMENTALISATION AND FUNDAMENTALITY IN THE 1998 DECLARATION: IDENTIFYING A STARTING POINT

Let us now turn to the questions of fundamentalisation and fundamentality in the 1998 Declaration. Regarding the former, as Agustí-Panareda observed, the Declaration was 'intelligently drafted to leave open the door to the incorporation of other FPRW in the future'.[36] However, this was the result of the silence of the text rather than any specific construction of an amendment procedure, which in turn granted future amendment drafters significant procedural flexibility.

But with respect to the question of 'fundamentality', the normative exercise is more complicated. While the identification of second-order rules (or status-conditions) of fundamentality in the 1998 Declaration is critical for its consistency and coherence (and thus legitimacy), there is no singular, clear and definitive source from which these rules can be derived. Instead, the process requires critical reconstruction, drawing inferences from various positive sources combined with normative evaluations. Three key sources can be located: (i) the text of the Declaration itself, selecting a specific set of FPRW (and implicitly excluding others) along with narrative statements justifying this selection; (ii) statements from key actors within the 'epistemic community' of the ILO;[37] and (iii) the ILO Constitution, which holds particular relevance for the fundamentalisation question due to the systematic integration of the 1998 Declaration in ILO's legal order.[38]

After these preliminaries, let us now proceed to our main argument. This is that the question of 'fundamentality' in the 1998 Declaration encompasses two key elements: (i) *constitutional anchoring*, referring to the requirement of a link of the right to the ILO Constitution as a necessary but not sufficient condition; and (ii) an additional condition (or threshold) which is subject to diverse formulations.

Constitutional anchoring: A necessary but not sufficient condition of fundamentality

Regarding the first element, the ILO Constitution is posited as a necessary locus for the selected rights. The need for constitutional anchoring extends beyond a purely systematic requirement, which would arise merely from the fact that the 1998 Declaration is an integral part of the ILO legal framework, ultimately

36 Jordi Agustí-Panareda, 'International Axiologies for Social Justice at the International Labour Organization' in Langille and Trebilcock (eds), n 11 above, 60.

37 See Andrea Bianchi, 'Epistemic Communities' in Jean d'Aspremont and Sahib Singh (eds), *Concepts for International Law* (Cheltenham: Edward Elgar 2019).

38 For the role of constitutions in international organisations see Anne Peters, 'Constitutional Theories of International Organisations: Beyond the West' (2021) 20 *Chinese Journal of International Law* 649.

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governed by the ILO Constitution. It explicitly flows by the stated *raison d'etre* of the Declaration. In its preamble, the latter refers to the urgency 'in a situation of growing economic interdependence, to reaffirm the immutable nature of the fundamental principles and rights *embodied in* the Constitution of the Organization and to promote their universal application'.[39] In one of the key reports preceding the adoption of the 1998 Declaration, the Governing Body underlined that the Declaration 'would recognize that the *basic values set out in the Constitution* and the Declaration of Philadelphia give rise to a commitment on the part of Members to strive towards achieving them'.[40] While the constitutional link is subject to diverse formulations of different generality and levels of abstraction, the need of *some* link to the ILO Constitution as offering (at least in formal terms) a positive anchor is clear. This aligns with the view of the Declaration as 'mak[ing] sense of the Constitution',[41] being its 'wisdom tooth' in the sense that it 'was already there but finally pierced through the gum in its maturity',[42] and as 'a recalling to fundamental constitutional ideals and purposes – constitutional duties which exist in virtue of ILO membership'.[43]

In practical terms, all four principles and rights contained in the original 1998 Declaration displayed a constitutional anchoring though formulated at different levels of abstraction. While all are effectively founded on the ILO's Constitution, their constitutional formulation is not always as concise and explicit as in the Declaration. For example, as Maupain notes, the prohibition of forced labour 'is not based on any explicit reference in the Preamble or the Declaration of Philadelphia but is derived from the "values" proclaimed in these texts (in particular dignity and equal opportunity)'.[44] Similarly, a 1997 Governing Body report highlighted that, although forced labour is not explicitly mentioned in the ILO Constitution, it appears to be implicitly prohibited by the values and principles this document upholds. This is especially the case in light of the constitutional provision affirming the universal right of all human beings 'to pursue both their material well-being and their spiritual development in conditions of freedom and dignity, of economic security and equal opportunity'.[45] In this case, the link between equality of opportunity for workers and their freedom of choice (to which forced labour is its manifest violation) was used as the constitutional anchoring of the prohibition of forced labour as a Declaration right.[46]

39 1998 Declaration, n 3 above Preamble (emphasis added).
40 ILO Governing Body, 'Follow-up on the discussion of the Report of the Director-General to the 85th Session of the International Labour Conference' GB.270/3/1 (November 1997), para 7 at https://webapps.ilo.org/public/english/standards/relm/gb/docs/gb270/gb-3-1.htm (emphasis added).
41 Langille, n 5 above, 437.
42 Maupain, n 5 above, 444.
43 Langille, n 28 above, 2.
44 Maupain, n 5 above, 444.
45 ILO Governing Body, n 40 above, para 18; Declaration of Philadelphia, n 22 above, Art II (a).
46 ILO Governing Body, Committee on Legal Issues and International Labour Standards, 'The strengthening of the ILO's supervisory system' GB.267/LILS/5 (November 1996), para 19 at https://webapps.ilo.org/public/english/standards/relm/gb/docs/gb267/lils-5.htm.

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Beyond constitutional anchoring: In search of the additional condition for fundamentality

Constitutional anchoring is a necessary but not sufficient condition. To achieve the threshold of fundamentality, an additional condition (or test) is – explicitly or implicitly – required that is subject to diverse formulations.

The first possible formulation grounds fundamentality to (presumed) *facts*. The exercise is thus presented as one of *discovery* of something existing. This is perfectly captured in the saying that 'fundamental rights are not fundamental because the Declaration says so; the Declaration says that they are fundamental because they are'.[47] Along similar lines, the Declaration recalls that the 'principles and rights have been expressed and developed in the form of specific rights and obligations in Conventions recognized as fundamental both inside and outside the Organization'.[48] Elsewhere there are references to the purpose of recognition as to follow '*consensus* which the international community has reached regarding the special significance of a number of fundamental rights in the present global context, and to express the commitment of its constituents to strengthening their universal application by the ILO'[49] or even an 'informal agreement'.[50] The obvious benefit of this approach is to couch the question of fundamentality as a purely positivist process free of normative evaluations. Pitching the Declaration as purely declaratory, stripped from any constitutive normative effects, is strategically geared to an effort aimed at preserving its legitimacy among ILO constituents by securing the necessary consent of those constituents reluctant to appear as endorsing changes to the normative status quo.

In contrast, a foundational approach identifies certain normative qualities or functions of rights as essential threshold conditions for fundamentality. For example, the Governing Body report in 1997 noted that the debate at the 85th Session of the International Labour Conference confirmed the view that the four sets of rights on which there is agreement are instrumental in securing the conditions for development in situations compatible with *human dignity*'.[51] Elsewhere the core labour rights are described as reflecting 'certain common rules of the game … *without which workers cannot be assured of receiving their fair share of the fruits of economic progress* generated by the liberalization of trade'.[52]

It is in this light that one should approach the debate between Alston, Langille and Maupain on the merits of the 1998 Declaration. In response to Alston's charge that the 'choice of standards to be included in the CLS was not based on the consistent application of any coherent or compelling economic, philo-

47 ILO, 'Consideration of a possible Declaration of principles of the International Labour Organization concerning fundamental rights and its appropriate follow-up mechanism' Report VII, International Labour Conference, 86th Session (June 1998) at https://webapps.ilo.org/public/english/standards/relm/ilc/ilc86/rep-vii.htm.

48 1998 Declaration, n 3 above, Art 1(b).

49 ILO Governing Body, n 40 above, para 6.

50 ILO Governing Body, Committee on Legal Issues and International Labour Standards, n 46 above, para 16.

51 ILO Governing Body, n 40 above, para 19 (emphasis added).

52 Report of the Director-General, n 31 above (emphasis added).

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sophical, or legal criteria',[53] Langille argued that the selected rights share a common nature as being related to 'process'.[54] It is true that, strictly speaking, only freedom of association and collective bargaining are (at least in most part) procedural rights. Langille extended the procedural conception to encompass 'fair contracting', as to cover the selection of forced labour and prohibition of child labour which concern the identity of the parties. His conclusion was that 'these rights are best conceived as a set of restrictions on the rights of the other party to the bargain as to whom it will bargain with, while saying nothing in the abstract about the substantive outcome of any bargain'.[55]

Maupain concurred with Langille in his defence of the selection, while adopting more explicitly the language of 'axiological' and 'functional' coherence to address the fundamentality question. Regarding the former, he traced a common '"Kantian" thread [of "autonomy of will"] running through their diversity'.[56] The normative value of autonomy of will is reflected in the prohibition of forced labour, child labour and non-discrimination while freedom of association and collective bargaining are understood as an 'extrapolation of this autonomy from the individual to the collective level'.[57] His conclusion, which drew on Governing Body documents, was that the core labour rights selection points to the 'fact that the concept of "social justice" so prominently and elusively spelled out in the ILO Constitution cannot be defined so much in terms of a pre-defined product as in terms of fair processes which are themselves inseparable from its proclaimed values of human dignity, freedom and dialogue'.[58] Maupain also introduced a consequential-functional argument, derived not from the intrinsic nature of the right but its relation to the non-selected rights. He argued that all core labour rights have a functional coherence as 'enabling' or 'process' rights since they '"empower" workers with the tools that are necessary for the conquest of other rights'.[59] This approach does not build on a mere derivation from the nature of the right but finds some resonance in the textual reference of the Declaration, which notes that: 'in seeking to maintain the link between social progress and economic growth, the guarantee of fundamental principles and rights at work is of particular significance *in that it enables* the persons concerned to claim freely and on the basis of equality of opportunity their fair share of the wealth which they have helped to generate, and to achieve fully their human potential'.[60]

These accounts defended the exclusion of a right to health and safety from FPRW. They did this on the grounds that it is an 'outcome' right, prompting Langille to conclude, health and safety is an important idea but 'it is not part of this [ie FPRW] important idea',[61] while Maupain claimed that it is not an 'en-

53 Alston, 'Core Labour Standards' n 5 above, 485.
54 Langille, n 5 above, 431.
55 *ibid*.
56 Maupain, n 5 above, 448.
57 *ibid*.
58 *ibid*.
59 *ibid*.
60 1998 Declaration, n 3 above, Preamble (emphasis added).
61 Langille, n 5 above, 431.

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abling right'.[62] This reading of the additional condition as procedural has been influential in academic literature, expressed also by McCrudden and Davies who argued that those FPRW contained in the core 'may be seen as rights to a process, not rights to a particular outcome (however difficult that distinction is to draw in practice)'.[63] It is worth noting on this point that an earlier ILO report drew a rather unclear distinction between 'fundamental' rights understood as those whose 'implementation is considered a priority' and 'fundamental' rights as those having 'fundamental' (or 'vital') importance for workers (including 'certain occupational safety and health standards, without which there could be a heavy loss of human lives)'.[64]

We will return to this debate later, but suffice to note the collapse in many accounts of distinctions such as procedural/substantive, means/outcome and enabling/non-enabling distinctions. Setting aside the validity and normative relevance of these distinctions to the question of fundamentality, it is clear that what is termed as a non-procedural right (such as health and safety) can be 'enabling' (as, for example, the right to education); and also that a 'procedural' right may also entail obligations of result, a possibility recognised by Maupain who notes that Declaration rights do not 'involve only obligations of means rather than of result', as for example with regards to 'the actual conclusion and implementation of collective bargaining agreements [which] are results'.[65]

FUNDAMENTALISING THE RIGHT TO A SAFE AND HEALTHY WORKING ENVIRONMENT: A CRITICAL EXAMINATION OF THE PROCESS

This section critically examines the fundamentalisation of the right to a safe and healthy working environment within the 1998 Declaration. Viewed retrospectively, the 2022 amendment is the cumulative product of multiple, largely sequential, interactions between external (Global Commission on the Future of Work) and internal (mainly Governing Body and International Labour Conference) actors.

Following a brief overview of the process, we identify three principal procedural findings. First, we trace the critical role of the Global Commission on the Future of Work (Global Commission) – an external actor – as an amendment trigger and condition for its successful internalisation by ILO's institutions. Second, we locate the key role of the Office as a process entrepreneur. Third, we highlight the productive function of informality in shifting from contestation to consensus and the role of the Covid-19 pandemic as a potential procedural and consensus accelerator.

62 Maupain, n 5 above, 448-449.
63 Christopher McCrudden and A. C. L. Davies, 'A Perspective on Trade and Labour Rights' (2000) *Journal of International Economic Law* 43, 51.
64 Report of the Director-General, n 31 above.
65 Maupain, n 5 above, 448 fn 44. The author continues that the existence of obligations of results is even more the case 'with the rights to freedom from forced labour, employment discrimination, and the worst forms of child labour'.

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Overview

In its flagship report for the 2019 Centenary Conference, the Global Commission recommended the recognition of safety and health as a FPRW.[66] While the 2019 International Labour Conference failed to make such an amendment in the Centenary Declaration, which instead merely stated that 'safe and healthy working conditions are fundamental to decent work',[67] it adopted an accompanying resolution that crucially contained an action-based clause requesting the Governing Body to 'consider, as soon as possible, proposals for including safe and healthy working conditions in the ILO's framework of fundamental principles and rights at work'.[68] This triggered the formal amendment process by delegating the task to the Governing Body. The latter became the principal actor (and mechanism) for advancing and negotiating the 2022 amendment, including by progressively narrowing the range of contentious issues. It ultimately succeeded in building consensus on a draft amendment resolution, with alternative formulations on disputed issues in brackets placed for consideration at the 2022 International Labour Conference. During the conference, all substantive work was undertaken by the General Affairs Committee. The latter considered 14 amendments in only four substantive sessions and successfully resolved all pending outstanding issues in the formulation of the amendment (terminology, ILO Conventions, saving clause). The formal adoption of the amendment by consensus in the plenary was a celebratory and self-congratulatory occasion without any substantive debate.

Taking the 'external' track: The critical role of the Global Commission on the Future of Work Recommendation as an amendment trigger

Fundamentalisation requires an amendment trigger. For this, a notable processual feature concerns the critical role played by the external ad hoc Global Commission on the Future of Work, which operates outside of the ILO's tripartite framework, in initiating the amendment. The establishment of such bodies is far from unprecedented for the ILO. For example, the establishment of the World Commission on the Social Dimension of Globalisation[69] preceded the adoption of the 2008 Declaration on Social Justice for a Fair Globalisation. Trebilcock rightly locates the key role of the Global Commission in initiating the amendment by identifying its recommendations as the 'proximate genesis' of the 2022 amendment.[70]

66 Global Commission on the Future of Work, *Work for a Brighter Future* (Geneva: ILO, 2019) 39.
67 ILO, 'Centenary Declaration for the Future of Work' (26 June 2019), II(D) at https://www.ilo.org/resource/ilc/108/ilo-centenary-declaration-future-work.
68 Resolution on the ILO Centenary Declaration for the Future of Work (adopted on 21 June 2019) para 1 at https://www.ilo.org/resource/ilc/108/resolution-ilo-centenary-declaration-future-work.
69 See World Commission on the Social Dimension of Globalization, *A Fair Globalization: Creating Opportunities for All* (Geneva: ILO, 2004).
70 Trebilcock, n 10 above, 605.

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The Global Commission's involvement in the 2022 amendment also draws obvious parallels with the common use of 'expert'[71] or 'popular-democratic' bodies (such as citizens' assemblies)[72] used in domestic constitutional amendment processes. However, unlike equivalent *fora* that operate at national levels, the Global Commission did not have a specific amendment mandate. Established by the Director-General as part of the Future of Work initiative,[73] its mandate was broadly formulated as to provide 'guidance and recommendations' for achieving the ILO's mandate as the organisation moves into its second century.[74] It became an amendment actor only ex post, by virtue of the *content* of its recommendation. The latter is contained in a relatively camouflaged and underwhelming section for a major amendment proposal termed 'Universal Labour Guarantee'[75] featuring no substantive consideration of other amendment possibilities or a detailed analysis of its implications.

Given the key role of the Global Commission in the initiation of the amendment, its modus operandi gains significance for the overall description of the fundamentalisation process. The Global Commission did not neatly fit either side of the 'technocratic'/'participatory' design divide. Its diverse membership extended beyond technocrats as commonly conceived. It comprised of 27 high-profile individuals drawn from a broad range of regional and professional backgrounds (political, diplomatic, civil society, academic, business, trade union), including the UN Secretary-General's Envoy on Youth and co-chaired by two prominent politicians from the Global North and South.[76] Deliberately distanced from the ILO's formal tripartism, this composition aligned with the DG's call for the initiative to extend beyond tripartism to engage the academic community, as well as all other relevant and interested stakeholders.[77]

The inclusion of a wide range of interests and backgrounds in the Global Commission heightened its deliberative potential. However, such inclusiveness cannot be stretched to the point of characterising the committee as based on a democratic-participatory input in the direct sense of bottom-up representation. This does not only stem from the fact that each Committee member was acting in their personal capacity. It is also because, contrary to the bottom-up approach originally envisaged by the Director-General where national dialogues were supposed to 'feed into' the work of the Commission,[78] no such link can be detected between the synthesis report of national dialogues and the 2022 amendment proposal by the Commission besides an identified shared common

71 See relevant sections across contributions in Xenophon Contiades (ed), *Engineering Constitutional Change* (London: Routledge, 2013).
72 Xenophon Contiades and Alkmene Fotiadou (eds), *Participatory Constitutional Change: The People as Amenders of the Constitution* (London: Routledge, 2016).
73 See Vicente Silva, 'The ILO and the Future of Work: The Politics of Global Labour Policy' (2021) 22 *Global Social Policy* 341.
74 ILO, *Inception Report for the Global Commission on the Future of Work* (Geneva: ILO, 2017) v.
75 Global Commission on the Future of Work, n 66 above, 38-39.
76 The Prime Minister of Sweden, Mr Stefan Löfven and the President of South Africa, Mr Cyril Ramaphosa.
77 Report of the Director-General, *The future of work centenary initiative* ILC.104/DG/I 2 (ILC 104th Session, 2015).
78 *ibid*, iii (Preface by Guy Ryder).

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theme on the value of creating healthier workplaces.[79] This might be explained by the fact that, as Silva notes, national dialogues 'indicated that national contexts were so heterogeneous that there was hardly a consensual position on the key challenges that were to be addressed'.[80]

So what was the role and function of the Global Commission in the overall amendment process? To answer this question, it is pertinent to note that in 2017 (the exact year the Global Commission initiated its work, yet with no indications that an amendment with regards to health and safety would be recommended), a proposal by EU Member States to explore 'the suitability and feasibility of integrating the right to safe and healthy working conditions' into the FPRW[81] was rejected during the seemingly more apposite recurrent discussions on the 1998 Declaration. It thus seems that the Global Commission's principal contribution lies in its agenda-setting power[82] or, otherwise, *agenda mainstreaming*.

Yet such power did not operate in a vacuum. The Commission relied on the means granted by the Director-General, endowing its report with a privileged status by presenting it as a 'key document' for the Centenary discussion in the 2019 International Labour Conference geared towards producing a landmark Centenary Declaration.[83] The fact that the amendment did not materialise in the Centenary Declaration as initially proposed should not detract from the significance of the recommendation of the Global Commission. The 'neutral' and 'external' source of the proposal, that is outside of the ILO's constituency, could have significantly enhanced its legitimacy. In turn this was crucial for overriding the veto of a similar proposal submitted internally through the standard ILO procedures. In other words, the proposal's 'externalisation' through the Global Commission's report is arguably an important 'external jolt'[84] that acted as a productive condition for its successful internalisation within the ILO.

This point can attract at least two critiques. First, it is possible to invoke the fact of the non-implementation of the amendment in the Centenary Declaration in order to caution against overstating the importance of the Commission. However, such an argument would miss the critical role that the Global Commission's recommendation played in enabling the extraction by the worker group of the compromise that secured the position of the amendment on the

79 *Synthesis Report of the National Dialogues on the Future of Work* (ILO, Report, 4 December 2017) 15-16 at https://www.ilo.org/publications/synthesis-report-national-dialogues-future-work.

80 Silva, n 73 above, 347.

81 ILC, Sixth item on the agenda: A recurrent discussion on the strategic objective of fundamental principles and rights at work, under the follow-up to the ILO Declaration on Social Justice for a Fair Globalization, 2008 'Reports of the Committee for Fundamental Principles and Rights at Work: Summary of proceedings' Provisional Record No. 11-2(Rev.) 106th Session (15 June 2017) para 331 at https://www.ilo.org/resource/record-proceedings/ilc/106/reports-committee-fundamental-principles-and-rights-work-summary.

82 On agenda-setting power see Xu Yi-chong and Patrick Weller, *The Working World of International Organizations: Authority, Capacity, Legitimacy* (Oxford: OUP, 2018) Ch 5.

83 Report of the Director-General, n 77 above, 3.

84 For the use of this term, see Huw Thomas and Mark Anner, 'Dissensus and Deadlock in the Evolution of Labour Governance: Global Supply Chains and the International Labour Organization (ILO)' (2023) 184 *Journal of Business Ethics* 33, 36.

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agenda of Governing Body. Second, a different criticism would challenge our thesis as hypothetical. Granted, our thesis regarding the key role of the Global Commission admits a degree of speculation. We cannot be definitively certain that an amendment would not have occurred without the recommendation by the Global Commission. However, the fact that the 2017 amendment proposal submitted by the EU Member States within internal ILO processes was stopped in its tracks provides some ground for entertaining the hypothesis that the Global Commission had an important (agenda-setting role) in the *initiation* of the 2022 amendment (which is a prerequisite for any amendment).

Filling the gaps: The Office as a major process entrepreneur

Another notable procedural feature of fundamentalisation concerns the specific institutional dynamics over the construction of the process to be followed. As previously discussed, the 1998 Declaration did not prescribe any formal specific rules regarding the amendment process.[85] This allowed considerable flexibility in terms of timing and process.

In full vindication of its depiction as the 'fourth key player in the institution',[86] the Office acted as a major process entrepreneur. Fully capitalising on the 'as soon as possible' clause of the Centenary resolution, it proposed in the Governing Body's 337th session (October-November 2019) a fairly short two-year 'procedural roadmap', comprising only three Governing Body sessions before its final consideration by the International Labour Conference.[87] The adopted roadmap envisaged substantive questions resulting in the identification of possible building blocks, followed by the consideration of 'process-related questions' and very importantly 'possible forms of the decision of the Conference'.[88] The Governing Body faithfully adhered to this road-map in terms of duration, with only a one-year adjustment due to the cancellation of the 338th session and the reduced agenda of the 340th session because of the Covid-19 pandemic. In addition to its significant role in the construction of the process, the Office also exercised a clear steering role in advancing the amendment. It presented important background documents that outlined possible alternatives and often

85 The 1998 Declaration only refers to a Global Report that 'will serve to inform the recurrent discussion at the Conference on the needs of the Members, the ILO action undertaken, and the results achieved in the promotion of the fundamental principles and rights at work': n 3 above, Annex Follow-Up to the Declaration, I(3).

86 Marieke Louis, 'Who Decides? Representation and Decision-Making at the International Labour Organization' in Gironde and Carbonnier (eds), n 35 above, 45.

87 See Governing Body, 'Follow-up to the resolution on the ILO Centenary Declaration for the Future of Work: Proposals for including safe and healthy working conditions in the ILO's framework of fundamental principles and rights at work' Third item on the agenda, 337th Session GB.337/INS/3/2 (24 October-7 November 2019) at https://www.ilo.org/sites/default/files/wcmsp5/groups/public/%40ed_norm/%40relconf/documents/meetingdocument/wcms_723206.pdf. These were the 338th, 340th and 341st sessions (planned for March 2020, November 2020 and March 2021) respectively before the 110th ILC session in June 2021.

88 *ibid*, 6.

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implicitly advocated specific substantive positions, such as in terms of favouring an amendment to the 1998 Declaration over a new stand-alone Declaration.[89]

From contestation to consensus: The productive function of informality and Covid-19 as a potential accelerator

The 2022 amendment was achieved despite significant contestation, primarily from the employer group. How did contestation turn into consensus? This outcome can be seen as the product of an incremental advance of the worker position, driven and supported by the Office and a majority of states, against sustained contestation by the employer group. In the ILO's context, antagonism assumes a very structured and to an extent simpler form as tripartism. Being its foundational feature and the 'very backbone'[90] of its decision-making process, tripartism is centred on negotiations among its tripartite constituency (ie governments, employer and worker representatives from its member states) and cuts across most of its institutions (most notably the Governing Body and International Labour Conference).

In the history of the 2022 amendment, the employer group was the main 'braking' actor consistently challenging the amendment. The nature of this contestation took on different forms, as its position was incrementally retreating. At first, it successfully blocked the amendment from the Centenary Declaration. The initial amending draft of the Centenary Declaration, which stated in unequivocal terms that 'occupational safety and health is a fundamental principle and right at work in addition to those specified in the ILO Declaration on Fundamental Principles and Rights at Work',[91] was diluted in a 'more ambiguous, less bold, vaguer and less constraining phrase',[92] namely that it is 'fundamental to decent work'.[93] The 2019 International Labour Conference was the venue for a visible contest between employers and employees,[94] leading to the 'dismantling of several ideas from the ILO Office's human-centred framework endorsed by workers'.[95] Employers sought to drive a wedge between the report of the Global Commission and the Centenary Declaration, insisting that the latter 'should not be limited to a cut and paste' of the former 'but should be based on the issues and aspirations of the constituents to ensure their full ownership'.[96]

However, the employers' group concession in the form of a clause asking the Governing Body to 'consider, as soon as possible, proposals for including

89 See discussion below in the section headed 'Justifying the amendment as a form of inclusion'.
90 William Simpson, 'The ILO and Tripartism: Some Reflections' (1994) 117 *Monthly Labor Review* 40, 41.
91 Draft II.C, quoted in Daugareilh, n 11 above, 295.
92 *ibid*.
93 ILO, 'Centenary Declaration for the Future of Work', n 67 above, II(D).
94 Silva, n 73 above, 343.
95 *ibid*.
96 ILO, 'Report of the Committee of the Whole: Summary of proceedings' Fourth item on the agenda: ILO Centenary outcome document, Provisional Record no. 6B(Rev.) ILC108-PR6B(Rev.)-RELME-190712-2-En.docx, 108th Session (25 June 2019) para 23 at https://www.ilo.org/resource/record-proceedings/ilc/108/report-committee-whole-summary-proceedings.

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safe and healthy working conditions in the ILO's framework of fundamental principles and rights at work',[97] proved critical. It kept the inclusion of health and safety in the FPRW on the agenda and provided a mandate for the Office, favourably pre-disposed, to drive forward the amendment. When the process was transferred to the Governing Body, employers attempted to frustrate it by using the procedural delay tactic of procedural contestation[98] on the grounds that the discussion was 'premature'.[99]

It is hard to pinpoint a specific moment when consensus on the desirability of the amendment in principle was reached. However, it is pertinent that during the 343rd session of the Governing Body, the Director-General's representative 'highlighted the unanimity among Governing Body members on the principle of including safety and health as a fundamental right; the only disagreement lay [sic] in how to do so and the possible implications'.[100] From then on, employer contestation shifted to the content of the amendment. The employers' group also sought to include a 'saving clause' aimed at shielding the effect of the amendment on trade and investment agreements.[101]

Disagreements during the 2022 International Labour Conference were resolved through 'consensus', reflecting the long-standing decision-making culture of the ILO. When support for an amendment was deemed insufficient by the Chair of the General Affairs Committee, the drafters withdrew it in the spirit of compromise. The only exception occurred in the context of the 'working environment' formulation of the amendment where some countries argued that, despite the majority of delegates supporting it, 'consensus had not yet been achieved'.[102] This claim was successfully contested on the grounds that consensus does not require unanimity but large majority.[103] Notably, no roll-call votes took place, either at the General Affairs Committee or the International Labour Conference plenary.

On this point, it is important to highlight two key factors that were instrumental in transforming significant disagreement and contestation into consensus. The first relates to the productive function of informal inter-sessional consultations among tripartite constituents. The tripartite structure and operation of the ILO create an environment that facilitates such type of resolution of disagreements. Since most of its institutions (including International Labour Conference and Governing Body) are tripartite, the two groups (employers and

97 Resolution on the ILO Centenary Declaration for the Future of Work n 68 above, para 1.

98 On procedural contestation see Thomas and Anner, n 84 above.

99 ILO, Governing Body, 'Minutes of the Institutional Section' GB.341/INS/PV, 341st Session (March 2021), para 165 at https://www.ilo.org/resource/record-proceedings/gb/341/minutes-institutional-section.

100 ILO, Governing Body, 'Minutes of the Institutional Section' GB.343/INS/PV, 343rd session (November 2021), para 208 at https://www.ilo.org/resource/record-proceedings/gb/343/minutes-institutional-section-ins.

101 See Politakis, n 12 above, 226.

102 ILC, 'Third report of the General Affairs Committee' Summary of proceedings concerning the draft resolution to amend the ILO Declaration on Fundamental Principles and Rights at Work, 1998 ILC.110/Record No.1D, 110th Session (17 June 2022), para 127 at https://www.ilo.org/sites/default/files/wcmsp5/groups/public/%40ed_norm/%40relconf/documents/meetingdocument/wcms_848804.pdf.

103 *ibid* (Worker Vice-Chairperson).

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workers) often make 'informal agreements' behind closed doors[104] while presenting a 'united front' in public which then becomes recorded in the proceedings.[105] Tripartism cuts across Governing Body and the ILO, making employer and employee groups key actors behind the formal institutional triad (Global Commission, Governing Body and International Labour Conference). Informal negotiations were an in-built design feature in the agreed original procedural map (envisaged by the Governing Body in 2019), which included 'intersessional consultations, as and when appropriate'.[106] To resolve outstanding disagreements before the 2022 International Labour Conference, the Governing Body decided to request from the Office to organise informal consultations.[107] This led to two rounds of informal tripartite consultations in April 2022 to fine-tune the draft resolution and explore possible consensus-driven solutions to unresolved matters in advance of the International Labour Conference.[108]

The second consensus factor is the potentially positive role of the Covid-19 pandemic as an 'external shock'.[109] To be sure, it should be noted that the ILO's global call to action for a human-centred recovery from the Covid-19 crisis did not draw any link between the pandemic and a possible amendment to the 1998 Declaration and simply followed the Centenary Declaration by merely 'recognizing that safe and healthy working conditions are fundamental to decent work'.[110] However, the preamble to the 2022 amendment posited the epistemological significance of the Covid-19 pandemic as 'compellingly demonstrating' the vital importance of health and safety in the workplace.[111]

So, what role did Covid-19 play? From the outset, it is important to recall, as Politakis rightly observes, that the decision to include health and safety in the workplace predates the pandemic and 'the holding of the Conference discussion amidst a global sanitary crisis was simply coincidental'.[112] Therefore, the Covid-19 pandemic, as a later event, should not overshadow the significance of the breakthrough in agenda-setting that occurred in 2019. At the same time, the role of the pandemic as a potential *accelerator* should equally not be

104 Claire La Hovary, 'A challenging ménage à trois? Tripartism in the international labour organisation' (2015) 12 *International Organizations Law Review* 204, 213.

105 *ibid*.

106 Governing Body, n 87 above, para 22.

107 Governing Body, 'Minutes of the Institutional Section' GB.344/INS/PV 344th Session (7 June 2022), para 243 at https://www.ilo.org/resource/record-proceedings/gb/344/minutes-institutional-section.

108 ILC, 'Inclusion of safe and healthy working conditions in the ILO's framework of fundamental principles and rights at work' Report VII ILC.110/VII, 110th Session (5 May 2022), para 16 at https://www.ilo.org/resource/conference-paper/ilc/110/inclusion-safe-and-healthy-working-conditions-ilo%E2%80%99s-framework-fundamental.

109 On the Covid-19 crisis and crises more broadly and constitutional amendment see Maria Kotsoni, 'Crises as Drivers of Change of Fundamental Social Rights in Europe' (*European Yearbook of Constitutional Law* forthcoming, on file with the authors); Arianna Vedaschi and Chiara Graziani, 'Post-Pandemic Constitutionalism: Covid-19 as a Game-Changer for "Common Principles"' (2023) 44 *University of Pennsylvania Journal of International Law* 815.

110 ILO, *Global call to action for a human-centred recovery from the COVID-19 crisis that is inclusive, sustainable and resilient* (Geneva: ILO, 2021) 7.

111 2022 Resolution, n 4 above Preamble.

112 Politakis, n 12 above, 225 (emphasis added).

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underestimated. The pandemic seemingly created a very favourable context for at least ensuring that the discussion on the amendment remained on the agenda. As noted by a Governing Body document prepared in 2021, there was a broad agreement for discussing the amendment 'having regard to both the Centenary Declaration and its accompanying resolution and the experience arising from the impact of the COVID-19 pandemic on the world of work'.[113] In other words, the pandemic provided 'further impetus' for considering the amendment, as noted by constituents and academics.[114] In addition, the pandemic can also be regarded as acting as a potential consensus accelerator in that it made fundamental objections to the desirability of the amendment – rather than to its specific details – less popular and more difficult for employers and governments to defend. For example, in March 2021, the employer group was still attempting to push back against the acceleration caused by the Covid-19 pandemic. For this pushback, it invoked the 'complexity' and 'significant implications' of the roadmap for the amendment and challenged the conclusion of the Office that a consensus had been reached.[115]

It is thus plausible that the development of the Covid-19 pandemic acted as an accelerator in this shift from contestation to consensus. Ultimately, the General Affairs Committee discussion in the 2022 International Labour Conference is replete with references,[116] where constituents refer to the Covid-19 pandemic as highlighting the 'urgency'[117] and importance of the amendment.[118]

To sum up, the overall amendment process involved and drew on both external and internal processes occurring, to a large part, sequentially and cumulatively. The parameters of tripartism, informal negotiations and consensus culture, alongside the Covid-19 pandemic as a potential procedural and consensus accelerator, are essential in structuring a formally under-determined amendment process alongside the crucial agenda-setting role of the Global Commission.

113 ILO Governing Body, 'Proposals for including safe and healthy working conditions in the ILO's framework of fundamental principles and rights at work' GB.343/INS/6, 343rd Session (15 October 2021), para 4 at https://www.ilo.org/resource/gb/343/proposals-including-safe-and-healthy-working-conditions-ilo%E2%80%99s-framework. For the pandemic as a potential 'impetus' for the inclusion of safe and healthy working conditions in the 1998 Declaration, see also Anne Trebilcock, 'Governance Challenges and Opportunities for the International Labour Organization in the Wake of the COVID-19 Pandemic'(2021) 18 *International Organizations Law Review* 370.

114 See among others ILC, 'Third report of the General Affairs Committee' n 102 above, para 50, UK representative.

115 ILO, Governing Body, 'Minutes of the Institutional Section' 341st Session, n 99 above, para 163.

116 ILC, 'Third report of the General Affairs Committee' n 102 above. There are 15 references to the Covid-19 pandemic in the report.

117 See among others, statements by the representative of the US Government, *ibid*, 8 and ILO's Secretary-General (Deputy Director-General for Policy), *ibid*, 4.

118 See among others, statements by the Workers' Group Vice-Chairperson, *ibid*, 5 and the representative of the Barbados Government, *ibid*, 13.

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ADDRESSING THE QUESTION OF FUNDAMENTALITY: THE JUSTIFICATION OF THE AMENDMENT

We now turn to the justification for the amendment. How was the *fundamentality* of the right to a safe and healthy working environment established? This exercise swiftly exposed a major normative contrast. On the one hand, justifying the importance of health and safety in the workplace looks like 'forcing an open door'.[119] Given the 'vital importance of occupational safety and health' as stated in the amendment resolution's preamble,[120] health and safety in the workplace exerts such a strong intuitive normative appeal that its recognition as fundamental appears as low-hanging fruit. On the other hand, it raises the question of how the original drafters of the 1998 Declaration missed such an open door. In fact, this omission has attracted strong academic criticism.[121] But Langille and Maupain, as previously discussed, defended the exclusion of health and safety in the workplace by arguing that it does not belong to the 'core' which coheres around 'process-related',[122] 'enabling rights'[123] that relate to the safeguarding of the 'autonomy of will'.[124]

In turn, this contrast also revealed a significant discrepancy between the ILO position, which tended to conceive health and safety more as an objective rather than as a right on its own,[125] and international human rights standards and pronouncements, which generally regard it as a human right on its own account. For example, the International Covenant on Economic, Social and Cultural Rights (ICESCR) recognised a right to 'safe and healthy working conditions' under Article 7 (right to just and favourable working conditions), which aligns with the World Congress of Health and Safety Seoul and Istanbul Declarations[126] recalling in their preambles that 'that the right to a safe and healthy working environment should be recognized as a fundamental human right'.[127]

As put by Hilgert: 'health and safety has been marginalized as a labor policy topic and is often extracted entirely from the question of workers' rights. The two are too often treated as separate and distinct legal topics when in reality, there is interconnectedness and overlap in certain key areas'.[128]

Against this background, identifying the relevant normative justifications for the 2022 amendment is an essential (especially for future amendments) yet complex undertaking for a variety of reasons. Unlike an ex post academic 'ratio-

119 Politakis n 12 above, 217.
120 2022 Resolution, n 4 above, Preamble.
121 Alston, 'Core Labour Standards' n 5 above 457; Lance Compa, 'The Promise and Perils of "Core" Labour Rights in Global Trade and Investment' (2002) 9 *International Union Rights* 20, 20 and Larry DiMatteo and others, 'The Doha Declaration and Beyond: Giving a Voice to Non-Trade Concerns Within the WTO Trade Regime' (2003) 36 *Vanderbilt Journal of Transnational Law* 95, 124. For a defense of the exclusion see Maupain, n 5 above and Langille, n 5 above.
122 Maupain, *ibid*.
123 Langille, n 5 above.
124 Maupain, n 5 above, 448.
125 Jeffrey Hilgert, 'The Future of Workplace Health and Safety as a Fundamental Human Right' (2013) 34 Comp Lab L & Pol'y J 715.
126 These Declarations were adopted by the World Congress on Safety and Health at Work in 2008 and 2011 respectively.
127 *ibid*.
128 Hilgert, n 125 above, 719-720.

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nalisation',[129] it requires interrogating the actual *opinio juris* of relevant actors (as to why a right is fundamental). This task is further complicated by the fact that only the background documents prepared by the Office provide a detailed set of normative justifications. Indeed, the preamble of the amendment resolution does not say much about its normative justifications. It only refers to the 'vital importance' of health and safety in the workplace and to the Centenary Declaration's reference to safe and healthy working conditions as 'fundamental to decent work'. The same applies to statements from other relevant actors. Moreover, the justificatory exercise is often couched in descriptive terms, as an act of discovering something that already exists. This aligns with the view of the 1998 Declaration as declarative, rather than constitutive in as much as 'fundamental rights are not fundamental because the Declaration says so; the Declaration says that they are fundamental because they are'.[130] In turn this lends a descriptive-positivist twist to the justificatory undertaking, tied to existing ILO and non-ILO legal sources.

After these preliminaries, we identify two distinct (but overlapping and internally diverse) sets of normative justifications for the question of fundamentality: (i) *constitutional-textual*, corresponding to the constitutional anchoring (link) discussed above and (ii) *rights-based*. Each is discussed in turn before considering the justification of the amendment (over a stand-alone Declaration) as the preferred form of fundamentalisation.

Constitutional-textual normative justifications: The static and dynamic variants of the constitutional anchoring

The constitutional-textual set of normative justifications draws on the constitutional origin[131] of health and safety in the ILO Constitution and Declaration of Philadelphia as to make the constitutional anchoring (link). It encompasses two distinct variants thereof, distinguished by the *generality* of the constitutional sources used.

The first looks for the presence of express textual references to health and safety issues in constitutional documents. This was clearly adopted by the Office when drawing attention in the justification of the amendment to the fact that the ILO Constitution recognises 'the protection of the worker against sickness, disease and injury arising out of his employment' as a fundamental element of social justice.[132] It then emphasised that the Declaration of Philadelphia lists among the ILO's 'solemn obligation[s]' that of the development of programmes to achieve 'adequate protection for the life and health of workers in all occupations'.[133] The Declaration of Philadelphia is interpreted as 'taking this

129 See Alston, 'Core Labour Standards' n 5 above, Langille, n 5 above and Maupain, n 5 above.
130 ILO, 'Consideration of a possible Declaration of principles' n 47 above.
131 See various references to the constitution in Governing Body, n 87 above.
132 *ibid*, para 5. The clause is contained in the ILO Constitution, n 21 above, Preamble.
133 Declaration of Philadelphia, n 22 above, III (g).

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one step further',[134] a statement that signals an understanding of constitutional evolution.

Interestingly, the discussions on the 2022 amendment did not involve a systematic engagement with its different formulations and the implications of their differences in various constitutional documents as a problem. The mere presence of *some* express references to matters pertaining to health and safety issues was deemed sufficient to establish the constitutional anchoring. This variant aligns with a broader normative reading of the 1998 Declaration as containing rights that are 'embodied in the ILO Constitution and the Declaration of Philadelphia' which 'explicitly reference the protection of children, equality of treatment as well as freedom of association and collective bargaining'.[135]

One of the appealing normative virtues of this approach may be its clarity, owing to its focus on the text. However, it may face criticism for displaying two major shortcomings. The most obvious is its inability to account for the inclusion of the prohibition of forced labour in the 1998 Declaration, which is absent as such from constitutional documents: there is only a broader freedom-related reference to the right of all human beings to 'pursue both their material well-being and their spiritual development in conditions of *freedom* and dignity, of economic security and equal opportunity'.[136] More importantly, an exclusive reliance on this type of normative justification carries the risk of closing the constitutional space for the Declaration. This is because it precludes a dynamic interpretation of the ILO Constitution and the Declaration of Philadelphia which in turn risks hindering the potential of the 'updatability'[137] of the 1998 Declaration. This makes the approach *static*.

The second variant maintains the constitutional-textual link but anchors health and safety in the workplace to open-ended constitutional principles, instead of express constitutional references. It exploits what constitutional scholars refer to as 'majestic generalities'[138] contained in the ILO Constitution or in what Agustí-Panareda has termed the 'axiological field'[139] of the ILO. Under this approach, the right to health and safety is considered relevant to the fundamental principle of the ILO Constitution that labour is not a commodity.[140] Since 'these instruments underscore the fundamental importance of safe and healthy working conditions for the principle that labour is not a commodity',[141] the new right allows workers to 'claim freely and on the basis of equality of opportunity, their fair share of the wealth which they have helped to

134 ILO, Governing Body, 'Follow-up to the resolution on the ILO Centenary Declaration for the Future of Work Proposals for including safe and healthy working conditions in the ILO's framework of fundamental principles and rights at work', GB.341/INS/6 341st session (8 February 2021), para 9 at https://www.ilo.org/resource/gb/341/follow-resolution-ilo-centenary-declaration-future-work-proposals-including.

135 *ibid*, para 5.

136 ILO Constitution, n 21 above, Preamble, II(a).

137 Agustí-Panareda, n 36 above, 59-60.

138 William Rehnquist, 'The Notion of a Living Constitution' (1976) 54 *Texas Law Review* 693, 694 (discussing the US Constitution).

139 Agustí-Panareda, n 36 above.

140 ILO, Governing Body, 341st session, n 134 above, para 4.

141 *ibid*, para 9.

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generate, and to achieve fully their human potential'.[142] This variant opens up the potential space of recognising fundamentality to more rights, in contrast to the static variant. It can also easily justify the prohibition of forced/compulsory labour contained in the 1998 Declaration as one that flows from the values and principles expressed in the constitutional texts.[143]

The constitutional-textual set of normative justifications is open to appraisal from different perspectives. To begin with, both variants can be seen as striving to ensure that the amendment is an 'elaboration' of – and consistent with – the meaning of the ILO Constitution. From the standpoint of international law, they can be understood as an attempt to balance the dual 'contractual' and 'constitutional' functions of constitutions of international law organisations[144] and to navigate the paradox identified by Arato in constitutional interpretation in international organisations, namely between the need for a '*flexible* approach to their functions in a changing legal and political environment'[145] and 'the countervailing pressure to stick to the bargain struck'.[146] By anchoring fundamentality to original constitutional documents, it is grounded in the 'original bargain' and is therefore congruent with a voluntarist and consent-based legitimacy lens. This is significant, particularly in light of the Declaration's legal nature as declaring a duty for all States to 'respect, promote and realize, in good faith *and in accordance with the Constitution*, the principles concerning the fundamental right'[147] by virtue of membership and regardless of ratification of relevant Conventions. At the same time, however, the dynamic variant of constitutional anchoring of fundamentality allows for the higher adaptability and updatability of the 1998 Declaration, consistent with the turning of international agreements from 'static contracts' to 'living constitutions'.[148]

Rights-based normative justifications and normative entanglement with external sources: Recognition, fundamentality, functions

The second set of normative justifications is rights-based. It focuses on the nature, significance and functional properties of the right. The justificatory process comprises three main steps: (1) recognition ('nature as human rights');[149]

142 1998 Declaration, n 3 above, fifth preambular paragraph reference to Declaration of Philadelphia, n 22 above, III(d): 'policies in regard to wages and earnings, hours and other conditions of work calculated to ensure a just share of the fruits of progress to all, and a minimum living wage to all employed and in need of such protection'. See further Keith Ewing and John Hendy, '"A Just Share of the Fruits of Progress": What Does It Mean?' in Langille and Trebilcock (eds), n 11 above and Ioannis Katsaroumpas, 'A Right Against Extreme Wage Inequality: A Social Justice Modernisation of International Labour Law?' (2021) 32 *King's Law Journal* 260.

143 ILO, Governing Body, 341st session, n 134 above, para 5.

144 Tim Clark, 'The Teleological Turn in the Law of International Organisations' (2021) 70 ICLQ 533.

145 Julian Arato, 'Treaty Interpretation and Constitutional Transformation: Informal Change in International Organizations' (2013) 38 Yale J Int'l L 289, 291-292.

146 *ibid*, 292.

147 1998 Declaration Art 2 (emphasis added).

148 Jose Alvarez, *International Organizations as Law-Makers* (Oxford: OUP, 2006) 81.

149 ILO, Governing Body, 341st session, n 134 above, para 4.

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(2) fundamentality stricto sensu (referring to the fundamental nature or significance of the right, to be distinguished from the broader overarching question of fundamentality in the 1998 Declaration as defined in the introduction); (3) functional relationship to fundamental and non-fundamental rights.

Regarding the recognition of the right to health and safety, the Office followed a 'positivistic' approach[150] by invoking its inclusion in a variety of human rights instruments. These include the Universal Declaration of Human Rights (UDHR) (a right to life, liberty and security of person) and the ICESCR (right to safe and healthy working conditions),[151] whilst a reference is also made to the fact that two-thirds of national constitutions recognise a right to health for everyone.[152] As with the constitutional-textual justification, there is no close engagement with the implications of these rather diverse formulations, some of which are not even specific to the workplace. It is, however, clear that these 'external' human rights sources were used as sources for justifying fundamentality in what can be termed a process of 'normative entanglement'.[153]

Following recognition in a positivist sense, the next step concerns the fundamentality (*stricto sensu*) of the right. At this stage, various internal and external sources were drawn upon. The Office referred[154] to International Labour Conference Conclusions, which stated that health and safety in the workplace is a 'fundamental requirement achieving the objectives of the Decent Work Agenda',[155] and findings by the tripartite ILO Committee on the Application of Standards (CAS) of the ILO, which stressed the common agreement that health and safety 'remained a subject matter of fundamental importance for all parties concerned'[156] and that occupational safety and health (OSH) is 'at the core of the ILO's mandate'[157] and is a 'key component of the Decent Work Agenda'.[158] It also cited the Centenary Declaration, which declared that safe and healthy working conditions are fundamental to decent work.[159] The latter statement was also incorporated in the preamble of the 2022 amendment resolution.[160]

Turning to external sources, the Office made references to human rights sources from the UN and the Council of Europe.[161] Specifically, it cited General

150 Mantouvalou, n 1 above.
151 ILO, Governing Body, 341st session, n 134 above, para 10.
152 *ibid*, para 15.
153 For the term in the context of fundamentalisation, see Marie-Ange Moreau, 'Lessons of the Research Seminar on the "Fundamentalisation of Social Rights"' in EUI Social and Labour Law Working Group, n 2 above, 150
154 ILO, Governing Body, 341st session, n 134 above, 12.
155 ILO, 'Global Strategy on Occupational Safety and Health: Conclusions adopted by the International Labour Conference at its 91st Session, 2003' (1 January 2004) 1 at https://www.ilo.org/resource/policy/global-strategy-occupational-safety-and-health-conclusions-adopted.
156 ILC, *Committee on the Application of Standards: Extracts from the Record of Proceedings* 98th Session (2009) para 208 at https://www.ilo.org/sites/default/files/wcmsp5/groups/public/@ed_norm/@normes/documents/publication/wcms_116491.pdf.
157 ILC, *Extracts from the Record of Proceedings Committee on the Application of Standards* 106th Session (2017) para 58 at https://www.ilo.org/sites/default/files/wcmsp5/groups/public/@ed_norm/@normes/documents/publication/wcms_576287.pdf.
158 *ibid*, 15 Part I/34.
159 ILO, 'Centenary Declaration for the Future of Work' n 67 above, II(D).
160 2022 resolution, n 4 above, Preamble.
161 ILO, Governing Body, 341st session, n 134 above, paras 12-13.

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Comment No 23 of the UN Committee on Economic, Social and Cultural Rights (CESCR), which identifies the prevention of occupational accidents and diseases as a fundamental aspect of the right to just and favourable conditions.[162] The Office also referred to a statement by the European Committee on Social Rights, positing the right to a safe and healthy working environment as a 'widely recognized principle stemming directly from the right to personal integrity, one of the fundamental principles of human rights'.[163] These references were further complemented by mentions of additional sources, including the 2030 Agenda for Sustainable Development, viewed as demonstrating the 'universal acceptance of the need to promote safe and healthy working conditions'[164] and to free trade agreements and corporate social responsibility initiatives that include provisions on health and safety.[165]

The third step in the rights-based justification of the right to health and safety involves examining its specific function vis-à-vis fundamental and non-fundamental rights. As noted earlier, some scholars argued that the 1998 Declaration was justified on the grounds that it contained 'enabling rights' which '"empower" workers with the tools that are necessary for the conquest of other rights'.[166] Or to put it in human rights parlance, they were considered 'multiplier rights'.[167] This functional normative understanding of the FPRW is reflected in the 2008 Declaration on Social Justice for a Fair Globalisation, which emphasises the importance of FPRW not only as rights in themselves, but also as 'enabling conditions that are necessary for the full realization of all of the strategic objectives' of the ILO.[168]

In contrast to Langille's view,[169] the Office claimed that safe and healthy working conditions can be considered: 'a precondition for all the rights embodied in the ILO Constitution. They are both essential and instrumental to the realization of other labour rights. Workers who become sick or injured at work, or who face life-threatening conditions at work cannot "claim freely and on the basis of equality of opportunity, their fair share of the wealth which they have helped to generate, and to achieve fully their human potential".'[170]

For this statement, the Office drew on external sources. Among these was the CESCR statement that 'health is a fundamental human right indispensable for the exercise of other human rights'.[171] This was complemented by internal

162 CESCR, General Comment No. 23 (2016) on the right to just and favourable conditions of work (Article 7 of the International Covenant on Economic, Social and Cultural Rights) E/C.12/GC/23 para 25.

163 ILO, Governing Body, 341st session, n 134 above, para 13 referring to the European Committee of Social Rights, *Digest of the Case Law of the European Committee of Social Rights* (December 2018) 73.

164 ILO, Governing Body, *ibid*, para 13

165 *ibid*, para 14.

166 Maupain, n 5 above, 448.

167 See for the right to education Sandra Fredman, *Comparative Human Rights Law* (Oxford: OUP, 2018) 355.

168 ILO, Declaration on Social Justice for a Fair Globalization, 2008, Part I(A)(iv).

169 Langille, n 5 above, 431.

170 ILO, Governing Body, 341st session, n 134 above, para 11, referring to 1998 Declaration fifth preambular paragraph.

171 ILO, Governing Body, *ibid*, para 11, referring to CESCR, General Comment No. 14: The Right to the Highest Attainable Standard of Health (Art. 12) E/C.12/2000/4, para 1.

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ILO epistemic statements by the CAS, which highlighted that 'one's life, safety or health at work jeopardizes the very ability to work';[172] and references to a 2006 Governing Body's report as recognising the 'role of safe and healthy working conditions in maintaining the link between social progress and economic growth'.[173]

While the enabling rights functional assessment is mostly oriented towards non-fundamental rights (for which fundamental principles and rights are enablers), another rights-based justification turns inwards by focusing on the relationship of the fundamentalised right to existing FPRW which are considered as a whole to be 'inseparable, inter-related and mutually reinforcing'.[174] The Office concludes that this will be the case for the right to health and safety by arguing that it 'would enjoy a similar relationship'[175] to the recognised rights. To demonstrate this, it draws on the CESCR statement that the 'right to health is closely related to and dependent upon the realization of other rights, such as the rights to human dignity, non-discrimination and freedom of association'.[176] It then highlights this function vis-à-vis each FPRW. More specifically, it points out that 'promoting the right to a safe and healthy working environment advances the goal of eliminating the worst forms of child labour' since 'work that is likely to harm the health, safety or morals of children is by definition one of the worst forms of child labour.'[177] Similarly, 'forced labour victims are more likely to perform work under conditions that are degrading and hazardous which they would not otherwise freely accept'.[178] It finally notes that 'respect for freedom of association and the effective recognition of the right to organize and collectively bargain allows for the establishment of systems for the protection against and prevention of OSH risks'.[179]

Overall, what emerges as a notable feature of the rights-based normative justification is the function of external human rights jurisprudence as a 'pull factor' for making the right to health and safety in the workplace fundamental, both

172 ILO, Governing Body, *ibid*, para 8, referring to the CAS conclusion that 'recognized that occupational safety and health was of crucial importance for the quality of work and human dignity': ILC, *Committee on the Application of Standards* n 156 above, para 208.

173 ILO, Governing Body, *ibid*, para 11, referring to the report: Governing Body, Committee on Employment and Social Policy, 'Occupational safety and health: Synergies between security and productivity' GB.295/ESP/3 295th Session (March 2006) at https://www.ilo.org/sites/default/files/wcmsp5/groups/public/@ed_protect/@protrav/@safework/documents/meetingdocument/wcms_110380.pdf.

174 ILO, Governing Body, *ibid*, para 16. See further, 'Resolutions adopted by the International Labour Conference at its 101st Session' (June 2012), Conclusions concerning the recurrent discussion on fundamental principles and rights at work, para 5(c) at https://www.ilo.org/sites/default/files/wcmsp5/groups/public/@ed_norm/@relconf/documents/meetingdocument/wcms_194631.pdf; ILO, 'Resolution concerning the second recurrent discussion on fundamental principles and rights at work' 106th Session of the International Labour Conference (6 July 2017) at https://www.ilo.org/resource/ilc/106/resolution-concerning-second-recurrent-discussion-fundamental-principles.

175 ILO, Governing Body, *ibid*, para 16.

176 *ibid*, para 16 referencing General Comment No 14, n 171 above, para 3.

177 *ibid*. The document notes that 'the ILO estimates that out of the 152 million underage workers in the world, 73 million are in hazardous work that directly endangers their health, safety, and moral development' (fn 37).

178 *ibid*, para 16.

179 *ibid*.

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in terms of normative statements but also with regards to narrative statements about its fundamental significance, thus providing a clear case of an 'integrated jurisprudence'.[180]

Justifying the amendment as a form of inclusion

The final issue in the justification of the amendment concerns the choice of the amendment form, namely that of an express internal amendment to the 1998 Declaration over a stand-alone declaration on health and safety in the workplace. This decision was informed by both practical and normative considerations. From a practical viewpoint, the amendment was presented by the Office as a 'simplest and less intrusive' way of recognition because it would require minimal changes to the current text.[181] Most notably, it was considered more appropriate from a normative-systemic viewpoint as 'preserving the unity, authoritativeness and resonance of the 1998 Declaration, as amended'.[182] This is because it would better highlight the links between health and safety in the workplace with existing rights and would overall 'enhance legal certainty and coherence among the fundamental principles and rights at work which should enjoy the same status and visibility both inside and outside the ILO.'[183] In contrast, a self-standing declaration on health and safety in the workplace, while of equal formal status to the 1998 Declaration, would have indicated according to the Office an intention to 'keep OHS distinct' from existing fundamental principles and rights 'without necessarily differentiating between them with respect to their status'.[184]

AGAINST THE FEAR OF DETACHMENT: ATTACHING THE FORMULATION OF THE AMENDMENT TO ILO CONVENTIONS

In his account of the 1998 Declaration, Alston voiced the fear of detachment (that is, de-linkage) of relevant FPRW from ILO Conventions.[185] This section suggests that, at least in terms of how the right was formulated, these concerns did not materialise. It does so by examining the key elements of the substantive formulation of the 2022 amendment. These include the terminology used ('right to a safe and healthy working environment') and the designation of fundamental conventions (C155 and C187). The section also considers the insertion of a saving clause in the text of the amendment resolution ('nothing in this resolution shall be construed as affecting in any unintended manner the

180 Virginia Mantouvalou, 'Labour Rights in the European Convention on Human Rights: An Intellectual Justification for an Integrated Approach to Interpretation' (2013) 13 *Human Rights Law Review* 529.
181 Governing Body, 343rd Session, n 113 above, para 14.
182 *ibid*, para 15.
183 *ibid*.
184 *ibid*, para 18.
185 Alston, 'Core Labour Standards', n 5 above.

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rights and obligations of a Member arising from existing trade and investment agreements between States').

To begin with, it is notable that the adopted terminology of the new FPRW aligns with the language of ILO Conventions (C155, C167 and C187) rather than the ILO Constitution, ('the protection of the worker against sickness, disease and injury'), the Declaration of Philadelphia ('adequate protection for the life and health of workers') and the Centenary Declaration/ICESCR ('safe and healthy working *conditions*'). This choice holds normative significance for at least two reasons. First, the constitutional-textual arguments that played a predominant role in the justification of the amendment do not appear to carry decisive weight in its *formulation*. In short, the two tasks – justification and formulation – are neatly split. Second, ILO Conventions display considerable normative salience as sources for deriving the formulation of the fundamental right. This fits the normative expectation that the 1998 Declaration 'might help to extract from Conventions the universally acknowledged "essence" of the fundamental rights without undermining the Conventions themselves'.[186] It thus aligns with Maupain's view that 'there is no danger that the principles and their content be liberated from the "anchor" of the relevant conventions … for the simple reason that they [ie the conventions] are the anchors'.[187] The language of ILO Conventions was thus granted priority over ILO constitutional formulations.

Commenting on the terminology debate, Kohiyama and Lieby drew attention to this drafters' dilemma between a constitution-based formulation and a convention-based formulation.[188] They consider it as situated within a broader debate on values that reflects an 'introspection of the enduring value of the ILO constitutional objective relating to safety and health, and its significance in the current context'.[189] The Office explicitly acknowledged this dilemma. In implicitly justifying the priority to ILO Conventions, it highlighted that 'the wording used to give expression to the additional fundamental principle should remain anchored in the provisions of the ILO Constitution *while taking account of contemporary usage as reflected in relevant recent international labour standards*'.[190] Interestingly, this statement talks about *anchoring* rather than derivation, and appears to move away from an originalist constitutional-textual approach towards one viewing ILO Conventions as normative sources for the evolution of the right. The employer group unsuccessfully attempted to defend an originalist constitutional-textual approach, arguing in terms of the wording of the right in the preamble, that 'it was important to distinguish clearly what was being discussed – namely, a fundamental principle – from any single Convention'.[191] Before that, during the Governing Body deliberations in March 2022, it had

186 Report of the Director-General, n 31 above.
187 Maupain, n 5 above, 450 (emphasis removed from the original).
188 Tomi Kohiyama and Thomas Lieby, 'The Resilience of Multilateralism: An ILO Introspection for a System-Wide Vision' in Langille and Trebilcock (eds), n 11 above, 154.
189 *ibid*.
190 Governing Body, 'Issues relating to the inclusion of safe and healthy working conditions in the ILO's framework of fundamental principles and rights at work – Draft resolution' GB.344/INS/6 344th Session (March 2022) para 12 at https://www.ilo.org/resource/gb/344/issues-relating-inclusion-safe-and-healthy-working-conditions-ilo%E2%80%99s (emphasis added).
191 ILC, 'Third report of the General Affairs Committee' n 102 above, para 100.

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claimed that 'any principle related to occupational safety and health should be clearly derived from the ILO Constitution itself and not from any other instruments as the purpose was to reaffirm the existing constitutional principle'.[192]

While the precise content of the safe and healthy working environment remains to be fleshed out, at first sight it appears to be capable of a broader import than the safe and healthy working conditions alternative. This is because, as noted by the Office, it requires that 'all potential risk factors that may affect the physical and mental health and safety of workers should be *considered and addressed holistically*' while demanding an 'integrated approach' to public policy, ensuring the enabling conditions necessary for effective prevention.[193]

The normative salience of the ILO Conventions also manifested itself in the extensive debate over which Conventions should be declared fundamental. The 2022 amendment declared two ILO Conventions as fundamental, namely the Occupational Safety and Health Convention, 1981 (No 155) (C155) and the Promotional Framework for Occupational Safety and Health Convention, 2006 (No 187) (C187). While the precise linkage between ILO Conventions and the formulation of the right is still unclear, the attention that the issue received testifies to the significance attached to ILO Conventions by the relevant actors. This can be attributed to the fact that, as the Office notes, the 'formal elevation' of a constitutional objective to the status of a fundamental principle and right at work has gone hand-in-hand with 'the identification of international labour standards that give specific expression and content to that principle or right'.[194]

Conventions 155 and 187 differ markedly in their approach, especially regarding the obligations of employers. The former calls for the adoption of a national policy on health and safety in the workplace and establishes a wide range of obligations for employers in the enterprise (Part IV of the Convention). In contrast, C187 adopts a system-based approach by focusing more on the development of national policies, systems and programmes aimed at promoting a 'national preventative safety and health culture'.[195] Hence it is relatively more 'light-touch' for employers than C155. It is, therefore, unsurprising that the workers' group insisted on the inclusion of C155 claiming that the C187 'was not directed towards employers, whereas it was clear that employers had important duties and obligations to ensure a safe and healthy working environment'.[196] Conversely, the employers' group defended the inclusion of

192 Governing Body, 'Minutes of the Institutional Section' 344th Session, n 107 above, para 204.

193 ILO, Governing Body, 'Minutes of the Institutional Section' 343rd session, n 100 above, para 206 (Representative of the Director-General) (emphasis added).

194 ILO, Governing Body, 'Follow-up to the resolution on the ILO Centenary Declaration for the Future of Work Proposals for including safe and healthy working conditions in the ILO's framework of fundamental principles and rights at work' GB.340/INS/4, 340th session (October 2020) para 26 at https://www.ilo.org/resource/gb/340/follow-resolution-ilo-centenary-declaration-future-work-proposals-including.

195 See Promotional Framework for Occupational Safety and Health Convention 2006 (No 187), Arts 1, 3 and 5 at https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB%3A12100%3A0%3A%3ANO%3A%3AP12100_INSTRUMENT_ID%3A312332. See also references in the Promotional Framework for Occupational Safety and Health Recommendation (No 197) 2006 at https://normlex.ilo.org/dyn/nrmlx_en/f?p=NORMLEXPUB:12100:0::NO::P12100_INSTRUMENT_ID:312534.

196 ILC, 'Third report of the General Affairs Committee' n 102 above, para 162.

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C187 on the grounds that C155 was too detailed and that the 'rationale for the adoption of Convention No. 187 was to respond to the need for a more general, promotional framework and to avoid the shortcomings of Convention No. 155'.[197]

The selection of both conventions reflected a compromise, adopting the Office's initial proposal based on several grounds. These include ratification rates ('Conventions Nos 155 and 187 are the most widely ratified OSH Conventions, and ratifications have steadily increased since their adoption'[198]); the view adopted by the Office that these conventions 'describe core OSH principles and rights, which serve as the basis for the more advanced safety and health measures described in other OSH instruments';[199] and their complementarity.[200] A separate issue was why only two Conventions were linked with the new FPRW, despite the fact that there are multiple relevant conventions to health and safety, including for specific sectors and hazards. In response, the Office justified limiting the fundamental conventions to two by reference to the previous practice with the original FPRW. [201]

While the trade-labour linkage question was less central to the amendment than it had been to the 1998 Declaration, employers nonetheless advocated for a 'saving clause'. In its final form, it declares that 'nothing in this resolution shall be construed as affecting in any unintended manner the rights and obligations of a Member arising from existing trade and investment agreements between States'.[202] Its stated purpose was to prevent a dynamic or 'evolutive' interpretation of existing trade agreements.[203] If states have committed to the Declaration and agreed to the amendment, the argument goes, a dispute panel 'could reasonably infer that they intended their [trade] agreement to be dynamic and to evolve with the incorporated instrument'.[204] Saving clauses are familiar devices in constitutional law, seeking to prevent the retroactive application of constitutional changes.

However, the inclusion of such a clause in the 2022 resolution appears counterintuitive, given the soft law nature of the Declaration and the fact that 'legally speaking' it cannot 'modify bilateral or plurilateral trade agreements'.[205] The actual legal effect of the saving clause is uncertain and will depend on its decentralised interpretation by the various bodies established by each treaty referring to the 1998 Declaration, guided by the standard 1969 Vienna Convention rules on treaty interpretation. Thus, in light of its questionable relevance in terms of legal added value, the adoption of the saving clause can be better understood as a choice oriented towards 'satisfying political palettes'.[206]

197 *ibid*, para 161.
198 ILO, Governing Body, 'Follow-up' 340th session, n 194 above, para 28.
199 *ibid*.
200 *ibid*.
201 *ibid*.
202 2022 Resolution, n 4 above, Clause 5.
203 See Politakis, n 12 above, 223 and ILC, 110th Session, n 108 above, paras 31-34.
204 Desiree Leclercq, 'A Tale of Tripartism, a Tribunal, and Trade' in Langille and Trebilcock (eds), n 11 above, 211.
205 ILC, 'Third report of the General Affairs Committee' n 102 above, para 233.
206 Leclercq, n 204 above, 211.

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Finally, it should be noted that the saving clause in its final version adopted the amendment proposal of the workers' group to add the word '*unintended*' with the view to narrow its exclusionary scope ('nothing in this resolution shall be construed as affecting in any *unintended* manner the rights and obligations of a Member arising from existing trade and investment agreements between States'). This formulation allows room for a dynamic interpretation should it be established that parties intended the references to the 1998 Declaration in agreements concluded before the 2022 amendment to be dynamic.

LOWERING THE BAR: THE RADICAL IMPLICATIONS OF THE 2022 AMENDMENT

What are the broader implications of the 2022 amendment for the second-order amendment rules of fundamentality and fudamentalisation in the 1998 Declaration? Is it possible to trace the contours of an emerging 'amendment formula'?[207] In this section, we argue that the 2022 amendment lowers the bar for the inclusion of future rights in the Declaration, both procedurally (fundamentalisation) and normatively (fundamentality). Before attempting to identify the elements of such an emergent amendment formula, it is essential to appreciate the critical significance of the 2022 amendment *qua* amendment practice or precedent. Overall, international law attaches considerable normative weight to 'practice'[208] and 'precedent'[209] as pertinent 'institutional facts',[210] including in relation to international organisations.[211]

Regarding the 2022 amendment, the inquiry into an amendment formula can take two distinct forms. First, it is possible to draw normative inferences regarding amendment rules from the chosen process and content of the 2022 amendment. For example, what does the *fact* of the inclusion of a right to a safe and healthy working environment disclose for the norms governing the permissible scope of substantive rights in the 1998 Declaration? Indeed, precedents are capable of exerting an argumentative force for future amendments by supplying content-independent and outcome-independent arguments[212] based

207 For the term in constitutional amendment theory see among others Richard Albert, *Constitutional Amendments: Making, Breaking, and Changing Constitutions* (New York, NY: OUP, 2019); and Rosalind Dixon, 'Constitutional Amendment Rules: A Comparative Perspective' in Tom Ginsburg and Rosalind Dixon (eds), *Comparative Constitutional Law* (Cheltenham: Edward Elgar, 2011).

208 See 1969 Vienna Convention on the Law of Treaties, Art 31(3)(b).

209 Harlan Cohen, 'Theorizing Precedent in International Law' in Andrea Bianchi, Daniel Peat and Matthew Windsor (eds), *Interpretation in International Law* (Oxford: OUP, 2015); Krzystof Pelc, 'The Politics of Precedent in International Law: A Social Network Application' (2014) 108 *American Political Science Review* 547. See also Gilbert Guillaume, 'The Use of Precedent by International Judges and Arbitrators' (2011) 2 *Journal of International Dispute Settlement* 5.

210 See Friedrich Kratochwil, *Rules, Norms, and Decisions: On the Conditions of Practical and Legal Reasoning in International Relations and Domestic Affairs* (Cambridge: CUP, 1989) 25-28; and John Gerard Ruggie, 'Epistemology, Ontology, and Regimes' in John Ruggie (ed), *Constructing the World Polity: Essays on International Institutionalization* (London: Routledge, 1998).

211 See Arato, n 145 above; Alvarez, n 148 above; Ebere Osieke, *Constitutional Law and Practice in the International Labour Organisation* (Dordrecht: M. Hijhoff, 1985).

212 Cohen, n 209 above.

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on consistency, rule of law and predictability.[213] And, even stronger, they may 'creat[e] a strong presumption that the prior interpretation of the rule is in fact the rule'.[214] By contrast, the second type of inquiry focuses on subjective elements related to the disclosed opinions of the actors as to the amendment rules. Indeed, the occasion of formulating and negotiating the 2022 amendment offered the first opportunity for actors within the ILO to discuss, contest and potentially crystallise normative understandings and expectations regarding the amendment rules of the 1998 Declaration. Since no single source exists for these rules, the entire corpus of statements, debates and decisions in relation to normative assumptions by participants as an 'epistemic community'[215] as to the substantive and procedural rules of the amendment is relevant. These – subjective and objective – inquiries may of course diverge. For example, one route may be chosen (such as opting for a bespoke declaration as an amendment form) but on the shared understanding of actors that this was a choice among alternatives permitted by amendment rules (in this instance an amendment contained in the Centenary Declaration).

After these preliminaries, we now move to identifying four main areas where it is possible identify some fragments of an emerging amendment formula, each discussed in turn: justification, process, form and formulation.

Farewell to the 'procedural' and 'enabling' rights conceptions of fundamentality: Revisiting Langille and Maupain

The area in which the implications of the 2022 amendment are most radical concerns the justification of FPRW – that is, the conditions of fundamentality. As previously discussed, Langille and Maupain defended the initial selection of FPRW in the 1998 Declaration on the grounds that these rights were 'procedural' rather than substantive (outcome) rights, as well as being 'enabling' rights in the sense that they grant workers the necessary tools to secure other rights.[216] However, these accounts of fundamentality risked trapping the Declaration in a rigid and a constrained core. Is the 2022 amendment the moment to bid farewell to them?

The answer seems affirmative. The right to a safe and healthy working environment cannot be regarded as a 'process' right as understood by Langille (that is, as not subject to what Langille termed 'strict paternalism')[217] without stretching the category to the point that it loses any meaningful distinguishing function. Moreover, it does not fit the specific 'enabling right' conception of fundamentality of FPRW as suggested by Maupain, who seems to read the story backwards by treating all enabling rights as necessarily procedural.[218]

213 *ibid*.
214 *ibid*, 275.
215 See Alvarez, n 148 above, 108, on constitutional interpreters as 'shar[ing] views held within the relevant "epistemic community" of which they are a part'.
216 Maupain, n 5 above, 448.
217 Langille, n 5 above, 429.
218 Maupain, n 5 above.

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The only way to continue to maintain an enabling conceptualisation of fundamentality after the 2022 amendment is by detaching it from its exclusive procedural construction. Some elements of such a detachment can be seen as underlying the Office's justification of a fifth fundamental right as a smooth and relatively uncomplicated undertaking, on the grounds that it 'would share the same constitutional logic with that of the four existing categories of fundamental principles and rights'.[219] More specifically, it stated that:

> Safe and healthy working conditions can furthermore be considered a precondition for all the rights embodied in the ILO Constitution. They are both essential and instrumental to the realization of other labour rights. Workers who become sick or injured at work, or who face life-threatening conditions at work cannot 'claim freely and on the basis of equality of opportunity, their fair share of the wealth which they have helped to generate, and to achieve fully their human potential'.[220]

It is theoretically feasible to maintain an 'enabling' condition of fundamentality by a double move: recasting the right to a healthy and safe working environment as a 'precondition' for other rights (unlike Langille and Maupain) and possibly associate it with a richer account of the reference to the 'fair share of the wealth' that incorporates not only procedural but also more substantive dimensions.[221] While potentially attractive, this approach would arguably carry a similar risk (to the procedural conception) of inflating the enabling rights category.

By contrast, the most straightforward and theoretically consistent interpretation of the 2022 amendment is that the fundamentalisation of the right to a safe and healthy working environment entails a radical expansion of the possible normative space of the 1998 Declaration. This is because it liberates fundamentality from the aforementioned normative straitjacket, which becomes associated with the constitutional-textual and rights-based justifications discussed above. Thus, the 2022 amendment urges a revisiting of the accounts of Langille and Maupain as valid accounts of fundamentality in the 1998 Declaration.

In addition, it is important to emphasise that the right to a safe and healthy working environment by its nature encompasses a wide range of procedural and substantive duties imposed on employers, governments, and employees. As Hilgert put it, health and safety in the workplace 'is a qualitatively different animal than other rights at work',[222] since it 'requires specific changes in the production process and, in turn, the functioning of management at the operational level'.[223] The implications of these features on fundamentality should not be underestimated. By demonstrating that extensive production process interventions and a wide range of obligations entailed by a right do not, in themselves, preclude its recognition as fundamental, the 2022 amendment should be seen as paving the way for other rights with similar characteristics to be recognised as fundamental as well.

219 ILO, Governing Body, 343rd Session, n 113 above, para 10.
220 ILO, Governing Body, 341st Session, n 134 above, para 11.
221 See further Ewing and Hendy, n 142 above.
222 Hilgert, n 129 above, 719.
223 *ibid*.

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This significant progress of the 2022 amendment, which breaks free from old rationalisations of fundamentality, is also coupled with flexible constitutional anchoring in open-ended clauses, such as the 'just share of the fruits of progress' imperative of the Declaration of Philadelphia.[224] Such clauses can host a broader range of procedural and substantive rights without needing to be explicitly mentioned in ILO Constitutional documents. Even more importantly, the integrated use of 'external' human rights sources as a pull factor' for fundamentalisation is also of critical significance. It opens the space for the use of 'external' jurisprudence in future amendments. This is not only in terms of deriving the 'recognition' elements of the rights-based justification, but also in relation to statements by their supervisory bodies, such as the CESCR, as to their fundamental significance and functional relationship with other core labour rights.[225]

Process: Flexibility with elements of constraints?

With regards to the process, the 2022 amendment experience confirms the existence of considerable flexibility and discretion. In the absence of any special procedural amendment rules contained in the 1998 Declaration, the 2022 amendment provided the first opportunity to test and expose the normative understandings of different actors concerning the procedural discretion afforded by amendment rules. Viewed retrospectively and through an objective lens (in terms of practice), the 2022 amendment combined an 'external' (Global Commission on the Future of Work) and 'internal' (International Labour Conference, Governing Body) track. It constituted a tripartite-plus hybrid process that reached beyond the traditional tripartite constituency. Indeed, the composition of the Global Commission fully aligned with the Director General's call for the initiative to extend beyond tripartism to engage the academic community, as well as all other relevant and interested actors.[226] Anticipating potential criticisms, the Director-General emphasised that this approach 'implies no threat to tripartism' and that 'a greater threat would lie in failure to connect with that wider public'.[227]

Is it possible to extrapolate from the tripartite-plus construction of the amendment process the emergence of a procedural amendment rule requiring the engagement of external actors to the ILO? This is far from an easy or straightforward question to answer, not least because the normativity threshold of a certain practice is often obscure and subject to varied interpretations. Nonetheless, it is arguable that the tripartite-plus process that ultimately produced the 2022 amendment through the participation of a wide range of

224 See discussion above under the heading 'Constitutional-textual normative justifications: The static and dynamic variants of the constitutional link'.

225 For a comprehensive academic treatment of ICESCR rights and the employment relation see Klaus Lörcher, Niklas Bruun and Ana Teresa Ribeiro, *The International Covenant on Economic, Social and Cultural Rights and the Employment Relation* (Oxford: Hart, 2025).

226 Report of the Director-General, n 77 above, 2.

227 *ibid*.

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actors established an important precedent that can guide future amendments by demonstrating, at least, the normative desirability and effectiveness of this process in practice.

In addition, the 2022 amendment process manifested another type of procedural flexibility. According to the Office, a right can be declared fundamental *before* identifying the relevant Conventions. Even though this did not materialise for the 2022 amendment, its implications are profound. It grants further procedural leeway to future amendment drafters. This may prove valuable in situations where consensus has been reached on declaring a fundamental right, but disagreement persists regarding the selection of corresponding ILO Conventions.

Form: A flexible amendment formula

With regard to the 2022 amendment form, discussions appeared to have crystallised a very flexible amendment formula. When considering the inclusion of health and safety in the workplace in the 2019 Centenary Declaration, the Office did not foresee any legal impediments, despite the view expressed by the employers that an amendment should only take effect in a separate Declaration. As mentioned in the meeting's minutes: 'the Legal Adviser, responding to the observations of the Employers' group, reiterated that there was no legal impediment to the Conference recognizing a new fundamental principle and right at work through the ILO Centenary Declaration. That would involve the same sovereign organ, the same procedure and the same constitutional logic.'[228]

Similarly, the debate regarding the form of inclusion of a right to a safe and healthy working environment (by an amendment to the 1998 Declaration rather than a standalone new Declaration) focused more on desirability and expediency rather than on legal permissibility. Overall, the 2022 amendment appeared to have consolidated and crystallised a normative account of the amendment rules, effecting granting future amendment drafts a menu of available options. That said, any argument in favour of a separate declaration recognising a FPRW in the future would need to compellingly counter the strong preference expressed by the Office and the Governing Body for an amendment of the 1998 Declaration. These two actors viewed the latter as the clearly more desirable option, as it preserved the unity, authoritativeness, and resonance of the 1998 Declaration, while also highlighting the links with pre-existing FPRW rights more effectively.[229]

Formulation: The significance of the ILO Conventions

A final notable feature of the 2022 amendment is how ILO Conventions were preferred over ILO constitutional documents for formulating the content of the right to a safe and healthy working environment. This approach grants

228 ILO, 'Report of the Committee of the Whole' n 96 above, para 1011.
229 See n 182 above.

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another source of flexibility to future amendment drafters, allowing them to escape the textual constitutional constraints. The two Conventions linked with the new fundamental right were the most widely ratified among Conventions on health and safety, but they were nowhere near attaining universal ratification status.[230] This suggests that, overall, a low ratification rate is not an obstacle for the inclusion of a right in the Declaration. In other words, the process of fundamentalisation, as shown from the 2022 experience, is quite flexible also on the point of which Conventions can be considered relevant sources for formulating a FPRW.

CONCLUSIONS

The 2022 amendment deserves close academic and policy attention. As the first step in the evolution of the 1998 Declaration, testifying to its nature as a 'living document', its significance lies both in its content and in its implications. By analysing the 2022 amendment through the lens of fundamentalisation and fundamentality, the article offered a critical examination of its specific procedural and normative dimensions along with tracing its broader implications relating to the amendability of the Declaration.

Regarding the procedural and normative dimensions of the amendment, the article made the following key findings. First, it traced the 2022 amendment as the outcome of a 'tripartite-plus' cumulative process where 'external' and 'internal' actors interacted. It found that the external source of the amendment proposal trigger (ie the Global Commission on the Future of Work) was essential for its successful 'internalisation' in the ILO bodies after 2019. Overall, the parameters of tripartism, informality, contestation and consensus culture alongside the role of Covid-19 as a potential accelerator were significant in structuring a formally under-determined amendment process in the ILO, alongside the crucial agenda-influencing role of the Global Commission on the Future of Work. Interestingly, the structured form of contestation in the ILO (in the form of debates between the employers' and workers' groups) seems to have been crucial in advancing the amendment in the latter stages of the process, where the employer and worker groups reached agreements before the formal sessions of the Governing Body. Besides process, the 2022 amendment offered an opportunity for actors to express, crystallise and confirm normative justifications regarding the inclusion of rights in FPRW. The analysis found that there was no single normative justification adopted for including the right to a safe and healthy working environment among core labour standards. This notwithstanding, it highlighted the prevalence of constitutional-textual (dynamic and static variants) and rights-based normative justifications (based on the standards of recognition, fundamentality, functions). In addition, external human rights sources were invoked to justify the inclusion of the right to a safe and healthy working environment, representing a 'normative pull' of external integrated ju-

230 Convention No 155 had 80 ratifications and Convention No 187 61 ratifications at the time of amendment.

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risprudence. However, the formulation of the amendment was ultimately linked to the language of ILO Conventions which was preferred over the one contained in constitutional and human rights documents. This involves a marked normative separation between the exercises of justification and formulation and the active use of the Conventions to formulate a core labour right.

Second, a key thesis of the article is that the 2022 amendment implications extend beyond health and safety. The recent amendment suggests that reform of the Declaration operates within a flexible amendment formula that lowers the inclusion bar of the 1998 Declaration rights. This is based on procedural flexibility and an emphatic rejection of accounts of the substantive boundaries of the 1998 Declaration grounded on the distinction between 'procedural' and 'enabling' rights as suggested by Langille and Maupain.[231] In moving beyond any normative straitjacket of its rights as 'procedural' rights, it gives future drafters a broad legal scope of amendment permissibility. While space precludes a detailed examination of the case for a fundamental right to a living wage as a 'sixth fundamental right appearing on the horizon',[232] the 2022 amendment makes it a much lower-hanging fruit. This is because the right to a living wage appears to satisfy both ILO constitutional-textual[233] and human rights[234] requirements, while conceptual barriers to its recognition based on its outcome-orientated nature have now been firmly displaced. Crucially, the diversity of formulations of the recognised rights in ILO and human rights instruments seems less important after the separation of the tasks of justification and formulation in the context of the 2022 amendment.

When (or if) the 2022 amendment will be followed by other amendments is impossible to predict. Ultimately, it depends on extra-legal considerations and the configuration of power constellations inside and outside the ILO. But, at the very least, the 2022 amendment is likely to serve as a key reference point in future amendment proposals and discourses. And it may well be that the full significance and radical implications of the 2022 amendment will become retrospectively more evident in the years and decades to come, as the 1998 Declaration and international labour law continue their journey in markedly turbulent and uncertain times.

231 Langille, n 5 above and Maupain, n 5 above.

232 Ms Passchier (Worker Vice-Chairperson of the General Affairs Committee), ILC, 'Plenary sitting Reports of the General Affairs Committee' 110th Session, Record of Proceedings ILC.110/Record No 1E (7 July 2022), 9 at https://www.ilo.org/resource/record-proceedings/ilc/110/reports-general-affairs-committee.

233 Declaration of Philadelphia, n 22 above, III (d) refers to the ILO's duty to further '*policies in regard to wages* and earnings, hours and other conditions of work calculated to ensure a just share of the fruits of progress to all, and a *minimum living wage* to all employed and in need of such protection' (italics added) and the ILO Centenary Declaration states that 'all workers should enjoy adequate protection in accordance with the Decent Work Agenda, taking into account … an adequate minimum wage, statutory or negotiated'.

234 The UDHR, Art 23(3), states that 'everyone who works has the right to just and favourable remuneration ensuring for himself and his family an existence worthy of human dignity'. ICESCR, Art 8 protects a right to a remuneration which provides for all workers 'a decent living for themselves and their families'.

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LEGISLATION

Is the Electronic Trade Documents Act 2023 Sufficient to Promote the Uptake of Paperless Trading Systems?

Ilias Ioannou

In September 2023, the Electronic Trade Documents Act (ETDA) came into force in the UK. It aims to facilitate paperless trade by allowing certain trade documents in electronic form to have the same legal functionality as their paper counterparts. The question this article poses is whether the ETDA, and similar legislative initiatives in other countries, suffice to promote effectively the digitisation of trade. By analysing the mechanics of the ETDA and its practical application, this article develops a clear thesis on the impact of enabling legislation on the digitisation of trade. This article adopts the view that different aspects of the 'membership requirement' have constituted the main obstacles to the widespread adoption of paperless trading systems. It demonstrates that the ETDA, which requires the use of a reliable system to ensure that a document in electronic form qualifies as an 'electronic trade document', does not necessarily address the requirement that all parties to a transaction involving electronic trade documents must become members and use a paperless trading system. It concludes that legal recognition of electronic trade documents is necessary but insufficient to incentivise the broad uptake of such systems, unless a standardised framework of governance ensures that reliable paperless trading systems are legitimised and become trusted by commercial parties.

INTRODUCTION

During the past decades, there have been various efforts from the international trade community to create an electronic equivalent to paper bills of lading (eBL).[1] At first, the technical task of creating an electronic functional equivalent to paper bills of lading was believed to be the key to enabling the uptake of electronic paperless trading systems.[2] The advent of blockchain and distributed ledger technology (DLT) has sparked the emergence of a new

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1 A. N. Yiannopoulos, *Ocean Bills of Lading: Traditional Forms, Substitutes, and EDI Systems* (The Hague: Kluwer Law International, 1995) 23.
2 See text to notes 38-39 below.

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generation of eBL systems capable of achieving this task.[3] Notwithstanding these developments, devising an eBL system legally recognised across jurisdictions is more complicated.[4] Recent legislative initiatives, such as the Model Law on Electronic Transferable Records 2017 (MLETR),[5] the Electronic Trade Documents Act 2023 in the UK (ETDA 2023),[6] the amendment of the Electronic Transactions Act in Singapore,[7] and similar initiatives in other countries, aim to address this challenge.[8]

Enabling legislation aims to remove the legal obstacles to the use of trade documents in electronic form by recognising their legal equivalence to their paper counterparts without modifying the substantive rules applicable to trade documents.[9] The term functional equivalence refers to the requirements that need to be met by electronic substitutes for paper-based documents and processes for them to be recognised as equivalent at law.[10] According to the United Nations Commission on International Trade Law (UNCITRAL), the functional equivalence approach 'is based on an analysis of the purposes and functions of the traditional paper-based requirement with a view to determining how those purposes or functions could be fulfilled through electronic-commerce techniques.'[11]

This article argues that in addition to enabling legislation, the uptake of eBLs relies on governance mechanisms that will allow eBL systems to operate in a way that meets legal and commercial demands. This article posits that different aspects of the 'membership requirement' constitute the main obstacles to the widespread adoption of eBL paperless trading systems. The membership requirement refers to an architecture of digitisation which requires all parties to a transaction involving digitised documents to become members and make use

3 There are currently 12 blockchain-based eBL systems that have been approved by the International Group of Protection and Indemnity Insurance Clubs (IGP&I); see 'IG approved electronic bill of lading systems' (IGP&I, News and Insights, 4 February 2025) at https://www.igpandi.org/article/ig-approved-electronic-bill-of-lading-systems/ [https://perma.cc/36LQ-6X7X].

4 Mark L. Shope, 'The Bill of Lading on the Blockchain: An Analysis of Its Compatibility with International Rules on Commercial Transactions' (2021) 22 Minn J L Sc & Tech 164.

5 United Nations Commission on International Trade Law (UNCITRAL) Model Law on Electronic Transferable Records (United Nations, 2018) (MLETR).

6 See the Electronic Trade Documents Act 2023 (ETDA 2023), which came into force on 20 September 2023, at https://www.legislation.gov.uk/ukpga/2023/38/contents/enacted [https://perma.cc/UA93-N58L].

7 Singapore Electronic Transactions Act 2010 (2020 rev ed) at https://sso.agc.gov.sg/Act/ETA2010#pr16B- [https://perma.cc/9LVM-Z7H5].

8 An overview of the reform initiatives in the UK, the US, Singapore, Germany, Greece and China is provided below, text to notes 122-139 below.

9 Earlier legislative approaches adopted specialised legislation that designated specific registries to recognise eBLs recorded over the respective registry. These frameworks perform a regulatory role in that they condition the legal recognition of eBLs on the identification of certain state-recognised or state-administered systems instead of relying on the existing legal principles applicable to paper trade documents. Examples of such systems in China, Japan and the Republic of Korea have been presented in academic literature; see Miriam Goldby, *Electronic Documents in Maritime Trade: Law and Practice* (Oxford: OUP, 2nd ed, 2019) at [4.24]-[4.32], [11.11]-[11.19]; Manuel Alba, 'Transferability in the Electronic Space at a Crossroads: Is It Really about the Document?' (2013) 5 Creighton Int'l & Comp LJ 18 *et seq*.

10 UNCITRAL Model Law on Electronic Commerce with Guide to Enactment 1996 with additional article 5 bis as adopted in 1998 (United Nations, 1999) 20.

11 *ibid*.

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of the same electronic trading system.[12] The paper queries whether blockchain technology and legislative reform initiatives, in particular the ETDA 2023 in the UK, can help the industry overcome the membership requirement and the resulting scepticism towards digitisation. It submits that the terms of use of each system, which prescribe a membership requirement, are still a key factor influencing whether prospective users will adopt an eBL solution. The paper concludes that legal recognition is insufficient to promote the uptake of electronic paperless trading systems unless technological advancements are accompanied by suitable governance mechanisms that promote trust and serve the interests of the various stakeholders.

WHAT HAS HELD BACK DIGITILISATION? SCEPTICISM REGARDING THE 'MEMBERSHIP REQUIREMENT'

An important document covered by the ETDA 2023 is the bill of lading. The ocean bill of lading is one of the oldest and most important trade documents in both common and civil law jurisdictions.[13] It is widely utilised by the international trade community in the cross-border sale and financing of goods and where transportation is by sea.[14] It is a paper document of title issued by or on behalf of a carrier to the person with whom it has entered a contract for transporting goods by sea.[15] As a document of title, it confers on its lawful holder certain legal rights, such as constructive possession of the goods and the entitlement to delivery of goods based on possession of a paper document.[16] The rights incorporated in the bill of lading can be transferred by endorsement and delivery[17] of the bill itself to the endorsee or transferee.[18] As the carrier is required to deliver the goods covered by the bill of lading to the consignee upon the production and surrender of an original paper bill at the port of discharge,[19] significant demurrage and other costs can arise when the bill of lading is delayed, and cargo arrives at the port ahead of it.[20]

12 Koji Takahashi, 'Blockchain-based Negotiable Instruments: with Particular Reference to Bills of Lading and Investment Securities' in Andrea Bonomi, Matthias Lehmann and Shaheeza Lalani (eds), *Blockchain and Private International Law* (Leiden: Brill, 2023) 494, 496.

13 Georgios Zekos, 'The Contractual Role of Documents Issued Under the CMI Draft Instrument of Transportation Law' (2004) 35 JMLC 99, 103.

14 Paul Todd, 'Electronic Bills of Lading, Blockchains and Smart Contracts' (2019) 27 Int'l J L & Info Tech 339, 341.

15 Francis D. Rose and Francis M. B. Reynolds, *Carver on Bills of Lading* (London: Sweet & Maxwell, 5th ed, 2021) at [1-005].

16 Časlav Pejović, *Transport Documents in Carriage of Goods by Sea: International Law and Practice* (London: Informa Law, 2020) 221.

17 'Bearer bills of lading' are transferred merely by delivery.

18 *Barber* v *Meyerstein* (1870) LR 4 HL 317, 330; *The Future Express* [1993] 2 Lloyd's Rep 542; [1992] 2 Lloyd's Rep 79 (CA) at [95].

19 Sir Richard Aikens and others, *Bills of Lading* (London: Informa Law, 3rd ed, 2021) 153-154.

20 Nicholas Gaskell, 'Bills of Landing in an Electronic Age' [2010] LMCLQ 260.

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The alternative to incurring these costs, notably by releasing the cargo against a letter of indemnity (LOI), can pose significant legal risks.[21] Delivery without presentation of the bill of lading regularly generates substantial litigation.[22] The carrier may be subject to substantial claims from the lawful holder of the bill for misdelivery of the goods.[23]

The benefits of using electronic forms of bills of lading (eBLs) to address the problems associated with paper bills of lading are well documented in both academic[24] and 'grey literature', which includes the latest research published in non-traditional academic channels by industry communities, government departments and other organisations.[25] The consulting firm McKinsey & Company estimates that the efficiency gains from digitalising the bill of lading total over 15.5 USD billion annually, inclusive of a benefit for container carriers of between 1.5 and 2.1 USD billion a year, a direct cost saving of 6.5 USD billion annually for all stakeholders involved, and a new revenue stream of 6.9 USD billion per year.[26] Digitisation can reduce the time required for document preparation and customs clearance for each import or export shipment by between 41 per cent and 99 per cent,[27] improve administrative efficiency by

21 See *Standard Chartered Bank* v *Dorchester LNG (2) Ltd (The Erin Schulte)* [2013] EWHC 808 (Comm) [2013] 2 Lloyd's Rep 338; *Trafigura Maritime Logistics Pte Ltd* v *Clearlake Shipping Pte Ltd (The Miracle Hope)* [2020] EWHC 726 (Comm); [2021] Lloyd's Rep Plus 12; *Fimbank Plc* v *Discover Investment Corp (The Nika)* [2020] EWHC 254 (Comm); [2021] 1 Lloyd's Rep 109.

22 See, for example, the three cases arising out of the collapse of the commodity trader Hin Leong Trading and considered by the courts in Singapore: *ING Bank NV, Singapore Branch* v *The Demise Charterer of the Ship or Vessel 'Navig8 Ametrine'* [2022] SGHCR 5; [2022] Lloyd's Rep Plus 83; *Oversea-Chinese Banking Corporation Ltd* v *Owner and/or Demise Charterer of the Vessel 'STI Orchard'* [2022] SGHCR 6; [2023] 1 Lloyd's Rep 22; *Standard Chartered Bank (Singapore) Ltd* v *Maersk Tankers Singapore Pte Ltd* [2022] SGHC 242; [2023] Lloyd's Rep Plus 18.

23 *Motis Exports Ltd* v *Dampskibsselskabet AF 1912* [2000] 1 All ER (Comm) 91; *Trafigura Beheer BV* v *Mediterranean Shipping Company SA (The MSC Amsterdam)* [2007] EWCA Civ 794; [2008] 1 All ER (Comm) 385; *FIMBank Plc* v *KCH Shipping Co Ltd (The Giant Ace) (No 2)* [2022] EWHC 2400; [2023] 1 All ER (Comm) 736.

24 Miriam Goldby, 'Digitalisation of Shipping and Insurance Documents: Implications for Trade Finance' in Christopher Hare and Dora Neo (eds), *Trade Finance: Technology, Innovation and Documentary Credits* (Oxford: OUP, 2021) 199; Djakhongir Saidov, 'English sales law in the twenty-first century: Selected themes' [2024] LMCLQ 607, 621.

25 Digital Container Shipping Association (DCSA), 'Streamlining international trade by digitising end-to-end documentation' (Ebook, 30 January 2023) at https://dcsa.org/newsroom/resources/streamlining-international-trade/ [https://perma.cc/AQ7S-ERTE]. DCSA is a non-profit association established under Dutch law in 2019 by some of the world's largest container shipping companies to develop and harmonise information technology standards that support the digital transformation of the container shipping industry; see DCSA, 'About DCSA' at https://dcsa.org/about-us [https://perma.cc/VH35-CZSZ]. As of 6 August 2025, DCSA's membership includes Mediterranean Shipping Company, Maersk Line, CMA CGM, Hapag-Lloyd, Ocean Network Express, Evergreen, Yang Ming, Hyundai Merchant Marine, ZIM, and Pacific International Lines; see below n 196.

26 Didier Casanova and others, 'The multi-billion paper jam: Unlocking trade by trade digitalizing documentation' (McKinsey & Co, 4 October 2022) 6 at https://www.mckinsey.com/industries/travel-logistics-and-infrastructure/our-insights/the-multi-billion-dollar-paper-jam-unlocking-trade-by-digitalizing-documentation [https://perma.cc/F8HS-VRTG].

27 United Nations Economic and Social Commission for Asia and the Pacific (UNESCAP), 'Estimating the benefits of cross-border paperless trade' Report in support of implementation of ESCAP Resolution 68/3, 24 June 2014) 6 at https://www.unescap.org/sites/default/files/Benefits%20of%20Cross-Border%20Paperless%20Trade.pdf.

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removing manual processing of paper documents, increase security, reduce fraud and documentation errors and tackle the important trade financing gap.[28] However, initiatives to dematerialise bills of lading throughout the last four decades have largely failed.[29] Although several eBL systems have been introduced[30] since the initial digitisation attempt was launched back in 1983 by Chase Manhattan Bank (now JP Morgan Chase & Co) and the International Association of Independent Tanker Owners (INTERTANKO),[31] such as the Bill of Lading Electronic Registry (Bolero),[32] launched in September 1999 and still operational today,[33] the adoption of eBL systems remains low. Less than four per cent of all bills of lading were digital by 2024.[34] According to an admittedly outdated survey report commissioned by the United Nations Conference on Trade and Development (UNCTAD) in 2003, the biggest obstacles to the use of eBLs included a need for more suitable technical infrastructure and market readiness, legal uncertainty, security concerns, high costs and confidentiality issues.[35]

Different aspects of the membership requirement pose an obstacle to the use of eBLs. This is because anyone wishing to use the eBL must join a closed system and a group of participating members,[36] while existing paper-based business practices have been based on decentralised authority without the need for an intermediary to register and execute title transfers.[37] This poses four specific challenges.

First, the main technical challenge is finding a method for transferring the eBL that prevents the transferor from controlling it after the transfer occurs

28 UK Department for Science, Innovation and Technology, 'Impact assessment of the Electronic Trade Documents Bill' (8 December 2022) at https://www.gov.uk/government/publications/electronic-trade-documents-bill-impact-assessment/impact-assessment-of-the-electronic-trade-documents-bill [https://perma.cc/T8BW-XYH8].

29 David Bury, 'Electronic Bills of Lading: A Never-Ending Story' (2016) 41 Tul Mar LJ 197, 198.

30 n 3 above.

31 See the literature on the Seadocs Registry Limited (SEADOCS), the earliest electronic bill of lading effort, in Yiannopoulos, n 1 above, 23; Emmanuel Laryea, *Paperless Trade: Opportunities, Challenges and Solutions* (The Hague: Kluwer Law International, 2002) 78-80.

32 Robert Caplehorn, 'The Bolero System' in Chris Reed, Ian Walden and Laura Edgar (eds), *Cross-Border Electronic Banking: Challenges and Opportunities* (London: Informa Business Publishing, 2nd ed, 2000) ch 4, 91.

33 Bolero, 'Bolero eBL-as-a-service' at https://www.bolero.net/bolero-ebl-as-a-service/ [https://perma.cc/U3AJ-HTWH].

34 Brian Canup, 'Lloyds Bank completes its first WaveBL electronic Bill of Lading transaction' *Trade Finance Global* 22 August 2024 at https://www.tradefinanceglobal.com/posts/lloyds-bank-completes-first-wavebl-electronic-bill-of-lading-transaction/ [https://perma.cc/3Q2H-YRFG]: 'It is estimated that only 2-3% of Bills of Lading are digital'; DCSA, 'The State of the Industry Report 2024: Insights on Digital Evolution in Container Shipping' (Ebook, 17 September 2024) at https://dcsa.org/newsroom/state-of-the-industry-container-shipping-industry-2024 [https://perma.cc/4PGX-D8X8] estimating eBL adoption at 3.7 per cent.

35 UNCTAD, 'The Use of Transport Documents in International Trade' UNCTAD/SDTE/TLB/2003/3 (2003) at [79]-[81] at https://unctad.org/system/files/official-document/sdtetlb20033_en.pdf.

36 Miriam Goldby, 'Electronic Bills of Lading and Central Registries: What Is Holding Back Progress?' (2008) 17 Inf & Commun Technol L 125, 132.

37 Earlier, unsuccessful eBL systems, such as SEADOCS, used a bank as a central registry for the whole process; see Stephen Girvin, *Carriage of Goods by Sea* (Oxford: OUP, 3rd ed, 2022) at [13.12]. Current initiatives are more decentralised, but still, the system is provided by either a technology company or a carrier's web portal.

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and grants the transferee exclusive control of the eBL, similar to the way in which transferring a paper bill of lading divests the transferor of possession of the paper bill and grants it to the transferee.[38] This requires an infrastructure where the eBL can be issued as data entered in an electronic registry system, or as data linked with a unique transferable token instantiated within a socio-technical system, such as a blockchain network.[39] The problem is that a supplier provides the underlying platform infrastructure, and the users of eBL systems accept terms set by the providers before being granted access to the platform.[40] When a third-party service provider is introduced in the transaction, it may not be located within the same jurisdiction as the parties engaged in the underlying trade transaction.[41] This affects the complexity of transacting and the users' certainty regarding the legal validity and consequences of the system terms.[42]

Second, the inability of users to trade with non-members,[43] especially in developing countries, has impeded the adoption of eBL systems.[44] Not only do all industry stakeholders need to adopt an eBL system, but they also need to make use of the same system or of systems that are interoperable. This renders eBL systems dependent on network effects. Simply put, network effects entail that the utility to a user of a good or service increases as more people use it.[45] In economic literature, a network effect is defined as 'the circumstance in which the net value of an action is affected by the number of agents taking equivalent actions,' whilst network externalities constitute 'a specific kind of network effect in which the equilibrium exhibits unexploited gains from trade regarding network participation.'[46] The realisation of network effects and network externalities typically requires interconnection between network members. The establishment that facilitates interconnection between the network members, and which enables the attainment of network effects, is called a network.[47] The eBL system is essentially a network, that is, 'an institution that facilitates interconnection between users of a good or service exhibiting network effects, and thus enables the realisation of the network effects.'[48] In turn, the value of membership in an eBL system increases as the number of other members of

38 Mohd Hwaidi and Graham Ferris, 'Switching from Paper to Electronic Bills of Lading: Part 2' (2020) 25 JIML 377; William Vaudry and Sarah Green, 'Electronic Trade Documents: The Law Commission's Provisional Proposals, the MLETR, and the Concept of Possession' [2021] JBL 625, 641.

39 The technical aspect of the system refers to the physical infrastructure running the software required for the blockchain protocol and the social dimension refers to the network of participants; see Law Commission, *Digital Assets: A Consultation Paper* CP No 256 (2022) at [10.33]. See also Jiabin Lai, 'Tokenisation of Documentary Intangibles' [2023] LMCLQ 92, 93.

40 Ilias Ioannou, 'Relational Trade Networks' (2023) 82 CLJ 450, 462-463.

41 Goldby, n 9 above at [11.06].

42 See text to notes 85-88 below.

43 The terms 'user' and 'member' are used interchangeably.

44 Goldby, n 9 above at [11.06].

45 Amitai Aviram, 'Regulation by Networks' (2003) 4 BYU LR 1179, 1181.

46 Stan Liebowitz and Stephen Margolis, 'Network Externality: An Uncommon Tragedy' (1994) 8 *Journal of Economic Perspectives* 133, 135.

47 Aviram, n 45 above, 1185.

48 *ibid*, 1182.

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the network grows.[49] The problem remains that until an eBL system achieves network effects, it is not cost-effective for prospective participants to join it.[50]

Third, to achieve network effects, a broad range of industry participants is required: merchants, ocean carriers, logistics providers, financers, insurers, and customs authorities. Onboarding all stakeholders is a formidable challenge.[51] As Paul Mallon from Bolero, put it, the main challenges for adoption are 'commercial, not legal'.[52] There are concerns regarding the confidentiality and security of members' transaction-related information.[53] The possibility of losing information due to system malfunctions is a reported obstacle to adoption.[54] The insurance cost remains expensive,[55] and platform providers tend to limit their liability cover.[56] Moreover, all participants have distinct, and sometimes competing, interests that they wish to protect. This is important in the liner carriage industry, which operates as an oligopoly,[57] so that carriers hold a stronger bargaining position than shippers and cargo owners, allowing them to impose terms that primarily serve their own interests.[58] Ocean carriers also want to ensure that the economic benefits of digitalisation will be shared equally among carriers, without any one carrier benefitting over other participating liner carriers.[59] Shipping lines may have an ownership stake in a platform, giving rise to concerns for discrimination among competing carriers in the same system. This risk has been reported to have hindered the adoption of digital trade platforms in the past.[60] Financial institutions supplying trade and supply chain finance are not easily convinced by the idea of extending

49 cf Michael Katz and Carl Shapiro, 'Technology Adoption in the Presence of Network Externalities' (1986) 94 *Journal of Political Economy* 822, 824.

50 Pejovic; n 16 above, 221.

51 Jake Fava, 'Chip Off the Old Block: Acknowledging the Obstacles to Widespread Adoption of Blockchain Bills of Lading' (2022) 2 LSE LR 181, 211.

52 Paul Mallon, 'Bolero: International experiences with the dematerialisation of negotiable transport documents' (UNCITRAL Webinar, 14 April 2021) 7 at https://uncitral.un.org/en/webinar-dematerialization-negotiable-transport-documents [https://perma.cc/AK32-6ZTD].

53 Goldby, n 9 above.

54 Yiannopoulos, n 1 above, 23-24.

55 Girvin, n 37 above at [13.15].

56 For example, CargoX limits its liability to €3m: see 'CargoX Ltd Special Terms and Conditions version 1.0', cl 14.1 (document is on file with the author).

57 Olaf Merk and Antonella Teodoro, 'Alternative approaches to measuring concentration in liner shipping' (2022) 24 *Maritime Economics & Logistics* 723, 724. According to the UNCTAD, *Review of Maritime Transport 2024* (Geneva and New York: UNCTAD, 2024) 56, the top ten container shipping lines collectively control more than 80 per cent of the global container fleet capacity.

58 As explained below, the issue that carriers have traditionally been in a bargaining position to dictate terms to shippers was one of the reasons that led to the adoption of the Hague Rules in 1924, see text to notes 175-177 below.

59 Leonora Beck, 'Rivals Fear Maersk Supremacy in New Digital Era' *ShippingWatch* 17 October 2017 at https://shippingwatch.com/carriers/Container/article9955814.ece [https://perma.cc/AZ45-V3HV].

60 Andre Wirjo, Akhmad Bayhaqi and Ee Ting Oh, 'Digitalising Trade: The Role of Paperless Platforms' (APEC policy brief 59, March 2024) 7 at https://www.apec.org/docs/default-source/publications/2024/3/224_psu_pb-59.pdf?sfvrsn=a05bd6ea_2 [https://perma.cc/9ZDT-KTHG]; 'The closure of TradeLens: when technology is not enough' *PierNext* 26 January 2023 at https://piernext.portdebarcelona.cat/en/technology/the-closure-of-tradelens/#:~:text=TradeLens%2C%20Maersk's%20blockchain%2Dbased%20digital,the%20first%20quarter%20of%202023. [https://perma.cc/4BU7-GAWJ].

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financing upon receipt of exclusive control of eBLs as collateral.[61] Merchants want to keep commercially important information secret.[62] Customs and other government bodies have their own legacy systems, and they also need adequate commercial interest to justify adopting electronic trading systems.[63]

Finally, legal obstacles to eBL adoption derive from the lack of harmonised legal recognition of eBLs across jurisdictions.[64] Current eBL systems rely on private rulebooks intended to replicate the tripartite function of the bill of lading contractually.[65] When users sign up to use eBL systems, they are deemed to have accepted, and are bound by, the contractual frameworks outlined in the providers' private rulebooks. For example, the CargoX rulebook provides 'the Smart B/L has the same status and attributes as a paper bill of lading. All Users undertake not to deny these effects. For that reason … the Originating User together with each and every Subsequent User may sue and/or be sued in precisely the same manner as if the Smart B/L were a paper bill of lading …'.[66]

Private rulebooks employ various contractual mechanisms to replicate the functions of the bill of lading. These mechanisms facilitate the transfer of possessory rights, assignment of rights and liabilities, and the right to sue by transferring the electronic alternative of the paper bill of lading (eBL).[67] One mechanism employed by several eBL paperless trading systems, including edox-Online,[68] CargoX,[69] Bolero,[70] ICE Digital Trade[71] and eTEU eBL Platform,[72] involves the use of contractual devices, such as novation and attornment.

61 Marek Dubovec, 'The Problems and Possibilities for Using Electronic Bills of Lading as Collateral' (2006) 23 Arizona J Int'l & Comparative Law 437, 453.

62 UNECE/ECTD, 'Transfer of Model Law on Electronic Transferable Records – Compliant Titles' (8 September 2023, updated 1 December 2023) 16-17 at https://unece.org/trade/documents/2023/09/white-paper-transfer-model-law-electronic-transferable-records-compliant.

63 Fava, n 51 above, 215; Aleksei Bondarenko, 'Advancing the digitalization of trade supporting documents in the Eurasian Economic Union member States and beyond' (Working paper, 13 September 2023) 41-43 at https://www.unescap.org/kp/2023/advancing-digitalization-trade-supporting-documents-eurasian-economic-union-member-states.

64 Thomas Krebs, 'Electronic Transport Documents – A New Dawn?' [2023] LMCLQ 82.

65 IGP&I-approved rulebooks include the Bolero rulebook (1999), Databridge Services and Users Agreements (1/2021 and 1/2023), e-Title™'s Electronic Title User Agreement v 1.2, edox-Online's eBL Terms and Conditions (5/2018), CargoX Special Terms and Conditions (2/2020), Covantis Service Agreements (10/2024 and 2/2025) and Covantins General Terms and Conditions (10/2024 and 2/2025), WAVE Network Bylaws (11/2023), TradeLens eBL Rulebook and Service Description (10/2022), IQAX eBL Service Terms and Conditions (2/2022), Secro Customer and User Agreement (3/2023) and e-bill (9/2023), and TradeGo User Agreement (12/2022), eTEU Terms and Conditions (9/2023), Britc eBL Terms and conditions (3/2024), Enigio Standard Terms and Conditions v 20240304; see IGP&I, n 3 above.

66 n 56 above, cl 8.1.

67 Michael G. Bridge and others, *The Law of Personal Property* (London: Sweet & Maxwell, 4th ed, 2021) at [5-042]-[5-043].

68 Laura Starr and Jacqueline Tan, 'Electronic Bills of Lading – An Update Part I' (UKP&I Club, News, 26 March 2020) at https://www.ukpandi.com/news-and-resources/legal-content/legal-articles/electronic-bills-of-lading-an-update-part-i/ [https://perma.cc/CML4-2VXW].

69 n 56 above, cl 7.

70 *Bolero Rulebook* (London: Bolero International Limited, 1st ed, 1999) cll 3.4 and 3.5.

71 'Databridge Services and Users Agreement' (DSUA), cll 7.3, 7.4, and 8 cited in Goldby, n 9 above at [6.24] and Pejovic; n 16 above, 232.

72 eTEU, 'eTEU eBL Platform Terms and Conditions' (7 September 2023) cll 8.2 and 8.4 at https://eteu.co.uk/terms-conditions/.

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Novation is a trilateral arrangement that effects the transfer of contractual rights from the transferor to the transferee of the eBL by creating a new contract between the transferee of the eBL and the carrier upon each transfer of the eBL.[73] The contract between the carrier and the transferor of the eBL is novated to the carrier and the transferee of the eBL.[74] For example, eTEU eBL Platform Terms & Conditions state:

> It is expressly agreed between the Carrier and the Service Provider (as agent for each and every subsequent User) that each and every subsequent User, upon accepting these T&C's and becoming a transferee of the eBL, thereupon becomes a party to the eBL by novation, such eBL evidencing the contract of carriage between the Carrier and the subsequent Users. … Consequently, the transfer of title and the transfer of rights and liabilities operate in exactly the same way as if the eBL were a paper bill of lading. All Users accept the equivalence of the eBL to a paper bill of lading and no Users will deny these legal impacts and effects.[75]

The transfer of the constructive possession of the goods to the transferee of the eBL is achieved through the mechanism of attornment.[76] Attornment entails the communication to the bailee of the goods by the bailor of an intention to transfer the goods to a new bailor, and notice by the bailee to such new bailor that they recognise they now hold the goods for them.[77] The effect of the attornment is that the carrier acknowledges that it holds the goods described in the eBL to the order of the transferee of the eBL from the time of the transfer of the eBL.[78]

Another mechanism entails the contractual incorporation of specific legislative provisions, such as the Carriage of Goods by Sea Act 1992, that would mandatorily apply had a paper bill been used. This mechanism is employed by e-title™ in its electronic Title User Agreement v 1.2[79] and in part in the TradeLens's eBL Rulebook.[80] TradeLens's eBL rulebook attempts to incorporate by reference and apply to the TradeLens eBL 'as a matter of law' or 'as

73 Novation involves the discharge of an existing contract and the creation of a 'new contract' between one of the original parties and the novatee; see *Deutsche Bank* v *Unitech Global* [2013] EWHC 471 (Comm) at [50] per Cooke J.

74 Bolero Rulebook, n 70 above, cl 3.5.1; DSUA, cl 8 cited in Goldby, n 9 above at [6.25]; CargoX rulebook, n 56 above, cl 7.

75 eTEU Terms, n 72 above, cll 8.2 and 8.4.

76 *ibid*, cl. 7.2, 10.1; CargoX rulebook, n 56 above, cl 6.5; Bolero Rulebook, n 70 above, cll 3.4 and 3.6.

77 *Mitsui & Co Ltd* v *Novorossiysk Shipping Co (The Gudermes)* [1993] 1 Lloyd's Rep 311, 324 per Staughton LJ; *The Future Express* [1993] 2 Lloyds Rep 542, 550.

78 eTEU Terms, n 72 above, cl 10.1: 'The carrier is automatically notified by the eBL Platform of every single transfer of their issued eBL and is deemed to have attorned the goods in favour of such Next User.'

79 This is reported in Jacqueline Tan, Laura Starr and Chao Wu, 'Legal Briefing on Electronic Bills of Lading' (UK P&I Club, News, 30 May 2017) 5 at https://www.ukpandi.com/news-and-resources/publications/legal-briefing-electronic-bills-of-lading/ [https://perma.cc/89GN-9RHZ].

80 'TradeLens eBL Rulebook and Service Description' version i126-8845-05, September 2022, Appendix A: TradeLens eBL Rulebook, cll 3(b)(c)(d), 4.2 and 5 at www.ibm.com/support/customer/csol/terms?id=i126-8845&lc=en#detail-document [https://perma.cc/B9UX-66CN] (TradeLens eBL rulebook).

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a matter of contract', 'any provisions of an international treaty, convention or national law compulsorily applicable to a paper bill of lading.'[81]

A third mechanism used in WAVE BL Bylaws is to contractually replicate the provisions upon which existing legal frameworks rely to recognise the effects, in terms of legal rights and liabilities, of issuing and transferring paper bills of lading.[82]

A more recent mechanism, used by Secro Terms, relies on express agreement of all users that the eBL will function, and have the exact same effect, as a paper bill of lading. This mechanism utilises a choice-of-law clause to select an applicable law that already recognises eBLs as legally valid under general law.[83] For example, Secro terms state

> 9.1 The Customer, Active Users, External Users, Trading Partners expressly agree that the Secro e-bill of lading, when recorded in electronic format, operates and has the same effect as if it were in paper format …
> 9.2 The Customer holding the Secro e-bill of lading in his digital wallet on the Secro system (vault), is the holder of the Secro e-bill of lading and has the exclusive right of control over it …
> 9.5(b)(b) … the laws of Singapore, including the Electronic Transactions Act 2010 and the Bills of Lading Act 1992 as amended from time to time, shall mandatorily apply only with respect to the validity of this Bill of Lading, the identity of the parties to the Contract of Carriage it evidences and the transfer of the rights and liabilities thereunder[84]

Contractual frameworks increase transaction costs and the complexity of transacting while remaining untested in court.[85] This is because bills of lading perform many functions that require significant effort to be replicated contractually.[86] Signing up to use multiple platforms requires considerable time and resources to scrutinise the terms and conditions of each system.[87] Accepting the contractual framework of one system does not bind a user to the terms of another system. Importantly, the varied contractual mechanisms employed by different eBL systems for replicating the tripartite function of the bill of

81 *ibid*, cl 3: 'The TradeLens eBL shall be subject to any provisions of an international treaty, convention or national law compulsorily applicable to a paper bill of lading. Each User and Issuing User hereby agrees that each and all of the foregoing terms shall apply to the TradeLens eBL as a matter of law or hereby as a matter of contract.'

82 'Wave BL Network Bylaws, version 2.0, IGPANDI Approved 1st November 2023, Effective as of December 1st 2023', cl 7 at https://docs.wavebl.com/Wave_bylaws_v2.0.html [https://perma.cc/4LGW-67XS].

83 'Secro Terms and Conditions' version 16 March 2023, cl 9 at https://shared-secro-s3.s3.us-west-1.amazonaws.com/2023.03.16+-+Secro+Customer+and+User+Agreement.pdf [https://perma.cc/V5JA-FBK4].

84 *ibid*.

85 Law Commission, *Electronic trade documents: Report and Bill* HC 1188 Law Com No 405 (2022) at [2.12].

86 Tianyi Jiang, 'Regulating electronic bills of lading on a national level' (2023) 7 JBL 604, 609.

87 DCSA, 'Survey: FIT Alliance reveals strong interest in eBL, pinpoints obstacles to address' (Newsroom Article, 1 August 2022) at https://www.dcsa.org/newsroom/survey-fit-alliance-reveals-strong-interest-in-ebl-pinpoints-obstacles-to-address [https://perma.cc/49J5-G34W] (DCSA Survey).

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lading render eBLs legally non-interoperable across systems.[88] Legal interoperability necessitates that the rulebooks of all eBL systems can work seamlessly together.[89] To achieve legal interoperability, eBL solution providers require an additional contractual framework that facilitates cross-platform eBL transfers and effectively allocates cross-platform liabilities.[90] Moreover, the rights obtained from using eBLs depend on whether national laws give legal effect to the provisions of the rulebook.[91] And even if they do, platform rulebooks only bind the signatories of the rulebook who have agreed on those terms, so that platform members have only personal claims against other members who transact over the platform.[92] In contrast, the law on paper bills of lading is harmonised across jurisdictions, as they originate from lex mercatoria and are governed by similar legal rules in a broad range of jurisdictions.[93] Thus, they can easily transfer property rights in the goods with *erga omnes* effect in cross-border transactions.

In June-July 2022, 20 years after the UNCTAD survey, another survey commissioned by the international consulting firm BRC Consultancy on behalf of the FIT Alliance[94] asked 278 participants from banks, freight forwarders, carriers, shippers, agents, consignees and others across 66 countries about the factors hindering eBL adoption.[95] The survey confirmed that adoption challenges re-

88 For example, some platforms, such as edoxOnline or CargoX, act as agents of their users to effect the transfer of contractual and possessory rights, while other platforms, such as WAVE BL, do not become part of the transaction; see Starr and Tan, n 68 above.

89 SWIFT, 'Connecting Global Trade: Enabling interoperability between financial institutions and electronic bill of lading (eBL) platforms' (Technology and Innovation, 7 December 2023) 7 at https://www.swift.com/news-events/news/swift-enables-global-trade-interoperability-successful-trials [https://perma.cc/FWD3-HXC5].

90 Omer Guy, 'The road towards the electronic bill of lading' [2023] *Lloyd's Shipping & Trade Law* 2.

91 Law Commission, n 85 above.

92 Most rulebooks rely on English law, and the mechanism of attornment enables the transfer of constructive possession of the goods. This mitigates the *erga omnes* problem as the transferee of the eBL can rely on possessory remedies against anyone who deprives him of possession of the goods, whether party to the Rulebook or not, provided that the effect of attornment is recognised by the forum in which the relevant dispute with the third party is being heard. The problem is, however, that not all legal systems recognise attornment or have a similar concept.

93 Harold Berman and Colin Kaufman, 'The Law of International Commercial Transactions (Lex Mercatoria)' (1978) 19 Harv International Law Journal 221. See *contra* Emily Kadens, 'The myth of the customary law merchant' (2012) 90 *Texas Law Review* 1153, 1158: 'the historical evidence does not bear out the law merchant tale. To the extent that merchants did indeed invent a special set of uniform and universal rules governing long-distance trade across premodern Europe, those legal rules usually arose from contract and legislation rather than from custom.'

94 The Future of International Trade Alliance (FIT Alliance) is a pan-industry framework composed of industry associations, whose aim is to promote the adoption of shipping standards and eBLs by shippers, consignees, carriers, regulators, banks and insurers across all sectors of the shipping industry; see FIT Alliance, 'This is us: FIT Alliance' at https://www.fit-alliance.org/about [https://perma.cc/K9P2-BHGH]; Thomas Bagge, 'The Future International Trade Alliance explained' (DCSA Newsroom Article, 25 May 2022) at https://dcsa.org/newsroom/resources/the-future-international-trade-alliance-explained-thomas-bagge/ [https://perma.cc/FJS6-C6N7]. It was formed in February 2022 with five founding members: the Baltic and International Maritime Council (BIMCO), the Digital Container Shipping Association (DCSA), the International Federation of Freight Forwarders Associations (FIATA), the International Chamber of Commerce (ICC) and the Society for Worldwide Interbank Financial Telecommunication (SWIFT); see further information about its founding members at notes 215-219 below.

95 DCSA, n 87 above.

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main largely the same. Seventy-three per cent of participants cited technology, platform or interoperability concerns as the most significant hurdles. The results indicate that despite the current availability of many well-established eBL platforms, organisations are reluctant to join them because each platform is 'a "walled garden" with its own proprietary technology and bylaws that govern the relationships between the stakeholders involved in a transaction' and because parties 'must all subscribe to the same platform' to make use of the eBL.[96] There is also a perceived vendor lock-in risk: eBLs cannot currently be transferred between different platforms, and multi-homing (signing up to multiple platforms) necessitates significant investments, including getting the legal department to read through and approve each platform's rulebook.[97] Thus, 63 per cent of respondents cited insufficient adoption and lack of readiness by other stakeholders as reasons preventing adoption. Over half of the survey participants (55 per cent) cited legal challenges with the use of eBLs.[98]

Nonetheless, two recent developments are arguably able to overcome the obstacles discussed above: legislative reform to support the uptake of eBLs, particularly the ETDA 2023 in the UK, and the use of blockchain instead of a centralised registry as an underlying technology for the eBL system. The next section assesses to what extent these advancements can address the challenges that have hindered the widespread adoption of eBLs in the past.

THE MECHANICS OF THE ELECTRONIC TRADE DOCUMENTS ACT 2023

The ETDA 2023, which came into force on 20 September 2023, gives effect to the recommendations made by the Law Commission of England and Wales in its published report on Electronic Trade Documents.[99] The purpose of the ETDA is to recognise electronic forms of certain trade documents as having the same effects as the equivalent documents in paper form.[100] The ETDA is concerned with a certain type of paper document used in trade and trade finance, the possession of which 'is required as a matter of law or commercial custom, usage or practice for a person to claim performance of an obligation'.[101] Examples of such documents include bills of exchange, promissory notes, bills of lading, ship's delivery orders, warehouse receipts, mate's receipts, marine insurance policies and cargo insurance certificates.[102] The problem identified by the Law Commission and addressed by the ETDA is that, as is the case with other

96 *ibid*.
97 *ibid*. For an overview of some of the standardisation initiatives aimed at addressing this problem, see Stephen Girvin and Elson Ong, 'Electronic Bills of Lading, Blockchain, and Distributed Ledger Technology (DLT)' in Stephen Girvin and Vibe Ulfbeck (eds), *Maritime Organisation, Management and Liability: A Legal Analysis of New Challenges in the Maritime Industry* (Oxford: Hart Publishing, 2021) 217.
98 DCSA Survey, n 87 above.
99 Law Commission, n 85 above.
100 Explanatory Notes to the ETDA 2023 at [2].
101 ETDA 2023, s 1(1).
102 ETDA 2023, s 1(2).

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jurisdictions, the law of England and Wales did not recognise intangible things as being amenable to possession.[103]

The ETDA 2023 provides that if such documents in electronic form meet the specific 'gateway criteria' set out in section 2(2) of the Act, they are legally possessable.[104] This means they can be subject to legal concepts based on possession, such as bailment or possessory securities, and can thus transfer property rights.[105] The gateway criteria a document must satisfy to be an electronic trade document (ETD) according to section 2(2) of the ETDA are the following:

> The information, together with any other information with which it is logically associated that is also in electronic form, constitutes an 'electronic trade document' for the purposes of this Act if a reliable system is used to –
>
> (a) identify the document so that it can be distinguished from any copies,
> (b) protect the document against unauthorised alteration,
> (c) secure that it is not possible for more than one person to exercise control of the document at any one time,
> (d) allow any person who is able to exercise control of the document to demonstrate that the person is able to do so, and
> (e) secure that a transfer of the document has effect to deprive any person who was able to exercise control of the document immediately before the transfer of the ability to do so (unless the person is able to exercise control by virtue of being a transferee).

To meet the criteria set out in section 2(2) of the ETDA 2023, a 'reliable system' must be employed.[106] Section 2(5) of the ETDA provides some guidance on how to determine the reliability of a system for the purposes of section 2(2) by enumerating a list of seven non-exhaustive factors that may be taken into account. These include the operational rules of the system, any measures taken to ensure the integrity and security of the system and of the hardware and software used by the system, the regularity of and extent of any audit of the system by an independent body, any assessment of the reliability of the system made by a supervisory or regulatory body and the provisions of any voluntary scheme or industry standard applicable to the system.[107] If a reliable system is used to satisfy the gateway criteria, electronic trade documents (ETDs) are recognised as things capable of being possessed and as having the same legal functionality as their paper counterparts.[108] The other sections of the ETDA concern change of form or medium of a trade document from electronic to paper form and vice versa,[109] exceptions of certain electronic documents from the ETDA,[110]

103 *OBG Ltd* v *Allan* [2007] UKHL 21; [2008] AC 1 at [101]; Law Commission, n 85 above at [2.7].
104 ETDA 2023, s 3(1).
105 See Miriam Goldby and Weishi Yang, 'Solving the Possession Problem: An Examination of the Law Commission's Proposal on Electronic Trade Documents' [2021] LMCLQ 605, 620.
106 ETDA 2023, s 2(2).
107 ETDA 2023, s 2(5).
108 ETDA 2023, ss 3(1) and 3(2).
109 ETDA 2023, s 4.
110 ETDA 2023, s 5.

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empowering provisions,[111] consequential provisions[112] and transitional provisions.[113]

The ETDA 2023 does not aim to be an exhaustive piece of legislation. The Act does not define what possession is, nor how paper trade documents operate. Instead, it has an enabling character facilitating the use of ETDs adopting the 'least interventionist approach.'[114] Specifically, the ETDA aims to plug ETDs into existing law: some issues, such as the use of electronic signatures, are dealt with by other pieces of legislation,[115] while other issues, such as how possession is to be applied with respect to intangible things, are left to common law.[116] For example, one effect of the ETDA is that wrongful interference with possession of ETDs would trigger the same possessory remedies as interference with possession of paper trade documents.[117] Common law will determine how the tort of conversion is to be applied in interference with possession of electronic documents[118] or how competing claims to ETDs ought to be resolved.[119] Some other issues are also left purposefully unaddressed. For example, the ETDA does not address private international law issues relating to ETDs, it does not define the place where ETDs or replacement paper documents are issued,[120] it does not provide for certification requirements for platforms providing services supporting the use of ETDs and it does not regulate access to and use of data related to the use of ETDs for business analytics purposes.[121]

Having considered the mechanics of the ETDA 2023, the next step in assessing its impact on the uptake of paperless trading systems is to examine the extent to which the ETDA and similar legislative initiatives in other countries adequately address the obstacles to adoption.

IS LEGAL RECOGNITION SUFFICIENT TO ADDRESS SCEPTICISM REGARDING THE MEMBERSHIP REQUIREMENT?

The purpose of enabling legislation is to give eBLs the same legal status as paper bills of lading. Alongside ETDA in the UK, various national reform ini-

111 ETDA 2023, s 6.
112 ETDA 2023, s 7.
113 ETDA 2023, s 8.
114 Law Commission, n 85 above at [2.60].
115 Law Commission, *Electronic Execution of Documents* Law Com No 386 (2019) at [3.6]-[3.56]. See also Electronic Communications Act 2000, s 7 and the Regulation (EU) No 910/2014 of the European Parliament and of the Council of 23 July 2014 on electronic identification and trust services for electronic transactions in the internal market and repealing Directive 1999/93/EC (eIDAS), Art 25. The eIDAS regulation remains part of the UK law by virtue of the European Union (Withdrawal) Act 2018, s 3(1) and the Electronic Identification and Trust Services for Electronic Transactions (Amendment etc) (EU Exit) Regulations 2019.
116 Explanatory Notes to the ETDA 2023 at [57].
117 cf ETDA 2023, s 3.
118 Law Commission, n 85 above at [8.46].
119 Law Commission, n 85 above at [7.50]-[7.61].
120 ETDA 2023, s 4(1) provides that, for a change of form of a paper trade document into an ETD and vice versa to take place, the converted document in its new form must include a statement that it has been converted.
121 Joanne Waters, 'The Electronic Trade Documents Act – how reliable are your systems?' [2023] *Maritime Risk International*.

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tiatives have been launched across jurisdictions. In the United States (US), eBLs have been acknowledged by an amendment to the Uniform Commercial Code (UCC).[122] The UCC is a uniform act aiming to promote uniformity in the commercial law of the 50 US states through its uniform adoption at the state level.[123] The 2003 amendments introduced several changes to §7 of the UCC recognising electronic documents of title, such as eBLs.[124] An electronic document of title is defined as 'a document of title evidenced by a record consisting of information stored in an electronic medium', whereas a tangible document of title is defined as 'a document of title evidenced by a record consisting of information that is inscribed on a tangible medium.'[125] The person who has control of a negotiable electronic document of title, such as an eBL, can be considered the holder of that document.[126] Amendments to the UCC in 2022 clarified when a person has control of an electronic document of title if the electronic document is hosted on a blockchain or another distributed ledger.[127] Despite the intricacies of the concept of control, as defined in §7-106 of the UCC,[128] it is generally accepted that US law recognises eBLs at the federal level.[129]

In 2021, the Singapore Electronic Transactions Act 2010 was amended to recognise eBLs and other electronic transferable records.[130] Under the amended Act, bills of lading can take electronic form if the electronic record contains the information required to be contained in the paper bill,[131] and a reliable method is used to ensure authenticity, integrity and that its capacity is subject to control.[132]

In Germany, eBLs were introduced by the Act on the Reform of Maritime Trade Law of 2013, which inserted article 516 of the German Commercial Code (Handelsgesetzbuch, hereinafter HGB). The HGB recognises eBLs as legal equivalents to paper bills of lading, provided that the authenticity and integrity of the electronic record are assured.[133] However, the German legislator has not yet specified with sufficient certainty the technical details con-

122 See UCC, §§1-201(b)(16).
123 Uniform Law Commission, 'What is a Uniform Act?' at https://my.uniformlaws.org/acts/overview/uniformacts [https://perma.cc/8MFA-YMRT].
124 See, for example, UCC, §7-501(b), regarding the rules on the form of negotiation and the requirements of due negotiation applicable to 'negotiable electronic documents of title.'
125 UCC, §1-201(b)(16).
126 UCC, §1-201(b)(21)(c) (2022 rev ed) at https://www.uniformlaws.org/viewdocument/final-act-164?CommunityKey=1457c422-ddb7-40b0-8c76-39a1991651ac&tab=librarydocuments [https://perma.cc/MN2M-PJED].
127 See the Official Comment on the revised version of the UCC in Uniform Law Commission and American Law Institute, 'Uniform Commercial Code Amendments (2022) with prefatory note and comments' (June 2023) 77-78 *ibid*.
128 cf Goldby and Yang, n 105 above, 613-614.
129 Law Commission, *Digital Assets: Electronic Trade Documents* Law Com CP No 254 (2021) at [4.71]-[4.76].
130 Singapore Electronic Transactions Act 2010 (2020 rev ed), s 16(A) and s 16(B).
131 *ibid*, s 16(H)(a).
132 *ibid*, s 16(H)(b).
133 Handelsgesetzbuch (HGB), s 516(2).

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cerning issuing, presenting and returning electronic documents under article 516(3).[134]

The situation is similar in Greece, where the new Code of Private Maritime Law, which came into force on 1 May 2023, states that if both the carrier and shipper consent to it, a bill of lading can be issued in a dematerialised form as an electronic document.[135] The new Greek Code of Private Maritime Law provides that 'the issuance, possession and transfer of the electronic bill of lading have the same effect and consequences with the issuance, possession and transfer of the paper bill of lading.'[136] A joint ministerial decision by the Digital Governance and Shipping and Insular Policy ministers will determine the technical requirements for issuing, presenting, and utilising a valid eBL.[137] In China, a proposed amendment in the Chinese Maritime Code of 1992 introduces the concept of 'electronic transport document', which covers eBLs.[138] In 2025, this was reportedly still in draft form, but the Standing Committee of the 14th National People's Congress identified the proposed amendment as a legislative priority in its annual work report in March 2025.[139]

A detailed comparative analysis of these reform initiatives is outside the scope of this paper. However, to be workable, eBLs need to be recognised with some degree of uniformity across jurisdictions. The Rotterdam Rules, which recognise 'electronic transport documents', have failed to gain traction.[140] The strong commitment from major trade jurisdictions to adopting legislation aligned with the MLETR has precipitated national law reform initiatives in line with the

134 HBG, s 516(3) reads: 'The Federal Ministry of Justice and Consumer Protection is hereby empowered to determine by regulation, issued in agreement with the Federal Ministry of the Interior and not requiring the consent of the Federal Council, the details of issuing, presenting, returning and transmitting an electronic bill of lading, as well as the particulars of the process of posting retroactive entries to an electronic bill of lading.' See German Federal Ministry of Justice translation (provided by Samson-Übersetzungen GmbH, Dr Carmen v. Schöning) at https://www.gesetze-im-internet.de/englisch_hgb/ [https://perma.cc/KJ6U-WAAH].

135 Law 5020/2023, OJ of the Hellenic Republic 29/15 February 2023, Art 125, available (in Greek) at https://www.hellenicparliament.gr/Nomothetiko-Ergo/Anazitisi-Nomothetikou-Ergou?law_id=6f852d2f-70b6-48cd-8532-af9a018109df [https://perma.cc/8MZ8-6E9C] .

136 *ibid*, Art 125(2) (author's translation).

137 *ibid*, Art 288(3). This joint ministerial decision, which will specify the technical details for issuing, transmitting and using eBLs is expected in 2026; see Argyro Kepesidi, 'The New Greek Maritime Code: Sailing Towards the 21st Century' (2025) 60 *European Transport Law* 3, 12.

138 James Zhengliang Hu and Lijun Liz Zhao, 'The Modernisation of the Chinese Maritime Code: The Revision of the Hybrid Regime Governing Carriage of Goods by Sea' in Shengnan Jia and Lijun Liz Zhao (eds), *Commercial and Maritime Law in China and Europe* (London: Informa Law, 2023) 52.

139 Evangeline Quek and Xueqing Wan, 'A milestone is approaching – China's draft legislation to enable electronic transport records' (Stephenson Harwood – Wei Tu China Association, Insights, 19 May 2025) at https://www.stephensonharwood.com/insights/a-milestone-is-approaching-china's-draft-legislation-to-enable-electronic-transport-records [https://perma.cc/473R-TWCA].

140 The United Nations Convention on Contracts for the International Carriage of Goods Wholly or Partly by Sea (Rotterdam Rules) has been ratified by five States (Benin, Cameroon, Congo, Spain and Togo). Pursuant to Art 94.1, 20 states need to ratify the Convention for it to enter into force.

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MLETR, rendering it the leading international legal standard in this domain.[141] The MLETR is a model law developed by UNCITRAL that aims to establish a harmonised global legal framework under which electronic transferable records can be accorded the same legal status as paper transferable documents or instruments.[142] The MLETR provides a foundation for law reform initiatives on the national level, and provides an exemplar text which is used by domestic legislatures when drafting legislation on the issue under consideration.[143] Therefore, it is fit for purpose in promoting the harmonisation and development of international trade law in this area.

The need for a contractual framework replicating the absence of legal recognition of ETDs becomes partially redundant if legislation is harmonised. This is because harmonised legislation recognising ETDs removes the need for commonly agreed rules describing the rights and obligations of parties to a transaction involving ETDs. To the extent that legislative reform initiatives achieve the transfer of property rights, such as in the case of the ETDA 2023, rulebooks have less significance as a body of residual rules that create privity among the stakeholders. Therefore, harmonised legal recognition of eBLs in alignment with the MLETR can address the 'legal uncertainty' challenge to their adoption and, thus, progressively diminish the legal transaction costs necessary for replicating the functions of the bill of lading and of the other paper trade documents contractually. From the legislative initiatives discussed above, the amendments to Singapore's Electronic Transaction Act incorporate the MLETR almost verbatim, and careful consideration was given to ensure that the ETDA aligns with the provisions of the MLETR. The UCC in the US is generally believed to achieve the same outcomes.[144] Legal recognition of trade documents in electronic form as equivalents to their paper counterparts provides, thus, an essential foundation that can address legal uncertainties and facilitate the design of paperless trading systems.

Even though it reduces legal uncertainty, enabling legislation does not necessarily address the 'membership requirement'. The terms and conditions for using eBL systems are inescapable. The users of the eBL still need to join a 'reliable' eBL system and accept its terms of use. Therefore, the technical and com-

141 G7, 'Ministerial Declaration: G7 Digital and Technology Ministers' (28 April 2021) 5-6 at https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/981567/G7_Digital_and_Technology_Ministerial_Declaration.pdf [https://perma.cc/E3ZJ-ZQLX].

142 MLETR, Art 10. Generally, on the MLETR, see Giusella Finocchiaro and Luca Castellani, 'The UNCITRAL Model Law on Electronic Transferable Records: Introduction and Overview' (2023) 5 *European Review of Private Law* 955.

143 Versions of MLETR have already been adopted in Bahrain, Belize, France, Kiribati, Papua New Guinea, Paraguay, Singapore, Abu Dhabi Global Market, Timor-Leste (Decree-Law no 12/2024 of 13 February 2024) and Tuvalu and are underway in many countries, including Spain and Australia; see 'MLETR Progress Tracker' at https://www.digitalizetrade.org/MLETR [https://perma.cc/5APB-8FPM].

144 Miriam Goldby, 'The Electronic Trade Documents Act 2023 and the 2003 amendments to Article 7 of the Uniform Commercial Code: Do they do the same thing?' (25 July 2023, revised 16 April 2024) 10-12 at https://papers.ssrn.com/sol3/papers.cfm?abstract_id=4517265.

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mercial challenges discussed above persist.[145] Upon admission, members must follow the system's policies, including the rulebook terms, market rules and internal protocols. The issues of the reliability of the system and the allocation of risks and liabilities still need to be addressed. For example, disputes have arisen regarding the allocation of liabilities as a result of the unauthorised use of electronic cargo release systems that utilise Personal Identification Numbers (PIN) in lieu of paper documents to facilitate the release of the containers at the port of discharge.[146] Participants' distinct and sometimes conflicting interests need to be balanced, and confidentiality issues regarding access to, and the use of, data must be resolved. This is because the commercial terms and conditions governing the collection and analysis of user-provided commercial data by a platform provider[147] are unlikely to affect the reliability of a system for the purposes of the ETDA 2023. The reliability of the system and its rules of operation may be considered only in connection with the ability of the system to replicate reliably the features of paper trade documents in electronic form by satisfying certain conditions or 'gateway' criteria.[148] While section 2(5) of ETDA provides a list of factors that may be taken into account in assessing the reliability of the system, including any audit by an independent body,[149] any assessment of the reliability of the system made by a body with supervisory or regulatory functions,[150] a voluntary scheme or an industry standard,[151] the purpose of this provision is to assess 'whether a system is reliable for the purposes of subsection (2).' This means that it will primarily be taken into account in determining whether a system reliably satisfies the criteria set out in section 2(2) of the ETDA.[152] Therefore, even though the ETDA requires a 'reliable system' to be used for an electronic document to qualify as an ETD, the commercial terms and conditions for using eBL systems are outside the scope of the Act. Consequently, this article submits that enabling legislation is necessary but insufficient by itself to address scepticism regarding the membership requirement and incentivise the broad uptake of eBLs. The following section explores whether technology provides a solution.

A REALITY CHECK ON THE TRANSFORMATIONAL POTENTIAL OF BLOCKCHAIN

As a solution to the problems that the ETDA 2023 does not address, blockchain is envisioned as a possible response to the barriers associated with the membership requirement posed by 'first-generation' eBL systems that rely on a cen-

145 See text to notes 53-60 above.
146 *Glencore International AG* v *MSC Mediterranean Shipping Co SA* [2017] EWCA Civ 365; [2017] 2 All ER (Comm) 881 at [6].
147 See for example 'Secro Terms and Conditions' n 83 above, cl 12.6.
148 ETDA 2023, ss 2(5)(a) and 2(2).
149 ETDA 2023, s 2(5)(e).
150 ETDA 2023, s 2(5)(f).
151 ETDA 2023, s 2(5)(g).
152 See text to notes 105-106 above.

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tralised registry.[153] Due to blockchain's decentralised feature, blockchain bills of lading can replicate the practical and legal features of paper bills of lading.[154] In their idealised form, blockchain-based eBLs would enable 'peer-to-peer transaction[s] without the need for a third-party agent administering a central registrar to validate the authenticity of the transaction.'[155] Proponents of the technology suggest that decentralisation is a key differentiation between registry-based eBL systems and blockchain-based systems.[156] In a registry system, the uniqueness of an eBL and the identity of the person who has rights under the eBL are validated by a centralised registry maintained by a trusted intermediary.[157] In a blockchain system, the encryption technology of the blockchain validates the uniqueness of the eBL and the identity of the person who has rights under the eBL 'without the need to put trust in intermediaries'.[158]

Takahashi suggests that blockchain can address the membership requirement by using open platforms. Citing the 2003 UNCTAD survey,[159] the author recognises the membership requirement as the biggest obstacle to eBL adoption and argues: 'Unlike the existing systems based on the central registry model, blockchain technology has made the guarantee of uniqueness possible in a decentralised system. Transactions take place peer-to-peer on an open platform *where no prior subscription to membership is required*.'[160]

Similarly, Bury suggests: 'Whereas past efforts to dematerialise paper bills of lading typically required some form of a trusted third-party central registry to track ownership, blockchain technology negates this requirement by creating "digital property" whose ownership is recorded on "decentralized ledgers".'[161]

This article takes a realistic view of the transformational potential of blockchain for eBLs. It is essential to ascertain which challenges blockchain can and cannot address. Academic commentators have different, and sometimes abstract, perceptions of blockchain technology when they assess its impact on eBLs. Therefore, this article considers the blockchain impact on eBLs based on the actual deployment of the technology in the industry.[162] Certain eBL systems have been approved by mutual insurance associations in the maritime industry,

153 Naomi Chetrit and others, 'Not Just for Illicit Trade in Contraband Anymore: Using Blockchain to Solve a Millennial-Long Problem with Bills of Lading' (2018) 22 Virg J L & Tech 59.

154 Christian Albrecht, 'Blockchain Bills of Lading: The End of History? Overcoming Paper-Based Transport Documents in Sea Carriage Through New Technologies' (2019) 43 Tulane Maritime LJ 251.

155 Mohd Hwaidi and Graham Ferris, 'Switching from paper to electronic bills of lading: Part 1' (2019) 25 JIML 297, 299.

156 Niels-Philip Abdellatif, 'An Ethereum bill of lading under the UNCITRAL MLETR' (2020) 27 *Maastricht Journal of European and Comparative Law* 250, 269-270; Jake M. Herd, '"Blocks of Lading": Distributed Ledger Technology and the Disruption of Sea Carriage Regulation' (2018) 18 QUTLR 306, 309.

157 Takahashi, n 12 above, 495.

158 *ibid*, 496.

159 n 35 above.

160 Koji Takahashi, 'Blockchain Technology and Electronic Bills of Lading' (2016) 22 JIML 202, 205 (emphasis added).

161 n 29 above, 235.

162 Deepesh Patel and Emmanuelle Ganne, *Blockchain and DLT in Trade: A Reality Check* (London: WTO, 2019) 36.

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which comprise the International Group of Protection and Indemnity Insurance Clubs (IGP&I).[163] Liabilities arising in respect of the carriage of cargo under an eBL are covered by these associations, provided that the system has first been approved.[164] Out of the 16 eBL systems that have obtained approval by the IGP&I that are operational at the time of writing, 12 utilise blockchain technology.[165] According to the providers of such systems, blockchain enables the creation of eBLs in the form of non-fungible tokens, which are transferable directly between users.[166] Some providers supply on-premises solutions, which may even allow data to be hosted locally on the customers' servers and which mirror the confidential status of the paper bills.[167] Indeed, blockchain can offer a system based on the token model, where the eBL and title to the goods are represented in the token itself instead of in a centralised registry.[168]

Nonetheless, taking a closer look at those systems, it is possible to identify two common features in all eBL systems currently in use, regardless of whether they are blockchain-based or not. First, they revolve around a common modular architecture comprising a platform provider and platform members.[169] The provider offers the eBL as-a-service or subscription offering.[170] Second, they all require platform members – users of the eBL service – to accept the terms of use that govern each eBL's operation.[171] This is because a technology service provider is still required to provide users with an interface with an underlying blockchain.[172] It follows that those eBL systems in commercial use do not eliminate the membership requirement because they do not do away with the requirement that users need to be members of the same eBL system to transact. Therefore, this article postulates that the terms of use of each system which prescribe what the membership requirement entails,

163 A complete list of all currently available IGP&I-approved eBL systems is provided in 'IG approved electronic bill of lading systems' n 3 above.

164 UKP&I Club, 'Circular Ref. 01/23:Electronic Paperless Trading' (News and Resources, 23 January 2023) at https://www.ukpandi.com/news-and-resources/circulars/2023/circular-01-23-electronic-paperless-trading/ [https://perma.cc/U4K8-AV2M].

165 These include edoxOnline, Wave BL, CargoX, Covantis eBL, IQAX eBL, Secro, TradeGo eBL, eTEU eBL Platform, BRITC eBL, trace:original™, Credore and BlockPeer Technologies Inc; see n 3 above; UKP&I Club, 'Electronic Paperless Trading – "Covantis eBL powered by Secro"' (Circulars, 13 November 2014) at https://www.ukpandi.com/news-and-resources/circulars/article/circular-16/24-electronic-paperless-trading/ [https://perma.cc/T942-Z2UC].

166 Patrick Vlasic and Bojan Cekrlic, 'The legality of an electronic bill of lading: A technical and legal overview' (CargoX, 11 November 2020) at https://cargox.io/blog/legality-electronic-bill-lading/.

167 Wave BL, 'Wave BL's on-premises solution' (Twitter, 10 February 2021) at https://mobile.twitter.com/wavebl/status/1359428895284596738 [https://perma.cc/C5J2-XDE5].

168 Law Commission, n 85 above at [2.26]; Elson Ong, 'Blockchain Bills of Lading and the UNCITRAL Model Law on Electronic Transferable Records' [2020] JBL 205.

169 For example the Bolero system is provided by Bolero International Ltd, CargoX is provided by CargoX Ltd, Wave BL by OGY DOCs Inc, TradeGo eBL by TradeGo PTE Ltd, edoxOnline by Global Share SA, Secro by Secro Inc, eTEU eBL by eTEU Technologies Ltd, e-title by e-title authority Pte Ltd, Britc eBL by Britc eTrade Solution Co Ltd, IQAX eBL by IQAX Limited and trade:original™ by Enigio AB; see IGP&I, n 3 above.

170 CargoX, n 56 above, cl 2.1: 'CargoX grants a license to Users to make use of its website and the Service in accordance with these ST&C's'; TradeLens eBL Rulebook and Service Description, n 80 above, cl 1.1.

171 See all currently approved rulebooks, n 65 above.

172 CargoX, n 56 above, cl 15.4.

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ie what are the rights, obligations and liabilities of the users-members, are still a key factor influencing whether prospective users will adopt an eBL solution.

As discussed above, the ETDA 2023 does not connect the ability of an electronic trading system to reliably meet the gateway criteria outlined in section 2(2) to the commercial terms and conditions set by service providers.[173] Linking the reliability of a system to its governance and commercial terms of use would have undesirable consequences and expose users to unnecessary risks. Parties would be exposed to the risk that changes in the commercial terms, such as those regarding data access and use, could deprive users of rights that they would have by possessing an ETD: if a system were found unreliable, documents hosted on that system would not qualify as ETDs under the ETDA. This would be an overly strict and uncommercial interpretation of the reliability requirement.

THE NEED FOR GOVERNANCE

This article has thus far shown that the combined forces of the ETDA 2023 and blockchain technology do not clearly address the longstanding concerns surrounding the membership requirement which have held back the adoption of eBL systems over the past 40 years. This section will argue that existing pieces of regulation aimed at addressing power asymmetries in the liner shipping industry are similarly unlikely to provide a governance framework capable of mitigating these concerns in the context of digitisation.

Contracts of carriage covered by paper bills of lading are regulated internationally through international conventions. The most widely adopted convention is the Hague Rules as amended by the Brussels Protocol 1968.[174] One of the main objectives of the Rules was to answer 'whether the freedom of contract on the part of the shipowner with regard to carriage of goods by sea should be absolute or should be limited by legislation'.[175] The problem was that carriers were in a bargaining position to dictate terms to shippers. As noted by James S. McConechy,[176] speaking at the ILA Hague Conference 1921 preceding the adoption of the Hague Rules,

173 Text to notes 147-152 above.

174 International Convention for the Unification of Certain Rules of Law relating to Bills of Lading 1924 (Hague Rules), as amended by the Brussels Protocol 1968 (Hague-Visby Rules or the Rules).

175 Comité Maritime International, 'The Travaux Préparatoires of the International Convention for the Unification of Certain Rules of Law Relating to Bills of Lading of 25 August 1924, The Hague Rules, and of the Protocols of 23 February 1968 and 21 December 1979, The Hague-Visby Rules' (Travaux Préparatoires) 24 at https://comitemaritime.org/wp-content/uploads/2018/05/Travaux-Preparatoires-of-the-Hague-Rules-and-of-the-Hague-Visby-Rules.pdf [https://perma.cc/9P6L-K455].

176 Secretary of the Bill of Lading Committee of the Manchester Chamber of Commerce. See Michael F. Sturley, 'The History of COGSA and the Hague Rules' (1991) 22 JMLC 1, 20.

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> when you have to deal with the conference liners, they, of course, quite in a business way, all combine to have certain bills of lading worded in a certain way, so that they may work in conference, and they cannot get out of it, and, with such clauses in the bills of lading as there are now, no cargo owner can make any bargain with the shipowner. *He has simply to ship his goods in accordance with the bills of lading which exist in the conference lines, or otherwise to have his cargo shut out or refused*.[177]

The Rules represent a compromise, balancing the competing interests between shipowners and shippers,[178] and impose limits on the freedom of contract concerning the carriage of goods by sea.[179] Certain inescapable obligations are imposed, providing the carrier exercises due diligence to make the ship seaworthy and properly manned, equipped and supplied.[180] As noted by Viscount Simonds in *The Muncaster Castle*: 'The Hague Rules, as is well known, were the result of the Conferences on Maritime Law held at Brussels in 1922 and 1923. Their aim was broadly to standardise within certain limits the rights of every holder of a bill of lading against the shipowner, prescribing an irreducible minimum for the responsibilities and liabilities to be undertaken by the latter.'[181]

The primary question with eBLs is whether international regulations of contracts of carriage, such as the Hague Rules or the Hague-Visby Rules, apply to eBLs. Prior to the enactment of the ETDA 2023, Goldby contended that if the Rules are interpreted literally as applying solely to paper bills of lading, eBLs would provide a way for carriers to escape regulation which would otherwise apply mandatorily were a paper bill of lading issued.[182] This could have the unintended consequence of incentivising shippers to insist on paper bills, creating a hurdle to digital transformation.[183] If, on the other hand, the Rules were interpreted 'purposively'[184] to include eBLs, this hurdle would be eliminated as eBLs would be captured by the Rules.[185] As the applicability of the Rules to

177 Travaux Préparatoires n 175 above, 89 (emphasis added).

178 This compromise reflected the balance of power between the parties: see *Linea Naviera Paramaconi SA* v *Abnormal Load Ltd* [2001] 1 All ER (Comm) 946; [2001] 1 Lloyd's Rep 763 at [19] per Tomlinson J, quoting Bingham LJ in *Compania Portorafti Commerciale SA* v *Ultramar Panama Inc (The Captain Gregos)* [1990] 3 All ER 967; [1990] 1 Lloyd's Rep 310 (CA), 312. See also *Effort Shipping Co Ltd* v *Linden Management SA (The Giannis NK)* [1998] AC 605 (HL), 621.

179 The Hague-Visby Rules apply mandatorily if the provisions of Art X are satisfied. However, significant jurisdictions, such as the US, have not ratified the Visby Protocol, which means that the unamended Hague Rules apply if the bill of lading is issued in a port located within the US or where carriage is inbound to the US: see the Carriage of Goods by Sea Act 1936, ch 229, 49 Stat 1207 (as amended), s 13; see now 46 USC §30701.

180 Travaux Préparatoires n 175 above, 24. This is enshrined in the Hague-Visby Rules, Art III.

181 *Riverstone Meat Co Pty Ltd* v *Lancashire Shipping Co Ltd (The Muncaster Castle)* [1961] 1 Lloyd's Rep 57; [1961] AC 807 (HL), 836.

182 Miriam Goldby, 'The Impact of New Commercial Practices on Liner Contracts of Carriage: New Wine in Old Skins?' in Jason Chuah (ed), *Research Handbook on Maritime Law and Regulation* (Cheltenham: Edward Elgar Publishing, 2019) 231-232.

183 *ibid*, 240.

184 For English law, see *AP Moller Maersk A/S trading as Maersk Line* v *Kyokuyo Ltd* [2018] EWCA Civ 778; [2018] 2 Lloyd's Rep 59 at [70], where Flaux LJ gave effect to 'the clear intention' behind the Rules.

185 Goldby, n 182 above, 240.

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eBLs is a matter of interpretation,[186] this issue can indeed be solved at the national level by enacting enabling legislation or through purposive interpretation by courts applying the Rules. Indeed, with the enactment of the ETDA in the UK, the Carriage of Goods by Sea Act 1971, which incorporates the Hague-Visby Rules into English law, can apply to eBLs governed by the ETDA.[187]

However, existing regulations of contracts of carriage do not cover the terms and conditions offered to shippers and other stakeholders by platform providers offering the eBL service to customers. These terms and conditions, enshrined in platform 'rulebooks', are independent of the contract of carriage and, thus, not covered by liner carriage regulation. They are typical Software-as-a-Service (SaaS) or Blockchain-as-a-Service (BaaS) contracts that allocate the relevant risks and liabilities for the use of an eBL system, provide for data confidentiality, set liability limitations, and, of course, set a price for the use of the eBL service.[188] As these rulebooks are business-to-business contracts, consumer protection regulation does not apply to eBL systems. As such, platform rulebooks escape regulation; they are unregulated contracts based on freedom of contract. In English Law, the Unfair Contract Terms Act 1977 provides only limited protection to users. This is because, according to section 27, where English law is applicable only by choice of the parties, such as in platform rulebooks, the core provisions of the Act do not apply. The situation might be different in civil law jurisdictions. Most eBL systems, however, include a choice of English law clause, and there is currently no IGP&I-approved rulebook governed by the substantive laws of a civil law country.

Digitisation is driven by shipping lines, which are the leading actors in the container ship supply chain. It is no secret that some shipping lines are expanding vertically in the supply chain and transforming into multimodal logistics operators.[189] This threatens the commercial position and strategic interests of other intermediaries, such as freight forwarders[190] and non-vessel operating common carriers (NVOCCs),[191] and places them in direct competition with shipping lines in providing transportation and logistics solutions for shippers.[192] It is, therefore, no surprise that such intermediaries are reluctant to join eBL

186 Generally as to the approach to the interpretation of the Rules (and other international conventions), see *Alize 1954* v *Allianz Elementar Versicherungs AG (The CMA CGM Libra)* [2020] UKSC 51; [2021] 2 Lloyd's Rep 613 at [34]-[42].

187 Carriage of Goods by Sea Act 1971, s 1(6) in conjunction with Hague-Visby Rules, Art X and ETDA 2023, s 3(2).

188 n 170 above.

189 James Baker, 'Maersk's aim to shake up supply chains has further to run: Liner giant says network must extend well beyond ocean core to improve supply chains' *Lloyd's List* 15 February 2023 at https://lloydslist.com/LL1143999/Maersks-aim-to-shake-up-supply-chains-has-further-to-run [https://perma.cc/4XDX-DDBD].

190 Freight forwarders are employed by shippers to book space and enter the contract of carriage as their agents. See Girvin, n 37 above at [1.39]; [3.40]-[3.43].

191 NVOCCs comprise the shippers in their relationships with ocean carriers but carriers in their relationship with the initial shipper; they function as 'single contractual carrier' for shippers seeking a 'door-to-door' service. See Andrew D. Kehagiaras, 'Duty Call: Do NVOCCs Have a Duty to Exercise Due Diligence to Make a Ship Seaworthy?' (2014) 27 U of San Francisco Maritime LJ 37, 38-39.

192 International Transport Forum (ITF), *Performance of Maritime Logistics* International Transport Forum Policy Papers 106 (Paris: OECD Publishing, 2022) 43.

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systems.[193] Synergies between shipping lines and technology companies to provide eBL systems, such as TradeLens, have not been widely implemented due to the industry's scepticism about sharing the necessary information online and depending on a digital platform for transacting.[194]

Moreover, on 15 February 2023, shipping lines representing almost three-quarters of the industry in terms of carrying capacity made an 'eBL adoption declaration'[195] as part of their participation in the Digital Containers Shipping Association (DCSA).[196] Under the agreement, nine of the world's major ocean carriers have jointly committed to converting in their respective organisations 50 per cent of original bill of lading activities to digital within five years and 100 per cent by 2030.[197] This declaration could potentially raise competition law concerns because business customers might eventually be left without access to a shipping line that offers a paper bill of lading option.[198] This would restrict the options of prospective members or even compel them to join an eBL system, 'or otherwise to have [their] cargo shut out or refused' to use the wording employed by James S. McConechy almost a century ago.[199]

It could be argued that competition between eBL systems to attract members would solve these problems. An open market could enable shippers and freight forwarders to negotiate with eBL providers and choose to use a system that offers its members terms that suit their needs. However, this depends on two premises: (i) that terms can be negotiated and are not standardised contracts of adhesion, or (ii) that prospective members would only participate in an eBL system if they wished to do so. In reality, however, these terms are part of a pre-existing multilateral contract, the platform rulebook, and thus are not individually negotiated when each user enters the system. Shipping companies may have an equity stake in eBL platforms[200] and can effectively dictate terms on a 'take it or leave it basis' to shippers who are prospective members of the

193 Son Nguyen, Peggy Shu-Ling Chen and Yuquan Du, 'Blockchain adoption in container shipping: An empirical study on barriers, approaches, and recommendations' (2023) 155 *Marine Policy* 5-7.

194 Dag Holmstad, 'Maersk explains Tradelens shutdown: Central players won't share "necessary data"' *Shippingwatch* 1 December 2022 at https://shippingwatch.com/carriers/Container/article14644675.ece?utm_campaign=ShippingWatch%20Newsletter&utm_content=2022-12-01&utm_medium=email&utm_source=shippingwatch_com [https://perma.cc/GG96-AJ47].

195 DCSA, 'Commitment to accelerating digitalisation of container trade – the electronic bill of lading' 15 February 2023 at https://dcsa.org/wp-content/uploads/2023/02/100-percent-ebl-by-2030-commitment-statement.pdf [https://perma.cc/M6XR-6A75].

196 As of 6 August 2025, the shipping lines above represented 75.4 per cent of the market share; data regarding the carrying capacity of container carriers were retrieved from Alphaliner: 'Alphaliner TOP 100' at https://alphaliner.axsmarine.com/PublicTop100/ [https://perma.cc/BC7D-E3SG].

197 DCSA, 'DCSA's member carriers commit to a fully standardised, electronic bill of lading by 2030' (Press Release, 15 February 2023) at https://dcsa.org/newsroom/resources/dcsas-member-carriers-commit-to-a-fully-standardised-electronic-bill-of-lading-by-2030/ [https://perma.cc/KF2B-MFXR].

198 The extent to which exemptions of competition law cover this declaration, such as the Consortia Block Exemption Regulation in the EU and the Digital Container Shipping Association Agreement in the US (Federal Maritime Commission Agreement No 201288, 11 April 2019) is outside the scope of this paper.

199 n 177 above.

200 Gaskell, n 20 above, 238.

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eBL platform for the use of the platform. This could adversely affect the sentiment of prospective users who might be opposed to a situation where they are encouraged to use eBL systems on such standard terms.

Instead of relying on commercial pressure to promote the adoption of eBL systems under standardised terms set by each system provider, this article argues for the need for governance to encourage the industry's voluntary adoption of eBL systems. The terms of use of eBL systems serve as a form of private regulation shaping the transition to paperless trading systems. Private transnational laws and regulations derive their legitimacy and normative power from the equitable incorporation of the interests of all stakeholders who will be impacted by the subsequent norm application.[201] In cyberspace, legitimacy can be assessed by observing the conduct of those to whom the norm is directed.[202] The focus lies on the acceptability and recognition of such norms.[203] Therefore, the voluntary adoption of a system by the users to whom it is addressed can be viewed as evidence of the legitimacy of such a system. It is submitted that an important reason for the failure of eBL systems hitherto is a deficit in their legitimacy. To that end, it is necessary to establish a governance mechanism to legitimise the terms of use of reliable eBL systems in the eyes of the international trade community. The final section provides some preliminary thoughts on the role of non-governmental organisations and industry associations in shaping such a governance mechanism.

THE WAY FORWARD

The ETDA 2023 requires the use of a reliable system to ensure that a document in electronic form qualifies as an 'electronic trade document'. However, it does not necessarily address the requirement that all users must become members and utilise a reliable electronic trading system offered by one or more commercial providers. The transition to eBLs relies on the economic benefits and legitimacy of eBLs and on the trustworthiness of the providers of reliable eBL systems.[204] A century after the conclusion of the Hague Rules regulating contracts of carriage covered by a bill of lading, a new instrument is required to ensure that eBLs are covered by the existing conventions, and that the terms of use of electronic trading systems are balanced and fair. Legislative reform initiatives on the national level, such as the ETDA in the UK, can ensure that eBLs are covered by existing conventions. The legalisation of eBLs, however, does not necessarily legitimise their use. Good governance is required to promote trust and legitimacy of eBL systems. Good governance would help industry stakeholders such as banks, merchants, insurers, and logistic providers

201 Andreas Maurer, 'Transnational Shipping Law: The Role of Private Legal Actors in International Shipping' in Miriam Goldby and Loukas Mistelis (eds), *The Role of Arbitration in Shipping Law* (Oxford: OUP, 2016) 229, 241.

202 Chris Reed, 'Cyberspace Institutions, Community and Legitimate Authority' in Orkun Akseli and John Linarelli (eds), *The Future of Commercial Law: Ways Forward for Change and Reform* (London: Hart, 2019) 133.

203 Gralf-Peter Calliess and Peer Zumbansen, *Rough Consensus and Running Code: A Theory of Transnational Private Law* (London: Hart, 2010) 249.

204 Girvin and Ong, n 97 above, 220.

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overcome their hesitation and voluntarily adopt such systems. As a contract is the only source of governance in this setting, the terms and conditions underlying the use of electronic trading systems need regulation.

To realise the ETDA 2023's economic benefits, a standardised framework of governance that regulates the ability of shipping lines and electronic trading system providers to impose unfettered terms on system users is needed. The question that arises is what factors may ensure that this framework will be legitimate and adopted willingly by the system providers and the various communities of system users. While the notion of legitimacy has many meanings in different contexts,[205] it can broadly be defined as the acceptance of a system exercising authority or power by those acting subject to it.[206] According to Black, 'legitimacy means social credibility and acceptability … a statement that a regulator is "legitimate" means that it is perceived as having a right to govern both by those it seeks to govern and those on behalf of whom it purports to govern.'[207] In our context, the legitimacy of the proposed standardised framework of governance will depend on both (1) the respect in which those who craft it are held and (2) the quality and workability of the framework itself as a mechanism for balancing the commercial interests of the parties involved.[208] Three interrelated questions emerge.[209] First, which organisation or institution should undertake the development of the standardised framework to enhance the legitimacy of electronic trading systems in the eyes of the international trade community? Second, what principles or provisions should be reflected in this framework to ensure its own legitimacy? Third, what should its precise legal nature be? While this paper does not aim to formulate detailed normative proposals for regulating the terms and conditions governing the use of eBL systems, a preliminary response to these questions is nevertheless warranted to delineate the contours of the proposed framework.

In response to the first question, this article proposes that the industry should develop a standardised governance framework for electronic trading systems under the auspices of an inclusive, representative trade body. While the authority and expertise of the standard-setting organisation are likely to promote the adoption of the framework by system providers and various user communities, reaching an agreement on the content of the standard primarily entails balancing competing interests and values. With this in mind, the interests of trade actors who are potential users of such systems and to whom the terms of use are directed must be represented in the institution attempting to develop the standardised framework.[210] The effective representation of prospective system users in forming the framework satisfies the jurisprudential claim that 'the only regulations and ways of acting that can claim legitimacy are those to which all who

205 Christopher Thomas, 'The uses and abuses of legitimacy in international law' (2014) 34 OJLS 729, 733-746.

206 Max Weber, *The Theory of Social and Economic Organisation* (Oxford: OUP, A. M. Henderson and Talcott Parsons tr, 1947) 130 *et seq*.

207 Julia Black, 'Constructing and contesting legitimacy and accountability in polycentric regulatory regimes' (2008) 2 *Regulation & Governance* 137, 144.

208 cf Reed, n 202 above, 129.

209 I am grateful to the anonymous reviewers for this insight.

210 cf Reed, n 202 above, 129.

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are possibly affected could assent as participants in rational discourses'.[211] This 'bottom-up approach' is what Bodansky refers to as 'participatory legitimacy' and is based on the preferences and participation of the governed in the rule-making process.[212] Segments of the industry have increasingly recognised this need, as evidenced by efforts initiated by standard-setting bodies representing specific sectors, such as the DCSA, to broaden stakeholder participation.[213]

Effective representation of the various user communities can be achieved if industry associations representing the interests of trade participants who are prospective system users are involved in devising the form and content of the rules governing electronic trading systems. The FIT Alliance, a transnational pan-industry framework formed in 2022,[214] is well positioned to contribute to the development of a standardised framework and balance the various vested interests, as its founding members include industry bodies representing the interests of potential system users across many sectors in international trade, including bulk carriers (BIMCO),[215] shipping lines (DCSA),[216] freight forwarders (FIATA),[217] traders (ICC)[218] and financial institutions (SWIFT).[219] The FIT Alliance's multi-stakeholder structure seems preferable to that of a specific industry association because the latter is likely to prioritise the interests of a discrete industry, specifically those of its founding organisations. The formalisation of the FIT Alliance framework into a standard-setting organisation needs to be accompanied by 'throughput legitimacy', namely some assurance that the industry communities who have a 'seat in the bargaining table' and are involved in the creation of the standardised framework are given equal, or at least analogous, voices and roles.[220] This can be achieved if the standard-setting body representing the various user communities adopts some internal rules, such as a constitution, articles of association, or a governance charter to govern its rule-making processes.

In response to the second question, another central factor that would contribute to the legitimacy of the standardised framework is the quality and work-

211 Jürgen Habermas, *Between Facts and Norms: Contributions to a Discourse Theory of Law and Democracy* (Harvard, MA: Massachusetts Institute of Technology Press, William Rehg tr, 1995) 458.

212 Daniel Bodansky, 'The legitimacy of international governance: coming challenge for international environmental law' (1999) 93 *American Journal of International Law* 596, 617.

213 DCSA, 'DCSA launches DCSA+ Partnership Programme to connect key industry stakeholders' (Press Release, 3 March 2025) at https://dcsa.org/newsroom/dcsa-launches-dcsa-partnership-programme-to-connect-key-industry-stakeholders [https://perma.cc/K52R-D7UR].

214 n 94 above.

215 BIMCO is one of the largest global shipping associations representing shipowners; see BIMCO, 'About us and our members' at https://www.bimco.org/about-us-and-our-members [https://perma.cc/HX6K-YDMZ].

216 n 25 above.

217 FIATA is a non-governmental international organisation representing freight forwarders; see FIATA, 'Who we are' at https://fiata.org/about/ [https://perma.cc/4HKS-ZKBT].

218 The ICC is an industry asociation that represents the interests of businesses that trade internationally; see ICC, 'About ICC' at https://iccwbo.org/about-icc-2/ [https://perma.cc/CD7R-PGSW].

219 SWIFT is a member-owned banking cooperative providing services relating to secure financial messaging between banks; see SWIFT, 'Discover SWIFT' at https://www.swift.com/about-us/who-we-are [https://perma.cc/JC9Z-W2LX].

220 Phillip Paiement, 'Paradox and Legitimacy in Transnational Legal Pluralism ' (2013) 4 *Transnational Legal Theory* 197, 214.

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ability of the output of the rule-making process, that is the standard's content. As Paiement suggests, 'the output of expert-led transnational legal measures can only be considered optimal in relation to a set of interests.'[221] In our context, the set of interests with which the standardised framework is concerned does not involve those of the public but rather the interests of the prospective system users. Prospective users must be assured of the suitability and fairness of the terms governing (1) the allocation of liabilities that may arise from the use of these systems, (2) the collection, storage, analysis and usage of the exchanged data for business analytics purposes, and (3) the processes for setting and revising pricing and other essential commercial terms related to system use.[222] For instance, effective governance of data provided by system users could be achieved by including the principles enshrined in the 'Charter for Protection and Governance of Data in International Trade' within a standardised governance framework for electronic trading systems, such as a model rulebook.[223] The Charter articulates principles that protect the interests of system users, including shippers, freight forwarders, and other parties collectively called 'supply chain stakeholders.'[224] It provides a checklist of rights and protections that prospective users would expect to see incorporated into the terms and conditions they must accept when registering to use an electronic trading system.[225] The incorporation of such principles into a model rulebook could fortify the legitimacy of its content and incentivise the uptake of systems that integrate the model rulebook's provisions in their governing terms. This would incentivise system providers that 'compete for legitimacy' to align their governing terms with the principles contained in the model rulebook.[226]

The third question concerns the legal nature of the proposed framework. As noted earlier, one possible approach is to develop standardised terms of use for electronic trading systems in the form of a voluntary, industry-produced model rulebook. Alternatively, a legal standard can take the form of an international uniform law instrument, such as an international convention developed by Working Group IV of UNCITRAL or an additional protocol to the Hague-Visby Rules that specifically regulates the governing terms used by eBL systems. Indeed, much of the success of the Rules can be attributed to the industry's significant involvement in the drafting process through the Comité Maritime

221 *ibid*.

222 For the reasons why the terms of use of such systems should be regulated, see the preceding section, particularly text to notes 189-194 above.

223 International Federation of Freight Forwarders Associations (FIATA) and Global Shippers Forum, 'Fostering Trust and Security for Resilient Digital Supply Chains: A Charter for Protection and Governance of Data in International Trade' 19 April 2023 at https://globalshippersforum.com/wp-content/uploads/2023/04/GSF-FIATA-Data-Governance-Charter-230419-TYPE.pdf [https://perma.cc/LZ4A-7B2J].

224 *ibid*, 2.

225 *ibid*, 2; James Hookham, 'Ensuring data protection and trust in digital logistics platform' (FIATA Review 150, March 2025) 18 at https://www.flipsnack.com/fiata/fiata-review-march-2025/full-view.html?p=16.

226 System providers function as non-state regulators that compete for legitimacy in an attempt to ensure that prospective users 'buy' their regulation instead of their competitors' regulation; cf Julia Black, 'Legitimacy and the Competition for Regulatory Share' (2009) LSE Law Society Economy Working Paper 14/2009, 2 at https://eprints.lse.ac.uk/24559/ [https://perma.cc/SBJ9-2VYX].

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International (CMI), 'a non-governmental not-for-profit international organisation established in Antwerp in 1897' dedicated to promoting 'the unification of maritime law in all its aspects.'[227] While, in theory, an international uniform law instrument, such as an international convention, could provide a suitable governance framework for electronic trading systems, its successful and timely adoption is less probable than that of an industry-produced model rulebook. Digital technologies are developing at a rapid pace, and a legal standard that harnesses the benefits of the ETDA 2023 must be implementable in the short term and sufficiently flexible to adapt to future advancements. The lengthy processes associated with establishing and ratifying international conventions raise the risk that any agreement reached might already be obsolete by the time an international convention enters into force, if it enters into force at all. A case in point is that it took decades to negotiate and agree to the Hague Rules and the Brussels Protocol, and other international conventions, such as the Rotterdam Rules, never came into force.[228]

Furthermore, the model rulebook will primarily affect prospective users of electronic trading systems. Therefore, its voluntary adoption relies on it being perceived as fair and just by those users. The involvement of industry representatives in the rule-making process may enhance the legitimacy and adoption of the standardised framework, as trade participants are likely to possess superior information about its implications than representatives of nation-states. The challenging part is finding the optimal balance among the competing interests of the diverse group of trade actors who need to participate in electronic trading systems to achieve digitisation. While this issue is reserved for another project, it is suggested that it is primarily the role of the industry to reach a consensus on the detailed content of the standard. Just as commercial practices evolved INCOTERMS or the Uniform Customs and Practice for Documentary Credits (UCP 600) to govern international sales and trade financing transactions,[229] this article tentatively favours a model rulebook that can be developed by the international trade community and which commercial parties and system providers could choose to incorporate by reference in their user agreement terms and conditions.[230] The terms of the model rulebook could 'harden' and gain normative recognition by courts when courts are called to enforce those terms.[231] That said, should the industry fail to achieve balanced contractual governance, it may become necessary to adopt an international uniform law instrument to address regu-

227 'Comité Maritime International Articles of Association 2022' 21 October 2022, Art 1, at https://comitemaritime.org/governance/constitution/ [https://perma.cc/DAJ7-3Q9R]; Paul B. Stephan, 'The Futility of Unification and Harmonization in International Commercial Law' (1998-99) 39 *Virginia Journal of International Law* 743, 764-66.

228 n 140 above.

229 International Chamber of Commerce, 'INCOTERMS 2020' ICC Publication No P723E (2019); International Chamber of Commerce, 'Uniform Customs and Practice for Documentary Credits' ICC Publication No 600 (2007).

230 cf a similar proposal in the context of model electronic data interchange agreements in Amelia Boss, 'Electronic Data Interchange Agreements: Private Contracting Towards Global Environment' (1992-1993) 13 *Northwestern Journal of International Law & Business* 31, 65-68.

231 Julia Black and David Rouch, 'The development of the global markets as rule-makers: engagement and legitimacy' (2008) 2 *Law and Financial Markets Review* 218, 224.

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latory gaps in the relationship among the parties engaged in electronic trading systems.

Certain industry bodies, such as the Centre for Digital Trade and Innovation, an industry-led, government-supported public-private partnership under the auspices of the UK branch of the ICC, are already active in establishing reliability standards under the ETDA 2023 so that users can have some assurance of reliability when choosing which system to use to trade digitally.[232] These organisations could complement these efforts by contributing to the establishment of a standardised governance framework for electronic trading systems, such as a model rulebook, through their participation in the FIT Alliance framework. Adopting a role-dependent and risk-allocational legal standard that sets out certain principles or standardised terms of use that system providers could follow would promote trust and legitimacy in such systems. It would render each system's commercial terms de facto self-regulated, allowing systems to incorporate the standardised terms into their own terms of use if they determine that doing so would enhance their functionality and increase their usage.

Moreover, such a legal standard will facilitate legal interoperability between the various systems, enabling the terms and conditions of different platforms to work seamlessly together. Achieving interoperability necessitates the resolution of three distinct problems: (1) legal interoperability, (2) technical interoperability, and (3) commercial alignment between solution providers.[233] While legislative reform, such as the ETDA 2023, facilitates legal interoperability by removing the need for commonly agreed-upon contractual frameworks functioning as a substitute for legal recognition that a trade document could be electronic,[234] technical interoperability and commercial alignment are yet to be achieved. The main global initiatives aimed at enabling both technical interoperability and commercial alignment among eBL systems are discussed below.

First, technical interoperability requires electronic trading systems to find a technical method for transferring an original electronic document from one system to another. Industry organisations such as the DCSA and SWIFT have conducted several successful pilots to achieve technical interoperability.[235] One

232 International Chamber of Commerce (ICC) United Kingdom and Centre for Digital Trade and Innovation, 'Delivering the Electronic Trade Documents Act Provisions: English Law Reliable Systems Assurance Model' (August 2023) (document on file with the author). Relatedly, the Digital Standards Initiative of the ICC, in collaboration with Canada's Digital Governance Council, has launched a self-assessment tool for evaluating the reliability of electronic trading systems; see 'Conformity Assessment Scheme: Digital Trade Documentation' at https://github.com/dgc-cgn/CAS-Digital-Trade-Documentation [https://perma.cc/246J-MJWD].

233 Guy, n 90 above.

234 See text to notes 143-144 above.

235 SWIFT, n 89 above, 8; Marina Mayer, 'eBL Platform Interoperability Proof of Concept Further Promotes Digital Trade' (Food Logistics, Transportation, 25 July 2022 at https://www.foodlogistics.com/transportation/ocean-ports-carriers/news/22353270/digital-container-shipping-association-dcsa-ebl-platform-interoperability-proof-of-concept-further-promotes-digital-trade accessed 31 August 2023 [https://perma.cc/L2PG-TCM5]; 'ICE CargoDocs interoperable eBLs go live in container transaction involving Mitsui, PIL and CrimsonLogic' *ICE Digital Trade Blog* 18 March 2025 at https://www.essdocs.com/blog/ice-cargodocs-

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initiative, TradeTrust, is increasingly highlighted in this regard. TradeTrust is a government-led digital framework and solution developed by Singapore's Infocomm Media Development Authority (IMDA).[236] TradeTrust addresses the current lack of technical interoperability in the market by enabling the issuance of TradeTrust-enabled eBLs independently of any specific platform or system.[237] The technological foundation of TradeTrust is facilitated by Open Attestation,[238] which ensures that electronic documents generated using this technology are reliable, trustworthy, independently verifiable and able to effect title transfer.[239] TradeTrust claims it is not a competitor to existing electronic trading systems,[240] but it provides a framework upon which industry actors can develop bespoke digital solutions.[241] TradeTrust provides the back-end solution,[242] sitting beneath the 'application layer' built by individual applications or platforms.[243] TradeTrust does not have a centralised portal or terms and conditions governing how parties use TradeTrust, nor are there any associated fees payable to IMDA for using TradeTrust.[244] Instead, TradeTrust is freely available to all and offered as a 'digital public good'.[245] Developers can integrate the TradeTrust framework into their bespoke applications or platforms to connect their systems on the backend to a public blockchain network supported by TradeTrust.[246] Different systems that are TradeTrust-enabled are technically interoperable and can synchronise with each other even if they use different public blockchains.[247] TradeTrust currently facilitates connections to the Ethereum, Polygon and XDC blockchains.[248]

Second, the shift from walled garden systems[249] to interoperable systems is a business decision for the providers of electronic trading systems. Providers may need to negotiate an interoperability agreement among themselves and agree on the allocation of cross-platform liabilities, the allocation of responsibilities to insure against risks, rules governing data-sharing, the prescription (or not) of minimum-security requirements for all platforms, and basic commercial terms,

interoperable-ebls-go-live-container-transaction-mitsui-pil-crimsonlogic; DCSA, 'DCSA completes standards-based interoperable eBL transaction, marking major industry milestone' (Press Release, 15 May 2025) at https://dcsa.org/newsroom/ebl-interoperability-milestone [https://perma.cc/RL9E-KVG9].

236 Philip Prowse and others, 'TradeTrust-enabled Electronic Bills of Lading: A legal and practical analysis of their use in global trade' (Stephenson Harwood LLP, 2023) at [1.3] at https://www.tradetrust.io/files/TradeTrust_Legal_Analysis_Article.pdf [https://perma.cc/97M9-6FJ2].

237 *ibid* at [1.5].

238 Government Technology Agency (Singapore), 'What is open attestation' (*GovTech Singapore*, 2024) at https://www.openattestation.com [https://perma.cc/5AT8-XVLG].

239 n 236 above at [2.14.1].

240 *ibid* at [1.5].

241 *ibid* at [2.9].

242 'Backend' refers to 'the software which users of a website or digital platform do not see, in contrast to the "frontend" or user interface'; *ibid*, 48.

243 *ibid* at [2.10].

244 *ibid* at [2.11].

245 *ibid* at [2.14.1].

246 *ibid* at [2.12].

247 *ibid* at [2.13].

248 *ibid*.

249 'Walled garden systems' are discussed at text to n 96 above.

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such as who is getting paid what and when.[250] The implementation of such an interoperability agreement could be either automatic if all providers agree to update their rulebooks to reflect interoperability on their user agreements, or it could be optional, leaving the user to choose if they wish to make use of the interoperability functionality.[251] Given the diverse ways in which interoperability can be designed and implemented, which may conform to varying degrees with different system architectures, reaching a consensus on the way forward has not been a straightforward task.[252]

On 27 March 2025, TradeTrust released a set of 'Model Terms'[253] along with 'Guidance Notes'[254] to foster legal interoperability by assisting eBL system providers that have adopted the TradeTrust framework in obtaining approval under the IGP&I's approval processes.[255] While the TradeTrust Model Terms offer useful guidance to system providers seeking IGP&I approval, they remain an incomplete solution as they do not cover key commercial terms of use, such as data governance rules, the apportionment of cross-platform liabilities, and financial arrangements, including the parties responsible for payments and the structure of fee distribution.[256] In this context, establishing a global legal standard, such as a model rulebook for electronic trading systems, would facilitate the attainment of interoperability. It would standardise the terms governing the use of data provided by users, outline the allocation of risks, liabilities and responsibilities, and set minimum requirements that solutions providers would need to meet.

250 DCSA, 'DCSA begins final phase of eBL platform interoperability proof of concept' (Press Release, 12 July 2022) at https://dcsa.org/newsroom/resources/dcsa-begins-final-phase-of-ebl-platform-interoperability-proof-of-concept/ [https://perma.cc/DA63-Q5EC]; 'Cross-Platform eBLs become a reality as OOCL and a major oil and gas company go live' (GSBN, 19 March 2025) at https://www.gsbn.trade/post/cross-platform-ebls-become-a-reality-as-oocl-and-a-major-oil-and-gas-company-go-live [https://perma.cc/HT87-VJ9Z].

251 UKP&I Club, 'Circular Ref. 01/25: Electronic Paperless Trading – IQAX Limited – Approval by the IQAX eBL interoperable addendum' (Circulars, 15 January 2025) at https://www.ukpandi.com/news-and-resources/circulars/article/circular-01/25-electronic-paperless-trading-iqax-limited-approval-by-the-iqax-ebl-interoperable-addendum/ [https://perma.cc/WU7V-UMWK].

252 Felix Thompson, 'Ice Digital Trade hedges bets on interoperable eBLs' *Global Trade Review* 2 April 2025 at https://www.gtreview.com/news/fintech/ice-digital-trade-hedges-bets-on-interoperable-ebls/ [https://perma.cc/EZU9-6W5K].

253 IMDA TradeTrust and Watson Farley & Williams LLP, 'Appendix 1: TradeTrust Model Terms' 27 March 2025 at https://www.tradetrust.io/files/TradeTrust_Model_Terms.pdf [https://perma.cc/D5MZ-87WF].

254 IMDA TradeTrust and Watson Farley & Williams LLP, 'Guidance Notes: Model Terms to Support the Use of TradeTrust Electronic Bills of Lading' 27 March 2025 at https://www.tradetrust.io/files/Guidance_Notes_for_TradeTrust_Model_Terms.pdf [https://perma.cc/L4K9-HZQX].

255 IGP&I, 'International Group Approvals: Process for e-bill system providers' (News and insights, 4 February 2025) at https://www.igpandi.org/article/process-for-e-bill-system-providers/ [https://perma.cc/YL74-3B7H]; IGP&I, 'International Group requirements for electronic trading system providers' (News and Insights, 4 February 2025) at https://www.igpandi.org/article/international-group-requirements-for-electronic-trading-system-providers/ [https://perma.cc/77HC-5K6S]; IGP&I, 'Electronic Bills of Lading: Notification of new process' (News and Insights, 4 February 2025) at https://www.igpandi.org/article/electronic-bills-of-lading-notification-of-new-process/ [https://perma.cc/DL9T-X7P8].

256 For example TradeTrust Model Terms, n 253 above at [61].

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CONCLUSION

This article examines whether legislative reform initiatives, particularly the ETDA 2023, can effectively address the adoption challenges and incentivise the long-awaited widespread use of electronic paperless trading systems. It concludes that the ETDA effectively addresses the possession problem and makes electronic trade documents usable under English law, accomplishing its primary goal. However, there are limits on what enabling legislation can achieve. This article shows that the adoption of the ETDA does not remove the requirement that all parties to a transaction involving electronic trade documents must join an electronic trading system and accept the terms set by its commercial operator. Widespread implementation thus depends on whether reliable ETD systems are legitimised and become trusted by parties engaged in international trade. In this context, it is essential to regulate and standardise the terms and conditions governing the operation of such systems. Industry associations are in a prime position to contribute to the establishment of a standardised framework of governance that balances the diverse interests of the stakeholders and legitimises paperless trading systems within the international trade community.

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CASE

Cart before the Horse? *BSH Hausgeräte* v *Electrolux* and Exclusive Jurisdiction over Patent Validity

Maxence Rivoire*

In a much-anticipated judgment, the Grand Chamber of the CJEU in *BSH Hausgeräte GmbH* v *Electrolux AP* reshaped the landscape of cross-border patent litigation in the EU. The case concerned the interpretation of Article 24(4) of Regulation 1215/2012 (Brussels Ia), under which the courts of the European Member State of deposit or registration have exclusive jurisdiction 'in proceedings concerned with the registration or validity of patents, trade marks, designs, or other similar rights required to be deposited or registered, irrespective of whether the issue is raised by way of an action or as a defence'. In its judgment, the Court of Justice clarified that a court seised of an infringement claim relating to a patent registered in a EU Member State does not lose jurisdiction merely because the defendant has challenged validity. It also confirmed that Article 24(4) does not apply to patents registered in third States, and – crucially – permitted courts to assess the validity of such patents *inter partes*. This note examines the practical implications of this landmark ruling, identifies unresolved questions, and criticises the inconsistency it introduced between patents registered inside and outside the EU.

INTRODUCTION

In a much-anticipated judgment, the Grand Chamber of the CJEU in *BSH Hausgeräte GmbH* v *Electrolux AP*[1] (*BSH* (CJEU)) reshaped the landscape of cross-border patent litigation in the EU. The case concerned the interpretation of Article 24(4) of Regulation 1215/2012 (Brussels Ia), under which the courts of the European Member State of deposit or registration have exclusive jurisdiction 'in proceedings concerned with the registration or validity of patents, trade marks, designs, or other similar rights required to be deposited or registered, irrespective of whether the issue is raised by way of an action or as a defence'. In its judgment, the Court of Justice clarified that a court seised of an infringement claim relating to a patent registered in a EU Member State does not lose jurisdiction merely because the defendant has challenged validity. It also confirmed that Article 24(4) does not apply to patents registered in third States, and – crucially – permitted courts to assess the validity of such patents *inter partes*. This note examines the practical implications of this landmark ruling,

*Lecturer, Dickson Poon School of Law, King's College London.

1 Case C-339/22 *BSH Hausgeräte GmbH* v *Electrolux AP* ECLI:EU:C:2025:108.

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identifies unresolved questions, and criticises the inconsistency it introduced between patents registered inside and outside the EU.

BACKGROUND OF THE CASE

The dispute involved German company BSH Hausgeräte (BSH), a leading home appliances manufacturer.[2] BSH held a European bundle patent in the field of vacuum cleaners, registered in Germany, Greece, Spain, France, Italy, the Netherlands, Austria, Sweden, the United Kingdom, and Türkiye. In 2020, BSH brought infringement proceedings based on all national parts of the patent against Swedish company Electrolux AB (Electrolux) before the Patent and Commercial Court of Sweden. To defeat these claims, Electrolux raised that the patents were invalid, as defendants frequently do in patent infringement cases. Since European patents in the traditional sense do not create a supranational patent but only a bundle of national patents,[3] Electrolux argued that the Swedish court lacked jurisdiction to rule not only on the validity of non-Swedish patents, but also on their alleged infringement – which, for Electrolux, could not be separated from validity issues.

In response, BSH submitted that the Swedish court retained jurisdiction to hear the infringement claims based on Article 4(1) of the Brussels Ia Regulation, the general rule providing jurisdiction to the courts of the Member State in which the defendant is domiciled (which, in this case, was Sweden). As exceptions to that rule had to be interpreted restrictively, the Swedish court could still, according to BSH, hear the alleged infringement despite Electrolux's challenge to validity. While acknowledging that the Swedish court could not determine the validity of patents registered in EU Member States, BSH also argued that Article 24(4) of the Brussels Ia Regulation did not apply to patents registered outside the EU (in this case, the Turkish patent).[4]

At first instance, the Patent and Commercial Court accepted Electrolux's arguments and declined jurisdiction as a whole, in relation to both the infringement and validity of the non-Swedish patents. To justify its decision, the court noted that the validity issue was 'crucial' to the outcome of the infringement claim. It also considered, with regards to the Turkish patent, that the rule

2 Unless otherwise stated, the facts are drawn from the judgments of both the CJEU, *ibid*, and the referring court, Svea Court of Appeal, Patent and Commercial Court of Appeal, *BSH Hausgeräte GmbH* v *Electrolux AB*, 24 May 2022, Case no PMÖ 671/21 (*BSH* (CA)).

3 Since 1977, the European Patent Convention (EPC) has made it possible to apply for a European Patent before the European Patent Office (EPO). Despite their label, these patents confer a bundle of national patents registered in several Member States of the EPC. Since 2023, it is possible to apply – also before the EPO – for a European patent with unitary effects, extending throughout the EU Member States that are part of the Agreement on a Unified Patent Court. See Agreement on a Unified Patent Court (adopted 19 February 2013, entered into force 1 June 2023) [2013] OJ C175/1 (UPC Agreement); European Patent Convention (signed 5 October 1973, entered into force 7 October 1977) 1065 UNTS 199.

4 The UK was still part of the EU when the claim was brought in 2020.

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contained in Article 24(4) embodied 'an internationally accepted principle of jurisdiction'.[5]

BSH appealed to the Svea Court of Appeal, which referred the case to the CJEU and asked three questions.[6] First, does Article 24(4) of the Brussels Ia Regulation mean that a court seised of an infringement claim loses jurisdiction entirely where the defendant raises invalidity as a defence, or can the court still hear the alleged infringement claim? Second, does the answer to this question depend on a domestic rule – similar to a Swedish provision invoked by Electrolux[7] – requiring invalidity actions to be brought in separate proceedings for an invalidity defence to be heard? Finally, does Article 24(4) confer jurisdiction on the courts of third States, ie, in this case, the Turkish courts concerning the validity of the Turkish patent?

After two opinions of Advocate General (AG) Emiliou,[8] the Grand Chamber of the CJEU rendered a judgment with far-reaching implications in the patent sphere and beyond. While the CJEU unsurprisingly allowed courts to hear an alleged infringement even when the validity of a patent registered in a Member State is challenged, the answer to the third question was far more radical, as the CJEU permitted courts to determine the incidental validity of third State patents between the parties. This is a paradoxical outcome, which – as is argued in this note – the EU legislator should fix by extending this so-called '*inter partes* approach' to patents registered in EU Member States.

PATENTS REGISTERED IN EU MEMBER STATES OR MEMBER STATES OF THE LUGANO CONVENTION

The CJEU's decision: Courts judging infringement claims do not lose their jurisdiction merely because validity is challenged

With regards to the first and second questions (which were addressed together), the CJEU ruled at the outset that a national rule cannot affect the interpretation

5 Patent and Commercial Court, *BSH Hausgeräte GmbH* v *Electrolux AB*, 21 December 2020, as summarised in *BSH* (CA) n 2 above at [9]. See also AG Emiliou no 1 n 8 below at [14].

6 *BSH* (CA) *ibid*.

7 *BSH* (CJEU) n 1 above at [15]. To substantiate its argument that the Swedish courts had jurisdiction to hear the alleged infringement, BSH notably relied on Swedish Patent Act, Art 61, whereby '[i]f an action concerning patent infringement is brought and the person against whom the action is brought claims that the patent is invalid, the question of invalidity may be considered only after an action to that effect has been brought. The court shall order the party claiming that the patent is invalid to bring such an action within a specific period'. For BSH, that provision allowed the Patent and Commercial Court to determine infringement in a separate judgment and stay proceedings pending the resolution of validity issues in each country of patent registration. At first instance, the Patent and Commercial Court had disregarded this provision on the basis that it did not concern international jurisdiction (*BSH* (CA) n 2 above at [9]). However, its relevance was still contested before the Svea Court of Appeal, hence the second question to the CJEU.

8 Case C-339/22 *BSH Hausgeräte GmbH* v *Electrolux AP* Opinion of AG Emiliou, 22 February 2024 ECLI:EU:C:2024:159 (AG Emiliou no 1); Case C-339/22 *BSH Hausgeräte GmbH* v *Electrolux AP* Opinion of AG Emiliou, 5 September 2024 ECLI:EU:C:2024:687 (AG Emiliou no 2).

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of Article 24(4).[9] As that provision makes no reference to the law of Member States, the notions it contains must be regarded as autonomous.[10] After emphasising the need to interpret the Brussels Ia Regulation consistently with the 2001 Brussels I Regulation and 1968 Brussels Convention,[11] the CJEU then recalled that Article 24(4) is justified by the fact that granting patents involves the intervention of national authorities, and that courts are best placed to apply their own law – a concern said to be especially important in patent law, where Member States have established specialised courts.[12] Citing its previous case law, the CJEU also reaffirmed that 'patent validity' under Article 24(4) does not include infringement, even though determining the latter may require examining the scope of patent protection.[13] It followed, for the CJEU, that a court seised of an infringement claim does not lose jurisdiction merely because the defendant has raised invalidity as a defence.[14]

The CJEU supported this interpretation with several arguments, drawing heavily on AG Emiliou's first opinion.[15] First, Article 24(4) constitutes an exception to the general rule of jurisdiction of Article 4(1) and must therefore be strictly interpreted.[16] Exclusive jurisdiction would effectively become the norm if the court judging the infringement lost jurisdiction whenever invalidity is raised, as is frequently the case in practice.[17] Second, legal certainty would be undermined if a defendant could influence the court's jurisdiction by raising invalidity, especially in countries where such a defence can be introduced at any time during the proceedings.[18] Third, maintaining the jurisdiction of the court seised of the alleged infringement is fully consistent with the purpose of Article 24(4), and avoids going beyond what is necessary to achieve its objective.[19] In particular, the CJEU's interpretation permits patent holders to consolidate infringement claims relating to parallel patents in a single forum instead of having to duplicate proceedings, thereby diminishing the risk of conflicting decisions.[20] While the CJEU acknowledged that infringement and validity proceedings may be divided in separate fora, it notably stressed that the court judging the infringement may, 'where appropriate', stay proceedings pending the resolution of the validity issue in the Member State of registration.[21]

9 *BSH* (CJEU) n 1 above at [26].
10 *ibid*.
11 *ibid* at [28].
12 *ibid* at [36].
13 *ibid* at [40] (citing Case C-288/82 *Ferdinand M.J.J. Duijnstee* v *Lodewijk Goderbauer* EU:C:1983:326 at [22]-[23]; Case C-399/21 *IRnova* v *FLIR* EU:C/2022:648 (*IRnova*) at [48]).
14 *BSH* (CJEU) n 1 above at [41].
15 AG Emiliou no 1 n 8 above at [69]-[88].
16 *BSH* (CJEU) n 1 above at [43].
17 *ibid* at [44]-[45].
18 *ibid* at [46]. Indeed, as the Court explained, this approach would give defendants the power to end infringement proceedings that were validly brought, *ibid* at [47].
19 *ibid* at [48].
20 *ibid* at [49].
21 *ibid* at [51].

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The lesser evil compared to a broad reading of Article 24(4)

The CJEU's interpretation of Article 24(4) is relatively unsurprising. Prior to *BSH*, there was some uncertainty over the implications of this provision, as the matter had been left open in the well-known *GAT* v *Luk* case[22] (*GAT*). In *GAT*, the CJEU had held that exclusive jurisdiction over patent validity applies even where invalidity is raised as a defence – a solution now codified in Article 24(4) of the Brussels Ia Regulation. However, *GAT* had not clarified what the court judging the infringement should do when such a defence is raised, leading to divergent approaches among domestic courts.

Under a broad reading of *GAT* (notably applied by courts in Italy and, before Brexit, England and Wales), the court had to decline jurisdiction and transfer the whole case to the courts of the Member State of registration as soon as validity was raised.[23]

Under a narrow reading (favoured by courts in the Netherlands and, under the Lugano Convention, Switzerland), the court judging the infringement lost jurisdiction in respect of validity, but could still hear the infringement claim after the validity issue had been resolved in the Member State of registration.[24] While the drafters of the Brussels Convention had not provided any clear legislative direction,[25] the narrow reading had received strong support from both commentators[26] and AG Emiliou in *BSH*.[27] In another important case, the CJEU had also seemed to assume that infringement and validity would be split between different Member States[28] – an assumption once shared by the European Commission.[29] In opting for this so-called 'splitting

22 Case C-28/04 *GAT* v *Luk* EU:C:2006:457.

23 See for example Turin Court of first instance, 10 March 2009, (2010) RDIPP 496; Milan Court of First Instance, 29 November 2007, no 60696/07; *Anan Kasei Co, Ltd & Rhodia Operations SAS* v *Molycorp Chemicals & Oxides (Europe) Ltd* [2016] EWHC 1722 (Pat); *Eli Lilly & Co* v *Genentech Inc* [2017] EWHC 3104 (Pat). See also Gregory Bacon and Katie Rooth, 'Justiciability and Litigation of Foreign Patents in the English Courts' (2017) 12 JIPLP 851, 859; Paul England, 'Cross-border actions in the CJEU and English Patents Court: Ten years on from GAT v Luk' (2017) 12 JIPLP 105, 110-111.

24 Hoge Raad (Dutch Supreme Court), 30 November 2007, *Roche Nederland*, C02/228HR and C02/280HR, (2008) NJ 77, Conclusion, [2.16]; Federal Tribunal (Switzerland), 4 April 2007, *Eurojobs Personaldienstleistungen SA* v *Eurojob AG*, 4C.439/2006 (*Eurojobs*).

25 The drafters of the Brussels Convention did not expressly consider the issue. However, as AG Léger noted in *GAT*, forcing the infringement court to decline jurisdiction entirely would be 'inconsistent with the explicit choice of the drafters of the convention not to bring all disputes concerning patents and other industrial property rights within the scope of Article 16(4) of the Brussels Convention' – now Brussels Ia Regulation, Art 24(4) (Case C-28/04 *GAT* v *Luk* ECLI:EU:C:2004:539, Opinion of AG Léger at [38]).

26 See for example Adrian Briggs, 'Jurisdiction Over Defences and Connected Claims' [2006] LMCLQ 447; Zheng Sophia Tang, 'Validity in patent infringement proceedings – a new approach to transnational jurisdiction' (2021) 11 QMJIP 47.

27 AG Emiliou no 1 n 8 above at [69]-[88].

28 Case C-539-03 *Roche Nederland* v *Primus* ECLI:EU:C:2006:458 at [40].

29 Report from the Commission to the European Parliament, the Council and the European Economic and Social Committee on the application of Council Regulation (EC) No 44/2001 on jurisdiction and the recognition and enforcement of judgments in civil and commercial matters, Brussels, 21 April 2009, COM (2009) 174 final, at [3.4]: 'Since proceedings concerning the

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approach',[30] the CJEU thus brought welcome clarity to the law, even if that clarification was not unexpected.

To be sure, infringement and validity may be difficult to separate in patent cases, as the two issues are often intertwined, for example if the defendant argues that the patent specification does not allow a person skilled in the art to make the invention.[31] However, these issues are theoretically and practically separable,[32] as evidenced by the fact that on the domestic level some jurisdictions (for example Germany[33]) follow a 'bifurcation system' requiring different courts to hear patent infringement and validity. While such a split is not ideal, this is not a sufficient ground for the court determining infringement to decline jurisdiction entirely.[34]

In practice, the main weakness of the splitting approach is that it may take years to obtain a final ruling on validity, especially in a case such as *BSH*, where patents were registered in multiple countries. Unless the claimant can obtain a preliminary injunction,[35] this lag may lead to an 'injunction gap', ie a gap between the moment when the claimant can obtain an injunction and the resolution of validity proceedings.[36] Moreover, the consolidation of proceedings is only partial: while infringement actions can be brought in a single forum, validity issues must still be litigated on a country-by-country basis, thereby significantly increasing the costs of proceedings in cases involving parallel patents.

Arguably, the most efficient solution was therefore not the splitting approach; rather, it was to allow the court judging the alleged infringement to also determine the validity issue between the parties, without affecting the patent register. In *BSH*, the CJEU could hardly accept this approach because it was rejected in *GAT*,[37] which the EU legislator implemented in Article 24(4) of the Brussels

validity of patents must be brought before the courts of the Member State in which the patent has been registered, the infringement court is obliged to stay proceedings pending the outcome of the proceedings concerning the validity'.

30 See for example Paul Torremans, *Intellectual Property and Private International Law* (Oxford: OUP, 3rd ed, 2024) at [7.113].

31 EPC n 3 above, Art 83.

32 Tang, n 26 above, 53.

33 Charleen Fei, 'Justice Delayed is Justice Denied: The Principle of Bifurcation in the German Patent Litigation System' (2014) 14 Wake Forest JBIPL 619. Sweden is sometimes described as adopting a bifurcated system (AG Emiliou no 1 n 8 above at [81]). But while Swedish law requires defendants to bring a separate action to challenge patent validity, it appears that infringement and validity can be tried together, and that the Patent and Market Court rules on both issues even if infringement and validity are tried separately (Swedish Patent Act, Arts 61(2), 61(3); EPO, 'Patent Litigation in Europe – an Overview of National Law and Practice in the EPC Contracting States' (5th ed, 2019) 135-136 at https://link.epo.org/elearning/patent_litigation_in_europe_2019_en.pdf [https://perma.cc/9THU-TWSE].

34 AG Emiliou no 1 n 8 above at [81].

35 On this issue, see Case C-616/10 *Solvay* v *Honeywell* ECLI:EU:C:2012:445 at [49]-[50].

36 This problem is common to any bifurcated systems. Under German domestic law, the legislator mitigated the issue by mandating the court judging validity to send the infringement court a 'qualified notice' summarising the court's preliminary assessment of validity (within six months of the filing of the invalidity action), in view of ultimately speeding up the infringement proceedings. See Sabine Koch, 'Amendments to German Patent Law: key highlights' *Lexology* 3 January 2022 at https://www.lexology.com/library/detail.aspx?g=78afd552-73ea-4156-bfc0-0fa72e053041 [https://perma.cc/S8VW-DBJ3].

37 In *GAT* n 22 above, the *inter partes* approach was rejected because of the risk of distortion created by the fact that, on the domestic level, some EU states grant *erga omnes* effect to incidental

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Ia Regulation. Technically, the CJEU could still interpret 'validity' under this article as only referring to *erga omnes* validity, leaving courts other than those of the registration country to assess *inter partes* validity. But this argument was not made in *BSH*, perhaps because it seems clearly inconsistent with the EU legislator's intention. As AG Emiliou acknowledged, the splitting approach thus emerged as the 'lesser evil' compared to the broad reading of *GAT*, pending a possible reform of the Brussels Ia Regulation.[38]

Unresolved issues regarding the solution's practical implementation

The splitting approach applies to patents registered in both EU Member States and contracting States to the Lugano Convention (applicable in Switzerland, Norway and Iceland), which contains a rule similar to Article 24(4) of the Brussels Ia Regulation. It also applies to trade marks and other registered IP rights falling within the scope of Article 24(4). But while the scope of the splitting approach is clear, the CJEU left open a number of questions regarding its practical implementation.

Sometimes the court judging the infringement may circumvent the validity question, for example if it concludes that the claimant would lose on infringement anyway. However, as the outcome of infringement cases frequently depends on validity, the court may have to decide whether to stay proceedings in favour of the courts of the Member State of registration. On this point, the CJEU noted that a court may stay proceedings 'if it considers it justified, in particular where it takes the view that there is a *reasonable, non-negligible possibility* of [the] patent being declared invalid by the [courts of the Member State of registration]'.[39] These two conditions – reasonable and non-negligible – seem cumulative,[40] but their precise meanings merit some clarification. The term 'reasonable' may suggest that the court should proceed with the infringement claim if the invalidity argument is dilatory (ie made in bad faith) or 'frivolous'.[41] 'Non-negligible' appears to require the invalidity argument to be 'serious' or to have a 'genuine prospect of success' in order for the court to stay proceedings.[42] Taken together, the standard is reminiscent of the 'good arguable case' test applied in many common law jurisdictions in the context of summary proceedings:[43] infringement proceedings should be stayed as long as invalidity is a

invalidity decisions, *ibid* at [29]-30]. However, '[t]he Court could perfectly (and legitimately) have decided, instead, that a rule of procedural law conferring *erga omnes* effect on validity findings made in infringement judgments should be set aside, on the ground that its application impairs the effectiveness of Article 16(4)' – now Brussels Ia Regulation, Art 24(4), AG Emiliou no 1 n 8 above at [62] n 53. See also, making the same point, Marie-Elodie Ancel, 'L'arrêt GAT : une occasion manquée pour la défense de la propriété industrielle en Europe' (2007) 8 ERA Forum 27, 36.

38 AG Emiliou no 1 n 8 above at [88].

39 *BSH* (CJEU) n 1 above at [51] (emphasis added).

40 Other language versions, including the French one, mention a 'reasonable *and* non-negligible' risk of invalidity (emphasis added).

41 AG Emiliou no 1 n 8 above at [92].

42 *ibid* at [92]-[93].

43 Tang, n 26 above, 66-67.

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real, credible and bona fide defence that deserves to be fully heard by the courts of the Member State of registration.[44]

Courts do not, however, seem required to examine whether the invalidity argument is more likely than not to succeed. Indeed, there may be a 'reasonable, non-negligible' possibility of invalidity even though that possibility is less than 50 percent. Nor do infringement courts seem required to determine whether the likelihood of invalidity is 'high' or 'strong', as is notably the case under the German bifurcated system[45] and the procedural rules of the Unified Patent Court (UPC).[46] In practice, these standards would have the practical advantage of reducing the number of stays, and thus the overall duration of infringement proceedings. On the other hand, they would increase the risk of conflicting decisions, as courts may convict a party for infringement before the patent is invalidated. And, compared to the CJEU's standard, they would necessitate a detailed assessment of validity – which may be feasible in a domestic context, where the infringement court applies its own law to patent validity, but becomes far more difficult in a cross-border setting, especially at the preliminary litigation stage where expert evidence on foreign law might not be readily available.[47] Of course, assessing whether the likelihood of invalidity is 'reasonable' and 'non-negligible' also requires the application of foreign patent law. However, this assessment should be easier as the likelihood of success need not be determined very precisely. The CJEU's standard thus appears preferrable, although more guidance from the Court would have been welcome.

In particular, the CJEU should have clarified whether its standard is mandatory. In the absence of relevant provisions in the Brussels Ia Regulation, the discretion to stay proceedings was apparently left to domestic procedural law. So could a German court, for instance, apply German law to refuse a stay of proceedings unless invalidity appears highly likely? There is a strong argument that it could not, as applying German procedural law would impair the effectiveness of Article 24(4) by undermining the exclusive jurisdiction of the courts of the Member State of registration.[48] But while some decisions suggest that

44 As part of this analysis, courts could notably consider whether the patent has been substantively examined by the relevant patent office during the initial registration procedure (which is not always the case), and if yes, whether the particular validity question raised by the defendant fell within the scope of that procedure. Other factors could be relevant, including the rate of patent invalidity in the country of registration. For further discussion, see Tang, *ibid* 67-68.

45 Fei, n 33 above, 660.

46 Under UPC Agreement, n 3 above, Art 33(3)(b) the local or regional division hearing an infringement claim may refer counterclaims for patent revocation to the central division and either suspend or proceed with the infringement claim. Under Rules of Procedure of the UPC, Art 37(4), proceedings must be stayed 'where there is *a high likelihood* that the relevant claims of the patent will be held to be invalid on any ground by the final decision in the revocation proceedings'.

47 Tang, n 26 above, 65-66. Tang makes this point against the 'strong likelihood test', but the same argument can be made against the approach which she eventually endorses – namely, examining whether the invalidity argument is more likely than not to succeed.

48 See AG Emiliou no 1 n 8 above at [89], citing *inter alia* Case C-365/88 *Hagen* EU:C:1990:302 at [17], [19], [20].

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the CJEU's standard is already gaining acceptance,[49] it would have been better to state its mandatory character explicitly.

In the same vein, can the court hearing the infringement stay proceedings if the defendant has merely *indicated* its intention to challenge validity? Or must the defendant complete any procedural steps, such as bringing separate revocation proceedings in the country of patent registration? In *BSH*, the CJEU invited courts to consider the fact that an invalidity action 'has been duly brought' in the Member State of registration,[50] which suggests that *de lege lata* infringement proceedings can only be stayed if separate validity proceedings have commenced in the country of registration. However, one could also argue that the CJEU did not specifically address the question. So long as it is clear that validity will be challenged, for example because the defendant has instructed its lawyers to bring an invalidity action, or has indicated its intention to do so at the beginning of the infringement trial, staying proceedings would seem justified as this would diminish the risk of irreconcilable decisions.[51] Admittedly this approach would create a risk of dilatory tactics on the part of the defendant, but courts could simply set a time limit to bring invalidity proceedings,[52] as the Swiss courts have done under the Lugano Convention.[53] These issues will need to be clarified going forward; for now, defendants should prepare their invalidity action in advance, as soon as it becomes clear that infringement proceedings will be brought, as the court seised of the infringement may be tempted to proceed if defendants are too slow to challenge validity.

Finally, it is unclear how the decisions of the courts of the Member State of registration and that of the court judging the infringement will interact. If a patent is upheld under a specific patent claim interpretation, does that interpretation bind the infringement court? Arguably it should, as otherwise the parties could adopt different strategies depending on whether the court is assessing in-

49 Post-*BSH*, the Paris Division of the UPC referred to the 'reasonable, non-negligible' standard in a case notably involving Swiss and Spanish patents (Court of First Instance of the Unified Patent Court, Paris Division, Procedural Order of 21 March 2025, *Mul-T-Lock France and Mul-T-Lock Suisse* v *IMC Créations*, UPC_CFI_702_2024 (*Mul-T-Lock France*)). But unlike Germany, France does not have a bifurcated system, so there was no other standard to which the French judges of the Paris Division would have more naturally referred.

50 *BSH* (CJEU) n 1 above at [51]. Similarly, the CJEU noted that a stay of proceedings would allow the infringement court to consider the decision of 'the *court seised of the action* seeking a declaration of invalidity', *ibid* (emphasis added).

51 cf Torremans, n 30 above, at [7.146]-[7.147], noting that the Court of Justice's insistence on certainty and uniformity in the law may suggest 'a more easily identified and definite moment for when validity is raised', which in the case of separate revocation proceedings would be 'when the revocation proceedings are commenced'. On this question, see also *ibid* at [7.108]-[7.109], [7.143]-[7.144].

52 AG Emiliou no 1 n 8 above at [93]; Torremans, *ibid*, at [11.80]. See also by analogy Council Regulation (EU) 2019/1111 of 25 June 2019 on jurisdiction, the recognition and enforcement of decisions in matrimonial matters and the matters of parental responsibility, and on international child abduction (recast), Art 12. This article provides that, where the courts of Member State having jurisdiction as to the substance of the matter consider that a court of another Member State would be better placed to assess the best interests of the child in a particular case, the courts may exceptionally stay proceedings and set a time limit by which the courts of the other Member State shall be seised of the case (Art 12(1)), failing which the initial proceedings shall resume (Art 12(3)).

53 *Eurojobs* n 24 above.

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fringement or validity.[54] However, in the absence of clarification, this issue and the others discussed above are likely to arise, unless the EU legislator provides more guidance or opts for a different solution in a future reform of the Brussels Ia Regulation – which, as argued below, it should.

PATENTS REGISTERED IN THIRD STATES

The CJEU's solution: Courts can rule on incidental patent validity *inter partes*

With regards to the Turkish patent, the Court of Justice began by confirming the recent *IRnova* judgment,[55] in which it had deduced from the wording of Article 24(4) that this provision only applies to patents registered in EU Member States.[56] Next, the CJEU recalled that the courts of Member States generally have jurisdiction under Article 4(1) when the defendant is domiciled in the forum, which was the case in *BSH*.[57] But while that jurisdiction can extend to incidental patent validity questions,[58] the Court stressed that it may be limited by special rules, including (i) those laid down in Article 73, which reserves the application of bilateral treaties and the Lugano Convention,[59] and (ii) Articles 33 and 34, which limit the jurisdiction of the courts of Member States where an identical or related action is already pending before the courts of a third State.[60]

As none of these limitations applied here,[61] the CJEU then considered limitations based on general international law, which – following previous case law – can also influence the interpretation of the Brussels Ia Regulation.[62] Relying on *Owusu* v *Jackson*[63] (*Owusu*), the Court found that exercising

54 cf *European Central Bank* v *Document Security Systems Inc* [2008] EWCA Civ 192 at [5]: 'When validity is challenged, the patentee says his patent is very small: the cat with its fur smoothed down, cuddly and sleepy. But when the patentee goes on the attack, the fur bristles, the cat is twice the size with teeth bared and eyes ablaze'. The risk of inconsistent strategies was also recognised in AG Emiliou no 1 n 8 above at [84] n 74.

55 *IRnova* n 13 above. On this judgment, see Maxence Rivoire, 'Exclusive Jurisdiction in Patent Entitlement and Ownership Disputes under the recast Brussels I Regulation' (2022) 81 CLJ 480.

56 *BSH* (CJEU) n 1 above at [56]-[57], citing *IRnova ibid*. The CJEU further justified this view by adding that the Brussels jurisdictional system is 'internal to the European Union which pursues objectives specific to it, such as the proper functioning of the internal market and the establishment of an area of freedom, security and justice', *BSH* (CJEU) *ibid* at [55].

57 *BSH* (CJEU) *ibid* at [58]-[61].

58 *ibid* at [61].

59 *ibid* at [62]

60 *ibid* at [65].

61 *ibid* at [56]. Türkiye was not a party to the Lugano Convention, there was no bilateral agreement between Türkiye and Sweden, nor any evidence of parallel proceedings in Türkiye.

62 *ibid* at [68]-[69]. On this point, the CJEU recalled that 'the rules and principles of general international law are binding, as such, upon the EU institutions and form part of the EU legal order', *ibid* at [69]. It followed 'that a measure adopted by virtue of the powers of the [EU], such as the Brussels I *bis* Regulation, must be interpreted, and its scope limited in the light of those rules and principles, *ibid*. The CJEU cited a number of cases, the most important of which is arguably Case C-641/18 *Rina* EU:C/2020:349, where the Court had interpreted the scope *ratione materiae* of the Brussels I Regulation in accordance with the 'principle of customary international law concerning immunity from jurisdiction'.

63 Case C-281/02 *Owusu* v *Jackson* ECLI:EU:C:2005:120.

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jurisdiction based on the localisation of the defendant's domicile in a Member State did not infringe the principle of the relative effect of treaties, even if the dispute is connected to a third State.[64] At the same time, such jurisdiction must be exercised without breaching the principle of non-interference.[65] Citing the Jenard Report to the Brussels Convention,[66] the Court emphasised in this regard that the grant of patents is 'an exercise of national sovereignty' which, as the Court stated earlier, necessitates 'the involvement of … national administrative authorities'.[67] Consequently, the CJEU held that the courts of the Member States in which the defendant is domiciled cannot invalidate patents registered in third States with *erga omnes* effect.[68] Nevertheless, the CJEU permitted these courts to rule on the validity of such patents between the parties, since that decision would not affect the existence or content of the patent in the third State, provided the *inter partes* validity ruling does not include a direction to the foreign patent authorities.[69]

No reflexive effect for Article 24(4)

The CJEU's finding that Article 24(4) does not apply to patents registered in third States was widely anticipated. As Article 24(4) is expressly limited to patents registered in Member States, courts cannot, pursuant to this provision, decline jurisdiction in favour of the courts of a third State. In other words, Article 24(4) does not have direct reflexive effect.

Yet this does not mean that courts can invalidate patents registered in third States with *erga omnes* effect. Clearly, reviewing another State's decision on patent validity would interfere with the operation of their national IP authorities and, accordingly, their sovereignty. States are unlikely to tolerate such interference, given their legitimate interest in tailoring their patent systems to local priorities – especially in relation to patent validity, which requires careful balancing between private monopolies and the public domain in view of encouraging innovation. Due to this sensitivity, a judgment purporting to invalidate a foreign patent *erga omnes* would almost certainly be denied recognition and enforcement in the registration country, or the effects of the judgment would be restricted to the parties. It is not surprising, then, that the CJEU acknowledged that only the courts of the registration country can invalidate patents registered locally.[70]

64 *BSH* (CJEU) n 1 above at [70].
65 *ibid* at [71]. The CJEU defined the principle as meaning that 'a State may not interfere in cases which essentially come within the national jurisdiction of another State'.
66 Report by Mr P. Jenard on the Convention of 27 September 1968 on jurisdiction and the enforcement of judgments in civil and commercial matters, 1979 OJ (C 59).
67 *BSH* (CJEU) n 1 above at [72].
68 *ibid* at [73].
69 *ibid* at [74]-[76].
70 The rule could also be supported by other considerations. If legislators abolished exclusive jurisdiction rules altogether, thereby accepting a proposal made by Benedetta Ubertazzi, *Exclusive Jurisdiction in Intellectual Property* (Tübingen: Mohr Siebeck, 2012) 295, patent users would be encouraged to bring invalidity proceedings in the countries having a reputation for being the

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To be sure, the CJEU in *Owusu* had previously held that courts cannot decline jurisdiction conferred by the defendant's domicile in the EU on the ground that a third State would be the more appropriate forum.[71] Rather, courts can only decline jurisdiction where 'expressly provided' by what is now the Brussels Ia Regulation.[72] However, *Owusu* had left open several scenarios, including where the case concerns the validity of an IP right registered in a third State.[73] *BSH* finally acknowledges that jurisdiction based on Article 4(1) is not absolute, and can sometimes be limited by norms of public international law – in this case, the principle of non-interference.[74]

The reliance on this principle is noteworthy, as it allowed the CJEU to deviate from the splitting approach which it had adopted for EU-registered patents.[75] Had the CJEU recognised an *indirect* reflexive effect to Article 24(4) (that is, had it ruled that courts must apply this provision by analogy, under national law),[76]

least patent friendly, as quickly as possible, and in a country where courts are known to be slow. Although those risks could be mitigated if jurisdiction were vested in a limited number of courts (for example as Ubertazzi suggests, those with a certain proximity to the dispute), even the slightest possibility of opportunistic behaviour causes, in an area strongly affecting the public, some unease.

71 *Owusu* n 63 above.

72 *ibid* at [37].

73 *ibid* at [47]-[52]. In *Owusu*, the CJEU declined to address the question of whether the Brussels Convention allowed courts to decline jurisdiction in scenarios where there were identical or related proceedings pending before a court of a non-Contracting State, a convention granting jurisdiction to such a court, or a connection with that State of the same type as those referred to in Article 16 of the Brussels Convention (now Article 24 of the Brussels Ia Regulation). On this point, see also AG Emiliou no 1 n 8 above at [119], [115]; AG Emiliou no 2 n 8 above at [22]; Richard Fentiman, 'Justiciability, Discretion and Foreign Rights' in Arnaud Nuyts (ed), *International Litigation in Intellectual Property and Information Technology* (Alphen aan den Rijn: KLI, 2008) 151, 165-166.

74 Conversely, *BSH* confirms once and for all that the courts of EU Member States can enforce foreign patents (or indeed any other IP right), since the principle of non-interference would not be triggered. On the previous doubts surrounding this question, see generally Fentiman, *ibid*. *BSH* could also influence broader debates, for example whether the courts of EU Member States can give effect to choice-of-court agreements designing non-Member States (on this debate, see Alexander Richard Eduard Kistler, 'Effect of Exclusive Choice-of-court Agreements in Favour of Third States within the Brussels I Regulation Recast' (2018) 14 JPIL 66). Indeed, it has been argued that party autonomy constitutes an additional basis of jurisdiction (in the public international law sense), superseding traditional territorial and personal jurisdictional grounds (Alex Mills, 'Rethinking Jurisdiction in International Law' (2014) 84 BYBIL 187, 232-239). Although this view is controversial, one could use this argument to strengthen the view that choice-of-court agreements designating the courts of non-Member States should be enforced, even though the wording of Brussels Ia Regulation, Art 25 is restricted to choice-of-court agreements designating courts located in the EU.

75 On this point, the Court of Justice's reasoning is slightly paradoxical because, although the Court made sure to avoid Brussels Ia Regulation, Art 24(4), it partly justified the exclusive jurisdiction of the courts of the country of registration by citing the reasons provided in the Jenard Report on the Brussels Convention, n 66 above: *BSH* (CJEU) n 1 above at [72]. However, it did so to add to the reasons given earlier in the judgment that 'the grant of a national patent is an exercise of national sovereignty', which is a justification related to the principle of non-interference, and echoes what is often known as the 'act of state doctrine'. Thus, the Court's reasoning was still rooted in public international law. In *IRnova* n 13 above, by contrast, the CJEU had not invoked such considerations. See Rivoire, n 55 above, 482-483.

76 On the distinction between direct and indirect reflexive effect, see for example Fentiman, n 73 above, 170-171.

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the splitting approach would have had to be adopted also for patents registered in third States. By circumventing the wording of this provision, the CJEU was able to favour an approach which it certainly viewed as more cost-effective – namely, to allow courts to determine incidental patent validity *inter partes*. Although the CJEU did not explain the reasons for its preference, there are indeed strong efficiency gains in allowing the consolidation of infringement and validity issues in the same forum, particularly where a dispute concerns parallel patents. Compared to the splitting approach, allowing *inter partes* validity rulings also prevents dilatory tactics from defendants, who might challenge validity to slow down infringement proceedings. On the academic front, many initiatives on private international IP law have advocated this approach,[77] and the CJEU was understandably attracted to it.

The *inter partes* approach: A significant breakthrough

Even so, the adoption of this approach in *BSH* is a surprise and significant breakthrough. While AG Emiliou would have adopted it for EU-registered patents had he not been bound by Article 24(4),[78] he had ultimately endorsed the splitting approach for both these patents and those registered in third States.[79] And although the CJEU had previously minimised the scope of *GAT* – for example by excluding its application in interim proceedings[80] – it had never done so in such remarkable fashion. What is more, the *inter partes* approach had so far received little acceptance in cross-border IP litigation: to this author's knowledge, only the German courts before *GAT* and the Tokyo District Court had

77 The *inter partes* approach was defended in cross-border IP litigation by American scholar Curtis Bradley during the first negotiations of the Hague Judgments Convention (Special Commission on International Jurisdiction and the Effect of Foreign Judgments in Civil and Commercial Matters, Hague Conference on Private International Law, Work Doc No 97E, 39, 122 (10-20 November 1998)). It was then endorsed by a number of scholarly initiatives on private international IP law. See Marie-Elodie Ancel and others, 'International Law Association's Guidelines on Intellectual Property and Private International Law ("Kyoto Guidelines")' (2021) 12 JIPITEC 44, Guideline no 11; European Max Planck Group on Conflict of Laws in Intellectual Property, *Conflicts of Laws in Intellectual Property. The CLIP Principles and Commentary* (Oxford: OUP, 2013), Art 2:401; The American Law Institute, 'Intellectual Property: Principles Governing Jurisdiction, Choice of Law and Judgments in Transnational Disputes' (2008) *WIPO LEX Database* at https://www.wipo.int/wipolex/en/legislation/details/7687 [https://perma.cc/9RCW-JCMX] (ALI Principles), s 211; Private International Law Association of Korea and Japan, 'Principles of Private International Law on Intellectual Property Rights' (2011) *The Quarterly Review of Corporation Law and Society* 112, Art 209; 'Transparency Proposal on Jurisdiction, Choice of Law, Recognition and Enforcement of Foreign Judgments in Intellectual Property' in Jürgen Basedow, Toshiyuki Kono and Alex Metzger (eds), *Intellectual Property in the Global Arena* (Tübingen: Mohr Siebeck, 2010) 394, Annex III, Art 103.

78 AG Emiliou no 1 n 8 above at [63].

79 *ibid*; AG Emiliou no 2 n 8 above.

80 *Solvay* v *Honeywell* n 35 above at [50]. The CJEU also held that infringement claims against co-defendants can be consolidated if they are based on the same part of a European patent (*ibid* at [30], [50]); copyright (Case C-145-10 *Eva-Maria Painer* v *Standard VerlagsGmbH and Others* ECLI:EU:C:2011:798 at [84]); or a Community design (Cases C-24/16 and C-26/16 *Nintendo Co. Ltd* v *BigBen Interactive GmbH and BigBen Interactive SA* ECLI:EU:C:2017:724 at [49], [51]-[52]).

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signalled a willingness to examine the *inter partes* incidental validity of foreign patents.[81] Given the authority of the Grand Chamber, *BSH* might initiate a movement toward greater acceptance of this approach – much like in international arbitration, where arbitration laws increasingly permit arbitral tribunals to determine the validity of registered IP rights between the parties.[82] In particular, courts assuming jurisdiction under the Hague Convention on Choice of Court Agreements may be inclined to address validity issues incidentally, especially because many commentators have identified implicit support for this approach under the Convention.[83]

In practice, the shift created by *BSH* is significant. If one considers only the patent sphere,[84] patent holders are now incentivised to consolidate claims based on non-EU patents before EU domestic courts whenever these courts have jurisdiction under the Brussels Ia Regulation.[85] Indeed, if a court invalidates a patent *inter partes*, patentees can still enforce the patent against third parties. The patent would be more difficult to enforce, for reasons explained below, but this situation is less dramatic than losing the patent entirely. The *BSH* judgment thus makes it very attractive to litigate non-EU patents in the EU, at least compared to the US courts, which have so far refused to enforce foreign patents.[86]

BSH also has implications for the UPC, which can rule over both unitary patents and European bundle patents,[87] provided it has jurisdiction under the Brussels Ia Regulation.[88] Prior to the ruling, it wasn't entirely clear whether the

81 Regional Court of Düsseldorf, *GAT* v *Luk*, Case 4 0128/00 [2003] IL Pr 5; Tokyo District Court, 16 October 2003 (*Coral Sand* case), Hanrei Jihō, no 2022 (Wa) 1943. See also the German references cited in Torremans, n 30 above, para [7.26]; *Potter* v *Broken Hill Pty Co Ltd* [1905] VLR 612, affd (1906) 3 CLR 479, 499 (recognising as undisputed that 'if the validity of a patent arises merely incidentally in an action otherwise within the cognizance of a State court, that Court will not refuse to entertain the question').

82 On this trend, see for example Maxence Rivoire, 'The Law Applicable to the Arbitrability of Registered Intellectual Property Rights' (2023) 1 *ICC Dispute Resolution Bulletin* 36, 45-47.

83 See for example Paul Torremans, 'Article 2:401 – Registration and Invalidity' in European Max Planck Group for Conflict of Laws in Intellectual Property, n 77 above, 150-151.

84 *BSH* also has implications beyond patent disputes, for example regarding the other rules of exclusive jurisdiction contained in Art 24. On this point, see Lydia Lundstedt, 'BSH Hausgeräte: A Game-Changer in Cross-border Patent Litigation' (EAPIL Blog, 5 March 2025) at https://eapil.org/2025/03/05/bsh-hausgerate-a-game-changer-in-cross-border-patent-litigation/ [https://perma.cc/9F9S-5ABN]. See also Report from the Commission to the European Parliament, the Council and the European Economic and Social Committee on the application of Regulation (EC) No 1215/2012 of the European Parliament and of the Council of 12 December 2012 on jurisdiction and the recognition and enforcement of judgments in civil and commercial matters (recast), Brussels, 2 June 2025, COM (2025) 268 final, 13-14 (noting that the clarification that Art 24(4) does not have reflexive effect 'can be extrapolated to the entire Article 24').

85 *BSH* was a case where the Swedish court had jurisdiction under Art 4(1), based on the defendant's domicile, but the reasoning could extend to jurisdiction based on Art 7(2) (on jurisdiction in matters relating to tort) or Art 8(1) (on co-defendants). For a very recent UPC case showing how wide jurisdiction can extend under the latter article, see Court of First Instance of the Unified Patent Court, The Hague Division, Procedural Order of 23 May 2025, *Genevant Sciences GmbH and Arbutus Biopharma Corporation* v *Moderna, Inc et al*, UPC_CFI_191/2025 and 192/2025.

86 *Voda* v *Cordis Corp* (2007) 476 F 3d 887. See also in relation to trade marks *Vanity Fair Mills* v *T Eaton Co* (1956) 234 F 2d 633, 647.

87 UPC Agreement, n 3 above, Art 1.

88 *ibid*, Art 31. The Brussels Ia Regulation must be used to determine the international jurisdiction of the UPC because the UPC is deemed a court of a Member State for the purposes of the

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UPC could hear disputes over European bundle patents registered in states that are part of the European Patent Convention (EPC) but not the UPC Agreement, such as the UK. Now, there is no doubt that the UPC can not only determine the infringement of British patents,[89] but it can also invalidate such patents *inter partes*, since the UK is no longer part of the EU. Likewise, *BSH* confirms that the UPC can exercise jurisdiction over patents registered in EU Member States that are not part of the UPC system, such as Spain and Poland.[90] The UPC could not, however, rule on the validity of such patents *inter partes*; consistent with *BSH*, it would need to stay proceedings if the defendant challenged validity before the courts of the Member State of registration.[91]

Finally, *BSH* may influence the parties' choice between different mechanisms of dispute resolution. Prior to the judgment, arbitration was described as the only way of resolving disputes relating to the validity of parallel patents in a single forum.[92] Arbitration has now lost this unique selling point, at least in cases involving third State patents where the courts of EU Member States have jurisdiction under the Brussels Ia Regulation. Arbitration retains other benefits, including the ease of enforcement of arbitral awards and greater flexibility to choose the applicable law.[93] But as the latter benefit is less clear than is commonly assumed,[94] one of the indirect effects of *BSH* is to strengthen the role of litigation in multijurisdictional patent disputes.

Too far, too soon?

It is nevertheless striking that the CJEU created an inconsistency between EU and non-EU patents. Following *BSH*, the courts of Member States cannot determine the *inter partes* validity of EU-registered patents, even though they would be well placed to do so given that the validity of such patents is largely harmonised by the EPC.[95] Yet, the same courts must now determine the validity

Regulation. See Regulation (EU) No 542/2014 of the European Parliament and of the Council of 15 May 2014 amending Regulation (EU) No 1215/2012 as regards the rules to be applied with respect to the Unified Patent Court and the Benelux Court of Justice, Art 71a.

89 Prior to *BSH*, this aspect had already been recognised by the UPC Düsseldorf Local Division (*Fujifilm Corporation* v *Kodak GmbH et al*, 28 January 2025, UPC_CFI_355/2023, 20-22). Post-*BSH*, it was quickly noted by other local divisions of the UPC. See *Mul-T-Lock France*, n 49 above at [22]: 'The UPC also has jurisdiction to hear the infringement of the British part of the patent, and if applicable rule on the validity of the said patent, provided the decision on the invalidity defence only has inter partes effect' (author's translation); Munich Local Division, *Syngenta Limited* v *Sumi Agro Limited and Sumi Agro Europe Limited*, 14 April 2025, UPC_CFI_566/2024, UPC_CFI_39/2025 (granting leave to amend an infringement claim based on a European patent to the territories of several countries, including the UK).

90 *Mul-T-Lock France ibid* at [21]. See also, affirming the jurisdiction of the UPC to determine the alleged infringement of the Spanish part of a European patent, Milan Local Division, *Alpinestars SPA* v *Dainese spa*, 8 April 2025, UPC_CFI_792/2024.

91 *Mul-T-Lock France ibid* at [21].

92 See for example Trevor Cook and Alejandro Garcia, *International Intellectual Property Arbitration* (Alphen aan den Rijn: KLI, 2010) 44-45.

93 See for example *ibid*, 86-98.

94 For a full analysis, see Maxence Rivoire, 'Party Autonomy and the Applicable Law to the Merits in Intellectual Property Arbitration' (2025) 41 Arb Intl 213.

95 EPC, n 3 above, Arts 52-57.

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of non-EU patents without necessarily having the benefit of harmonisation. In *BSH*, this counterintuitive situation did not materialise because Türkiye is part of the EPC despite not being part of the EU. However, nothing in the judgment prevents the *inter partes* approach from applying more broadly, for example to Chinese or American patents. It is difficult to understand why a French court, for example, could invalidate a Chinese patent *inter partes*, yet could not do so for a German patent.

Undoubtedly, the CJEU was drawn to the procedural efficiency promised by the *inter partes* approach, especially in disputes involving parallel patents. But are these gains worth the inconsistency? Perhaps this discrepancy is only a medium-term problem, as the *BSH* ruling might prompt the EU legislator to adopt the *inter partes* approach also for EU-registered patents. Indeed, *BSH* can be interpreted as a clear message for the legislator to do so. Even without such a reform, the discrepancy might recede given that the UPC has jurisdiction to invalidate (*erga omnes*) any national part of European patents registered in UPC Member States.[96] While domestic courts retain concurrent jurisdiction to invalidate the local parts of European patents, that jurisdiction will be transferred to the UPC after a seven-year transition period expiring in 2030.[97] Eventually, the UPC will have exclusive jurisdiction to invalidate (*erga omnes*) European patents registered in UPC Member States,[98] whereas national courts will be able to invalidate non-EU patents with *inter partes* effect.[99] There will still be a difference in treatment among patents, but that difference is more coherent than the one which the CJEU created in *BSH*.

Unfortunately, incoherent situations will persist because some EU Member States have not joined the UPC system,[100] and holders of European patents can opt out of the UPC's jurisdiction before the transition period expires.[101] For both opted-out patents and patents registered in EU Member States that are not part of the UPC, the splitting approach remains applicable – the same is true for patents (or indeed trade marks) granted by national IP offices. Accordingly, there will continue to be cases where courts may have to determine the *inter partes* validity of non-EU patents without being able to do so for patents registered in EU Member States. Going forward, the EU legislator should fix this paradox by extending the *inter partes* approach to the latter patents in a future recast of the Brussels Ia Regulation, for which the European Commission has just announced a formal review.[102] Pending such a reform, it might have been

96 UPC Agreement, n 3 above, Art 32.

97 *ibid*, Art 83(1). The transition period may be extended by seven years after a consultation: Art 83(5).

98 As noted above, the UPC can also invalidate (*inter partes*) patents registered in EPC Member States that are not part of the EU, such as the UK.

99 Except for patents registered in countries that are part of the Lugano Convention (Switzerland, Norway and Iceland).

100 Presently, Spain, Croatia and Poland have not signed the UPC Agreement, and several states (Cyprus, the Czech Republic, Greece, Hungary, Ireland and Slovakia) have not yet ratified it. The UPC cannot invalidate European bundle patents registered in these countries.

101 UPC Agreement, n 3 above, Art 83(3).

102 Report from the Commission, n 84 above, 20: 'The Commission will … initiate a formal review of the Regulation in order to consider and potentially prepare a proposal to amend or recast the Regulation'.

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more reasonable to adopt the splitting approach for non-EU patents through a reflexive application of Article 24(4).[103]

Conflicting erga omnes and inter partes decisions

Indeed, deferring to legislative reform would not only have ensured consistency (and, therefore, predictability), but it would also have allowed further reflection on an important problem: the risk of conflicting decisions. Potentially, courts might invalidate a patent *inter partes* before a court in the registration country validates the patent in question; conversely, courts might uphold validity *inter partes* and award damages before a court in the registration country invalidates the patent. In practice, this risk is unlikely to materialise, as parties will normally comply with an *inter partes* determination on validity, except where a court upholds a patent and awards compensation.[104] And domestic rules on *res judicata* may prohibit re-opening the validity issue in the country of patent registration, at least in common law jurisdictions, where *res judicata* can extend to preliminary questions.[105] But since invalidity actions can be brought by third parties, conflicting *erga omnes* and *inter partes* decisions cannot be ruled out, especially if the case concerns patents registered in countries whose rules on validity significantly differ from the EPC.

Had the CJEU waited for legislative reform, it would perhaps have benefitted from having legislative and/or judicial guidance on this problem. For now, courts will have to devise approaches based on the way that conflicting decisions rendered within the same legal order are resolved. But absent any consensus,[106]

103 Had the CJEU adopted the splitting approach for non-EU patents, uniformity would have been immediately achieved with EU-registered patents. Of course, an inconsistency would have arisen if the *inter partes* were eventually codified for the latter but not the former. But although the *inter partes* approach should ideally be adopted for both types of patents, one could have seen the logic behind such inconsistency. Indeed, there is a stronger argument in favour of the *inter partes* approach for EU-registered patents as (i) the existence of harmonised patent validity rules makes conflicting *erga omnes* and *inter partes* determinations less likely than for non-EU patents, and (ii) anti-suit injunctions are prohibited between the courts of EU Member States (see n 120 below), whereas – as discussed below – this risk cannot be ruled out for the courts of non-Member States. It is regrettable that these important considerations were left out by the CJEU.

104 If a court invalidates a patent between the parties and dismisses the infringement claim, the patentee may not be willing to risk losing its patent by seeking a re-trial in the registration country. Similarly, the defendant has no incentive to seek an *erga omnes* invalidation, since an *inter partes* decision provides a competitive advantage over third parties. In practice, as the Japanese domestic experience suggests, the defendant only has an incentive to re-challenge validity if the court judging the infringement validates the patent and awards compensation (see Masato Tanaka, 'Patent Invalidity Defence in Patent Infringement Litigation' (2006) *Asialaw Japan Review* 10, 11). But insofar as *erga omnes* invalidity proceedings must be brought in the registration country, this may be difficult to do if the dispute concerns patents registered in several countries.

105 Robert Lutz, *A Lawyer's Handbook for Enforcing Foreign Judgments in the United States and Abroad* (Cambridge: CUP, 2007) 348: 'the doctrine variously known as issue estoppel, collateral estoppel or issue preclusion requires a court in certain circumstances to recognise rulings on preliminary questions given in an earlier judgment', including a foreign judgment). By contrast, *res judicata* in civil law jurisdictions is generally restricted to the operative part of a judgment, as opposed to the reasoning (*ibid*). As incidental validity questions are normally contained in the reasoning, the parties could theoretically re-litigate validity, at least in some cases.

106 For a comparative study, see Christopher Heath, 'Wrongful Patent Enforcement – Threats and Post-Infringement Invalidity in Comparative Perspective' [2008] IIC 307.

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inconsistent practices are bound to emerge. It is therefore regrettable that the CJEU did not acknowledge this issue in *BSH*, as it is essential to ensure the satisfactory implementation of the *inter partes* approach. Ideally, a codification of this approach in Article 24(4) should be coupled with unified procedural rules aiming to resolve conflicting *erga omnes* and *inter partes* determinations.[107] So long as these rules do not exist, allowing the courts of EU Member States to invalidate patents registered in non-Member States is excessively bold, though admittedly the CJEU may not have wanted to wait for a reform that may take years to come.[108]

Anti-Suit Injunctions

Finally, it remains uncertain how the courts of third States in which patents are registered will respond to *BSH*. Will they tolerate *inter partes* validity determinations, or might they begin to issue anti-suit injunctions – echoing the jurisdictional battles currently playing out in disputes involving standard-essential patents?[109]

At first glance, a judgment invalidating a foreign patent between the parties does not interfere with the sovereignty of the registration State, as it does not

107 A full discussion of this question will be included in a forthcoming monograph addressing, *inter alia*, the question of exclusive jurisdiction in cross-border IP disputes. However, a summary can be provided here. If a court validates a patent *inter partes* and convicts the defendant for infringement before the patent is invalidated *erga omnes*, there is a strong argument that allowing reliance on an IP right which should never have been granted would be unfair and against the public interest (cf *Virgin Atlantic Airways* v *Zodiac Seats* [2013] UKSC 46 at [52], [58], [62]). One could also argue that the basis for payment (namely, the patent) has disappeared (cf in France, Cass. Com. 12 June 2007, no 05-14-458, (2008) IIC 354), such that the defendant should be able to seek a re-trial in the country where infringement was heard. At the very least, the defendant should be allowed to ignore any injunctive order prohibiting the use of the patent and to withhold payments not yet made (though to accommodate the need for stability, one could accept that the defendant should not have to restitute damages already paid). By contrast, if a court invalidates a patent between the parties before the same patent is validated *erga omnes*, the *res judicata* effect of the *inter partes* judgment should prevent the patent holder from enforcing its patent against the other party. Although this would paralyse the effects of an otherwise valid patent, creating an exception to *res judicata* allowing the patent holder to vacate the *inter partes* judgment would create inextricable complications. As third parties can still challenge the validity of the patent after the validation judgment, the patent could potentially be invalidated *erga omnes* after the *inter partes* judgment is vacated. If this happens, would this judgment remain vacated, or would it be reinstated? To avoid endless litigation and multiple restitutions, it seems preferrable to leave things as they stand between the parties to the *inter partes* litigation.

108 At the time of the *BSH* judgment, it was unclear whether and when the Brussels Ia Regulation would be reformed. A study had been prepared to support a report on the Regulation (European Commission, Study to support the preparation of a report on the application of Regulation (EU) No 1215/2012 on jurisdiction and the recognition and enforcement of judgments in civil and commercial matters (Brussels Ia Regulation) – Final report (European Commission, January 2023) at https://data.europa.eu/doi/10.2838/14604 [https://perma.cc/Z3YZ-2U5K]). However, that report was only made public on 2 June 2025, more than three months after *BSH*, see n 84 above. An academic position had also been published prior to *BSH*, but it did not address issues relating to Art 24, see Burkhard Hess and others, 'The Reform of the Brussels Ibis Regulation – Academic Position Paper' (6 June 2024) at https://papers.ssrn.com/sol3/papers.cfm?abstract_id=4853421 (last visited 17 June 2025).

109 See for example Jorge Contreras, 'It's Anti-Suit Injunctions All the Way Down – The Strange New Realities of International Litigation Over Standard-Essential Patents' (2020) 26 IP Litigator 1.

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affect the patent register. And the CJEU only recognised that the courts of EU Member States have jurisdiction under Article 4(1) when validity is raised as a *defence*, ie to dismiss an infringement claim.[110] Should the defendant file a counterclaim to revoke the patent from the register,[111] the exclusive jurisdiction of the courts of the registration State would still be triggered, based on the principle of non-interference. In such a scenario, the court judging the infringement would still have to stay proceedings pending the resolution of validity issues, as with EU-registered patents.[112] Provided courts are mindful not to overstep their jurisdiction, there would accordingly be no reason for the courts of the registration country to issue an anti-suit injunction.

Yet this risk cannot be eliminated entirely, for the distinction between *erga omnes* and *inter partes* validity is not as watertight as is commonly assumed. If a patent were invalidated *inter partes*, third parties – especially licensees – would be at a disadvantage compared to the judgment winner, who would be free to use the patent while others have to pay. This asymmetry may distort competition, especially if competitors are priced out, leaving the judgment winner alone on the market.[113] Thus, although *inter partes* findings do not *directly* interfere with the exclusive jurisdiction of the registration State, they may *indirectly* diminish that State's ability to regulate patents within its territory.

Whether this would and/or should suffice to convince a court to issue an anti-suit injunction is debatable. Arguably, differences of treatment are to some extent part of commercial reality, as licensors do not have an obligation to treat all licensees equally – not even in the standard-essential patent context, despite the requirement that royalty fees have to be fair, reasonable and non-discriminatory (FRAND).[114] In any case, patent holders are incentivised to restore a certain degree of equality to avoid third parties rushing to chal-

110 *BSH* (CJEU) n 1 above at [74].

111 Most of the time, the defendant will prefer challenging validity outside the country of registration, as an *inter partes* invalidation can potentially create a competitive advantage over third parties. Moreover, doing so would make it easier to challenge validity if parallel patents are at stake. But sometimes, the defendant might prefer to challenge validity before the courts of the country of patent registration, perhaps because it trusts their ability to apply their own law and/or views them as being less patent-friendly.

112 Whether the court should do so where the validity defence is 'reasonable, non-negligible', as with EU-registered patents, is an open question.

113 See further Rochelle Dreyfuss, 'An Alert to the Intellectual Property Bar: the Hague Judgments Convention' [2001] U Ill LR 421, 445-446. A related argument is that a judgment invalidating a patent between the parties may reduce the market value of the patent in the eyes of the competitor; conversely, an *inter partes* validation may increase the value of the patent in question. However, such indirect *erga omnes* effects also exist in infringement disputes as well, for example in trade mark law, where a finding of non-infringement may diminish the sign's distinctiveness, the expected scope of protection, and ultimately, the mark's value. Likewise, a finding on the scope of patent claims may increase or reduce the amount that competitors are willing to pay for a licence or an assignment. Yet, as will be explained in a forthcoming monograph, few would contest that courts should be allowed to rule on the alleged infringement of foreign IP rights.

114 Indeed, the FRAND requirement seeks to protect licensees from patent hold up, ie the situation where holders of standard-essential patents impose excessive royalty fees due to their considerable bargaining power over licensees: see Andy Updegrove, 'Everything You Always Wanted to Know About FRAND (But didn't know who to ask)' (Consortia blog, 21 February 2012) at https://www.consortiuminfo.org/open-source-open-standards/everything-you-always-wanted-to-know-about-frand-but-didnt-know-who-to-ask/ [https://perma.cc/

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lenge patent validity in the country of registration. Assuming the judgment is public (which is normally the case),[115] third parties could also defend themselves against infringement or royalty-payment claims by using the *inter partes* judgment as a fact or a road map. Depending on the applicable law and the strength of the invalidity argument, they may even invoke the doctrine of abuse or right,[116] misuse,[117] and/or the doctrine of unclean hands.[118] Thus, third parties would not be as disadvantaged as it might first seem, despite the judgment being formally restricted to the parties. While it is true that the *inter partes* approach is to some extent illusory, and partly encroaches on the registration State's sovereignty, these indirect *erga omnes* effects are not problematic: on the contrary, encouraging third parties to challenge patents that have been wrongly granted benefits the public by eliminating 'bad patents' from the market.

One must therefore hope that courts will exercise self-restraint and avoid creating jurisdictional battles in the wake of *BSH*.[119] Again, however, it is paradoxical that the *inter partes* approach was accepted for non-EU patents before EU-registered patents. Considering that anti-suit injunctions are prohibited among the courts of Member States,[120] the case for adoption of this approach in respect of EU-registered patents is even stronger.

CONCLUSION

Nearly 20 years after *GAT*, the CJEU attempted to loosen cross-border patent litigation in the EU. However, the CJEU arguably put the cart before the horse by permitting courts to determine the *inter partes* validity of non-EU patents before this possibility was accepted for patents registered within the EU. Going forward, the EU legislator should address this inconsistency by codifying the

PN7E-92YV]. It does not seek to deprive the party who successfully pleaded invalidity (and ran the risk that the court decide differently) from its competitive advantage.

115 Ideally, there should be a mechanism for public notification of *inter partes* invalidity determinations. See ALI Principles, n 77 above, s 211, Reporters' notes at [1]. This could take the form, for example, of a notification from the foreign court to the IP office of the registration country, which would then mention the *inter partes* judgment in its database. However, the fact that judgments are normally public, combined with the possibility of discovery or disclosure in some jurisdictions, will generally ensure that third parties are not significantly disadvantaged (unlike in arbitration, where awards are often confidential).

116 See, by analogy in the Korean domestic context, Chaho Jung and others, 'Patents' in Byung-Il Kim and others, *Intellectual Property Law in Korea* (Alphen aan den Rijn: Wolters Kluwer, 2nd ed, 2015) 56 (in South Korea, the Supreme Court recognised that abuse of right is a defence in patent infringement if there is a clear reason of invalidation based on inventive step as well as novelty).

117 See, by analogy in the arbitration context, Anne Martin and Derek Mason, 'Arbitration: A Quick and Effective Means for Patent Dispute Resolution' (2011) 12 NC JL & Tech 301, 313 n 67.

118 See, by analogy in the arbitration context, M. A. Smith and others, 'Arbitration of Patent Infringement and Validity Issues Worldwide' (2005) 19 Harvard J L & Tech 299, 324.

119 See more generally Graeme Dinwoodie, 'Developing a Private International Intellectual Property Law: The Demise of Territoriality?' (2009) 51 WMLR 711, 773-774 (advocating a philosophy of restraint in cross-border IP cases).

120 Case C-159/02 *Turner* v *Grovit* ECLI:EU:C:2004:228; Case C-185/07 *Allianz* v *West Tankers* ECLI:EU:C:2009:69.

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inter partes approach for EU-registered patents in a future recast of the Brussels Ia Regulation.

Momentum appears to be building, as the European Commission has recently signalled its openness to this idea.[121] In the context of ongoing reform efforts, discussions should take place on how to resolve potential conflicts between *erga omnes* and *inter partes* validity determinations[122] – otherwise, the *inter partes* approach might create more problems than solutions.

121 Report from the Commission, n 84 above, 14: 'a future review of the Regulation could reconsider the wording of Article 24(4) that aimed at codifying the *GAT* jurisprudence in the light of the recent developments in *BSH Hausgeräte*'.

122 On this point, see the arguments made in n 107 above.

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The Shareholder's Standing to Challenge the Exercise of Directorial Power: *Tianrui (International) Holding Company Ltd* v *China Shanshui Cement Group Ltd*

Pearlie Koh*

An enduring problem with the proper purposes duty is the apparent right of the shareholder to enforce the same despite the duty being owed to the company. The cases on the proper purpose duty have thus far simply assumed the right of the shareholder to do so without dealing with the question of standing. In *Tianrui (International) Holding Company Ltd* v *China Shanshui Cement Group Ltd*, the Privy Council dealt with this issue directly and affirmed the shareholder's right to bring the action on the basis of the statutory contract constituted by the memorandum and articles of association of the company. The decision, whilst an appeal from the Cayman Islands, has important implications for shareholder rights as well as how directors' duties are viewed in the UK and common law jurisdictions generally.

INTRODUCTION

As the greater part of a company's powers to function as a commercial entity is delegated to its directors, there are restrictions on how such powers should be exercised. The almost banal proposition that any use of these powers must only be for the purposes for which they were conferred, or in other words, for 'proper purposes', is one such restriction. This purpose-focused constraint finds expression as a duty that is owed to the company and is enshrined in section 171(b) of the Companies Act 2006. Judicial consideration of the duty has arisen almost exclusively in the context of campaigns for corporate control, where directors, operating under considerable pressure, might have 'succumbed to the temptation … to favour their allies'[1] when exercising their fiduciary powers. It is in such situations, as Lord Sumption observed in *Eclairs Group Limited* v *JKX Oil & Gas plc*[2] (*Eclairs Group*), that the 'purposes' of the directors play the most valuable part in containing any unauthorised impact on the balance of shareholder power. But the proper purposes duty has always been an enigma. It was a matter of some conjecture as to what exactly the duty demanded of directors, and, as the divergent views advanced in the *Eclairs Group* litigation

*Yong Pung How School of Law, Singapore Management University. I am grateful to the anonymous referees for their very helpful comments. All errors remain mine.

1 *Eclairs Group Limited* v *JKX Oil & Gas plc* [2015] UKSC 71 at [37].
2 *ibid*.

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amply demonstrate,[3] its boundaries continue to defy universally-acceptable definition.

But there is another longstanding puzzle. The duty is clearly owed to the company, and thus for the company, not its shareholders, to enforce. This is the effect of the venerable rule in *Foss* v *Harbottle*.[4] And yet, shareholders have long been permitted by the highest courts to bring *personal* (not derivative) proceedings to enforce the duty. The key cases on the proper purposes duty have involved either the allotment of new shares[5] which disturbed the existing shareholding equilibrium or, as was the case in *Eclairs Group*, some other act that disenfranchised the voting capacity of the would-be or perceived corporate 'predators'. As these actions typically impact the shareholders rather than the company, it is unsurprising that the affected shareholders should feel sufficiently aggrieved to initiate legal proceedings. What is somewhat more perplexing is the courts' unquestioning acceptance of the shareholder's standing to do so without making clear the juridical premise of that right.

The opportunity to provide some clarity arose before the Judicial Committee of the Privy Council in *Tianrui (International) Holding Company Ltd* v *China Shanshui Cement Group Ltd*[6] (*Tianrui*), an appeal from the Court of Appeal of the Cayman Islands. The Board had stated the issue before it thus: '[W]hether a shareholder, including a minority shareholder, has a personal claim against a company when the directors of the company allot shares for an improper purpose. In particular, does the shareholder have a private right to sue the company for a declaration that the power of the company has been invalidly exercised by the board of directors on the company's behalf?'[7]

In a judgment delivered by Lord Hodge and Lord Briggs, the Board affirmed the shareholder's right to challenge the actions of directors on the ground that they were undertaken for improper purposes. Importantly, the Board located the source of that right in the corporate constitution and held that the shareholder's personal right arose on the breach of the corporate contract that was contained therein.[8]

The decision is of considerable interest and importance. Although a decision on the company law of the Cayman Islands, there are sufficient similarities with English law for the Board's judgment to inform analysis and understanding of the concept of 'proper purposes' and its relevance to shareholder rights in the English context.

3 See the helpful summary provided in Rosemary Teele Langford and Ian Ramsay, 'The Proper Purpose Rule as a Constraint on Directors' Autonomy – *Eclairs Group Limited* v *JKX Oil & Gas plc*' (2017) 80 MLR 110.

4 *Foss* v *Harbottle* (1843) 2 Hare 461. See also *Marex Financial Ltd* v *Sevilleja (All Party Parliamentary Group on Fair Business Banking intervening)* [2020] UKSC 31 at [10].

5 The well-known illustrative cases include *Hogg* v *Cramphorn Ltd* [1967] Ch 254 and *Howard Smith Ltd* v *Ampol Petroleum Ltd* [1974] AC 821.

6 [2024] UKPC 26.

7 *ibid* at [1].

8 *ibid* at [70].

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FACTS

Predictably, the case is set against a backdrop involving a prolonged battle for corporate control of the respondent company, Shanshui (the company). Shanshui was a Cayman Islands exempted company and its shares were listed on the Hong Kong Stock Exchange. It had four principal shareholders, none of whom individually controlled a majority of the shares. Three amongst these shareholders, including the appellant, Tianrui, were competitors with Shanshui itself in the cement production industry in China. The company became a target for takeover when, in 2014, the Chinese Government imposed restrictions on cement production such that existing cement producers could only expand their market shares by taking over other cement producers.

The events that led to Tianrui's complaint began when the Hong Kong Stock Exchange issued notice that Shanshui would be delisted unless, inter alia, its public float was restored to above the 25 per cent minimum threshold mandated by the relevant listing rules. This led to a flurry of activity. The Tianrui-controlled board of directors was replaced with one broadly allied with Asia and National, two of the other shareholders in Shanshui. The new board issued convertible bonds which were later converted into equity with the allotment of new shares. Asia and National supported the share allotment via a shareholder resolution passed at a subsequent general meeting. The new shares restored the public shareholding to above the minimum levels required and trading in the company's shares resumed thereafter. Tianrui, however, was adversely affected as its shareholding in the company fell below 25 per cent. This resulted in it being divested of the ability to block special resolutions which it had hitherto possessed. Whilst a seemingly rational response to the Stock Exchange notice, Tianrui claimed that the issue of new securities was in fact part of a scheme to enable Asia and National to control the company. It asserted that the actions of the reconstituted board of directors were an improper exercise of the company's powers to allot and issue securities, and sought to invalidate the same. Shanshui applied to strike out Tianrui's action on the ground that the action was an abuse of process. It averred that Tianrui lacked locus standi as the duty to act for proper purposes was owed by the directors to the company.

While Shanshui lost at first instance, the Court of Appeal of the Cayman Islands allowed Shanshui's appeal. It held that an aggrieved shareholder had no personal right of action against the company and had to 'found his claim on a basis that is consistent with the rule in *Foss* v *Harbottle* or with the fraud on the minority exception to that rule'.[9] Tianrui's further appeal was allowed by the Board. After undertaking a careful and useful review of English and Australian cases, the Board found that the courts had, applying 'principles of company law which are not materially different to those in force in the Cayman Islands',[10] repeatedly recognised the right of the shareholders to personally challenge acts of directors in circumstances similar to the present. In the face of such cross-jurisdictional coherence, the Board considered the Cayman Islands Court of

9 *ibid* at [27].
10 *ibid* at [65].

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Appeal wrong to have denied Tianrui's standing.[11] The authorities clearly established that a shareholder *had* a personal right to bring an action against the company to challenge an improper exercise of the directors' fiduciary power to issue and allot new shares and obtain declaratory relief. The Board considered Tianrui's case to be a 'strong case' on the assumed facts. On that basis, if the share allotment was indeed motivated by the alleged improper purpose, the negative impact of that allotment that Tianrui suffered as a consequence was 'an interference in Tianrui's rights as shareholder to have a say in the collective control of [Shanshui's] affairs by the shareholders'.[12] The writ should not, therefore, have been struck out.

PERSONAL RIGHTS AND THE CORPORATE CONTRACT

As noted at the outset, it was the Board's view that the shareholder's 'personal right' to challenge acts of directors on the ground of improper purposes was firmly grounded in the 'corporate contract' statutorily constituted between the shareholders and the company. The Companies Act (2023 Revision) of the Cayman Islands, much like the English statute,[13] accords binding effect to a company's registered memorandum and articles of association,[14] thereby approximating those documents to a binding multi-party contract[15] as between the members[16] and the company. The Board's reasoning had proceeded as follows. A company's power to allot and issue shares, which was conferred upon it by its constitution,[17] was typically vested, also by the terms of the constitution, in its board of directors to exercise.[18] The present case was no exception.[19] The conferment of that power onto the directors was thus an important part of that corporate contract. But the directors were, as fiduciaries, constrained to exercise the powers vested in them in accordance with the duties imposed upon them. It followed thus that due compliance with those duties was 'as much a

11 *ibid* at [66].
12 *ibid* at [85].
13 Companies Act 2006.
14 Companies Act (2023 Rev) (Cayman Islands), ss 12 and 25(3). The provisions provide that the memorandum and articles when registered 'bind the company and the members thereof to the same extent as if' the memorandum and articles 'contained on the part of that [member] … a covenant to observe all the conditions' of the memorandum and articles of association. Like the version contained in older iterations of the UK Act, the Cayman Islands provisions do not, by their express terms, provide that *the company* has likewise covenanted to observe the provisions of the constitution. English cases have however made clear that the company is, like its members, similarly bound to observe the provisions of the statutory contract: see *Rayfield* v *Hands* [1958] 2 WLR 851. Presumably, this too is the position in the Cayman Islands. The current provision in the Companies Act 2006 makes express reference to the company: Companies Act, s 33.
15 *Flanagan* v *Liontrust Investment Partners LLP and others* [2016] 1 BCLC 177 at [240].
16 While often used interchangeably with 'shareholder', a 'member' is defined in Companies Act 2006, s 112 as meaning every person 'who agrees to become a member of a company, and whose name is entered in its register of members'.
17 See Companies (Model Articles) Regulations 2008 No 3229, Sched 1, Art 22; and Sched 3, Art 43.
18 Under the English Model Articles, for instance, the board is conferred the authority to 'exercise all the powers of the company': see Companies (Model Articles) Regulations 2008 No 3229, Scheds 1 and 3, Art 3.
19 *Tianrui* n 6 above at [69].

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part of that corporate contract as if it had been spelt out word for word in the articles'.[20] The Board stated: '[a]lthough the action is founded upon the fact of the commission of a breach of fiduciary duty by the directors, the cause of action is that the contract between the shareholder and the company contains the implied term that, in exercising the power to allot and issue shares, the directors as the company's agents will do so in accordance with their fiduciary duties'.[21] Ergo, on this logic, there would be a breach of the corporate contract if the directors had acted in dereliction of their duties when exercising any of their fiduciary powers. It was this breach that vested a personal cause of action in the shareholder.

The approach advocated by the Board, while logically sustainable, is not without difficulty under English law. Even if it is accepted without contention that such a term can and should be implied into the corporate contract, it is well-known that the authorities have not been consistent in recognising the shareholders' *personal* right to enforce the corporate contract. The root of the problem lies with the nature of the company and the role the corporate constitution plays in regulating corporate operations. Companies are collective enterprises, with two legislatively ordained groups of decision-makers, namely the shareholders in general meeting and the board of directors. Decisions by these 'organs' are generally determined by majority rule.[22] A basic function of the constitution, therefore, is to provide for collective decision-making processes and to regulate the distribution of collective member rights.[23] These are matters which relate to the effective administration of the corporate entity as a legal construct, and the constitution dictates its due conduct. An infraction of constitutional terms which regulate the proper operation of the corporate machinery can thus be viewed as 'a mere internal irregularity',[24] which should be put right simply by placing the matter before the collective shareholder body for resolution. Accordingly, despite being a 'party' to the corporate contract, the individual shareholder would have no separate personal right of enforcement over breach of its terms.

This was the position adopted in *MacDougall* v *Gardiner*[25] (*MacDougall*), where the English Court of Appeal refused to entertain a shareholder's action in respect of a wrongful refusal of a poll by the chairman of the general meeting. It was held that the action could not be sustained as the irregularity was something that 'the majority are masters of', and accordingly, 'the majority are the only persons who can complain that a thing which they are entitled to do has been done irregularly'.[26] In contrast, the member's personal right to have his vote recorded as prescribed by the company's constitution was recognised by Jessel

20 *ibid*.
21 *ibid* at [75].
22 For the members, see Companies Act 2006, s 282; for the directors, see Companies (Model Articles) Regulations 2008 No 3229, Sched 1, Art 7 (private companies); and Sched 3, Art 7 (public companies).
23 David Kershaw, *Company Law in Context – Text and Materials* (Oxford: OUP, 2nd ed, 2012) 89.
24 Paul L. Davies, Sarah Worthington and Christopher Hare, *Gower Principles of Modern Company Law* (London: Sweet & Maxwell, 11th ed, 2021) at [14-004].
25 (1875) 1 Ch D 13.
26 *ibid*, 25 per Mellish LJ.

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MR in the almost contemporaneous decision of *Pender* v *Lushington*[27] (*Pender*), a decision which was referred to by the Board in the present case.[28] Both of these cases affected the shareholder's ability to exert his full voting influence and yet arrived at diametrically opposed conclusions. Any real distinction between the cases is not immediately apparent, and it has been observed that reconciling these cases is akin to 'wrestling with a greasy pig'.[29] In not attaching any weight to the *MacDougall* line of cases, it is obvious that the Board's sympathies laid with the *Pender* camp. The Board would not, therefore, classify the contravention in the present case as a 'mere internal irregularity'. Nevertheless, those cases were underpinned by the common denominator that it was the shareholder's right to vote, which was central to the shareholder's interest in the company, that had been affected by the irregularity in question, albeit to differing degrees. There must therefore be something that went beyond the mere fact of the irregularity itself that justified the shareholder's personal cause of action.

The Board found this additional factor in the *harmful consequence* of the improper exercise of power to Tianrui. The Board had emphasised that a shareholder's participatory rights in the company were 'critically dependent'[30] on the proportion its shares bore to the total issued shares in the company. An allotment of new shares, except on an equal basis, interfered with shareholder rights by diluting the voting power enjoyed by the shareholder which could affect the shareholder's ability to control or influence the outcomes of decision making. In the present case, the allotment of new shares not only denied Tianrui the 'negative control'[31] it had heretofore enjoyed, it was also likely to have had an adverse impact on the value of its block of shares which was 'critically sensitive' to dilution.[32] In the Board's view therefore, it was not simply the irregularity (comprised in the 'breach' of the corporate contract) *itself* that supported the shareholder's personal right to enforce the constitution. It was the fact that, additionally thereto, the allotment had, or would have, '[caused] detriment to the shareholder'[33] that gave rise to the personal right, hence removing the case from the restrictive clutches of the rule in *Foss* v *Harbottle*.[34]

It bears noting, however, that the Board's emphasis on the deleterious consequences of the impugned share allotment on Tianrui's shareholding and economic positions is potentially dissonant with the regime for the protection of *class rights*[35] under UK company law.[36] The decision in *Greenhalgh* v

27 (1877) 6 Ch D 70.
28 The Board had referred to this case as authority for the proposition that shareholders had personal rights against their company: *Tianrui* n 6 above at [40].
29 Colin Baxter, 'The Role of the Judge in Enforcing Shareholder Rights' (1983) 42 CLJ 96, 97, n 9. See also R. J. Smith, 'Minority Shareholders and Corporate Irregularities' (1978) 41 MLR 147.
30 *Tianrui* n 6 above at [68].
31 Which the Board explained was 'the ability to block certain steps requiring a special resolution': *ibid* at [68].
32 *ibid*.
33 *ibid* at [4].
34 n 4 above. See also Smith, n 29 above, 154.
35 Companies Act 2006, s 630 protects class rights from being varied unless compliant with the applicable procedures.
36 I am grateful to the anonymous referee for drawing my attention to this point.

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Arderne Cinemas Ltd[37] is paradigmatic. The plaintiff was induced to advance a considerable amount of money to the company which was impecunious at the time. To protect his interests, he had insisted on acquiring 'a satisfactory measure of voting control'[38] over the company. To that end, he was issued the bulk of the company's 2s ordinary shares which ranked *pari passu* for all purposes with the existing 10s ordinary shares. Much like Tianrui in the present case, the shares the plaintiff held gave him the voting power to block the passing of special resolutions. His efforts to maintain that position were however thwarted when the company subdivided the 10s shares into 2s shares via a shareholder resolution that was passed by a small majority. This manoeuvre[39] resulted in the plaintiff losing the 'position of comparative safety'[40] in the company that he had originally attained. The plaintiff contended that the shareholder resolution was void as it had improperly varied the voting rights attached to the 2s ordinary shares in breach of the company's constitution. The argument failed.[41] The Court of Appeal held that while the plaintiff's rights were affected 'as a matter of business',[42] those rights had not been affected as a matter of law. Clearly, considerably less weight is attached to the adverse effects of dilution under UK law than the Board's analysis would otherwise suggest.

MAJORITY RULE AND 'OPPRESSION' AS A CONSTRAINT ON RATIFICATION

To recapitulate, the Board recognised the shareholder's personal right to challenge contraventions of the corporate contract. However, as this right was anchored by a breach of the directors' proper purposes duty, the Board accepted that the shareholder's personal right, even when premised on the adverse impact of the irregularity on the shareholder, could yet be defeated by the process of ratification.[43]

The ratification, and ratifiability, of wrongs done to the company are, of course, concepts that are fuelled by the majoritarian underpinnings of the corporate structure. If the impugned conduct, act or transaction is susceptible to ratification, then, as explained in *Edwards* v *Halliwell*, 'if the majority confirms [it], *cadit quaestio*; or, if the majority challenges [it], there is no valid reason why the company should not sue'.[44] The operation of these concepts at common

37 [1946] 1 All ER 512.
38 *ibid*, 513.
39 *ibid*, 514.
40 *ibid*, 513.
41 This conclusion was reached even though securing and keeping that measure of control was likely instrumental in securing the plaintiff's investment. In the UK, a present-day shareholder in the plaintiff's position has the option of seeking a remedy under the unfair prejudice regime contained in Companies Act 2006, Part 30. This option is however not available in the Cayman Islands.
42 *ibid*, 518. See also *White* v *Bristol Aeroplane Co Limited* [1953] Ch 65, 74, where Evershed MR noted that there was 'a distinction, and a sensible distinction, between an affecting of the [class] rights and an affecting of the enjoyment of the rights, or of the stockholders' capacity to turn them to account'.
43 *Tianrui* n 6 above at [66] and [80].
44 [1950] 2 All ER 1064, 1067.

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law was central to denying individual shareholders the standing to complain derivatively about wrongs to the company, and this position has endured even as the derivative action is now subject to statutory provision.[45] In affirming the continued relevance of these concepts in constraining the shareholder's personal claim, the Board was clearly underscoring the functional importance of the power of the majority to dictate the operations of companies.[46]

Nevertheless, the effect of the Board's acknowledgment is that the shareholder's personal 'right' is susceptible to extinguishment by majority action. This, with respect, renders its recognition somewhat less significant than it might initially have seemed and detracts from the jurisprudential value of the Board's analysis as a plausible basis upon which to inject coherence into this area. Tianrui however succeeded because the Board subjected the majority's power of ratification to 'the equitable principle that [it cannot be exercised] by way of oppression of the dissenting minority'.[47] Accordingly, and on the assumed truth[48] of Tianrui's averments, the Board concluded that the purported ratification of the share allotment was 'vitiated by the intent[49] of the majority to oppress Tianrui as a minority shareholder'.[50] The common law did not specifically restrict shareholders from voting in a self-serving manner, nor deny those votes' efficacy.[51] In the present case, therefore, any separate private interest that Asia and National might have had in affirming the share allotment should not, on that basis alone, have prevented their votes from carrying the resolution.

The application of 'minority oppression' to limit this leniency is, however, not without authority. In *North-West Transportation Company Ltd* v *Beatty*,[52] the old but definitive decision on this point, the Board had itself made clear that, to be effective, any ratification must not be 'illegal or fraudulent or oppressive towards those shareholders who oppose it'.[53] This highlights the tension between the prerogative of the majority to dictate corporate affairs, and the possibility of unfairness to the minority if that power is abused, a tension that has been expressed, in economic parlance, as the 'controlling shareholder agency costs' problem.[54]

What amounts to sufficient 'oppression' for this purpose is difficult to pin down, and given the nature of the present proceedings, the Board had no opportunity to fully explore the issue. Nevertheless, reference to the cases cited by the Board[55] as supporting this oppression-based restriction demonstrate that

45 Companies Act 2006, Part 11, Ch 1.
46 *Tianrui* n 6 above at [36].
47 *ibid* at [81].
48 The Board was required to determine the strike out application on the basis that Tianrui's allegations were proven: *ibid* at [21].
49 This might suggest that the Board would require proof of subjective intent.
50 *Tianrui* n 6 above at [86].
51 *North-West Transportation Company Ltd* v *Beatty* (1887) 12 App Cas 589; see also *Burland* v *Earle* [1902] 1 AC 83, 94. This position has been legislatively amended: see Companies Act 2006, s 239 read with s 254(2).
52 *North-West Transportation Company Ltd* v *Beatty ibid*.
53 *ibid*, 594.
54 See generally John Armour and others, 'Agency Problems and Legal Strategies' in Reiner Kraakman and others (eds), *The Anatomy of Corporate Law: A Comparative and Functional Approach* (Oxford: OUP, 3rd ed, 2017) ch 2.
55 *Tianrui* n 6 above at [81].

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the boundaries of majority power are generally circumscribed by reference to whether it had been 'exercised … bona fide for the benefit of the company as a whole'.[56] And whether an action or decision is for the benefit of the company is for the shareholders and directors of the company, not the court,[57] to determine. If there is a 'reasonable prospect of advantage to the company as a whole',[58] the fact that the action taken prejudices, or operates to the disadvantage of, a minority[59] is insufficient ground to deny the validity of the same. Applied to the present facts, it is possible to arrive at a position *opposed* to that accepted by the Board. The impugned share allotment had restored the public float of the company so that trading in its shares could resume on the Hong Kong Stock Exchange. Objectively, it can be said that the decision to sanction the share allotment was for the benefit of the company. Accordingly, unless the decision was one which was 'so extravagant that no reasonable men could really consider it for the benefit of the company',[60] it would, with respect, be difficult to justify the Board's conclusion that the purported ratification should be invalidated under English law.

IMPLIED TERMS, THE RULE IN *FOSS* V *HARBOTTLE* AND DIRECTORS' DUTIES

Be that as it may, the Board was clear that its recognition of Tianrui's personal cause of action was dependant on there being a contravention of the constitution in the first place. Resort to the device of the implied term was therefore necessary because there was no overt limit placed on the constitutionally conferred power of the directors to allot and issue shares. It bears noting that the corporate constitution is not a normal contract, notwithstanding, or perhaps, in spite of, its statutorily-dictated binding effect. It has 'a constitutional and public significance'[61] which precludes the application of many aspects of the ordinary law of contract. As Gower notes, the public nature of the constitution means that third parties dealing with the company are entitled to legitimately expect that the registered document presents an accurate statement of the company's internal regulations.[62] Accordingly, terms may generally only be implied into the corporate contract 'purely from the language of the document itself'[63] and the admissibility of extrinsic evidence for this purpose is limited.

56 Specifically, see *Allen* v *Gold Reefs of West Africa Ltd* [1900] 1 Ch 656; *Greenhalgh* v *Arderne Cinemas Ltd* [1951] 1 Ch 286; and *Peters' American Delicacy Co Ltd* v *Heath* (1939) 61 CLR 457.

57 *Shuttleworth* v *Cox Bros and Co (Maidenhead) Ltd* [1927] 2 KB 9, 23. See also *Citco Banking Corporation NV* v *Pusser's Ltd* [2007] UKPC 13.

58 *Sidebottom* v *Kershaw, Leese and Company Ltd* [1920] 1 Ch 154, 162, citing the 9th edition of *Buckley on the Companies Act*.

59 As was the case in *Allen* v *Gold Reefs of West Africa Ltd* n 56 above and *Greenhalgh* v *Arderne Cinemas Ltd* n 56 above.

60 *Shuttleworth* v *Cox Bros and Co (Maidenhead) Ltd* n 57 above, 18 per Bankes LJ.

61 *Flanagan* v *Liontrust Investment Partners LLP and others* n 15 above at [241]. See also *Bratton Seymour Service Co Ltd* v *Oxborough* [1992] BCLC 693.

62 *Gower Principles of Modern Company Law* n 24 above at [11-003].

63 *Bratton Seymour Service Co Ltd* v *Oxborough* n 61 above, 698.

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In *Attorney General of Belize* v *Belize Telecom Ltd*,[64] the Board had itself stated as follows: 'Because the articles are required to be registered, addressed to anyone who wishes to inspect them, the admissible background for the purposes of construction must be limited to what any reader would reasonably be supposed to know. It cannot include extrinsic facts which were known only to some of the people involved in the formation of the company.'[65]

In the present case, the Board justified the implied term (ie the constraint on the exercise of power by the directors imposed by the proper purposes duty) on the ground it was 'a necessary legal incident of the relationship between a shareholder and a company, and between the shareholders inter se'[66] because decisions by the directors as agents for the company could not be valid and binding on the shareholders unless duly compliant with the requisite conditions.[67] Amongst these conditions is the requirement that the directors act for proper purposes.

This manner of implying terms into the corporate contract is, however, not without difficulty. On the Board's reasoning, it should equally be 'a necessary legal incident' of the shareholder-company relationship that any breach of duty by the directors would be resolved as provided by the law. Indeed, this note ventures that this *must* be the case under English law as the regulation of directors' duties is statutorily dictated. It is expressly provided in section 170(1) of the Companies Act 2006 that the general duties of directors specified in Chapter 2 of Part 10 are 'owed by a director of a company to the company'. It follows then that, at least under English law, any term implied in the form proposed by the Board would necessarily be subject to the qualification that its enforcement is for the company to undertake. Likewise, the shareholders' collective power to ratify an 'offending exercise of power by the directors',[68] being an integral part of the law on directors' duties in the UK as well as the Cayman Islands, would also be a necessary incident of the relationship between a shareholder and the company. If these principles were equally implied into the corporate contract, the shareholder's personal right of enforcement would remain subject to the majority rule – a denouement that literally brings us back to square one.

If, however, the implied term as articulated by the Board is accepted, the critical question that then arises relates to its *scope*. It should follow logically from the Board's reasoning that the implied term would be breached, and the personal right of a shareholder triggered, when the directors fail to abide by *any* of their duties. The Board confirmed this by stating as follows: '[W]e consider that, as an intrinsic feature of the contract constituted by the memorandum and articles of association, it is implicit that when exercising their powers on behalf of the company the directors will exercise them *in accordance with their fiduciary duties, including the duty to exercise powers only for a proper purpose*.'[69]

64 [2009] 1 WLR 1988.
65 *ibid* at [36].
66 *Tianrui* n 6 above at [76].
67 *ibid* at [70].
68 *ibid* at [80].
69 *ibid* at [43] (emphasis added).

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As conceptualised by the Board, therefore, the implied term would extend across the *entire* spectrum of fiduciary duties to which corporate directors are subject. It bears noting that the Board had expressly opined that it was irrelevant whether or not the company itself had a cause of action against the directors in respect of the breach, as 'a shareholder's action against the company may coexist with an action by the company in respect of the same breach of duty by the directors'.[70]

The ramifications are startling. An implied term of this nature would mean, essentially, that a shareholder acquires a personal cause of action *whenever* the directors breach their fiduciary duties. The requirement for adverse personal impact may be of limited utility as a tool of circumscription because the interests of the shareholder are inextricably tied to the company's financial well-being. As the Board itself noted: 'The value per share of the shareholding will follow the fortunes of the company. That which benefits or harms the company will correspondingly increase or reduce the value of the shares.'[71]

There are, with respect, compelling reasons under English law to reject an implied term of such width. First, it blurs the corporate-personal divide which underpins company law. A company, upon incorporation, is a 'different person altogether'[72] from its incorporators. This principle is the 'unyielding rock on which company law is constructed'.[73] Consequently, the company 'must be treated like any other independent person with its rights and liabilities appropriate to itself'.[74] If the company is wronged, then only the company may sue and receive recompense for wrongs done against it – individual shareholders, not being the proper plaintiffs, simply have no standing to sue. This is so even if the wrongs against the company could have affected a shareholder's interests and indeed the interests of the other shareholders. This position is, at common law, staunchly defended by the rule in *Foss* v *Harbottle*.[75] As the Court of Appeal noted in *Prudential Assurance Co Ltd* v *Newman Industries Ltd (No 2)*,[76] 'that rule is not merely a tiresome procedural obstacle placed in the path of a shareholder by a legalistic judiciary. The rule is the consequence of the fact that a corporation is a separate legal entity.'[77] Accordingly, it is for the company to decide what action to take in connection with any breach of directors' duties, whether this is to make the directors liable to account or to invalidate any affected transaction. The effect therefore of implying so expansive a term into the corporate contract is the subversion of this fundamental principle.

Secondly, and as already canvassed above, the proposition ignores the collective nature of corporate decision-making. By subscribing to the statutorily legitimised corporate contract,[78] shareholders surrender individual autonomy over decisions that might affect the value of their capital contributions and

70 *ibid* at [79].
71 *ibid* at [67].
72 *Salomon* v *A Salomon & Co Ltd* [1897] AC 22 (*Salomon*), 51; Companies Act 2006, s 16(2).
73 Lord Templeman, 'Forty Years On' (1990) 11 *Company Lawyer* 10.
74 *Salomon* n 72 above, 30 per Lord Halsbury LC.
75 n 4 above.
76 [1982] 1 Ch 204, 224.
77 See also *Prest* v *Petrodel Resources Ltd* [2013] UKSC 34; [2013] 2 AC 415 at [8] per Lord Sumption.
78 Companies Act 2006, s 33(1).

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submit to the collective will of the shareholders as a group. The Board's acceptance that the personal claim could be defeated by shareholder ratification could well be seen as tacit acknowledgement that an unqualified recognition of the shareholder's claim is simply unjustifiable.

Thirdly, and perhaps most significantly under English law, the proposition runs counter to the statutory enforcement regime dictated by the Companies Act 2006 in respect of breaches of directors' duties. It has already been noted that the Companies Act 2006 states categorically that directors' duties are owed to the company. Additionally, Part 11 of the Act channels derivative claims in respect of breaches of directors' duties through the mechanism therein provided.[79] The statutory derivative action mechanism[80] operates by conferring on a single shareholder[81] the right to take the decision and then the steps to enforce breaches of directors' duties on the company's behalf.[82] As any action brought will be in the company's name, on its behalf and for its ultimate benefit, the derivative mechanism does no damage to the *Salomon* principle.[83] The court acts as gatekeeper and its permission is required for the shareholder to proceed with the derivative claim.[84] Importantly, the court must refuse permission if the impugned act has been authorised or ratified by the general meeting,[85] a qualification which emphasises and affirms the collective basis of corporate decision-making. If a shareholder acquires a personal cause of action whenever there is a breach of directors' duties, what role is there left for the statutory derivative action mechanism? While the Board had rightly considered the rule in *Foss* v *Harbottle* to be inapplicable to *personal* actions,[86] recognising the 'personal' action through the device of the implied term as proposed goes, with respect, far beyond that which was recognised in *Pender*.[87]

THE RELEVANCE OF PROPER PURPOSES TO THE CORPORATE CONTRACT

The issues highlighted in the preceding paragraphs do not, and it is not the intention of this note to, denigrate the Board's situation of the source of the shareholder's personal standing in the corporate constitution. As the Board's cross-jurisdictional survey demonstrates, this is well supported, albeit in some cases inferentially, by judicial statements both at first instance and in courts of appeal. That position is wholly defensible given its statutory underpinnings. The problem lies in pinning a breach of the corporate contract to a breach

79 Companies Act 2006, s 260(2).
80 Companies Act 2006, Part 11, Chapter 1.
81 Technically, the right is conferred on a 'member of a company': see Companies Act 2006, s 260(1).
82 Kershaw, n 23 above, 592.
83 *Salomon* n 72 above.
84 Companies Act 2006, s 261.
85 Companies Act 2006, s 263(2)(c).
86 *Tianrui* n 6 above at [40].
87 n 27 above.

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of *directors' duties*. This, with respect, elides different principles resulting in an uncomfortable fit within the established framework for corporate governance.

To reiterate, the Board had concluded that an essential part of the contract between the shareholder and the company was that the directors should abide by their duties when acting on the company's behalf. This assimilation of directors' duties into the inquiry was facilitated by the Board's characterisation of the board of directors as *agents* of the company.[88] Whilst there is authority for treating the board of directors as the company's agent,[89] this note suggests, with respect, that to use 'agency' to provide the pathway to the implied term is analytically unstable. 'Agency' is the fiduciary relationship between two persons by which one, ie the principal, manifests assent that the other, ie the agent, should act on the former's behalf so as to affect its relations with *third parties*.[90] It would therefore be apposite to characterise the board of directors as the company's agent in *outward-facing* contexts to determine the company's legal position with respect to *external* contract parties. It is however questionable whether this idea of agency can be employed in the *internal* context to determine the incidents of the relations between the parties (namely the members and the company) to the *corporate constitution*.

To appreciate the distinction, it is important to accord sufficient regard to the constitutional roles of the company organs and their relative positions vis-à-vis the company's powers. In the statutory corporate governance structure that prevails in the UK, the shareholders in general meeting and the board of directors form the nucleus of the company. These 'power organs'[91] bear the responsibility for exercising all the powers of the company[92] for the company. Decisions taken by either of these organs *are* decisions of the company. From *this* perspective, therefore, when the board of directors exercises the powers conferred on it, such as the power of share allotment, it does so *as* the company,[93] and is effectively *personifying* the corporate principal. Evidently, when the board is acting as a corporate organ, the agency concept can have no meaningful application because, *in this context*, there can be no agency relationship as such between the company and its organs.[94] The company and its organs are on the

88 *Tianrui* n 6 above at [70].

89 See for example *Ferguson* v *Wilson* (1866) LR 2 Ch 77, 89, where Cairns LJ had stated that when a company acted through directors, 'the case is, as regards those directors, merely the ordinary case of principal and agent'. See also *Aberdeen Railway Co* v *Blaikie Bros* (1843-1860) All ER 249, 252, where Lord Cranworth LC had referred to the directors as 'agents' who had 'duties to discharge of a fiduciary character towards [their] principal'.

90 Peter Watts and F. M. B. Reynolds, *Bowstead & Reynolds on Agency* (London: Sweet & Maxwell, 23rd ed, 2024) at [1-001].

91 Peter Loose, Michael Griffiths and David Impey, *The Company Director: Powers, Duties and Liabilities* (Bristol: Jordan Publishing, 12th ed, 2015) at [4.1].

92 It is possible, albeit relatively rare, for some powers to be constitutionally allocated to some other person or entity: see for example *Whitehouse* v *Carlton Hotel Pty Ltd* (1987) 162 CLR 285. More common is the delegation of specific functions or powers to individuals, such as a particular director or other officer (Companies Act 2006, s 1173 defines 'officer' as including a director, manager or secretary), or an employee.

93 Ross Grantham, 'Attributing Responsibility to Corporate Entities: A Doctrinal Approach' (2001) 19 *Company and Securities Law Journal* 168, 171.

94 Peter Watts, *Directors' Powers and Duties* (Wellington: LexisNexis, 3rd ed, 2022) at [4.2.1].

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same side, as it were, and neither the board nor the shareholders can conceivably be treated as the 'third party'.[95]

There is a further point – the company's powers are vested in the directors as a power organ and are to be exercised *collectively as a board*. Directors are not entitled, by virtue only of their appointment to the board, to individually[96] exercise corporate power.[97] A director's individual vote however is what counts towards the board's ultimate collective decision. Directors' duties are imposed to constrain the exercise of individual discretion by each director when exercising his vote.[98] Indeed, this is the basis upon which the statutory statement of directors' duties stands.[99] It is therefore incongruous to resort to directors' duties as a measure of constraint when considering the constitutional boundaries of board power and whether the corporate contract has been breached by any particular exercise of that power.

This note proffers an alternative analysis grounded on the foregoing insight. As earlier mentioned, the corporate constitution regulates the due administration of the corporate structure by setting out the framework for decision-making. Importantly, an integral part of that infrastructure is the allocation, subject to the Companies Act 2006, of decision-making powers between the shareholders collectively and the board of directors. As Greer LJ famously noted:[100]

> Some of [a company's] powers may, according to its articles, be exercised by directors, certain other powers may be reserved for the shareholders in general meeting. If powers of management are vested in the directors, they and they alone can exercise these powers. … [T]he general body of the shareholders … cannot themselves usurp the powers which by the articles are vested in the directors any more than the directors can usurp the powers vested by the articles in the general body of shareholders.[101]

It follows then that if the board of directors oversteps the constitutionally prescribed boundaries for its operative sphere of power, that violation of the constitution is a breach of the corporate contract. Herein lies the significance of 'purposes', consideration of which serves to ascertain whether any transgression of those boundaries had occurred. This thus provides the content of the im-

95 Companies Act 2006, s 551 affirms this by providing that the directors may allot shares is 'if … authorised to do so by the company's articles or by resolution of the company'.

96 Individual directors may, of course, be delegated the power to act on the company's behalf by the appropriately empowered organ: see the Companies (Model Articles) Regulations 2008 No 3229, Sched 1, Art 5 (private companies) and Sched 3, Art 5 (public companies).

97 This was already well-recognised by the late 19th century. Lord Cranworth LC had noted in *Aberdeen Railway Co* v *Blaikie Bros* n 89 above, 252 that the directors are 'a *body* to whom is delegated the duty of managing the general affairs of the company' (emphasis added); and Sir G. Mellish LJ had stated in *In re Marseilles Extension Railway Company* (1871) LR 7 Ch App 161, 168 that '[i]t appears to me, that a director is simply a person appointed to act as one of a board, with power to bind the company when acting as a board, but having otherwise no power to bind them'.

98 *Re Westmid Packing Services Ltd (No 3)* [1998] BCC 836, 843.

99 Note the statutory language adopted: Companies Act 2006, s 170(1).

100 In *John Shaw & Sons (Salford) Ltd* v *Shaw & Shaw* [1935] 2 KB 113, 134.

101 See also *Howard Smith Ltd* v *Ampol Petroleum Ltd* n 5 above, 847.

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plied term – when exercising the powers constitutionally conferred on it, the board, *as a corporate organ*, must do so for proper purposes. Whether the board's operative purpose is proper is largely determined against the corporate governance infrastructure provided by the company's constitution. The allotment of shares, as the Board pointed out in the present case, can affect the balance of voting power in the company.[102] It is therefore unsurprising that almost all cases in this area have involved the directors' exercise of the company's power to issue shares. If the board employs the power of allotment to manipulate the voting position, the resultant shift in the power equilibrium upsets the power allocation enshrined in the constitution resulting in a breach of the corporate contract. As Lord Wilberforce noted in *Howard Smith Ltd* v *Ampol Petroleum Ltd*,[103] 'it must be unconstitutional for directors to use their fiduciary powers over the shares in the company purely for the purpose of destroying an existing majority, or creating a new majority which did not previously exist' because to do so would 'interfere with that element of the company's constitution which is separate from and set against their powers'.[104] It follows then that, as the implied term relates directly to how powers constitutionally conferred on the board are to be exercised, a breach of that term cannot be ratified by ordinary resolution. To permit ratification would be akin to varying the corporate contract, which by section 21 of the Companies Act 2006, is only achievable via a special resolution. Accordingly, on the facts of the present case, Tianrui's personal standing to enforce a breach of the corporate contract could not have been defeated by the attempted ratification.

CONCLUSION

The Board's judgment in *Tianrui* is clearly an important one. It identified a breach of the corporate constitution as the juridical basis of the shareholder's standing to complain when directors exercise their powers for improper purposes. In so doing, the Board has answered what has been an enduring question in corporate law. Nevertheless, as the preceding discussion shows, the case leaves several areas of tension unresolved. This note submits that it is important for due regard to be given to the distinctive characteristics of the company as a legal person, and to the peculiar position that the board of directors occupies in the corporate structure. This is especially necessary when the same notion of proper purposes constrains both the exercise of discretion by the director as fiduciary, and the exercise of power by the board of directors as a corporate organ. This confluence is, to use Finn's words, the 'great complicating factor'[105] which encourages the misconception that directors' duties, and any breach thereof, ought to be relevant when determining whether the corporate contract has been breached. Accordingly, to avoid an unstable denouement for the issue of the shareholder's personal standing, it is

102 *Tianrui* n 6 above at [2].
103 n 5 above.
104 *ibid*, 837.
105 Paul Finn, *Fiduciary Obligations* (Sydney: Law Book Co, 1977) 38.

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suggested that the implied term should be crafted by reference to the exercise of powers by the board of directors as a corporate organ, and whether that exercise of power had exceeded the boundaries dictated by the corporate constitution.

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REVIEW ARTICLE

A Not Too Collaborative Constitution? Collaboration as Constitutional Value Versus Model

Rosalind Dixon*

Aileen Kavanagh, **The Collaborative Constitution**, Cambridge, Cambridge University Press, 2023, 510pp, hb, £120.00

INTRODUCTION

Constitutional scholarship in recent years has seen a proliferation of 'isms' – or the rise of constitutional ideas 'with adjectives'.[1] Beneath the current trend toward 'adjectival constitutionalism' also lie different understandings of constitutionalism as a *topic*, *model*, *mode of change* and *discourse*.[2] To that list might also be added the idea of distinct constitutional values.

Against that backdrop, we now have an important new account of constitutionalism and the separation of powers: Aileen Kavanagh's theory of *The Collaborative Constitution*, which proposes 'collaboration' among the branches of government, rather than either strict separation or conflict, as the best way of understanding the constitutional separation of powers.[3] Kavanagh further explains the value of this approach to a wide range of constitutional questions, but especially the resolution of disagreements about the scope and meaning of constitutional rights.

Her starting point is the United Kingdom Human Rights Act 1998.[4] But the potential scope of her claim is much larger. She suggests that, at least as a

*Scientia Professor of Law, UNSW Sydney. The author thanks Lisa Burton Crawford and colleagues at the JSI at the University of Sydney for helpful comments on prior versions of the essay, and Jeremy Ellis and Anson Chan for outstanding research assistance.

1 Rosalind Dixon, 'Adjectival Constitutionalism' (forthcoming) *American Journal of Comparative Law*.
2 *ibid*.
3 Aileen Kavanagh, *The Collaborative Constitution* (Cambridge: CUP, 2023).
4 *ibid*, 235-265.

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normative ideal, collaboration is a universal lens for viewing the relationship between branches of government in a constitutional democracy.[5]

What is less clear is whether this envisages the idea of collaboration as a distinctive constitutional model or value. One version of the collaborative ideal involves a near complete account of constitutionalism and the separation of powers, and prescribes how courts and other institutions should approach their task in all cases – at least assuming certain pre-conditions are met (such as where a constitutional system is in good democratic working order, or its 'salient features include a general adherence to the principle of democracy, the separation of powers, the protection of rights, and the rule of law').[6] This is the idea of the collaborative constitution as a 'model' of democratic constitutionalism, which may overlap with other models, but offers a holistic account of how separation of powers questions should be answered.

Another understanding of the idea of constitutional collaboration is more qualified, and involves the idea of inter-branch collaboration as one – and only one – of several important values that courts and other institutions should be attentive to in the process of constitutional implementation.[7]

Constitutional models purport to provide general guidance for balancing or reconciling competing constitutional norms, practices and values. This includes constitutional models of federalism, judicial review, or indeed of the separation of powers. Constitutional *values*, on the other hand, are normative commitments that can inform specific instances of constitutional design and interpretation.[8] But they are only one commitment among many; and must always be balanced against countervailing principles and commitments. They are not a theory of constitutional design or interpretation, or a guide to constitutional decision-making *tout court*. Constitutional values of this kind can be linked to the text, history, structure and prior interpretation of a given national constitution.[9] But they are also necessarily partial or incomplete as an account of constitutionalism; and must always be read together with – or balanced against – a range of competing constitutional values.

This I suggest is also the best – or most attractive – way of reading the collaborative constitutional ideal. As a value, the idea of collaboration is deeply important: it can help promote more stable and legitimate forms of constitutional decision-making in a democracy.[10] From a pragmatic perspective, it can also promote more effective constitutional enforcement – by promoting a form of institutional 'cross-collateralization' in the enforcement of controversial

5 *ibid*, 14-23.
6 Kavanagh, n 3 above, 18.
7 On the idea of constitutional implementation, see Richard H. Fallon Jr, *The Dynamic Constitution: An Introduction to American Constitutional Law and Practice* (Cambridge: CUP, 2013). On the idea of constitutional values, see for example Rosalind Dixon (ed), *Australian Constitutional Values* (Oxford: Hart, 2018).
8 See for example Dixon, *ibid*.
9 See for example *ibid*.
10 Kavanagh, n 3 above; Jeff King, *Judging Social Rights* (Cambridge: CUP, 2012); Rosalind Dixon, 'Polyvocal Constitutionalism' *International Journal of Constitutional Law* (forthcoming).

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constitutional requirements,[11] which helps protect all relevant institutions from damaging forms of backlash.[12]

But as a model, or a more all-encompassing account of how constitutions should be designed and interpreted, collaborative constitutionalism has greater downsides: it risks downplaying the importance of open conflict in constitutional debate and discourse; can imply too heterarchical a view of institutional authority; and downplays the risk of 'abusive' constitutionalism,[13] and the strong forms of judicial review it may call for.

Kavanagh herself is attentive to the importance of contestation and conflict, as well as collaboration, and to the importance of judicial independence as part of a collaborative constitutional design.[14] But she does not always emphasise this aspect of the theory; and such concerns are arguably downplayed by the idea of of constitutional collaboration as an all-encompassing constitutional model.

This essay therefore argues that, in embracing the idea of constitutional collaboration, we should be careful not to overlook these countervailing values, and the need to treat collaboration as simply one constitutional value, among many. In doing so, the essay calls for greater attention generally by constitutional scholars to constitutional values, as well as models, and to the idea of constitutional 'polyvocality' – or diverse understandings of the many institutional and popular actors involved in the process of constitutional construction – alongside the idea of constitutional collaboration. [15]

The remainder of this review sets out these concerns: the next part explores in more detail the idea of 'the collaborative constitution'. The third part explains the idea of collaboration as value versus model. The fourth part explores the tension between constitutional collaboration and contestation; the fifth between collaboration and accountability; and the sixth the potential abuse of collaboration as an ideal, as well as its failure to offer sufficiently strong checks against the risk of abusive constitutional change. The seventh part offers a brief conclusion.

THE IDEA OF CONSTITUTIONAL COLLABORATION

At the core of the idea of constitutional collaboration, Kavanagh suggests, lies a recognition of the distinctive and valuable role played by a variety of institutions in the process of constitutional implementation. This includes the role of courts,

11 See discussion below, under the heading 'Collaboration v Contestation'.
12 Rosalind Dixon, 'The New Responsive Constitutionalism' (2024) 87 MLR 799, 812.
13 The use and abuse of existing democratic structures to erode commitments to constitutional democracy from within. See discussion below under the heading 'Collaboration and Abusive Constitutionalism'.
14 Kavanagh, n 3 above, 4-5 (comity and collaboration are not mutually exclusive), 11-12 (on conflict and collaboration), 94-96 (institutions as 'curbing and counteracting' each other), 106-116 (on conflict and contestation), 206 (on judicial independence).
15 See Dixon, n 7 above and Dixon, n 10 above.

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but also the executive, legislature and a range of 'fourth branch' or guarantor institutions.[16]

As Kavanagh notes, all these institutions have an important role to play in the process of constitutional construction and enforcement. This is the essence of the collaborative constitution as a model of 'institutional plurality' (87), and the institutional 'division of labour' (87-94). These various institutions also have the capacity to create overlapping sources of legal and political accountability, which can 'complement and reinforce each other in mutually supportive ways' (53).

Part II of the book, for example, focuses on both the executive and legislature as 'pro-constitutional actors', and their role in developing and enforcing a range of constitutional conventions and small 'c' constitutional norms (24, 121-201). Part III turns to the idea of a 'judge as partner' (212-215), and the idea of courts as 'independent decision-makers in an interdependent constitutional scheme, whose role is to adjudicate legal disputes, whilst paying respect to the democratically elected legislature' (25). In each context, Kavanagh also emphasises the idea of a 'dynamic division of labour' (91) based on 'distinct but interconnected roles within a joint institutional enterprise' (90).

In line with this, Kavanagh suggests that the idea of constitutional collaboration also involves a commitment, among these different institutions, to norms of inter-branch 'comity, civility, moderation, trust, compromise, democratic discipline and constitutional self-restraint' (13).[17]

In cases of inter-branch conflict, Kavanagh suggests that a commitment to civility and moderation means that all institutional actors are required to eschew 'dirty tricks or hardball tactics in the name of civility and fair play' (111). She further suggests that the aim of constitutional oversight is to encourage 'slowing down' or tempering conflict, as opposed to allowing it to come to a head in the form of a constitutional 'show-down' (112-114). This also requires civility, and a concern for norms of 'reciprocity, repeat-play and reputation' (103).

In all cases, Kavanagh argues, commitments to comity point to a commitment among all branches to a degree of restraint (98-99), and for courts, to a 'calibrated' approach to judicial review,[18] which adjusts the 'mode, means and intensity' of review to the relative competence and performance of other branches of government (25). This, in turn, means close attention to context, but also to whether the legislature has considered the constitutional impact of its proposals (for example, its impact on rights), and the extent and intensity of that consideration (304-305). Further, it means constitutional theory embracing some limit to both legislative and judicial finality (chapters 11-12).

In this sense, the idea of the collaborative constitution has close affinities with ideas of constitutional 'dialogue' and 'weak' form judicial review, which empha-

16 See Tarunabh Khaitan, 'Guarantor Institutions' (2022) 16 *Asian Journal of Comparative Law* S40; and Tarunabh Khaitan, 'Guarantor (or the so-called "Fourth Branch") institutions' in Richard Bellamy and Jeff King (eds), *The Cambridge Handbook of Constitutional Theory* (Cambridge: CUP, 2025).

17 See also King, n 10 above, 139; Nicholas W. Barber, 'Prelude to the Separation of Powers' (2001) 60 *Cambridge Law Journal* 59.

18 Compare also Rosalind Dixon, 'Calibrated Proportionality' (2020) 48 *Federal Law Review* 92; Cora Chan, *Deference in Human Rights Adjudication* (Oxford: OUP, 2024).

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sise limits to judicial finality or supremacy in constitutional construction (20-22, 258-262).[19] But Kavanagh is a notable critic of these specific understandings of the idea of constitutional collaboration, or polyvocality.

'Dialogue', Kavanagh suggests, has some benefits in advancing a non-binary understanding of the separation of powers.[20] But it has also clear flaws: it fails to move beyond the traditional 'adversarial' separation of powers paradigm; to encourage appropriate attention to facts and context; and to provide normative guidance to institutions in how they should approach concrete institutional conflicts and interactions (76-80).

Kavanagh likewise questions the utility of the idea of 'weak' review on similar grounds (261-262), and on the basis that it is often focused on the form rather than substance of judicial finality (as for instance, in the case of interpretive as compared to declaratory remedies under sections 3 and 4 of the Human Rights Act 1998 (259-261)).[21]

This is in part how Kavanagh arrives at the metaphor of the 'collaborative constitution' (chapter 9), as her preferred conception of shared, or polyvocal, constitutional authority.[22] But she also imbues the idea of collaboration with a useful additional idea, of 'mutual support', or the idea that institutions owe each other duties of mutual support in the process of democratic constitutional implementation (100).

Collaboration, in this sense, has potential principled *and* pragmatic virtues. At a principled level, constitutional collaboration draws on the strengths of a range of institutions to promote more legitimate forms of democratic self-government. It also promotes consistency, coherence and stability in the process of implementing a multi-dimensional constitution, with elements developed by different branches of government (for instance, by the executive, legislature and courts), and reconciled through notions of comity and mutual respect.

At a pragmatic level, as part III explores in more detail, institutional co-operation can also be extremely important to effective constitutional implementation As Marta Cartabia notes, the more institutions build relationships with each other, the more they can work in concert to enforce core democratic norms.[23] The more they perform a public showing of comity, the more likely it is they will be shown comity or respect in return, in ways that increase the chances of compliance with controversial constitutional rulings.[24] And the more institutions refer to and reinforce each other's rulings, the more they can

19 See further Aileen Kavanagh, 'What's So Weak about "Weak-Form Review"? The Case of the UK Human Rights Act 1998' (2016) 13 *International Journal of Constitutional Law* 1008.

20 Aileen Kavanagh, 'The Lure and Limits of Dialogue' (2016) 66 *University of Toronto Law Journal* 83.

21 For a different view, see Rosalind Dixon, 'The Forms, Functions, and Varieties of Weak(ened) Judicial Review)' (2019) 17 *International Journal of Constitutional Law* 904.

22 Dixon, n 10 above. Kanavagh herself uses the term 'polyvocal' in this context: Kavanagh, n 3 above, 4-6.

23 Marta Cartabia, 'Editorial: COVID-19 and I•CON; Guest Editorial: Courts' Relations; Once upon a time in Catalonia …; In this issue' (2020) 18 *International Journal of Constitutional Law* 1; Dixon, n 12 above.

24 Rosalind Dixon, *Responsive Judicial Review: Democracy and Dysfunction in the Modern Age* (Oxford: OUP, 2023).

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bolster constitutional rulings that might otherwise trigger institutional backlash or defiance.

This is the key pragmatic case for constitutional collaboration, which I and others make as part of a polyvocal or responsive theory of constitutionalism.[25] It is the idea of institutions collaborating in order to bolster or 'cross-collateralize' each other's power and authority.[26] Dinesha Samararatne describes this as the idea of constitutional resilience 'through synergy', or the idea that by working together, and 'in tandem' with the public and civil society, courts, fourth branch institutions, executive and legislative actors can better reduce constitutional vulnerability, and thereby increase democratic constitutional resilience.[27] David Landau makes a similar argument about the value of collaboration between courts and civil society – or between public institutions and the public itself.[28] Collaboration of this kind can help promote democratic resilience, and aid in more effective implementation of complex court orders.[29]

At the same time, it is important to note the degree to which in most democratic constitutional settings, collaboration co-exists alongside other important constitutional commitments, which may sometimes call for priority, over a commitment to collaboration. It is also important to read *The Collaborative Constitution* in a manner that preserves space for these commitments.

COLLABORATION V CONTESTATION

As the previous part notes, constitutional collaboration is one important constitutional value. But so too is the idea of constitutional contestation – or an ongoing open, public debate about the legitimacy of current legal and political arrangements.[30]

Why is the idea of constitutional contestation important? First, it recognises the broad scope for disagreement among citizens about questions of justice, and the need this creates for an ongoing process of (reasoned) deliberation on these questions.[31] Second, it recognises that contestation, by itself, demonstrates a form of respect to those disappointed by current legal and political arrangements, and can help signal to them that they are not permanently locked out

25 *ibid*.
26 *ibid*.
27 Dinesha Samararatne, 'Resilience Through Synergy? The Legal Complex in Sri Lanka's Constitutional Crisis' (2022) 9 *Asian Journal of Law and Society* 1.
28 David Landau, 'Courts and Support Structures: Beyond the Classic Narrative' in Erin Delaney and Rosalind Dixon (eds), *Comparative Judicial Review* (Cheltenham: Edward Elgar Publishing, 2018) 226.
29 *ibid*.
30 See Dixon, n 24 above. Kavanagh herself recognises this: see Kavanagh, n 3 above, 11-12, 106-116. See further, Eoin Carolan, 'Between Supremacy and Submission: A Model of Collaborative Constitutionalism' (unpublished, copy on file with the author) 31.
31 See for example Jeremy Waldron, *Law and Disagreement* (Oxford: Clarendon Press, 1999); Frank I. Michelman, *Constitutional Essentials: On the Constitutional Theory of Political Liberalism* (Oxford: OUP, 2022).

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of winning support for their preferred constitutional position.[32] Third, the process of contestation may itself serve as source of political accountability: it can encourage different actors to be more transparent about their preferred constitutional vision, and to actively compete to advance a vision of the constitution that most closely aligns with citizens' own understandings.[33]

There is also a potential tension between a commitment to mutual respect and comity among institutions, and a commitment to respectful but robust contestation of this kind. One is about tempering conflict, the other about channelling it into open – and potentially quite loud – dialogue among citizens. There is also a clear difference in ethos or emphasis between these two approaches, which may affect how the roles of various constitutional actors are conceptualised.[34]

In addition, one of the key arguments for constitutional contestation is that it sends a message of inclusion to constitutional or political 'losers' – a message that signals respect and inclusion, and hence, a basis for continuing attachment to the political order even in the face of current losses.[35] A message of this kind may be less powerful, or clear, if it is accompanied by a perception that there is an ethos of collaboration among the various branches of government.

Collaboration of this kind may well be consistent with ongoing actual institutional independence and impartiality. But for the lay observer, it may suggest a form of 'club' or elite network that is inaccessible, and indifferent, to the concerns of ordinary citizens and voices. Recent studies suggest that a feeling of this kind is common among voters in many democracies, and a major reason for their turn away from mainstream parties toward 'populist', illiberal alternatives.[36]

This is also one reason to prefer the idea of constitutional collaboration as a value – to be balanced against commitments to contestation – rather than as a complete model of the separation of powers.

COLLABORATION V AUTHORITY

Another difficulty with the idea of constitutional collaboration *as model* is that it risks advancing too heterarchical a notion of constitutional authority. This,

32 See Louis Michael Seidman, 'What's So Bad About Bush v. Gore? An Essay on Our Unsettled Election' (2001) 47 *Wayne Law Review* 953; Robert Burt, *The Constitution in Conflict* (Cambridge, MA: Belknap Press, 1st ed, 1992). See also Alon Harel and Adam Shinar, 'The Real Case for Judicial Review' in Delaney and Dixon (eds), n 28 above.

33 This, for example, is the Madisonian vision of constitutional 'checks and balances' in Federalist 51: see discussion in Dimitrios Kyritsis, *Where Our Protection Lies: Separation of Powers and Constitutional Review* (Oxford: OUP, 2017); Harel and Shinar, *ibid*.

34 On the importance of institutional role conceptions to constitutional outcomes, see for example Landau, n 28 above.

35 Seidman, n 32 above, 1022.

36 Eleni Courea, '"Disrupt or be Disrupted", Mainstream Parties Warned as Voters Turn to Populists' *The Guardian* 31 January 2025 at https://www.theguardian.com/politics/2025/jan/30/western-political-parties-voters-turning-to-populists-research-tbi?utm_source=chatgpt.com [https://perma.cc/Y85W-LXFW].

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in turn, risks undermining a commitment to constitutionalism as a source of constraint on executive and legislative actors, or constitutions as sources of legal accountability.[37]

Kavanagh is clear that accountability of this kind matters (94-96); and that collaboration is not the same as friendship (86). Indeed, she notes that while collaboration assumes 'heterarchy' rather than hierarchy among institutions, this is not the same as 'equality' (102).

But as a model, the idea of the collaborative constitution advances a conception of the separation of powers that is based on an *ethos* of institutional equality, which in practice may prove in tension with an ethos of constitutional legal and political accountability. The idea of constitutional accountability, in contrast, necessarily assumes a degree of constitutional hierarchy – or power, on the part of one institution, to demand compliance or justification from another branch of government. That is, it depends on a degree of institutional *authority*, or constitutional arrangement in which one actor (such as a court or fourth branch official) has the *legal power* or authority to demand the provision of reasons by, or impose coercive sanctions on, another actor. For courts, this can involve the power to subpoena documents or witnesses, and the power to set aside laws and decisions, or even imprison an individual for non-compliance with a court order. And for fourth branch actors, it can involve the use of investigative powers, and the power to impose sanctions, albeit often through the invocation of a subsequent judicial process. But without powers of this kind, comparative studies suggest that judicial 'enforcement' of the constitution will often lack teeth.[38]

Authority of this kind does not depend on there being clear, right answers to every legal or constitutional question. Indeed, scholars such as Etienne Mureinik argued that, by itself, an ethos or 'culture of justification' can promote both more legitimate and better decision-making by the executive – simply by demanding that decision-makers provide good reasons for their actions.[39] This, for Mureinik, is what distinguished a democratic, rule of law state from an authoritarian one (such as the apartheid-era regime in South Africa): one is based on 'a culture in which every exercise of power is expected to be justified; in which the leadership given by government rests on the cogency of the case offered in defence of its decisions, not the fear inspired by the force at its command'.[40] Mureinik also contrasted this culture of justification, or persuasion, with a culture of authority – showing that the idea of constitutional 'authority' can have both negative as well as positive connotations. But here he meant to refer to a culture based on coercion rather than justification; not to suggest that constitu-

37 Carolan, n 30 above.

38 See Nick Robinson, 'Closing the Implementation Gap: Grievance Redress and India's Social Welfare Programs' (2015) 53 *Columbia Journal of Transnational Law* 321; Po Jen Yap and Rosalind Dixon, 'Responsive Judicial Remedies' (2025) *Global Constitutionalism* (forthcoming); David Landau, 'Aggressive Weak Form Remedies' (2013) 5 *Constitutional Court Review* 244.

39 See Janina Boughey, 'The Culture of Justification in Administrative Law: Rationales and Consequences' (2021) 54 *University of British Columbia Law Review* 403, 417-418.

40 Etienne Mureinik, 'A Bridge to Where? Introducing the Interim Bill of Rights' (1994) 10 *South African Journal of Human Rights* 31, 32.

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tionalism or the rule of law could exist without authoritative institutions, such as courts.

Institutional authority of this kind is also necessarily somewhat hierarchical in nature; it does not conform to the idea of a constitutional conversation 'among equals',[41] or a purely heterarchical form of constitutional collaboration.[42] Rather, it stems from an institution's role under a written constitution, including its role in enforcing binding legal norms. It also implies potential limits on that role, where the text of a written constitution does not authorise a particular institution to enforce relevant standards of accountability.[43]

And if we treat collaboration as the defining logic of constitutionalism, authority of this kind may become more difficult for judges (or fourth branch officials) to assert. It may make it psychologically more difficult to assert authority of this kind; and less likely that the public will accept the claim, as legitimate.[44]

Take the analogy drawn by Kavanagh between academic collegiality, marriage, and the kind of partnership between constitutional institutions that she envisages (110). In both cases, the analogy helps highlight the potential tension between commitments to collaboration and accountability, in a constitutional context. In an academic context, we often look to colleagues for 'criticism as help'. But there are strong academic and institutional norms against colleagues acting as examiners or peer reviewers for other colleagues within the same institution. Why? Because our personal and institutional connection to our immediate colleagues may make it difficult to hold them *accountable* to high standards of academic excellence and integrity, including by offering criticism that leads to the failure of certain doctoral candidates, or rejection of articles for publication.

Similarly for marriage: with marriage comes a reduction in societal expectations that individuals will hold each other accountable for compliance with general legal norms. Spouses, for example, are not generally compellable to give evidence against each other in criminal trials.[45] This is a narrow exception to general legal norms of accountability; and reflects the understanding that certain forms of collaboration are difficult to sustain against a backdrop of strict demands of individual (as opposed to collective) accountability.

The better analogy, for some constitutional norms, may be the relationship between a parent and child: this is again a close family relationship characterised

41 Roberto Gargarella, *The Law as a Conversation among Equals* (Cambridge: CUP, 2022).

42 Kavanagh at times suggests that collaboration is consistent with hierarchy, but at other times, that it is antithetical to the idea of parliamentary or judicial supremacy.

43 See for example Richard Ekins, 'The Balance of the Constitution' (2022) 67 *American Journal of Jurisprudence* 169.

44 On the importance of paying attention to the psychological dimension to separation of powers theory, see Kyritsis, n 33 above, 33.

45 Australian Law Reform Commission, 'Spousal Compellability in the Law of Evidence' in 'Recognition of Aboriginal Customary Laws' ALRC Report No 31 (2020) at [313] at https://www.alrc.gov.au/publication/recognition-of-aboriginal-customary-laws-alrc-report-31/14-aboriginal-traditional-marriage-areas-for-recognition/spousal-compellability-in-the-law-of-evidence/#:~:text=The%20Present%20Law.&text=For%20example%20in%20New%20South,be%20excused%20from%20giving%20evidence [https://perma.cc/E8HF-RDEW].

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by reciprocal duties of care and support (albeit a duty that is legal and absolute in the case of the parents of a minor child, and qualified and non-legal in nature in the case of an adult caring for an elderly parent). But we also generally understand good parenting to involve accountability on the part of parents for compliance with legal requirements in respect of their children – that is, a willingness to require their children to attend school, in line with the law, and to require their children to seek medical or psychological help if they show signs of being a danger to themselves or others. This is one reason that many countries impose civil or criminal penalties on parents who do not send their children to school without a reasonable excuse, and some even impose civil liability on parents who are found negligent in supplying their child with a firearm or in failing to obtain them psychological help.[46]

Psychologists also suggest that it is harder for parents to take effective responsibility of this kind if they approach parenting in a purely dialogic, non-hierarchical way, which does not involve *imposing* certain boundaries on children. Indeed, many child psychologists suggest that the healthiest parenting behaviours are 'authoritative' as opposed to either 'permissive' (or friend-like), disengaged *or* 'authoritarian' in nature.[47]

The same could be said for courts and fourth branch institutions: it may be harder to command the respect of the government, and broader public, for acts of constitutional enforcement if the relationship between courts and other institutions is framed *purely* in terms of equality and collaboration rather than authority and accountability.

Of course, one response to this is that approaches of this kind can themselves be nested within a commitment to collaboration.[48] At the highest level of generality, all theories of constitutionalism are collaborative in nature: they are premised on the idea that all institutions are responsible for upholding the constitutional system in which they operate. This can also include the system's commitment to constitutional and judicial supremacy.[49] But this is such an abstract understanding of the ideal of collaboration that it largely loses any useful purchase. To have utility, the idea must have some concrete 'bite', and to do this,

46 See for example 'Compulsory Schooling Orders: Children and Young People' Children's Court New South Wales, 5 September 2023 at https://childrenscourt.nsw.gov.au/compulsory-schooling-orders/compulsory-schooling-orders–children-and-young-people.html#What4 [https://perma.cc/85ZA-798B] (on fines and compulsory attendance orders in NSW Australia); Andy Pierrotti, 'Mom Faces Criminal Charges for Her Son's Absenteeism' *Atlanta News First* 6 February 2024 at https://www.atlantanewsfirst.com/2024/02/05/school-marks-unexcused-absences-childs-record-after-hes-kicked-out/ [https://perma.cc/3S5M-7TP8] (on criminal penalties, including jail time, for certain forms of school absence in Georgia).

47 Elise Waghorn, 'Should Parents be Friends with Their Children? An Expert Weighs in on the Long-Debated Question' RMIT University, Society and Environment, 12 December 2023 at https://www.rmit.edu.au/news/media-releases-and-expert-comments/2023/dec/parent-friends#:~:text=%E2%80%9CWhen%20parents%20are%20'friends',%2C%20authoritative%2C%20permissive%20and%20disengaged [https://perma.cc/AA83-DHBM].

48 Compare Kavanagh, n 3 above, 106-116 (on the idea of 'conflict within constraints')

49 See for example Grégoire Webber, 'Modes of Collaboration in a Collaborative Constitution' (2024) 35 *King's Law Journal* 527.

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it must also have some limits.[50] And this again points toward the idea of collaboration as a value that should be balanced against other, competing values, not an all-encompassing model that subsumes all other values and commitments.

COLLABORATION AND ABUSIVE CONSTITUTIONALISM

A final danger to the idea of 'the' collaborative constitution – or collaboration as a true constitutional model rather than value – lies in its capacity to downplay the risks of abusive constitutionalism, or the use and abuse of existing democratic structures to erode commitments to constitutional democracy from within.[51]

First, we live in an era of democratic backsliding – or stealthy but steady erosion in many countries of what Landau and I label the 'democratic minimum core'.[52] This is especially notable in constitutional democracies such as Hungary and Poland, India and Turkey, and Venezuela, Argentina and the United States. But it is also true – if to a lesser degree – in countries such as the United Kingdom, which lie at the heart of Kavanagh's focus.

Kavanagh herself concludes *The Collaborative Constitution* by asking whether in recent years the UK has experienced sufficient democratic decline, or degradation, to move it out of a collaborative constitutional paradigm.[53] The main reason for this is the way in which former Prime Minister Boris Johnson undermined constitutional conventions and norms of fair play in the context of Brexit – including by proroguing parliament to avoid scrutiny of his plans for exit of the European Union, and misleading the Crown as to the reasons for prorogation.[54]

But there are also signs that the 'democratic minimum core' may be under threat – from attempts to undermine the role of British courts in scrutinising the lawfulness of executive action to remove asylum-seekers from the country. For instance, in response to a ruling by the UK Supreme Court that Rwanda was not a safe third country for the purposes of receiving asylum-seekers, the executive sought to side-step the ruling by negotiating a treaty with Rwanda and passing fresh authorising legislation.[55] Until cancelled by the current

50 cf Adrienne Stone and Lael K. Weis, 'Constitutional Theory in a Comparative Context' in Gary Jacobsohn and Miguel Schor (eds), *Comparative Constitutional Theory* (Cheltenham: Edward Elgar Publishing, 2024).

51 David Landau, 'Abusive Constitutionalism' (2013) 47 *UC Davis Law Review* 189. See also Rosalind Dixon and David Landau, *Abusive Constitutional Borrowing: Legal Globalization and the Subversion of Liberal Democracy* (Oxford: OUP, 2021) and Yvonne Tew, *Constitutional Statecraft in Asian Courts* (Oxford: OUP, 2020).

52 Dixon and Landau, *ibid*. On the idea of change by stealth in this context, see Ozan O. Varol, 'Stealth Authoritarianism' (2015) 100 Iowa L Rev 1673.

53 Kavanagh, n 3 above, 413-416.

54 *ibid*. See *R (Miller)* v *The Prime Minister; Cherry* v *Advocate General for Scotland* [2019] UKSC 41.

55 *R (on the application of AAA (Syria) and others)* v *Secretary of State for the Home Department* [2023] UKSC 42.

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government, these actions also squarely raised issues about the executive's commitment to constitutionalism and the rule of law.[56]

The most appropriate response, from courts and other 'guarantor' institutions, to cases of this kind will often be an emphasis on constitutional values, such as contestation and accountability, or norms of strong-form review or oversight. This may also be overlooked, given an over-arching commitment to inter-branch collaboration, comity, deference or restraint.

This point is underscored in a range of responses to Kavanagh's work. Stephen Gardbaum, for instance, suggests that a key challenge for a collaborative constitutional model lies in 'the continuing growth and appeal of authoritarian populism and democratic backsliding around the world' – conditions that are defined by a form of 'we-they, friend-foe mode of discourse' and 'increasingly deaf to the claims of comity and self-restraint'.[57] Gardbaum acknowledges that it is possible that collaboration could be encouraged in these circumstances. But he also expresses scepticism on this point – suggesting instead that attention to these cases helps reveal the relatively demanding preconditions for a preference for constitutional collaboration, over (say) an emphasis on constitutional abuse-proofing.[58]

Similarly, Larry Solum questions whether a model that prioritises collaboration has application to a constitutional system, such as the United States, characterised by 'deep pluralism, extreme polarization and substantial erosion of the constitutional norms required for collaboration'.[59] In a system of this kind, where constitutional 'hardball' rather than collaboration is the norm,[60] Solum suggests that the collaborative constitutional model – or priority to collaboration – may have limited application. Instead, non-ideal constitutional theory may do better if it prioritises notions of constitutional accountability (for example, through theories such as originalism).[61]

Kavanagh's response is that comity and collaboration still have an important role to play in this setting, and she notes that several leading US scholars agree.[62] Indeed, a key part of protecting constitutional democracy in the United States

56 See for example 'What is the UK's Plan to Send Asylum Seekers to Rwanda?' *BBC News* 13 June 2024 at https://www.bbc.com/news/explainers-61782866 [https://perma.cc/ZB8N-C57F]. The line here is a finer one between illiberal and anti-democratic change. For instance, changes of this kind may undermine rights, but still preserve a minimum set of institutional checks and balances. But removing executive action from ongoing judicial oversight may well threaten the latter as well as the former.

57 Stephen Gardbaum, 'Collaborative and Abusive Constitutionalism' (2024) 35 *King's Law Journal* 551, 554.

58 *ibid*.

59 Lawrence B. Solum, 'The Preconditions for Collaborative Constitutionalism' *Balkanization* (Blog post, 15 September 2024) at https://balkin.blogspot.com/2024/09/the-preconditions-for-collaborative.html [https://perma.cc/YK4Z-6PAR].

60 On hardball, see Mark Tushnet, 'Constitutional Hardball' (2004) 37 *Marshall Law Review* 523. On its dominance in the US in this context, see *ibid*.

61 Solum, n 59 above.

62 Aileen Kavanagh, 'Imagining America's Collaborative Constitution: Part I' *Balkanization* (Blog post, 27 September 2024) at https://balkin.blogspot.com/2024/09/imagining-americas-collaborative.html [https://perma.cc/PR3K-8H9X].

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surely involves reinforcing and restoring collaborative norms, including norms of comity among political parties,[63] and comity by the executive toward courts.

But the real question is how to achieve this: should it involve courts leading with comity and restraint, or with strong forms of review aimed at promoting accountability and protecting the democratic minimum core? Kavanagh suggests the former, whereas a more pragmatic, law and economics approach (of the kind I have been trained in) suggests a tougher tit-for-tat approach, which prioritises accountability over collaboration, unless and until the executive shows a willingness to engage in more co-operative behaviours. And recent events suggest that this may well be the only path forward for US courts, if they are to prevent a full-scale assault on democratic constitutional values.[64]

Other polyvocal constitutional theories make similar arguments. For example, in my own work on responsive judicial review, I argue that a credible risk of democratic backsliding points to courts engaging in strong – or even super-strong[65] – rather than weak or restrained forms of review. Further, I suggest that collaboration only makes sense, within this context, as a pragmatic as opposed to principled commitment – or as a form of institutional 'cross-collateralization' in support of upholding the 'democratic minimum core', rather than a principled form of mutual respect.[66]

Second, as a model, the idea of constitutional collaboration may itself run the risk of abuse – and in this way, further contribute to a process of abusive constitutional change. All constitutional theories and norms can ultimately be abused; and this, by itself, is not a reason to reject those ideas. But as Landau and I note, it *is* a reason for caution in developing those ideas, and for being explicit about the limits of ideas – in the hope that this can help reduce, if not limit, the scope for their abusive borrowing.[67] On this measure, one potential difficulty with a collaborative constitutional *model* is that it does not include explicit limits of this kind.

Any true *democratic* constitutional collaboration arguably depends on some form of ongoing impartiality and independence on the part of relevant institutions. Kavanagh herself is clearly alive to this.[68] If courts or the fourth branch actors are not truly impartial, or are too close to executive or legislative actors, they are unlikely to require a full explanation, or justification, by governments for official acts. Instead, judges and fourth branch officials may simply accept the explanations provided by government at face value, and

63 *ibid*, citing Steven Levitsky and Daniel Ziblatt, *How Democracies Die* (New York, NY: Crown, 2018).

64 See for example Erica L. Green, Zolan Kanno-Youngs and Maggie Haberman, 'How Trump Is Trying to Consolidate Power Over Courts, Congress and More' *New York Times* 20 March 2025 at https://www.nytimes.com/2025/03/20/us/politics/trump-power-courts-crisis.html [https://perma.cc/8GB4-WSRY].

65 On 'super-strong review', see the discussion in Rosalind Dixon, 'The Forms, Functions and Varieties of Weak(ened) Judicial Review' (2019) 17 *International Journal of Constitutional Law* 904. See also Erin Delaney, 'Collaboration "Devolved"', Balkinization symposium on Aileen Kavanagh, The Collaborative Constitution (Cambridge University Press, 2023), 16 September 2024. https://balkin.blogspot.com/2024/09/collaboration-devolved.html.

66 Dixon, n 24 above; Dixon, n 10 above. See also Dixon and Landau, n 51 above, 176-208.

67 Dixon and Landau, *ibid*, 176-208.

68 Kavanagh, n 3 above, 206.

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therefore go on to 'rubber stamp' the legality or constitutionality of government action.[69] David Landau and I label this a form of 'abusive judicial review'.[70] The same logic applies to abusive regulatory oversight by fourth branch institutions.[71]

Judging, or oversight, of this kind also highlights the potential dark side to the idea of constitutional collaboration, namely: the idea of collaboration as complicity in a process of constitutional erosion or abusive constitutional change. In World War II, for example, historians suggest that the spread of Nazism in Europe was closely linked to acts of 'collaboration' with Germany on the part of government officials and individual citizens – both in countries occupied by Germany and those that remained formally independent such as Finland, Hungary, Romania and Bulgaria.[72] Collaboration of this kind was the opposite of resistance; and highlights the importance of resistance by independent actors and institutions as a source of democratic resilience.[73] As Stephen Gardbaum notes, it is also where 'the very term "collaboration" may have reacquired its negative connotation of working with the enemy'.[74]

Similarly, if judges and fourth branch actors lack true independence, any attempt to enforce legal and constitutional limits is likely to fail: relevant decision-makers may simply be removed, or passed over for promotion, in favour of judges and officials willing to uphold government action.

Institutional independence and impartiality are thus two key preconditions for almost any pro-democratic theory of constitutionalism. Consistent with this, Kavanagh suggests that collaboration makes sense only in constitutional systems whose 'salient features include a general adherence to the principle of democracy, the separation of powers, the protection of rights, and the rule of law'.[75] This also includes the idea of judicial independence and impartiality.[76] But independence and impartiality are questions of degree; and treating constitutional collaboration as a value, rather than model, at once allows for a broader and narrower application of the collaborative ideal – in light of this understanding.

69 See David Landau and Rosalind Dixon, 'Abusive Judicial Review: Courts Against Democracy' (2020) 53 *UC Davis Law Review* 1313. But the same logic applies to abusive regulatory oversight by fourth branch institutions, see Rosalind Dixon and David Landau, 'Constitutions and Abusive Electoral Regulation' in Tom Ginsburg, Aziz Z. Huq and Tarun Khaitan (eds), *The Entrenchment of Democracy: The Comparative Constitutional Design of Elections, Parties and Voting* (Cambridge: CUP, 2024). See further Tarunabh Khaitan, 'Guarantor Institutions' n 16 above; and Khaitan, 'Guarantor (or the so-called "Fourth Branch") institutions' n 16 above.

70 Landau and Dixon, 'Abusive Judicial Review' *ibid*.

71 Dixon and Landau, 'Constitutions and Abusive Electoral Regulation' n 69 above.

72 Barbara Lambauer, 'Collaboration in Europe, 1939-1945' *Encyclopédie d'histoire numérique de l'Europe* EHNE 22 June 2020 at https://ehne.fr/en/encyclopedia/themes/wars-and-memories/occupybe-occupied/collaboration-in-europe-1939-1945 [https://perma.cc/4LKT-BQD5].

73 *ibid*.

74 Gardbaum, n 57 above, 551. See also Joanne Murray, 'Review: The Collaborative Constitution' [2024] *Public Law* 574, 577, questioning whether the idea of collaboration makes it more difficult to 'critiq[ue] bad action'.

75 Kavanagh, n 3 above, 18.

76 *ibid*, 206.

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CONSTITUTIONAL COLLABORATION AS GLOBAL CONSTITUTIONAL VALUE: A SOUTH AFRICAN EXAMPLE

Another virtue to seeing collaboration as a value is that it potentially invites a broader application of the idea itself. Kavanagh at times suggests that the UK is simply a useful terrain for illustrating the benefits of a collaborative constitutional model.[77] This is also quite consistent with the idea of constitutional collaboration *as a value*.[78]

For instance, Kavanagh endorses the idea that courts can help 'slow down' or temper certain constitutional conflicts – a core idea in the democratic backsliding literature.[79] She embraces many of the *pragmatic* tools of judicial statecraft associated with judicial attempts to limit democratic backsliding – through relational or co-operative forms of constitutional enforcement. And she endorses the idea of 'judicial advice' and 'soft suggestions' as a means of diffusing political opposition to controversial court rulings (314-319). She likewise embraces the idea of 'judicial warnings' or threats to the legislature, as a means of 'giv[ing] the legislature an opportunity to take the lead in a fraught policy field, albeit with a stern warning that if the legislature fails to act' a posture of judicial restraint may give way to more robust review (320). This is again in line with theories of judicial statecraft (such as my own and those developed by Yvonne Tew) that focus on weakened forms of review as strategic tools by which courts can promote effective forms of democracy-protection and creation.[80]

In other places however, the idea of constitutional collaboration seems more all-encompassing – a principled commitment to a particular conception of the separation of powers, rather than a valuable pragmatic lens for viewing that separation. Here, the idea of constitutional collaboration becomes the idea of a 'demanding discipline' which we must 'preserve' in order to ensure 'the precious legacy of a constitutional democracy' (416) – or something closer to the idea of *The Collaborative Constitution* as a more prescriptive model.

Kavanagh further suggests that her ideas about collaboration are built from the 'bottom up', drawing on comparative – but mainly British – constitutional experience;[81] and that her approach makes sense in constitutional systems such as the United Kingdom that are in good democratic working order, and whose

77 *ibid*, 19.

78 *ibid*, 18, rejecting the idea of 'The Collaborative Constitution' as a 'blueprint' for constitutional design or decision-making.

79 See Rosalind Dixon and David Landau, 'Transnational Constitutionalism and a Limited Doctrine of Unconstitutional Constitutional Amendment' (2015) 13 *International Journal of Constitutional Law* 606; David Landau and Rosalind Dixon, 'Constraining Constitutional Change' (2015) 50 *Wake Forest Law Review* 859; Bojan Bugaric, 'Can Law Protect Democracy? Legal Institutions as "Speed Bumps"' (2019) 11 *Hague Journal on the Rule of Law* 447; Yaniv Roznai, 'Who Will Save the Redheads? Towards an Anti-Bully Theory of Judicial Review and Protection of Democracy' (2020) 29 *William & Mary Bill of Rights Journal* 327.

80 Rosalind Dixon, 'Strong Courts: Judicial Statecraft in Aid of Constitutional Change' (2021) 59 *Columbia Journal of Transnational Law* 298; Dixon, n 24 above, 245-270; Tew, n 51 above.

81 Kavanagh, n 3 above, 13-17. See also Aileen Kavanagh, 'Keeping it Real in Constitutional Theory' (2023) 1 *Comparative Constitutional Studies* 244, 255-257 (suggesting that the idea of constitutional collaboration is best understood as developed through a bottom-up, inductive method of close attention to constitutional practices on the ground in countries such as the United Kingdom, or what she labels 'a phenomenological approach which is simultaneously "grounded

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'salient features include a general adherence to the principle of democracy, the separation of powers, the protection of rights, and the rule of law'.[82]

This parallels the approach taken by Jeremy Waldron, in suggesting that his argument for an exclusively legislative or a 'political' constitutional model of constitutional rights protection applies only to systems in which there is: (i) a representative legislature elected on the basis of universal adult suffrage; (ii) a set of judicial institutions, again in reasonably good order, set up on a nonrepresentative basis to hear individual lawsuits, settle disputes, and uphold the rule of law; (iii) a commitment on the part of most members of the society and most of its officials to the idea of individual and minority rights; and (iv) persisting, substantial and good-faith disagreement about rights (ie about what the commitment to rights actually amounts to and what its implications are) among the members of the society who are committed to the idea of rights.[83] This stylised set of preconditions has also been the subject of criticism, including on the grounds that they fail to account for the dynamic and fluid nature of most real-world polities, or to describe almost any actual real-world constitutional system today.[84]

Kavanagh's theory could be subject to similar objections to those raised in response to Waldron, namely: that the theory does not have wide application beyond (or even in) the UK context.[85]

The idea of collaboration as a *value*, however, has a much broader potential scope of application: as a pragmatic as well as principled commitment, it can inform constitutional decision-making in a wide range of well-functioning and at-risk democratic constitutional systems.

Take South Africa as an example. In South Africa in the mid-1990's, the transition to a multi-racial democracy occurred against the backdrop of a long history of racial injustice and state arbitrariness and oppression.[86] What was crucial, therefore, was that public institutions gave priority to the values of accountability, justification and contestation – as offering a break from this authoritarian apartheid past. The case for a collaborative constitutional model, in contrast, was much weaker: it evoked apartheid-era notions of collaboration as a source of repression. But as a *value*, collaboration was still arguably relevant: it helped promote constitutional compliance with the new constitutional dispensation, and thus broader commitments to constitutionalism and the rule of law.

in practice and oriented towards principle"'), and discussion in Mariana Canales Subercaseaux, 'Review of Aileen Kavanagh, The Collaborative Constitution' (2023) 21 *International Journal of Constitutional Law* 1620, 1621.

82 Kavanagh, n 3 above, 18.

83 Jeremy Waldron, 'The Core of the Case Against Judicial Review' (2006) 115 *Yale Law Journal* 1346, 1360. Compare Richard Bellamy, 'Political Constitutionalism and the Human Rights Act' (2011) 9 *International Journal of Constitutional Law* 86, 91.

84 Samuel Issachroff, 'Judicial Review in Troubled Times: Stabilizing Democracy in a Second-Best World' (2019) 98 *North Carolina Law Review* 1; Theunis Roux, 'In Defence of Empirical Entanglement: The Methodological Flaw in Waldron's Case against Judicial Review' in Ron Levy and others (eds), *The Cambridge Handbook of Deliberative Constitutionalism* (Cambridge: CUP, 2018).

85 See Roux, n 84 above.

86 Mureinik, n 40 above.

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Consider *President of the Republic of South Africa and Others* v *South African Rugby Football Union and Others*, a case which involved a dispute over the governance of South African rugby, and President Mandela's decision to call a commission of inquiry to investigate rugby's governing body. This case arose early in the operation of the 1994 South African Constitution, and of the Constitutional Court. It was therefore an important test of the Court, and the Constitution's capacity to guarantee norms of legal and political accountability – including against a highly popular sitting president. Both President Mandela and the Court itself also helped ensure that the Constitution passed this test – in part by demonstrating commitments to inter-branch comity and collaboration. The President was called to give evidence before the High Court, and while he could easily have declined to appear, he agreed to do so – as a show of respect or comity toward the courts and their role in the new constitutional order.[87] The Constitutional Court also displayed reciprocal respect and comity toward the President.[88]

Just as important, for the Court's perceived legitimacy, the Court showed the same respect toward non-state parties, including the head of rugby's governing body, who accused five members of the Court of appearing biased toward the President, and sought their recusal on that basis. Here, there was no principled basis for comity or respect, according to the norms of the collaborative constitution. But there was a strong pragmatic case for showing respect: demonstrations of respect tend to beget reciprocal respect and compliance, and hence are an important part of the strategic toolkit of courts seeking to promote compliance with a constitution and their own rulings.[89] And this is exactly what the Court did, in taking seriously the allegations of apprehended bias, and carefully responding to them – without any criticism of the conduct or good faith of the party making those arguments.[90]

Over time, the relevance of collaboration as a value also increased. For instance, the 1996 Constitution contained a broader range of commitments substantive social, economic and political transformation, which required strong support from all state institutions and actors in civil society. Hence, collaboration gained greater importance as a constitutional value.

But equally, the risk of democratic backsliding also increased as the original generation of ANC leaders retired and they were replaced with political leaders with a less profound commitment to democracy and the rule of law.[91] In the

87 *President of the Republic of South Africa and Others* v *South African Rugby Football Union and Others* [1999] ZACC 11 at [85], noting that the Court was not aware of any case 'in which a head of state has been required to give oral evidence in review proceedings to justify a decision taken as part of his or her official duties', but that over the objectives of counsel, the President was 'ordered to give evidence, honoured the order, came to court at considerable inconvenience to himself, and was cross-examined for more than a day'.

88 *ibid* at [85]-[125].

89 Compare Dixon, n 80 above.

90 See *President of the Republic of South Africa and Others* v *South African Rugby Football Union and Others* n 87 above. See discussion in Stu Woolman, 'Civilization and its Malcontents' (2000) 16 *South African Journal on Human Rights* 350.

91 See discussion in Rosalind Dixon and Theunis Roux, 'Marking Constitutional Transitions' in Tom Ginsburg and Aziz Z. Huq (eds), *From Parchment to Practice: Implementing New Constitutions* (Cambridge: CUP, 2020).

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face of this, collaboration gained increasing importance as a *strategic* value – that could help institutions buffer themselves against the potential for backlash, from ANC elites and their supporters, in the context of efforts to enforce basic commitments to constitutionalism and the rule of law. But it also gained a distinctive cast or scope, involving collaboration among courts, other 'fourth branch' bodies and the National Assembly, in an effort to hold the president (i.e., executive branch) to account. Collaboration, in other words, became a select rather than general virtue, and one aimed at promoting democratic accountability and resilience rather than collaboration as an intrinsic constitutional value.

Consider *Economic Freedom Fighters* v *Speaker of the National Assembly and Others; Democratic Alliance* v *Speaker of the National Assembly and Others*[92] (*Economic Freedom Fighters*), known as the *Nklanda case*. The background to this case involved allegations of unethical conduct on the part of (then) President Jacob Zuma: Zuma was alleged to have used public funds to fund discretionary, personal improvements (as opposed to security upgrades) to the presidential residence. This led the Public Protector to investigate, and make adverse findings against the President, including a finding that he should be required to repay part of the relevant amount incurred for these improvements, and report to the National Assembly within 14 days as to his response.[93] The response from Zuma's supporters, however, was one of defiance: they rallied around the president, suggesting he had done nothing wrong, and should in no way comply with this finding.[94] The president himself rejected the substance of the report, and indicated that he viewed its findings as in any event purely advisory in nature.[95] The result was that the National Assembly appointed an ad hoc committee to inquire into the matter, and the (ANC-dominated) committee exonerated the President from any liability.[96]

Opposition parties (the Economic Freedom Fighters joined later by the Democratic Alliance), however, then took the case to the Constitutional Court. And the Court upheld their claim, holding that the Public Protector's findings were binding on the President and the National Assembly's exoneration was invalid. The Court further ordered the Treasury to calculate the amount Zuma was required to repay, and to report back to the Court on this within 60 days.[97]

Zuma eventually repaid approximately $US631,000, which the Treasury deemed to be reasonable.[98] He also faced a series of no confidence motions and impeachment attempts, which he survived until 2018, but which increased

92 *Economic Freedom Fighters* v *Speaker of the National Assembly and Others; Democratic Alliance* v *Speaker of the National Assembly and Others* [2016] ZACC 11.

93 *ibid*. See discussion in Michael Tsele, 'Constitutional Principles and Two Overlooked Problems with the Nkandla Judgment: A Brief Comment' (2018) 135 *South African Law Journal* 220.

94 John Campbell, 'Jacob Zuma and South Africa's Constitution' *Council on Foreign Relations* (Africa in transition, 9 February 2016) at https://www.cfr.org/blog/jacob-zuma-and-south-africas-constitution [https://perma.cc/FE42-A6HA].

95 Aadelah Shaik Yakoob, 'In Light of "Nkandla", What is the Role of the Public Protector in Upholding the Rule of Law in South Africa' (2016) 10 *Pretoria Student Law Review* 170, 171.

96 *ibid*, 172.

97 *Economic Freedom Fighters* n 91 above at [105].

98 'South African Court Delivers Zuma Impeachment Blow' *BBC News* 29 December 2017 at https://www.bbc.com/news/world-africa-42510304 [https://perma.cc/F9PH-D7S2].

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the pressure for political accountability for his actions.[99] The result was a form of collaboration among various branches of government – the fourth branch (i.e., the Public Protector), the Court, the executive (the Treasury) and the legislature (and especially opposition parties and factions within the ANC), to uphold legal commitments to the oversight of public expenditure.[100] And this collaboration was effective in upholding these commitments, and hence broader forms of legal and political accountability under the Constitution.[101]

But it was also a collaboration underpinned largely by pragmatic considerations, namely a desire to buttress guarantor institutions from political backlash from a sitting president and his supporters. It was not a principled calculation about comity and restraint – considerations that arguably weighed in favour of deference to a sitting president, rather than an order compelling parliament to enforce norms of accountability against that president.

CONCLUSION

Constitutional collaboration is deeply valuable: it helps highlight the interconnected, polyvocal nature of constitutionalism in almost all real-world constitutional systems. And as a strategic tool, it can help promote more stable, legitimate and effective forms of constitutional implementation. In this sense, it is closely related to the idea of 'relational' constitutionalism and judging;[102] or to the idea of institutional cross-collateralization.[103]

For this reason alone, *The Collaborative Constitution* is an important book: it helps highlight and remind us of these arguments. Related arguments can be found in earlier work by Kavanagh herself, as well as that of Nick Barber, Marta Cartabia, Jeff King, Dimitrios Kyritsis, David Landau and myself, Philip Joseph, Dinesha Samararatne and Alison Young, among others.[104] But *The Collaborative Constitution* brings these arguments together, and gives them new texture and tone, in ways that have given them new relevance and life in today's constitutional context. And for this, we should be extremely grateful to Kavanagh.

99 *ibid*. 'South Africa's Jacob Zuma Resigns After Pressure from Party' *BBC News* 15 February 2018 at https://www.bbc.com/news/world-africa-43066443 [https://perma.cc/V2P8-EMJH].

100 For an insightful discussion of this dynamic in this and other contexts, see Heinz Klug, *The Constitution of South Africa: A Contextual Analysis* (Oxford: Hart, 2nd ed, 2025, forthcoming) ch 7.

101 Omololu Michael Fagbadedo and Nirmala Dorasamy, 'Judicial Review as an Accountability Mechanism in South Africa: A Discourse on the Nkandla Case' (2022) 4 *African Journal of Inter/Multidisciplinary Studies* 126; Mojalefa L. J. Koenane, 'Politics without Morality and Accountability: The Nkandla Case from a Deontological Perspective' (2017) 13 *The Journal for Transdisciplinary Research in South Africa* a383.

102 Cartabia, n 23 above.

103 Dixon, n 24 above.

104 Nicholas W. Barber, *Principles of Constitutionalism* (Oxford: OUP, 2018) 71; King, n 4 above, 139; Cartabia, n 23 above; Dinesha Samararatne, 'Resilience through Synergy? The Legal Complex in Sri Lanka's Constitutional Crisis' (2022) 9 *Asian Journal of Law and Society* 1; Landau, n 28 above; Dixon and Landau, n 51 above; Dixon, n 5 above; Kyritsis, n 33 above; Dimitrios Kyritsis, *Shared Authority: Courts and Legislatures in Legal Theory* (Oxford: Hart Publishing, 2015); Alison Young, *Democratic Dialogue and the Constitution* (Oxford: OUP, 2017); and Phillip Joseph. 'Parliament, the Courts, and the Collaborative Enterprise' (2004) 15 *Kings Law Journal* 321.

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But we should also be clear that there is an important difference between endorsing these arguments as the basis for constitutional collaboration as a value, compared to holistic constitutional model. As a value, the idea of collaboration can co-exist with and complement ideas of constitutional contestation, accountability and abuse-proofing. In doing so, it can also contribute to the development of a more values-focused, polyvocal approach to constitutionalism. This is to be welcomed on transparency and democracy-related grounds.[105] But as a model, it runs the risk of downplaying these critical constitutional values. And Kavanagh's important work should be read, and situated, with this understanding in mind.

105 Dixon, n 10 above; Rosalind Dixon, 'The Functional Constitution: Re-Reading the 2014 High Court Constitutional Term' (2019) 43 *Federal Law Review* 455.

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REVIEW

Hanna Schebesta and *Kai Purnhagen*, **EU Food Law**, Oxford, Oxford University Press, 2024, 432 pp, hb, £110.00

Anyone interested in food system reform should acknowledge the importance of EU law and learn to recognise its strengths and weaknesses, so as to fully harness its transformative potential. This is no easy task, for EU food law is a fragmented field, built on a complex canvas of competences – a 'web', as the authors would call it (34) – and composed of a myriad of secondary law instruments affecting the entire food chain, from production to processing and consumption. The agri-food business is one of the most regulated sectors in the EU, reflecting both its economic weight and the EU's commitment to protecting the health of its citizens. Regulating food means engaging with thorny scientific and political issues, for food is a cultural medium that touches upon Europe's core heritage. Against this background, *EU Food Law* is a genuine tour de force. Hanna Schebesta and Kai Purnhagen have combined their unique expertise to offer the readers a comprehensive overview of the field. The authors have gathered an impressive amount of legal material, presented in a thorough yet accessible manner. They strike a good balance between describing the law as it stands and looking ahead at new challenges. Central to their critique is the EU's failure to fully embrace a new 'sustainability' paradigm, addressing the poor environmental performance of the EU food system. The 2020 Farm to Fork Strategy, which heralded this sustainability turn, has yet to be translated into concrete and meaningful actions.

The book fills a gap in EU law scholarship. The last monograph on the issue, *EU Food Law: Protecting Consumers and Health in a Common Market* (Oxford: Hart Publishing, 2007), by Caoimhin MacMaoláin, was published ten years ago. Much has changed since then. Despite its importance, EU food law has not attracted the interest that it deserves. The book's contribution is therefore also to establish, implicitly and explicitly, 'EU food law' as a relevant and legitimate field of study and research. This has both descriptive and normative implications. Legal categories matter because they are the key concepts through which we understand and navigate the law. That also means that building a legal category is never neutral. It is a conceptual and editorial exercise which involves bringing together certain materials and excluding others. It also reflects the way an author sees the field and where its interests lie. My review will hence focus on highlighting and critically engaging with the choices made by the authors, in order to provide the reader with a different and complementary way of looking at some of the issues and instruments selected. As a general comment, I shall say that, as a public health scholar interested in the role that

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the law can and should play to reduce obesity and related nutritional risks (cancer, diabetes, etc), I regret that the book largely overlooks these issues. Healthy diets and nutrition are an important analytical frame for EU food law. That frame is not only socially relevant; it is also grounded in EU food policy itself. Amandine Garde's *EU Law and Obesity Prevention* (Alphen aan den Rijn: Kluwer Law International, 2010) bears testimony to this.

EU Food Law is divided into eight parts and three main clusters: first, the legal foundations of EU food law (Chapters 1 to 4 – Chapter 3 covers EU institutions and will not be dealt with here); second, the general food law legislative framework (Chapters 5 and 6), and third, the specific subdomains of the EU food law acquis (Chapters 7 to 17); including international food law (Chapter 18 – which I will also not comment on because of my limited expertise). In Chapter 1, the authors provide a historical and thematic account of EU food law's evolution, analysing the main driving forces behind it. They single out four political paradigms: the common agricultural policy (CAP); the common/internal market; food safety; and transparency. The three first paradigms undeniably form the bedrock of EU food law, ensuring the production, distribution and free movement of a safe and plentiful food supply in the EU. The fourth one appears more surprising. Transparency refers here to the Transparency Regulation (2019/1381), adopted to improve EU communication about food risks and enhance consumers' trust in the safety of foods. While an important aspect of EU food law, transparency can hardly be put at a level similar to the three other paradigms, which have inspired the bulk of the EU food acquis and continue to influence most of its legislative developments, as appears from the book. This might explain why transparency is no longer mentioned in the conclusion. A fifth aspirational paradigm is mentioned, sustainability, which the authors use as an analytical frame throughout the book. Undeniably, this is where the future of EU food law lies, in building a fair, healthy, and environmentally friendly food system, one that ensures access to safe and nutritious food while limiting the impact of the sector on climate and biodiversity. It is estimated that the EU's agriculture and food sector contributes to over 30 per cent of the greenhouse gas emissions of the region. As already mentioned, I believe that another paradigm exists in EU food law, one that might be called 'health and nutrition', built on the 2007 Strategy on Nutrition and Obesity and on the 2020 Farm to Fork Strategy, the latter emphasising the need to transition to a plant-based diet. This paradigm is not only aspirational. As recognised by the authors, a variety of health-related food legislation 'is slowly replacing and/or accompanying EU food law with its traditional focus on "safety"' (49). One may also regret that, despite setting it as a key paradigm and acknowledging that it remains a separate policy track, 'politically and legally' (14), the authors did not devote a separate chapter to the CAP. To be more specific, a deeper dive into the CMO Regulation would have been of added value. Indeed, the CMO quality standards 'represent a crucial element of EU food law in a narrow sense, as they pertain directly to food products, rather than the organisation of the agricultural markets' (13).

Chapter 2 addresses the EU's competence to regulate food. Because no specific 'food' competence exists in EU law, EU food law is based on a 'web'

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of legal bases belonging to other related policy fields, including agriculture, internal market, and environment. The 'lion's share' of EU food legislation is based on Article 114 TFEU, the internal market legal basis, which reflects the commodified status of food (42). Harmonisation is the vessel through which the EU regulates the sector and secures the free movement of foods. In EU law, food is primarily seen as a good to be traded freely across borders, which explains in part the weakness of approaches based on sustainability, nutrition and the right to food. While the (over)use of Article 114 TFEU finds its source in the relative weakness of the EU's powers in other fields (for example health or consumer protection), the authors are right to stress that other legal bases could also be used. Article 192 on the environment stands out, one advantage being that, unlike under Article 114 TFEU, all EU environmental legislation is of a minimum harmonisation nature, a model that is more protective of non-market interests. While Article 114 TFEU does not prevent recourse to minimum harmonisation, it naturally pulls towards maximum harmonisation, which is better at providing a level-playing field benefitting food business operators.

Chapter 4 deals with internal market law, more specifically with the constraints that the free movement of goods sets on national regulatory autonomy in the realm of food. The chapter mostly focuses on TFEU free movement provisions, Article 34 TFEU in particular, but also addresses secondary law instruments meant to operationalise or deepen free movement principles, such as the Single Market Transparency Directive (2015/1535) and the Mutual Recognition Regulation (2019/515). The authors provide a unique and authoritative overview of free movement cases on food, establishing a useful typology of restrictive measures adopted by Member States. One could have hoped for more engagement with justification and proportionality. Understanding the Court's interpretation of what constitutes a legitimate public intervention is essential for anyone interested in the regulation of the food sector. Yet, the Court's case law is also notoriously difficult to decipher and systematise. The division of cases between the pre- and the post-Lisbon Treaty eras reflects the fact that, over the last two decades, TFEU free movement of goods provisions have lost much of their significance. There is a clear decline in the number of cases adjudicated by the Court of Justice under Article 34 TFEU, whether through the preliminary reference procedure (Article 267 TFEU) or the infringement procedure (Article 258 TFEU). This is not only true in relation to food. This is for a large part due to the fact that the food sector is widely harmonised, as the book itself shows, and because of the proceduralising of the internal market via instruments such as the Single Market Transparency Directive and the Mutual Recognition Regulation. As the authors rightly note, because these aspects are not covered in secondary law, we could predict a new wave of sustainability legislation adopted by the Member States, which would then revive the relevance of the TFEU free movement provisions. The likelihood of this increases as the Farm to Fork Strategy continues to be stalled.

The bulk of the book is dedicated to food safety, the dominant paradigm in EU food law, covering both the general food safety legal framework (Chapters 5 and 6) and specific legislation (Chapters 7 to 12): novel foods, GMOs, food improvement agents, hygiene legislation, chemical safety and food contact

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materials. The General Food Law Regulation (GFLR, 178/2002), adopted after the BSE crisis, establishes a safety-oriented legal architecture, with a key role for the European Food Safety Authority (EFSA). The most basic definitions of EU food law are found in the GFLR: for example 'food' (Article 2 – which includes alcohol and other beverages), 'food law', 'food business operator' or 'final consumer' (Article 3). This legal and institutional framework has been successful, allowing the EU to reach one of the highest standards of food safety in the world. At the same time, as underlined by the authors, it is ill-suited to address the two most pressing challenges currently facing the EU food system: its poor environmental performance and its contribution to the rise in non-communicable diseases (including cancer, diabetes, and cardiovascular diseases). The GFLR focuses on a narrow definition of hazard, defined as a biological, chemical or physical agent with the potential to cause an adverse health effect (Article 3), leaving aside environmental or nutritional hazards. To put it simply: in the EU, you cannot sell a food with a fingernail in it, but you can perfectly legally sell a soft drink that contains 10.6g of sugar per 100ml or cured meat with sky-high levels of salt.

The book's last chapters are divided into three parts: 'information' (Chapters 13 and 14), 'quality' (Chapters 15 and 16, covering organic food and quality schemes), and 'nutrition' (Chapter 17). Once again, the choice of these categories and their content raise very interesting questions. There is indeed an overlap between these three terms. Information refers to a specific mode of public or private intervention – informing consumers through labelling, mostly – whose substance may vary. Food quality, narrowly understood, usually refers to the origin and organoleptic properties of a food, but can also encompass characteristics linked to health, safety and nutrition (see 329). In EU food law, and EU law generally, providing information is considered a standard approach to consumer protection, something referred to as the 'information paradigm'. Consumers should be able to make informed choices about the food they consume. While this is not objectionable per se, this paradigm runs into difficulties in practice, for consumers face considerable cognitive and behavioural hurdles to processing the information received and aligning their actions with it. Two main pieces of legislation regulate food information in the EU, the Food Information to Consumers Regulation (FICR) and the Nutrition and Health Claims Regulation (NHCR). Hence, it is logical to group them together, as the authors do. At the same time, this belittles the fact that the NHCR is 'a uniquely health-oriented legal instrument' (304) and that it follows a prohibitive logic fundamentally different from that of the FICR, as recognised by the authors themselves. Under the FICR, on the one hand, food business operators are relatively free to provide consumers with voluntary information. Under the NHCR, on the other, the principle is that claims are prohibited, unless they comply with specific conditions (see in particular Articles 8 and 10). As such, I would disagree with the statement that the NHCR 'does not attempt to steer consumers towards eating in a healthier way' (304). Such an attempt is most visibly seen in the nutrient profiles referred to in Article 4 of the NHCR (see also the treatment of alcoholic beverages, Case C-544/10 *Deutsches Weintor eG* v *Land Rheinland-Pfalz* ECLI:EU:C:2012:526).

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The FICR contains nutrition and health-related provisions as well (Articles 29 to 35 on the nutrition declaration, Article 36 to the extent that it regulates front-of-pack nutrition labelling). All these provisions would have deserved a separate treatment, and could have been regrouped in Chapter 17 on nutrition. Instead, that chapter only covers three relatively minor food-specific instruments: the Regulation on Foods for Specific Groups and Purposes, the Regulation on Food Fortification and the Food Supplements Directive. While it is true that 'EU laws that are specifically dedicated to the content … of nutrition and health are sparse and minimal' (364), the authors' choices reinforce that imbalance rather than highlight the potential of what is already present in the law. Overall, the authors have decided in their presentation to preserve the coherence of each instrument, which is a commendable approach for a book of this type, which combines critical outlook and encyclopaedic ambition.

Food lies at the intersection of law, science, and politics. The regulatory frameworks governing food systems play a pivotal role in addressing some of the most pressing contemporary challenges, including improving public health and ensuring environmental sustainability for future generations. Emerging technologies – particularly artificial intelligence and advancements in the digital economy – represent the next frontier for EU food law. This book critically examines the strengths and limitations of the current EU regulatory regime in meeting these evolving challenges. What emerges from the book, and this brief rendition, is a legal framework focused on food safety, when it comes to its objectives, and on information and product regulation, when it comes to the regulatory tools used. Food environments are largely unregulated, and sustainability and nutrition remain only secondary considerations. '[W]ill EU food law fundamentally change, and when?', ask the authors (405): there is much uncertainty on this, but *EU Food Law* provides the perfect platform to start thinking about it.

*Vincent Delhomme**

*Leiden University

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Allan C. Hutchinson, **Rethinking Legitimacy: Courts, Constitutions and Politics**, Oxford, Hart Publishing, 2025, 192 pp, hb, £90.00

The Supreme Courts of the United States of America and the United Kingdom face increased scrutiny, albeit from opposing sides of the political spectrum. In 2021, speaking to the Public Law Project, the then Minister for Justice, Suella Braverman, claimed that recent decisions of the UK Supreme Court were risking the 'legitimacy and reputation of our judiciary, which is inextricably linked to its political neutrality'. In 2024, the dissenting judgment of Justice Sonia Sotomayor in *Donald Trump* v *United States* (2024) 603 US 593 lamented that, because of the decision of the majority declaring the president immune from criminal prosecution for official actions, '[i]n every use of official power, the President is now a king above the law.' While, in Britain, the Supreme Court is accused of being 'political' because it limits executive authority, in the United States, the Supreme Court is accused of being 'political' because it allows too much discretion to executive authority. Against this backdrop, the need for a re-examination of the constitutional foundations and aims of judicial review could hardly be more apparent. Allan C. Hutchinson's latest book, *Rethinking Legitimacy*, provides a welcome contribution that interrogates the contemporary positionings of law and (or law as) politics, proposing a recentring of the font of judicial legitimacy.

The principal thrust of Hutchinson's argument is 'critical', that is, he believes that law is politics, 'nothing more and nothing less' (2). His ambition is to demonstrate that judicial decisions are intrinsically and inescapably political in style, substance and outcomes. His focus is primarily on the jurisprudence of the Supreme Court of the United States, but he indicates that his arguments apply to most common law systems, supplementing his analysis with jurisprudence of the Canadian Supreme Court. What distinguishes this work, according to him, is that it is his first attempt at providing a constructive answer to how judicial processes can operate if the 'law-is-politics' critique is taken seriously. Further, he distinguishes his work from other critical literature by recognising the professional constraints upon the judiciary. It is from this recognition that Hutchinson claims a solid foundation upon which he builds his constructive suggestions. Rather than being critical in a vacuum: 'if the fact that the law is always and unavoidably political is truly grasped, it becomes possible to recommend ways in which that understanding can become incorporated into juristic practice … as well as live up to the demands of a robust spirit of democratic governance' (8). The overarching aim is to demonstrate that the political nature of the judiciary need not pose a threat to democratic lawmaking. However, it is unclear from the outset that the primary theoretical perspective of the book, namely that law *is* politics, has a defined opponent.

The sole example offered of the desire to keep law apolitical is from Justice Sotomayor during the oral arguments in *Dobbs* v *Jackson Women's Health* (2022) 597 US 215: 'Will this institution survive the stench that this creates in the

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public perception that this Constitution and its reading are just political acts?' (1). Yet even this is not quite contrary to Hutchinson's position, for Sotomayor does not state that the law is *not* political, simply that there is a danger in the court being *perceived* as such. Throughout the rest of the book, the adversarial interlocuter that Hutchinson is grappling with is vaguely referred to as 'the traditional jurist', 'traditional jurisprudence', or 'traditional legal theory'. After one such reference, he cites a previous work of his own on the politics of legal theory (7). After a reference to 'almost all other constitutional jurists and scholars,' he cites a New York Times article rather than any academic source (8). In Chapter 3, Hutchinson discusses a number of jurists, apparently all within the category of 'traditional': Herbert Wechsler, Alexander Bickel, H. L. A. Hart, Ronald Dworkin etc. What 'tradition' these jurists fall into is not explicitly defined, but it is intimated that what unites them all is a quest for 'neutral' principles that exist beyond partisan politics. What is entirely lacking within the book, though, is the presentation by anyone of the argument that law is *not* politics. In fact, Hutchinson even provides a quote from Dworkin stating that law is 'deeply and thoroughly political' (40). Thus, it is unclear who precisely falls within this evasive 'tradition' that Hutchinson takes as his target, and what they have to say about the apolitical nature of law. Even implicitly, clarity cannot be found; there is nothing inherent in the concept of a *neutral* principle that requires it to be *apolitical*. This is something that Hutchinson himself recognises, asking 'why is a neutral principle about politics not itself a political stance?' (33). He does not give any evidence, however, of anyone who states that it isn't. Without clear evidence of his intellectual opposition, Hutchinson's arguments lose much of their persuasive force to the reader, both because the paucity of direct engagement with named scholarly opponents weakens the academic foundation of the critique and because Hutchinson is essentially presenting a rebuttal to an argument that has not been established.

It is hard to find an argument against an invisible opponent convincing. Hutchinson's critique risks seeming to demolish a straw man. This is compounded by the delayed and unsystematic treatment of key concepts. It is only in Chapter 6 that an explanation of the term 'politics' is provided, despite it being central to the key thesis: it is 'as much structural and systemic as it is personal and discrete – the nature of the individual, the organisation of society, the relationship between an individual and society, the role of government, institutional legitimacy (including the court's own), the distribution of power, democratic dynamics, and the like' (84). In Chapter 7, Hutchinson expands this to include 'legal theorising' within the definition of politics. When the core argument of the book relates to the concept and definition of politics, it would have been beneficial to outline at the outset how this concept is to be used.

Hutchinson is a self-proclaimed critical pragmatist, meaning that he is politically and epistemologically anti-authoritarian, denying 'the possibility that there is some overriding method that can deliver and warrant a fixed notion of truth or correctness that is beyond dispute or revision' (105). While conceding that, '[as] a pragmatist,' Hutchinson is 'less concerned with coherence and analysis' than 'the consequences of legal theory' (107), it must also be conceded that inconsistency makes an argument less persuasive. For

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example, when proposing 'constructive' amendments to the processes of the courts, Hutchinson suggests that, broken free from traditional theory, curial argumentation 'can be a suitable mix of the political and the legal' (156). Given that the premise of the book is that the legal *is* political, it is unclear what this is intended to mean. On this view, surely argumentation in court should already – and must always – be entirely political?

The strongest elements of this book are found when Hutchinson engages in discussions with an empirical bent. Chapter 2 contains a sociological discussion of curial legitimacy, divided into two elements: substantive and procedural. Substantive legitimacy is related to the outcomes of judicial decisions. If the outcomes conform to expectations, then legitimacy is maintained. Outcomes that diverge from expectations present a challenge to the legitimacy of the court. Procedural legitimacy speaks to the methods by which the court reaches its decision, primarily the reasoning provided. If judges do not act in a way that is perceived as appropriate or their reasoning is incoherent or overtly partisan, the legitimacy of the court is challenged. Hutchinson ultimately contends that substantive legitimacy should be afforded more weight than procedural legitimacy, the latter being overvalued because of the assumption that law and politics ought to be separate. In Chapters 4 and 5, he convincingly demonstrates that formal legal reasoning can conceal the true normative division within majority and dissenting judgments. The main examples he provides are the related cases of *Roe* v *Wade* (1973) 410 US 113 and *Dobbs* v *Jackson Women's Health Organisation*. The former established the constitutional right to abortion in the United States, whereas the latter abolished it. While the majority reasoning in *Roe* v *Wade* is 'weak and unconvincing' (67), both the majority and minority judgments in *Dobbs* v *Jackson* accuse the other of being an unprincipled misinterpretation of the US Constitution. Freed from the expectation to be consistent with precedent and other legally artificial standards, Hutchinson suggests that judges could more honestly articulate the normative justifications for their decision. The legitimacy of the court would then primarily be determined by the substance of its decision: 'rather than being a bogus trade in so-called constitutional verities or neutral principles, the worth of constitutional law would be measured in terms of its capacity to protect and enhance the democratic society that it is supposed to serve' (117).

Another sociological insight offered by Hutchinson, that is particularly prescient given the aforementioned recent decision in *Donald Trump* v *United States*, is that the more a supreme court is understood to be the guardian (or embodiment) of the constitution, the less inclined other arms of the state will be to feel bound by the reasonable meanings of the constitution, and instead adopt a 'see-what-we-can-get-away-with mentality' (158). When constitutional interpretation is uniquely the province of the judiciary, intertwined with legal jargon and the pretence that the law is separate from ordinary politics, politicians become divorced from the laws intended to limit their powers. When the constitution is seen as a legal document rather than a political one, those in the political sphere are less inclined to pay attention to it. Hutchinson hopes that redefining the constitution as political will 're-animate citizens authority and primacy in democratic politics' (159).

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Chapters 7 through 11 contain Hutchinson's attempt to recentre the font of legitimacy and examine the consequences that flow from this recentring. Jurisprudentially, legal reasoning must eschew formalism and explicitly embrace political and social complexities; judges must be understood as political agents; constitutional law should not be understood as self-contained but influenced by politics, economics and sociology; the court should be deprioritised as the oracle of constitutional law; and judicial review need not be ultimately squared with democracy. Judges ought to be more open and candid about their political views. Legal reasoning ought to expressly grapple with political disputes and values. Courts ought to be more accessible – financially, physically and intellectually – to members of the public.

These proposals make one revisit the theoretical position that Hutchinson adopts: critical pragmatism, which eschews any desire for universal truths or principles. Yet all the proposals contained within these chapters appear to assume fidelity to progressive liberal democracy of the kind imagined by Dworkin or Hart. Indeed, Hutchinson many times expressly champions these values: 'Chemerinsky is on the right track when he recommends that critics develop a reading of constitutional law that is more conducive to a progressive liberalism' (110); 'a pragmatic approach to constitutional law and decision-making is the most fitting complement to … any society that is committed to principled and democratic governance' (131). Hutchinson's constructive project appears to rest on precisely the kind of foundational commitments his critical framework rejects, creating an unresolved theoretical tension.

Ultimately, *Rethinking Legitimacy* must be commended for addressing the crisis in legitimacy faced by the courts and attempting to propose constructive alternatives to the current state of affairs, many of which are with value. The book integrates a range of considerations from legal reasoning, sociological legitimacy, judicial propriety, political philosophy and legal theory. As such, it may appeal to a broad range of specialists, or indeed people grappling with issues of judicial legitimacy for the first time, who will gain an introduction to a breadth of constitutional disputes and perspectives. However, the work would be stronger if it focussed uniquely upon the failures of courts to live up to their own standards, as a sociological and empirical examination of curial practices. It is, in my view, unfortunately, weakened by its attempt to attack what is essentially a conceptual problem, requiring rigorous analytical precision, with pragmatic means.

*Craig Wells**

* University of Kent

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